



Contract No. 23000004767

CONTRACT

This contract, made this 2nd day of December A.D., 2022, between the City of Richmond, Virginia, by the Department of Procurement Services, hereinafter referred to and designated as "City", and

Jeffrey Stack, Inc., d.b.a. JSI Paving and Construction phone 703-906-4070
P.O. Box 280
Jersey, Virginia, 22481 email: jstack@jsipac.com
54-1320120 contact name: Jeffrey S. Stack, President

or his, its or their successors, executors, administrators and assigns, hereinafter referred to and designated as "Contractor";

WITNESSETH: That the said Contractor agrees with the said City, for the consideration herein mentioned, and at his, its or their own proper cost and expense to do all the work and furnish all the materials, equipment and labor necessary to carry out this agreement in the manner and to the full extent as set forth in the notice to bidders, specifications, general and special provisions, proposal, plans and drawings, and all documents referred to, and under security as set forth in the attached contract bond, which are hereby adopted and made part of this agreement as completely as if incorporated herein, and to the satisfaction of the City of Richmond, who shall have at all times full opportunity to inspect the materials to be furnished and the work to be done under this agreement.

It is agreed that the work to be done under this contract for the Mary Munford ES Pedestrian Improvements consist of the construction of Pedestrian Safety Improvements at Mary Munford Elementary School to provide general contracting services that include, but are not limited to installation of school-zone flashers assembly, signage, sidewalk, wheelchair ramps, and cross walk markings. Contractor to perform the work in accordance with the terms of IFB No.230000423 (UPC # 110843); Mary Munford ES Pedestrian Improvements; and all addenda, notice to bidders, specifications, general and special provisions and conditions, bid, plans and drawings and all documents referred to explicitly included and made part of this contract by reference. The Maximum Authorized Contract Amount is Three Hundred Sixty-Three Thousand Four Hundred Thirty-Five dollars and 50/100 U.S. Dollars (\$363,435.50). The performance time is 180 consecutive calendar days in accordance with the Project Book.

In consideration of the foregoing premises, the City agrees to pay to the Contractor for all items of work performed and materials furnished at the prices and under the conditions set forth in accompanying proposal. In addition, all payments to MBE subcontractors must be verified by indicating date and amount of payment and accompanied by the Affidavit of Claims.

APPROVED:

Jeffrey Stack, Inc, d.b.a. JSI Paving and Construction

NAME (Printed)

(Signature)

(Title)

(Date)

R. W. [Signature] 12-22-22
Director of Procurement Services Date

WITNESS:

ATTEST:

APPROVED AS TO FORM:

ASST CITY ATTORNEY

City of Richmond
Procurement Services



900 East Broad Street, Room 1104
Richmond, Virginia 23219-6131
(804) 646-5716

11-9-22
Date

NOTICE OF INTENT TO AWARD

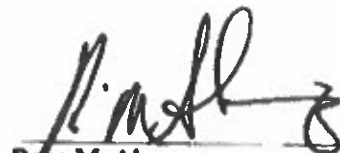
IFB# 230000423
Mary Munford ES Pedestrian Improvements
UPC #110843

Please be advised that the City intends to award the above referenced project to:

Jeffrey Stack, Inc., d.b.a. JSI Paving and Construction
PO Box 280
Jersey, VA 22481

Thank you,

Jerry A. Tuttle
Senior Procurement Analyst


Rene M. Almaraz
Director of Procurement Services

**CITY OF RICHMOND
DEPARTMENT OF
PROCUREMENT
SERVICES
RICHMOND, VIRGINIA
(804) 646-5716**

August 4, 2022



**Invitation for Bids No. #230000423
for
Mary Munford ES Pedestrian Improvements
Project (UPC 110843)**

Due Date: Sept. 14, 2022

Time: 11:00 a.m.

Receipt Location: City Hall, 900 East Broad Street, 11th Floor, Room 1104

NOTE: Bidder choosing to submit proposals through **hand-delivery** should allow extra time for delivery of bids. Hand-delivered bids will be accepted only during the hours of 9:00 am to 4:00 pm Monday through Friday at the 9th Street entrance to City Hall at 900 East Broad Street, Richmond, Virginia 23219. Bidders choosing to hand-deliver bids must sign in at the security desk on the 1st Floor before delivering proposals to the 11th Floor, Suite 1104. Bids will not be accepted after the Due Date and Time listed above.

Request for Bid Prepared by:

Name: Jerry A. Tuttle

Title: Senior Procurement Analyst

Office: (804) 646-1820

Fax (804) 646-5989

Mobile: (804) 539-4406

Email: jerry.tuttle@rva.gov

Department of Procurement Services

<https://www.rva.gov/procurement-services/solicitations>

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BID FORM

SEALED BIDS WILL BE RECEIVED at the Department of Procurement Services, City Hall, 900 E. Broad Street, Rm. 1104, Richmond, Virginia 23219, UNTIL BUT NOT LATER THAN 11:00 a. m. ON Wednesday September 14th, 2022 AND WILL BE OPENED 11:00 a. m ON Thursday September 15, 2022.

To Procurement Services, Room 1104; 900 East Broad Street, Richmond, Virginia:

For the construction of the **Mary Munford ES Pedestrian Improvements Project (UPC 110843)**

Made by: _____
(Name and Title of Individual Executing the Bid)

Name of Bidder: _____
(Company Name)

Full Address: _____

City and State: _____

Phone Number: _____ Fax Number: _____

Email Address: _____

Virginia Contractor's Registration Number: _____

Federal Tax Identification Number: _____

By submission of this bid and authorized signature therein, the above-named Bidder certifies and affirms compliance with all terms and conditions herein and declares that:

- 1) the Bidder is of lawful age and that no other person, firm, corporation or joint venture has any interest in this Bid or in the Contract proposed to be entered into.
- 2) the Bid is made without any understanding, agreement, or connection with any other person, firm, corporation, or joint venture making a Bid for the same purposes, and is in all respects fair and without collusion or fraud.
- 3) the Bidder is not in arrears to the City of Richmond, upon debt or contract; is not a defaulter, as surety or otherwise, upon any obligation to the City of Richmond; and has not been delinquent or unfaithful in any former contract with the City of Richmond.
- 4) no officer or employee or person whose salary is payable in whole or in part by the OWNER is, shall be, or become interested, directly or indirectly, as a contracting party, partner, stockholder, surety or otherwise, in this bid, or in the performance of the Contract, or in the supplies, materials, or equipment and work or labor to which it relates, or in any portion of the profits thereof.
- 5) in compliance with Sec. 3.3 of the General Conditions of the Contract, the Bidder has carefully examined the site of the work and that, from his own investigations, is satisfied as to the nature and

location of the work, the character, quality, and quantity of materials and the kind and extent of equipment and other facilities needed for the performance of the work, the general and local conditions and all difficulties to be encountered, and all other items which may, in any way, affect the work or its performance.

- 6) That the Bidder has thoroughly examined and is familiar with copies of the Contract Documents and the following addenda receipt of which is hereby acknowledged.

Addendum No.	_____	Dated	_____
Addendum No.	_____	Dated	_____
Addendum No.	_____	Dated	_____
Addendum No.	_____	Dated	_____

If none, write "none"

- 7) The Owner will award the Contract to the responsive and responsible Bidder whose Bid contains the lowest Total Unit Price Base Bid unless otherwise provided by law. Subject to the availability of funds, the Owner will decide in its sole discretion whether to award each additive Bid Item to that Bidder.
- 8) The undersigned furthermore agrees to perform at the request of the Owner, any related extra (or less) work than required by the Contract Documents which may arise during construction on the basis of a lump sum, unless noted otherwise, negotiated between the Contractor and the Owner for said extra (or less) work or for a compensation of actual cost of labor, material and equipment rental involved in said extra (or less) work plus a percentage computed as listed below for overhead and profit as described in the Conditions of the Contract:

Where the work is performed by the Contractor's own forces, the percentage shall be _____ percent (____%) of the cost of the work for overhead and or profit, not to exceed 15%. Where work is performed by a subcontractor, the percentage due to the subcontractor plus the General contractor's mark-up shall be _____ percent (____%) of the cost of the work for overhead and profit, not to exceed 25%.

- 9) If accepted by the Owner, the Bidder shall execute the contract and furnish, satisfactory to the Owner, a Performance Bond and Payment Bond for labor and materials in accordance with the General Conditions of the Contract unless so stated elsewhere in the bid documents.
- 10) Bidder agrees that no contract shall result from the submission of his bid and no liability shall accrue with respect thereto until a written contract and accompanying documents have been fully and completely executed on the part of the successful bidder and the Owner.
- 11) The undersigned further agrees to complete the work as bid within **180** consecutive calendar days after Notice to Proceed. As the time allotted for the completion of the Work is of the essence, if the work is not completed within specified time for the completion of the Work, there shall be deducted from the contract price, not as a penalty but as liquidated damages, **\$350** for each and every calendar day of delay in the completion of the work beyond the time specified, subject to all the terms of the General Conditions.
- 12) Accompanying this Bid is a certified or cashier's check in accordance with the General Conditions made payable to the City of Richmond in the sum of _____ Dollars (\$ _____) which check is to be forfeited as liquidated damages if, in case this Invitation

for Bid is accepted, the undersigned shall fail to execute the attached contract in accordance with the General Conditions; **OR** a Bid Bond for not less than five percent (5%) of the bid amount set forth in item 14 of this Bid Form. Should the bidder so elect, said check will be returned to the undersigned upon delivery of a satisfactory bond.

13) Bidder certifies that he is properly registered as a licensed contractor or will be registered as a licensed contractor at the time of award of contract under Title 54.1 of the Code of Virginia (1950), as amended. The number and expiration date is affixed below.

14) For the consideration set forth, and identified by this signature, (EACH BID SHEET CONTAINING A PRICE REPRESENTATION MUST HAVE THE SAME SIGNATURE AS ABOVE IN THE SPACE PROVIDED), the Bidder proposes to furnish all materials, tools, labor and equipment of every description, except such materials specified to be furnished by the Owner, necessary to accomplish all work required by and in accordance with the Request for Qualification (if applicable), drawings, specifications, General Conditions, special provisions, bid forms, contract, bond, and any addenda associated with this project, all of which are hereby made a part of this Invitation for Bid.

Total Lump Sum Base Bid – The base bid includes all supervision, labor, material, equipment and other work necessary and required in accordance with the drawings and specifications for the **COMPUTED PRICE SHOWN ON THE BELOW PRICE SCHEDULE** of

(Price in Words)

\$ _____
(Price in Figures)

In submitting this bid, it is understood that the City of Richmond, Virginia, reserves the right to reject any and all bids or to award in whole or in part as determined to be in the best interest of the City. It is agreed that this Bid may not be withdrawn for a period of 60 days from the opening thereof.

Respectfully Submitted,

(Name of Individual, Firm, or Corporation making bid)
By _____
(Signature)

Virginia Contractor's Registration Number

Federal Tax ID Number

PART 1 – STATEMENT OF WORK

1.0 **Purpose.**

The City of Richmond is accepting bids for the construction of **Pedestrian Safety Improvements at Mary Munford Project (UPC 110843)** to provide general contracting services that include, but are not limited to installation of school-zone flashers assembly, signage, sidewalk, wheelchair ramps and crosswalk markings.

2.0 **General Information.**

2.1 *Acronyms & Definitions*

The Definitions, Abbreviations, Acronyms and Terms as presented in Section 101 of the *2016 Virginia Department of Transportation Road and Bridge Specifications* are incorporated by reference. The additional following is a summary of Acronyms and Definitions as noted within this document. Use of these terms will be throughout this section.

<u>A&E of Record</u>	Architect or Engineer of Record for the project.
<u>ADA</u>	American's with Disabilities Act.
<u>Agency</u>	Refers to the City of Richmond and other representative departments responsible for the oversight of the proposed project.
<u>AHJ</u>	Agency having Jurisdiction.
<u>CAD</u>	Computer Aided Design generated documents.
<u>CD</u>	Compact Disc.
<u>CO</u>	Contracting Officer.
<u>COR</u>	Change Order Request
<u>GC</u>	General Contractor.
<u>Complete in Place</u>	Means all work shall be fully completed and not left in an unfinished condition, prior to engaging in any additional tasks.
<u>Owner's Representative</u>	Designated party that has been delegated authority to conduct inspections, monitor and / or perform testing and report to owner all and any issues of significance.
<u>PDF</u>	Portable Document Format, file format used to represent documents in a manner independent of application software, hardware and operating systems.

<u>PII</u>	Personal Identification Information, information that reveals an individual's identity to information that is deemed confidential and private.
<u>PM</u>	City Project Manager or designated authority.
<u>Project Closeout</u>	Term utilized to describe certain collective project requirements, signifying completion of the work that is to be fulfilled to achieve contract completion in preparation for final payments to the respective parties.
<u>RFI</u>	Request for information, formal written submittal to the A&E of Record, the contracting officer, to obtain further clarification on matters relating to the solicitation process, contract documents, construction documents, or other subject matter relating to construction phase activities.
<u>SC</u>	Subcontractor, a designated firm in which a contractual agreement is binding between the Construction Manager/General Contractor.
<u>SSC</u>	Sub-subcontractor, a designated firm in which a contractual agreement is binding between the Subcontractors.
<u>Third Party</u>	Designated as a company, firm, or special inspections service provider that is under a contractual agreement with the City of Richmond, to perform professional and/or non-professional services for the project.

2.2 General

2.2.1 Short Description

This project will provide for the installation of School zone flashers device at two locations on Cary St and Grove Ave between Willway Ave and Woodlawn Ave, update of crosswalks markings on Grove Ave at Commonwealth Ave and Westmoreland St, replace various pedestrian and school related signage, and install ADA wheelchair ramps within the project area.

The project will be referenced by the description provide below:

Pedestrian Safety Improvements at Mary Munford Project

UPC 110843

State Project: U000-127-S11

Federal Project No: HSIP-5A27(670)

City Project No: 106423

Award Numbers: 500934/500964

DPW Drawing No: O-28891

2.2.2 Background

The City of Richmond, in conjunction with Virginia Department of Transportation (VDOT), developed this project to improve the students and pedestrians' safety within the Mary Munford School boundary.

2.2.3 Scope of Work

The scope of work will include, but not limited to, installation of sidewalk, wheelchair ramps, conduits, traffic control devices, pavement markings, and signs.

2.2.4 Contract type

The contract award shall be made to the bidder who submits the lowest responsive, responsible total unit price bid. The City reserves the right to perform all, part, or none of the work. The Unit Price Bid Sheet Price Schedule is provided on a Microsoft Excel document. Bidders are to complete the Price Schedule electronically, print off, and submit with the Bid Form in lieu of a handwritten Price Schedule submission.

Given in the unforeseen event additional scope, which is explicitly indicated and written, within the original contract a change order request, (COR) shall be required to be submitted to the A&E of record and PM. The COR will be thoroughly reviewed by the A&E of record, PM and contracting officer (CO) prior to accepting or rejecting the request. The GC shall provide a PDF on the City's Proposed Change Order form of the COR outlining the basis of the request in which a change order is justified with supporting documentation to substantiate additional costs and increases in requests for additional time. Allow a minimum of ten (10) business days for review of the submitted COR.

2.2.5 Disadvantage Business Enterprise (DBE) Goal

The project will attain a minimum of 0% DBE Goal.

2.2.6 Place of Performance

The project will be performed Cary St and Grove Ave between Willway Ave and Woodlawn Ave.

The perspective bidders and associated sub-contractors are encouraged to visit the proposed sites prior to submitting a bid for the project.

2.2.7 Hour of Operations

Work is permitted on this project from 7 AM to 6 PM Monday through Friday. No work shall be performed on Saturday, Sunday or the following holidays or special events without written consent of the **owner**: New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, and Christmas Day.

There shall be NO lane closures or reductions to the number of existing thru lanes from 7 AM to 9 AM and 4 PM to 6 PM any day of the week.

2.2.8 Period of Performance

The period of performance for the project shall be 180 consecutive calendar days from the Notice to Proceed.

2.2.9 Safety

The GC shall submit, prior to assuming any construction activities, a site safety plan and company safety plan to the PM, Consultant Construction Manager and A&E of Record. A list of emergency contact numbers shall be also submitted to both the PM, A&E of Record, and also posted on site at an area that can be readily visible to first responders and others in the event of an unforeseen emergency.

Immediately report any accidents and other incidents to the PM or PM designate. Post-accident reports shall be submitted to both the PM/PM designate and A&E of Record for further review.

2.2.10 Personnel

The GC shall submit a list of key personnel that will be assigned to the project / project areas. The list shall comprise of the following:

- 2.2.10.1 Name of Individual
- 2.2.10.2 Company Title/Position
- 2.2.10.3 Contact Numbers – Office and Mobile
- 2.2.10.4 E-mail Address

If personnel are removed from the project the GC shall immediately notify the PM of the personnel change. Newly assigned personnel to the project shall be discussed and approved by the PM prior to GC assigning new personnel to key positions to oversee the project.

Provide at minimum five (5) business day notice as to the change in the assigned contractor's personnel. In accordance with this change, the GC shall reissue a revised key personnel chart to the PM.

2.2.11 Quality Control

The GC shall be responsible for Quality Control (QC) on the project. The GC shall review all construction work and other associated activities on the project to verify conformance with the approved construction documents. If the GC subcontracts quality control, the GC is prohibited from using the same third party testing firm(s) that the Owner will use on the project.

Acceptance testing will be done, at a minimum, by the Owner in accordance with VDOT standards, Virginia Test Methods, and/or locality standards, as applicable. The Owner and/or designee(s) will review all work and other associated activities on the project to verify conformance with the contract.

For additional information about testing frequency and type of testing required, refer to the Quality Assurance Plan (QAP) included in this Project Book. Tests and testing frequencies shall comply with Tables within the July 2018 version of the Minimum requirements for Quality Assurance and Quality Control on Design Build and Public-Private Transportation Act projects.

Cost for quality control testing is incidental to the associated line item to be tested. Unit price shall include all overhead, profit, labor, materials, equipment and incidental work and shall be the sum total compensation payable or creditable for such items of work in place. The unit price shall be good for the duration of the contract.

2.2.12 Records & Data

As-built documents shall be maintained and updated to reflect the actual in place conditions from the construction documents. These as-built documents, “red-lines” shall be kept at the construction site at all times in order to provide reference to the Owner, A&E of record and other Owner’s representatives.

Improvements were developed using survey in the project corridor. Utilities are shown based on record and survey data. Exact condition of existing utilities are unknown. The City strongly recommends that the contractor assess and document the condition of any utility in the work area prior beginning work as part of the requirement to verify location and condition of existing utilities.

2.2.13 Applicable Documents

All work shall be performed utilizing the City of Richmond and the Virginia Department of Transportation standards and specifications, most recent edition.

The approved drawings for this project were prepared by Timmons Group, and stamped October 6, 2020. The following drawings are provided for the project as denoted below:

Sheet Number	Sheet Title
1	Title Sheet
2	Construction Notes
2A	Transportation Management Plan
2B	Marking and Signing Details
2C	Square Tube Sign Post Details
2D	Utility Adjustments to Grade Details
2E-2F	Curb Ramp Details
2G	Raised Crosswalk Details
2H	Pavement Restoration Details
2I	Estimated Quantity Summary
3	Grove Avenue and Willway Avenue
4	Grove Avenue and Westmoreland Street
5	Grove Avenue and Commonwealth Avenue
6	Grove Avenue and Woodlawn Avenue
7	Cary Street Road and Willway Avenue
8	Cary Street Road and Westmoreland Street
9	Cary Street Road and Commonwealth Avenue
10	Cary Street Road and Woodlawn Avenue
11	Westmoreland Street

The City of Richmond, Department of Public Works, Transportation Engineering Division – Project Special Provisions has been included as part of this document.

The GC shall refer and conform to these documents and shall construct the proposed work per the approved specifications and approved construction drawings.

2.2.14 Points of Contact

During the delivery of the project, the main point of contact for this project is the PM. Unless otherwise authorized, the GC shall not contact the A&E of Record or other Agency representatives for any matter. The GC shall be allowed to contact the CO in which to solely address administrative matters pertaining to the construction contract. The CO does not and will not answer any questions or direct any work related to the construction or any other associated efforts involving disputes pertaining to the design of the proposed systems.

The list below is a list of contacts for the project. As noted the PM shall be the primary point for the project.

<i>Agency Project Team</i>	
Department of Public Works Maritza Feliz-Reyes <i>Project Manager</i> 804-646-6334 <i>Maritza.reyes@richmondgov.com</i>	Engineer of Record Timmons Group 1001 Boulders Parkway, Suite 300 Richmond, VA 23225 804-200-6963
Consultant Construction Manager (TBD)	

2.3 City of Richmond Furnished Materials

One (1) electronic copy of the applicable documents (Reference Section 2.2.13) in PDF format will be provided by the City of Richmond. The GC shall provide their subcontractors and suppliers all necessary documents to complete their work.

2.4 Specific Requirements

The Deliverables for the project shall include, but not limited to, the following items in which shall be relinquished to the OWNER.

2.4.1 Deliverables & Reports

2.4.1.1 Progress Schedule: To enable the Work to be planned and prosecuted in an orderly and expeditious manner, the Contractor shall submit to the Owner and Architect/Engineer for review and approval a proposed CPM type Project Schedule within 7 calendar days following the date set for the pre-construction meeting. Schedule must show the anticipated time of commencement and completion of each of the various operations to be performed under this Contract, together with all necessary and appropriate information regarding sequence and correlation of work, and an estimated time required for delivery of all materials and equipment required for the project, including a schedule of submission for submittals, shop drawings and samples. The proposed Project Schedule shall include each major milestone to be achieved for the duration of the project that directly coincides with the critical path. The milestones should include, but are not limited to, activities such as award of subcontracts, material

buyouts, submittal approvals, mobilization, all construction activities and associated inspections/testing. The proposed Project Schedule shall be revised as directed by the Owner or Architect or Engineer until approved, and shall be considered the approved Project Schedule and strictly adhered to by the Contractor. The Project Schedule may only be revised per submittal by the Contractor of a proposed Project Schedule revision in sufficient detail as determined by the Owner for review and approval by the Owner. Project Schedule progress updates shall be provided at each bi-monthly Project Meeting and the Project Schedule progress updates submitted at these meetings are not to be considered as Project Schedule revisions or as a submittal for a Project Schedule revision.

2.4.1.2 VDOT forms for source of materials, C-25: the contractor shall submit source of material/C-25 forms for all materials to be used on the project. Materials shall come from sources approved by VDOT or approved by the City, where applicable. No materials shall be delivered for use on the project without prior approval of the C-25 form.

2.4.1.3 Shop Drawings: Shop Drawings shall be submitted for all work requiring fabrication in accordance with VDOT specifications.

2.4.1.4 Payment Reporting/Certifications: The project is federally funded and is subject to the Davis Bacon General Decision. The successful Contractor shall submit documentation in the timeframes indicated to ensure compliance. The City Minority Business "Monthly Compliance Report" (MBE-3) shall be submitted with pay requests/invoices. VDOT Civil Rights documents shall be submitted as indicated on the chart labeled "Appendix 17 C - Civil Rights Requirements during Construction."

2.4.1.5 As-built Drawings: As-Built drawings are to be kept up to date throughout the project and will be reviewed periodically as part of the draft monthly pay application review and approval process. Monthly pay application processing may be delayed if as-built drawings are not up to date. All as-built drawings (one-hard copy and three electronic copies) are required by Final Completion of the project per review and approval requirements.

2.4.2 Inspection & Acceptance

Inspections of the proposed new installations shall be coordinated by the GC whom shall be responsible for scheduling of the inspections with the Owner, Owner's representative, and/or A&E of Record. A minimum of ten, (10) business days advanced notice will be required and will be subject to change based on the availability of all parties. A minimum of ten, (10) business days advanced notice is required and will be subject to change based on the availability of all parties.

In progress work will be tested and/or accepted in accordance with the project Quality Assurance Plan. Items requiring special inspection and acceptance will be inspected by the A&E of Record. Other items will be inspected by the Owner's representative.

Final acceptance testing will be coordinated by the GC and shall be scheduled at a time in advance to ensure presence of appropriate personnel. Acceptance shall be done in accordance with the project's Quality Assurance Plan and/or VDOT specifications.

The GC shall provide a warranty for one year from final acceptance. The warranty period will not commence until the final acceptance letter is issued by the Owner.

2.5 Project Closeout

Project closeout shall entail a number of conditions and terms be satisfactorily met before the final payment per the last schedule of values. Prior to close out of the project the A&E of Record shall certify there are not outstanding items pending on the project punch list and also the receipt of the Affidavit of Claims. Close out of the project shall be at the discretions of the A&E of Record and PM or PM designate.

2.6 General Notes

There will be an allotted time after the pre-bid meeting to review the existing site conditions and respond to questions bidders might have on the scope or requirements of the project.

Bidders and Contractors performing work under this advertisement must comply with the President's Executive Order #11246, prohibiting discrimination in employment regarding race, color, creed, sex, or national origin, and Executive Orders #12138 and 11625 regarding utilization of MBE/WBE firms; Certification that they do not or will not maintain or provide for their employees any facilities that are segregated on the basis of race, color, creed, or national origin; and Statement that bidders must comply with the Civil Rights Act of 1964.

No additional payment will be made for demobilization and remobilization because of shutdowns, suspensions of work, work moratoriums, or other mobilization activities. The construction site shall be restored in compliance with City Standards. This shall include, but is not limited to, pavement restoration, removing any steel plates, and vacating the construction site and surrounding area (men and equipment). The restored site shall not interfere with the flow of traffic or pedestrian movements in any way.

Residents and emergency access shall be maintained at all times during construction regardless of whether a street closure is or is not in effect. Access to all businesses shall be maintained at all time during working hours.

2.7 Applicable Documents – (To Be Provided with Bid Documents)

The following documents shall also be included with the bid documents as denoted below for experience and reference verifications.

2.7.1 References. The Contractor must provide a minimum of three references on projects with similar scope and complexity for the Prime Contractor and each key subcontractor that will participate in the Project. All references listed may be contacted and questioned about the firm's overall capabilities; any problems that developed during performance of work; and quality and performance of applicant's personnel. The references should include the owner project manager's contact name, title, address, telephone number, and email address of at least five references with whom the Contractor has worked during the last five years. Briefly identify the project, location, original and final period of performance, original and final contract amount, reason for any change orders, staffing level, and services performed for each reference.

2.7.2 Experience on Projects of Similar Scope. The Contractor must identify three projects performed within the last ten years or currently in progress where the firm was the Prime Contractor or the General Contractor, focusing on what the Contractor considers most relevant in demonstrating the qualifications for this Project. Briefly identify the project, scope of work, equipment used to complete the work, location, period of performance, contract amount, and Contractor's role (i.e. prime contractor, subcontractor (tier), supplier, etc.).

2.7.3 Key Personnel. The Contractor must provide information about those to whom the project will be assigned and who will be performing the actual work, including the following Key Personnel. Resumes for individuals who are not identified as Key Personnel should not be included.

2.7.3.1 Project Manager – This individual shall be responsible for the overall project construction, quality management, schedule, and contract administration. A minimum of five years relevant and verifiable experience is required.

2.7.3.2 Superintendent / Foreman – This individual, who will be required to be on the project site for the duration of construction operations, shall be responsible for managing the construction process, to include all Quality Control (QC) activities to ensure the materials used and work performed meet the requirements of the Contract Documents.

2.7.4 Safety – (Contractor's Safety Program). The Contractor must submit a copy of the firm's operational and safety program detailing standard operating procedures and safety protocols. Submit a copy of the VDOT Work Zone Traffic Control certification.

2.8 Permits

The contractor shall be responsible for coordinating all traffic control and work-in-streets permits within the city.

No Right of Way is needed for this project.

2.9 Funding

This Project is funded by the Virginia Department of Transportation under the Highway Safety Improvement Program (HSIP) Fixing America's Surface Transportation (FAST) and is subject to federal contract provisions and the Davis Bacon General Wage Decision. Should there be any discrepancies among mandatory requirements of federal, state and/or local laws or regulations, the most restrictive shall apply. The project shall comply with the Davis Bacon Wage Determination - VA20210126, dated January 1, 2021. The successful contractor must submit certified payroll with monthly invoices to ensure monthly compliance.

This is federally funded project, so no negotiation shall be allowed with the selected bidder.

3 Prequalification.

This project HAS NOT been prequalified under the Code of the City of Richmond, Section 21-46. All interested bidders are encouraged to participate.

PART 2 – GENERAL CONDITIONS OF THE CONTRACT

- 1.0 **Definitions.** When used in these provisions or elsewhere in the Contract Documents, the following terms, or pronouns used in place of them, shall have the meaning ascribed to them in this section, unless it is apparent from the context that a different meaning is intended.
- 1.1 **Architect or Engineer** means an individual, firm, partnership, association, properly qualified person or the legally authorized representative(s), designated by the Owner, experienced in and legally qualified to practice the profession involved for the administration of the contract, inspections and testing. The term shall apply to the Owner when the Owner is acting as its own Architect or Engineer.
- 1.2 **As Built Drawings** means reproducible drawings with all changes that have been made to the original construction drawings prior to the completion of the project.
- 1.3 **Calendar Day** means each day shown on the calendar beginning at 12:00 Midnight, including Saturdays, Sundays and Holidays. The term “day” shall mean calendar day whether or not expressly identified.
- 1.4 **Contract or Contract Document** means the written agreement executed by the Owner and Contractor setting forth the obligations of the parties, including but not limited to performance of the work, furnishing of labor, equipment and materials, and the basis of payment. It shall include but not necessarily be limited to the Request for Qualifications, Contractor’s Submittal, the Invitation for Bid, the Bid, the General Conditions of the Contract, Special Provisions, Performance Bond, Payment Bond, Certificate of Insurance, Drawings, Specifications, Addenda, Minority Enterprise Business forms, written Change Orders, extra Work Orders, and Agreements required to complete the construction of the project, including authorized extensions thereof, in an acceptable manner, all of which constitute one instrument.
- 1.5 **Contractor** means any person, firm, association, joint venture, partnership or corporation that for a fixed price, commission, fee or percentage undertakes to bid upon, or accepts or offers to accept orders for performing or superintending in whole or in part the construction, demolition, removal, repair or improvement of any building or structure.
- 1.6 **Field Order** mean an Architect or Engineer’s instructions to the Contractor issuing interpretation of the Contract Documents, or ordering minor changes in the work not involving changes in the Contract time or Contract amount.
- 1.7 **Minority Business**
Minority business enterprise means a business at least fifty-one percent (51%) of which is owned and controlled or fifty-one percent (51%) minority-owned and operated by minority group members or, in case of a stock corporation, at least fifty-one percent (51%) of the stock which is owned and controlled by minority group members.

Minority group members means citizens of the United States who are Blacks, Hispanics, Asians, Indians, Eskimos or Aleuts.

Minority, in the context of construction contracts, means a minority that has been subjected to legally mandated racial segregation in Richmond.

Disadvantaged business means a small business that is owned or controlled by a majority of persons, not limited to members of minority groups, who have been deprived of the opportunity to develop and maintain a competitive position within the economy because of social disadvantages.

- 1.8 **Mistake** means every type of error, clerical or otherwise.
- 1.9 **Notice** means all written notices, including demands, instructions, claims, approvals and disapprovals, required or authorized under the Contract Documents.
- 1.10 **Notice To Proceed** means the written instruments allowing the contractor to proceed with the development of submittals, ordering of materials and any other preparation required to adequately start the Work.
- 1.11 **Operating and Maintenance Instructions** means all documents specifically written or marked cut sheets for the project on all major components, bound or otherwise assembled in booklet form. Furnish for each major piece equipment operation instructions, maintenance procedures and parts list.
- 1.12 **Owner** means the City of Richmond, Virginia, acting by and through its authorized agent(s) or representative(s).
- 1.13 **Performance Time** means the length of time allowed for the execution of the Work, including any authorized time extensions. Performance time shall include all lead times for materials, submittal preparation and other administrative matters outside of bond issuance.
- 1.14 **Plans** means those drawings specifically referred to as such in the Contract Documents. Supplementary drawings issued after Contract Award showing changes in the work shall be binding upon the Contractor with the same force as the Plans.
- 1.15 **Similar** Where the word "similar" appears on the drawings or specifications, it shall be interpreted in its general sense and not as meaning identical, and all details shall be worked out in relation to their location and their connection with other parts of the work, and it shall be equal in quality and performance.
- 1.16 **Subcontractor** means a person, partnership or corporation to whom the Contractor, with written consent of the Owner, sublets part of the work. A Subcontractor has no contractual relationship with the Owner.
- 1.17 **Substantial Completion** means that the Work has progressed to the stage where the entire project, including mechanical, electrical, and equipment installations, can be occupied or used by the Owner for its intended purpose, and when any remaining work can be done without interfering with the Owner's use and formal instruction on all major equipment operation and maintenance, both verbal and written, along with as-built reproducible drawings have been given. The Owner will notify the Contractor, in writing, the date of substantial completion has been reached, based on the recommendation of the Architect or Engineer.
- 1.18 **Work** means everything express or implied required to be furnished and performed by the Contractor under the Contract and shall include both Contract Work and Extra Work.

2.0 City of Richmond Terms and Conditions

2.1 Advertising Clause

It is understood and agreed that, in the event a contract is awarded for the supplies, equipment, or services included in this proposal, that no indications of such sales or services to the City of Richmond will be used in any way in product literature or advertising unless with written approval of the City of Richmond and only for bibliographical and curriculum vitae purposes.

2.2 Applicable Law and Courts

This solicitation and any resulting contract shall be governed in all respects by the laws of the City of Richmond and any litigation with respect thereto shall be brought in the courts of the City. In performing the Work under the Contract, the Contractor shall comply with applicable Federal, State, and Local laws and regulations

2.3 Assignment & Subcontracting

The Contractor shall not assign the Contract or any parts of the Contract without the prior written consent of the Owner nor shall the Contractor assign any monies due or to become due hereunder without the prior written consent of the Owner.

The contract shall not be subcontracted without the prior approval of the City of Richmond.

2.4 Audit

The City reserves the right to audit all aspects of the contract: the vendor's financial capability and accounting system, basis for progress payments, compliance with applicable laws, as well as appropriate vendor records. The City further reserves the right to review, on demand and without notice, all files of any subcontractor employed by the Contractor to provide services or commodities under this Contract where payments by the City are based on records of time, salaries, materials or actual expenses. In cases where the vendor maintains multiple offices, records to be audited should be maintained locally or be deliverable to a location in the metro-Richmond area.

2.5 Authorized Signature

All bids must be signed in order to be considered. If the bidder is a firm or corporation, the bidder must show the title of the individual executing the bid and a resolution authorizing the individual to sign the bid and subsequent contract

2.6 Availability of Funds

It is understood and agreed between parties to any agreement resulting from this proposal that the City shall be bound hereunder only to the extent of funds available or which may hereunder become available for the purposes of this agreement.

It is further understood and agreed between the parties to any agreement resulting from this proposal that the City shall not be obligated to purchase or pay for insurance or services covered by this agreement unless and until they are ordered, delivered, or performed for the City.

2.7 Award

The City of Richmond will make the award to the lowest responsive/responsible bidder. The Procurement office reserves the right to conduct any test it may deem advisable and to make all evaluations necessary. Additional criteria will be considered in the award of Requests for Proposals. The City of Richmond also reserves the right to reject any or all bids/proposals, in whole or in part, to waive informalities and to delete items prior to making the award, whenever it is deemed in the sole opinion of the City of Richmond to be in its best interest. The City also reserves the right to

award in whole or in part; to one vendor or multiple vendors, whichever is deemed to be most advantageous and in the best interest of the City.

2.8 reserved

2.9 Century Compliance.

Hardware, software and firmware products, individually and in combination, shall be capable of processing dates that cross or span century boundaries with the correct system date, without human intervention, including leap year calculations and shall also provide correct results when moving forward or backward in time or century.

2.10 Contractor Accessibility

It is understood and agreed that in the event of equally qualified (and responsive) bidders for an award, the award shall be granted to the bidder with the greatest degree of accessibility to the City officials responsible for administering the contract. (This policy shall not apply if specifically prohibited.)

2.11 reserved

2.12 Default

In case of default of the successful bidder, or it fails to deliver the supplies or services ordered by the time specified, the City, after due notice (verbal or in writing), may procure them from other sources and hold the bidder responsible for any excess cost occasioned thereby. This remedy shall be in addition to any other remedies available to the City.

2.13 Delivery

Time of proposed delivery shall be stated in number of calendar days. General terms such as "stock", "immediately", and "as soon as possible", may be cause for rejection. Unless otherwise specified, quote earliest delivery date as it may be considered a factor in making award.

2.14 Descriptive Literature

Bidder shall submit with its bid descriptive literature of equipment or supplies, which it proposes to furnish, if such articles are of a different manufacture than those specified herein. Should the description furnished in such literature differ from the specifications submitted by the City, and no mention is made to the contrary, it shall be construed to mean that the bidder proposes to furnish equipment or supplies in accordance with such description and not in accordance with the City's specifications, and its bid will be evaluated accordingly.

2.15 Drug Free Work Place

City Resolution No. 2000-R197-191 prohibits the City of Richmond from contracting with any vendor that fails to comply with this policy. The vendor by its signature hereto certifies that it has taken and shall continue to take appropriate and effective action to (1) educate its employees about the dangers of drug abuse in the workplace; (2) provide its employees with effective drug counseling, rehabilitation and employee assistance programs; (3) discipline employees who violate the requirement of a drug free workplace, and (4) minimize, to the greatest extent possible, the risks of drugs entering the workplace. The vendor is also prohibited from contracting with any other party that fails to comply with this policy.

Failure by a vendor or its subcontractor to comply with the provisions outlined above will be cause for termination of the contract.

2.16 Employment Discrimination

The City of Richmond prohibits employment discrimination by its contractors. In accordance with section 21-70 of the Richmond City Code, during the performance of every contract over \$10,000, the contractor agrees as follows: (a) the contractor will not discriminate against any employee or applicant for employment because of race, religion, color, sex, national origin, age, disability, or other basis prohibited by state law relating to discrimination in employment, except where there is a bona fide occupational qualification reasonably necessary to the normal operation of the contractor. The contractor agrees to post in conspicuous places, available to employees and applicants for employment, notices setting forth the provisions of this nondiscrimination clause; (b) the contractor, in all solicitations or advertisements for employees placed by or on behalf of the contractor, will state that such contractor is an equal opportunity employer; (c) notices, advertisements and solicitations placed in accordance with federal law, rule or regulation shall be deemed sufficient for the purpose of meeting the requirement of this section. The contractor will include the provisions of this section in every subcontract or purchase order of over \$10,000, so that the provisions will be binding upon each subcontractor or vendor.

2.17 Ethics in Public Contracting

By signing Bid in response to this Invitation for Bids, the bidder certifies and warrants that (i) it has not violated any provisions of federal law, the Code of Virginia, the Richmond City Charter, or the Richmond City Code (ii) its Bid is made without collusion or fraud, (iii) it has not offered or received any kickbacks or inducements from any other contractor, supplier, manufacturer or subcontractor in connection with its bid and (iv) it has not conferred on any public employee having official responsibility for this procurement transaction any payment, loan, subscription, advance, deposit of money, services or anything of more than nominal value, present or promised, unless consideration of substantially equal or greater value was exchanged. The bidder agrees that if such warranty is in any respect breached, such breach shall constitute a material breach of any contract that the City may award to it and it shall pay to the City the full price agreed by the City to be paid for the supplies, materials, equipment or services to be furnished under its bid.

2.18 Faith Based Organizations

The City of Richmond does not discriminate against faith-based organizations. By signing its bid, the bidder, if a faith-based organization, agrees that it understands the requirements of City Code §21-43 (Va. Code § 2.2-4343.1).

2.19 Incorporation of Policies and Procedures

This solicitation is subject to the provisions of the Chapter 21 of the Code of the City of Richmond, the Department of Procurement Services Policies and Procedures and the Virginia Public Procurement Act and any revisions thereof, which are hereby incorporated into this contract by reference. Copies of these documents may be viewed at the City of Richmond's website (www.RichmondGov.com).

2.20 Indemnity

The Vendor agrees to defend, save harmless and indemnify the City from and against any and all claims for damages against the City caused by the Vendor's errors, omissions or negligent acts in the performance of this contract.

2.21 Informalities

The City reserves the right to waive any informality in bids. Bids making exceptions to terms and conditions included in this Invitation may be considered, but preference may be given to those who do not make such exceptions.

2.22 Invoicing

The Contractor shall submit invoices that include the following: unique invoice number; corresponding purchase order number; and, Contractor's Federal Tax Identification Number (TIN). All invoices must be itemized and include sufficient detail to enable the City to ensure that the item was ordered and corresponds with the contract price for the item. Failure to include the aforementioned information on the invoice may result in the invoice being rejected, returned, and unpaid. The Contractor shall submit the original invoice to either:

accountspayable@richmondgov.com

or

City of Richmond
Accounts Payable
900 East Broad Street
Richmond, VA 23219

2.23 Insurance

The Contractor shall provide and keep in full force and effect during the performance of the contract the kinds and amounts of insurance prescribed in this paragraph, and shall comply with all other provisions of this paragraph. Such insurance shall be provided and kept in full force by insurance companies authorized to do business in the Commonwealth of Virginia and acceptable to the City. The Contractor shall pay all premiums and other costs of such insurance. It will be assumed that the consideration paid or to be paid to the Contractor for the performance of the contract includes the premiums and other costs of such insurance and that the City shall not be responsible therefor. Each insurance Policy and Certificate of Insurance shall be signed by duly authorized representatives of such insurance companies which shall be licensed to business in the Commonwealth of Virginia and shall be countersigned by duly authorized local agents of such companies. The certificates and evidence of coverage will be complete before the City signs the contract.

All Certificates of Insurance shall show the Contract Number. The Contractor shall not be required to furnish the City with copies of the insurance contracts required by this paragraph unless requested from time to time by the Director of Procurement but the Contractor shall provide a Certificate of Insurance issued by such insurance companies in which the company shall irrevocably warrant that the insurance is provided to enable the Contractor to comply with and provide the required insurance provided. However, in no event shall the Insurance Contract be expanded to afford coverage which is greater than the maximum coverage approved for writing in the Commonwealth of Virginia, and that it will not be canceled or modified by the insurer for non-payment of premiums or otherwise unless at least ninety (90) days prior notice to that effect is given the Director of Procurement Services by registered mail, return receipt requested, anything in such Insurance Contract to the contrary notwithstanding; and that the Insurance Contract has been endorsed accordingly. The City reserves the right to require, without cause, insurance in greater amounts than those set out below in this paragraph on any Contract, provided notice of such requirements is given prior to final acceptance of the Bid. The insurance contract shall provide that the insolvency or bankruptcy of any of the insured shall not release the insurer from its obligation to satisfy claims otherwise within the coverage of such policies.

SCHEDULE OF INSURANCE COVERAGE

- A. Commercial General Liability Insurance with a combined single limit of not less than \$1,000,000 per occurrence.
- B. Automobile Liability Insurance with a combined limit of not less than \$1,000,000 per occurrence.
- C. Statutory Workers' Compensation and Employers' Liability with the Alternate Employers Endorsement WC 000301. If any employee of the Contractor is not subject to the provisions of the Virginia Worker's Compensation Act, the Contractor shall nevertheless insure payment of the same compensation to such employee as is provided for by the Virginia Worker's Compensation Act.
- D. Professional Errors and Omissions Insurance with limits of not less than \$1,000,000 per occurrence. (Submit only if applicable.)
- E. Other insurance as required based upon the nature of the contract.

All insurance contracts shall name the City as an additional insured.

Further, the Contractor shall assume the entire responsibility and liability for any and all damages to persons or property caused by or resulting from or arising out of any negligent act or omission or any willful misconduct on the part of the Contractor, its subcontractors, agents or employees under or in connection with the IFB or the performance of or failure to perform any work required by the IFB. The Contractor shall save harmless and indemnify the City and its agents, volunteers, servants, employees and officers from and against any and all claims, losses or expenses, including but not limited to court costs and reasonable attorney's fees, which either or both of them may suffer, pay or incur as the result of claims or suits do to, arising out of or in connection with any and all such damage, real or alleged, to the extent caused by the Vendor's negligence or willful misconduct. The Contractor shall, upon written demand by the City, assume and defend at the Contractor's sole expense any and all such suits or defense of claims.

2.24 Interchangeability of Terms.

Where used in these solicitations the terms "bid" and "proposal" should be interpreted to have the same meaning unless the intent is clearly defined otherwise.

2.25 Licenses, Permits and Fees

The successful contractor shall be required to obtain all necessary permits and licenses required by federal, state and local regulations, laws ordinances or rules. All bids submitted shall have included in price the cost of any business or professional licenses, permits or fees required by the City of Richmond or the Commonwealth of Virginia for the performance of this project.

2.26 Minority and Emerging Small Business Participation

It is the official goal of the City of Richmond to increase the dollar value of all contracts awarded to minority business enterprise and emerging small business (MBE/ESB) contractors and subcontractors to the highest level that is reasonably achievable for any particular field of contracting. To implement this policy, the City shall encourage minority participation through subcontracting and certain business development methods in contracting for services. Please submit the attached MBE/ESB Participation Commitment Form, indicating the percentage of MBE/ESB participation you propose for this project.

2.27 MBE/ESB Reporting Requirement

Contract awardees are required to submit an MBE/ESB Monthly Compliance Report. This form must indicate **all** payments made to subcontractors during the period for which the City is being invoiced. **You must also indicate on this form those subcontractors that are MBEs or ESBs.** This form should be submitted directly to the Office of Minority Business Enterprise at City Hall. Vendors may call the Office of Minority Business Enterprise at (804) 646-3985 for clarification on the City's MBE/ESB participation or reporting requirements.

2.28 Reserved

2.29 Reserved

2.30 Non-Discrimination

By entering into this Contract, the Contractor agrees to abide by the Civil Rights Act of 1964, the American Disabilities Act of 1990, and City Code § 21-43. The City of Richmond does not discriminate against faith-based organizations.

2.31 Offset Clause

Pursuant to the Richmond City Charter, the City may withhold the payment of any claim or demand by any person, firm or corporation against the City until any delinquent indebtedness or other liability due the City from such person, firm or corporation shall first have been settled and adjusted.

2.32 Patents and Trademarks

By submission of bid, the bidder certifies that the merchandise to be furnished will not infringe any valid patent or trademark, and the successful bidder will, at its own expense, defend any and all actions or suits charging such infringement, and will save the City of Richmond, Virginia harmless in case of any such infringement

2.33 Personnel

The personnel designated in the management summary for key positions shall not be changed except with the permission of the City. The City will only approve such change when, in its opinion, the substitute personnel have equal or greater qualifications and experience than those they replace.

2.34 Post Award

Following the selection and signing of a contract, the Contract Specialist will notify those offerors whose proposals are not selected of the name of the selected offeror. Please keep in mind that it may take up to two months to award this contract.

2.35 Public Inspection of Records

Public inspection of procurement documents shall be in accordance with City Code §21-5.

2.36 Property of Work

Any work resulting from the award of this contract will become the sole property of the City of Richmond. The successful offer shall not copyright any material or reports. And, upon request, the contracted vendor should turnover all work papers and related documents to the City.

2.37 Quantities

The quantities shown are estimates only and the city reserves the right to purchase only its requirements whatever the quantity may be, plus or minus, during the period specified

2.38 Rejection of Bids

The City of Richmond reserves the right to reject any and all bids. The City of Richmond reserves the right to negotiate with the selected bidder in order to best serve the needs of the City, in respect to both cost effectiveness as well as comprehensive program design.

2.39 Samples

Samples of items, if requested, shall be furnished without charge, upon request within 10 days. Failure on the part of the bidder to provide such samples within the specified time frame or to comply with these instructions may be cause to consider the bid as non-responsive. If not destroyed and upon request at the time of submission, samples will be returned at the bidder's expense.

2.40 Separate Invitations

Bid responses for separate bid invitations shall not be combined on the same form or placed in the same envelope. Such bids may not be considered

2.41 Submission of Bids

Unless otherwise specified in the solicitation, the below provisions apply.

- a) Packages containing bids should be sealed and marked in the lower left-hand corner with the invitation number, commodity classification, and date and hour of opening of bids. Failure to do so may cause bid not to be considered.
- b) Bids shall be submitted on the forms furnished. Erasures or other changes in the bid must be annotated and initialed by the individual signing the bid.
- c) Bids containing any conditions, omissions, unexplained erasures or alterations or items not called for on the bid sheet may be rejected by the City as being incomplete.
- d) Bids submitted in pencil may be cause for rejection.
- e) Should any additions or deductions or any changes in price or specifications be written or otherwise set forth on the outside of any sealed package purporting to contain a bid, such package shall be returned unopened to the bidder.
- f) The City of Richmond is not responsible for the mishandling of any bid not properly identified on the outside of the package.
- g) The City of Richmond is not responsible for bids delivered to places other than as indicated in the bid package.

2.42 Travel Expenses

Travel expenses will be reimbursed at the prevailing City of Richmond rate(s). This will only be paid if another provision of this Contract allows for travel reimbursement.

2.43 Unit Pricing

Unless lump sum price is specifically requested, unit and extended prices should be given. Failure to do so may cause bid not to be considered. In case of error in extension of prices in the bid, the unit price shall govern.

2.44 Use of Brand Names

Where a brand or trade name appears in the specifications, it is understood that the brand or trade name referred to, or its approved equal, shall be furnished. If, however, the bidder proposes similar but not identical items, it must furnish full particulars. If no mention is made of any exceptions, it is assumed that it is bidding on the article mentioned and not an approved equal, and it will be required to deliver the exact article specified.

3.0 Instructions to Bidders

3.1 Receipt and Forms of Bid

The following required forms are to be completed and returned with this bid package:

- A. **The Bid Form**
- B. **Bid Security**
- C. **Price Sheet**
- D. **VDOT Form C-31**
- E. **VDOT Form C-48**
- F. **VDOT Form C-49**
- G. **VDOT Form C-56**
- H. **VDOT Form C-58**
- I. **VDOT Form C-63**
- J. **VDOT Form C-104**
- K. **VDOT Form C-105**
- L. **VDOT Form C-111**
- M. **VDOT Form C-112**
- N. **Per Part 1 – Statement of Work**
 - 1. **Resume of Project Manager**
 - 2. **Resume of Superintendent\Foreman**
 - 3. **Three (3) Professional References**
 - 4. **Executive Summary of Projects on Similar Scope**

All VDOT Forms are available electronically <http://vdotforms.vdot.virginia.gov/Default.aspx>

Envelopes containing the bid and bid security shall be sealed, addressed and marked as follows:

City Of Richmond, Virginia
Richmond Purchasing Services
900 E. Broad Street, 11th Floor, Room 1104
Richmond, Virginia 23219

Mark in lower left hand corner of envelope:

Pedestrian Safety Improvements at Mary Munford Project (UPC 110843)

To Be Received At: 11 a.m. Wednesday September 14, 2022.

To Be Opened At: 11 a.m. Thursday, September 15, 2022.

Bid Opening Teleconference Number: (804) 316-9457

Phone Conference ID: 295 172 007 424#

Mark in upper left hand corner:

Bidder's Name
Address and Virginia
Contractor's Registration
Number and Date of Registration

3.2 Bidding Documents

Bidding documents include the Pre-Bid Information, if any, Invitation to Bid, Instructions to Bidders, the Bid Form, technical specifications, drawings, other sample bidding and Contract forms

and the proposed Contract Documents (as defined in the General Conditions), and all addenda issued prior to the date set for receipt of bids.

3.3 Examination of Site and Drawings

Each bidder shall visit the site of the proposed Work and fully acquaint himself with conditions relating to construction and labor, so that he may fully understand the facilities, difficulties and restrictions attending the execution of the Work under the Contract.

The failure or omission of any bidder to receive or examine any form, instrument, addendum, or other document or to visit the site and acquaint himself with the conditions there existing, shall in no way relieve any bidder from the obligation with respect to his bid or to the Contract. The submission of a bid shall be taken as conclusive evidence of compliance with this section.

3.4 Pre-Bid Meeting

A pre-bid meeting for this project is scheduled for Wednesday August 24, 2022 at 11:00 A.M.

Teleconference Number: (804) 316-9457

Phone Conference ID: 222 205 100 233#

3.5 Interpretations

3.5.1 If any person contemplating submitting a bid for the proposed Work is in doubt as to the true meaning of any part of the proposed Contract Documents or discrepancies of any sort between existing conditions and proposed new Work, he must submit a written request for an interpretation to the Department of Procurement Services, 900 E. Broad Street Room 1104, Richmond, Virginia 23219. The person submitting the request shall be responsible for its prompt and actual delivery by **5:00 p.m. on Thursday, August 25, 2022**. Such documents may be emailed to jerry.tuttle@rva.gov.

3.5.2 Any interpretation or modification of such documents will be made only by Addendum duly issued by the Owner and a copy of which will be mailed or delivered to each bidder known to have received a set of such documents. Neither the Owner nor the Architect or Engineer will be responsible for any other explanations or interpretations anyone presumes to make on behalf of the Owner or Architect or Engineer before the expiration of the ultimate time set for the receipt of bids.

3.5.3 Any contact with any City officer, employee, agent or other representative concerning this Invitation for Bids prior to award and execution of the Contract other than that outlined in this section 3.5 ("Interpretations") is prohibited. Any such unauthorized contact may disqualify the bidder from this procurement.

3.6 Withdrawal of Bids.

3.6.1 Conditions for Withdrawal.

3.6.1.1 Before Deadline for Receipt. A bidder may withdraw the bidder's bid before the deadline fixed in this Invitation for Bids for the receipt of bids by submitting a written notice to the person identified on the cover sheet of the Invitation for Bids as the preparer of the Invitation for Bids. The written notice must be signed by the person who signed the bid, provided that another person may sign the written notice instead

if a valid power of attorney authorizing such other person to sign on behalf of the person who signed the bid is attached to the written notice.

3.6.1.2 After Deadline for Receipt. A bidder may withdraw the bidder's bid after the deadline fixed in this Invitation for Bids for the receipt of bids only in accordance with section 21-53 of the Code of the City of Richmond and the provisions of this section 3.6.

- A. Pursuant to section 21-53(a) of the Code of the City of Richmond, a bidder for a public construction contract, other than a contract for construction or maintenance of public highways, may withdraw his bid from consideration if the price bid was substantially lower than the other bids due solely to a mistake in the bid, provided the bid was submitted in good faith, and the mistake was a clerical mistake as opposed to a judgment mistake, and was actually due to an unintentional arithmetic error or an unintentional omission of a quantity of work, labor or material made directly in the compilation of a bid, which unintentional arithmetic error or unintentional omission can be clearly shown by objective evidence drawn from inspection of original work papers, documents and materials used in the preparation of the bid sought to be withdrawn.
- B. Pursuant to section 21-53(b) of the Code of the City of Richmond, if a bid contains both clerical and judgment mistakes, a bidder may withdraw his bid from consideration if the price bid would have been substantially lower than the other bids due solely to the clerical mistake that was an unintentional arithmetic error or an unintentional omission of a quantity of work, labor or material made directly in the compilation of a bid that shall be clearly shown by objective evidence drawn from inspection of original work papers, documents and materials used in the preparation of the bid sought to be withdrawn.

3.6.2 Procedure for Withdrawal due to Error or Mistake.

- A. Bids will be opened on the date and at the time fixed in the Invitation for Bids, as amended by any addendum. Bids are usually opened one day following the deadline for the receipt of bids fixed in the Invitation for Bids, as amended by any addendum. Bids will not be opened less than one day following the deadline for the receipt of bids fixed in the Invitation for Bids, as amended by any addendum.
- B. In accordance with section 21-53(c)(2) of the Code of the City of Richmond, the bidder shall submit to the person identified on the cover sheet of the Invitation for Bids as the preparer of the Invitation for Bids the bidder's original work papers, documents and materials used in the preparation of the bid at or prior to the time fixed for the opening of bids. The work papers shall be delivered by the bidder in person or by registered mail. The bidder shall have two hours after the opening of bids within which to claim in writing any mistake as defined in this section 3.6 and withdraw the bid. The Contract shall not be awarded by the City until the two-hour period has elapsed. Under these procedures, the mistake shall be proved only from the original work papers, documents and materials delivered as required in this section 3.6.2. The work papers, documents and materials submitted by the bidder shall, at the bidder's request, be considered trade secrets or proprietary information subject to the conditions of section 21-5(f) of the Code of the City of Richmond.

- C. The failure of a bidder to submit the bidder's original work papers, documents and materials used in the preparation of the bidder's bid at or prior to the time fixed for the opening of bids constitutes a waiver by the bidder of the bidder's right to withdraw the bidder's bid due to an error or mistake.
- D. Pursuant to section 21-53(e) of the Code of the City of Richmond, no bid shall be withdrawn under this section when the result would be the awarding of the Contract on another bid of the same bidder or of another bidder in which the ownership of the withdrawing bidder is more than five percent.
- E. Pursuant to section 21-53(f) of the Code of the City of Richmond, if a bid is withdrawn in accordance with this section 3.6.2, the lowest remaining bid shall be deemed to be the low bid.
- F. Pursuant to section 21-53(g) of the Code of the City of Richmond, no bidder who is permitted to withdraw a bid shall, for compensation, supply any material or labor to or perform any subcontract or other work agreement for the person to whom the Contract is awarded or otherwise benefit, directly or indirectly, from the performance of the project for which the withdrawn bid was submitted. The person or firm to whom the Contract was awarded and the withdrawing bidder are jointly liable to the Owner in an amount equal to any compensation paid to or for the benefit of the withdrawing bidder.
- G. Pursuant to section 21-53(h) of the Code of the City of Richmond, the Director of Procurement Services shall notify the bidder in writing within five business days of the Director's decision regarding the bidder's request to withdraw the bidder's bid. If the Director of Procurement Services denies the withdrawal of a bid under the provisions of this section 3.6.2, the Director of Procurement Services shall state in such notice the reasons for the decision and award the Contract to such bidder at the bid price, provided such bidder is a responsible and responsive bidder. At the same time that the notice is provided, the Director of Procurement Services shall return all work papers and copies thereof that have been submitted by the bidder.

3.6.3 Consequence if Bid Not Withdrawn. If the bidder does not withdraw the bidder's bid as provided in this section 3.6, or if the bidder is not permitted to withdraw the bidder's bid as described in section 3.6.2(G), the Owner shall not be liable for any costs associated with mistakes or errors in the bid, and in no event may the amount of the Contract, without adequate consideration, be increased for any purpose, including, but not limited to, relief of the bidder from the consequences of an error in the bidder's bid or offer.

3.7 Bidders Present

At the time and place fixed for the opening of the bids, the contents of the bids will be read aloud and made public information for bidders and others properly interested who may be present either in person or by representative. Bid tabulations will be available on the website the Monday following the date set for the opening of bids. Otherwise access to public information shall be in accordance with §21-5 of the Code of the City of Richmond.

3.8 Addenda

From time to time, addenda may be issued that will provide clarifications or supplemental information about the bid documents. All firms receiving bid documents issued by the Owner will be provided copies of addenda. Failure to acknowledge any addendum that has a material effect on the bid: that is on price, quantity, quality or delivery, and is not merely administrative may result

in your bid being rejected as non-responsive. Addenda must be acknowledged as indicated on the Bid Form. The bidder is responsible for verifying the existence of addenda items.

3.9 Regulations Governing Contractors

Bidders are required under Title 54.1, Code of Virginia, to show evidence of licensing as appropriate before bid may be received and considered on a general or Subcontract as follows:

"Class A Contractors" perform or manage construction, removal, repair, or improvements when (i) the total value referred to in a single contract or project is \$70,000 or more, or (ii) the total value of all such construction, removal, repair, or improvements undertaken by such person within any twelve-month period is \$500,000 or more.

"Class B Contractors" perform or manage construction, removal, repair, or improvements when (i) the total value referred to in a single contract or project is \$7,500 or more, but less than \$70,000, or (ii) the total value of all such construction, removal, repair or improvements undertaken by such person within any twelve-month period is \$150,000 or more, but less than \$500,000.

"Class C Contractors" perform or manage construction, removal, repair, or improvements when (i) the total value referred to in a single contract or project is over \$1,000 but less than \$7,500, or (ii) the total value of all such construction, removal, repair, or improvements undertaken by such person within any twelve-month period is less than \$150,000. The Board shall require a master tradesmen license as a condition of licensure for electrical, plumbing and heating, ventilation and air conditioning contractors.

"Contractor" means any person, that for a fixed price, commission, fee, or percentage undertakes to bid upon, or accepts, or offers to accept, orders or contracts for performing, managing, or superintending in whole or in part, the construction, removal, repair or improvement of any building or structure permanently annexed to real property owned, controlled, or leased by him or another person or any other improvements to such real property.

3.10 Laws, Permits and Regulations

The Contractor must comply with all local, State and Federal laws, rules, ordinances and regulations applicable to the Contract and to the Work done hereunder, and must obtain at its own expense all permits, licenses or other authorization(s) necessary for the prosecution of the Work. If the Contractor ascertains at any time that any provisions of this Contract are not in compliance with applicable laws, rules, ordinances or regulations, it shall promptly notify the Architect or Engineer and confirm the findings in writing.

3.10.1 Building Permit. The Contractor will apply for and pay for a building permit and complete all necessary forms (unless otherwise notified). (Contractor to apply and pay for all other permits also).

3.11 Minority Business Utilization

It shall be the official policy of the City of Richmond to increase the number of minorities who participate meaningfully in all City construction Contracts. To this end, the City shall use good faith efforts and shall encourage good faith efforts by all parties who engage in governmental construction contracting with the City to the following ends:

- a) To stimulate the creation and development of minority contractors and subcontractors, and to advance in reasonable and responsible ways, and deliberately and consistently over the long term, their entrance into and participation in the construction industry.

- b) To advance in reasonable and responsible ways, and deliberately and consistently over the long term, the participation of minority individuals at higher skill and responsibility levels within non-minority firms engaged in construction contracting and subcontracting.
- c) To encourage voluntary efforts by the construction industry to increase the participation of minority individuals and businesses in the industry.

All actions taken by the City in construction contract procurement shall be consistent with this policy.

3.12 Examination of Plans, Specifications, Contract Documents and Project Site

By submitting a bid, the bidder represents that it has visited the site of the proposed Work; is fully acquainted with conditions relating to the proposed construction; has correlated its observations with the requirements of the Contract Documents and all matters which may in any way affect the Work or its performance. The Contractor fully understands the extent of the Work required by the Contract Documents as a result of such examination and investigation. The failure or omission of any bidder to review or examine any form, instrument, addendum or other document, or to visit the site and become acquainted with existing conditions, shall not relieve the bidder from any or all obligations with respect to its bid or the Contract. The submission of a bid shall be taken as a prima facie evidence of compliance with this paragraph and no plea of ignorance or misunderstanding as to what is anticipated under the terms of the bid or the Contract Documents shall be available as a defense for failure to perform.

Further, by submitting a bid for this project the Contractor certifies that all his Subcontractors are familiar with the Contract Documents as they may affect each Subcontractor. The Contractor further agrees that it is as fully responsible to the Owner for the acts or omissions of its Subcontractor, either directly or indirectly employed by them, as it is for the acts and omissions of persons directly employed by it.

3.13 Supplemental Specifications

Special provisions applicable to the project may be used to supplement or clarify these General Conditions, but no item of the General Conditions may be amended nor deleted, or its intent changed without prior written approval of the Owner.

3.14 Subsurface Investigation

Subsurface investigation data indicated on the drawings or incorporated in the specifications are intended by the Owner as a guide to acquaint the bidder with conditions that may be encountered during the course of Work. The Owner does not guarantee these conditions are representative of the entire project. The bidder may make, at its own expense, sufficient investigations necessary to verify the quantities and materials that may be encountered.

3.15 Trade Names and Alternatives

When the drawings or specifications specify one or more manufacturers' brand names or makes of materials, devices or equipment as indicating a quality style, appearance or performance, the bidder shall base its bid on any of the specified brands or an alternate brand which is intended as a substitute. Use of an alternate shall not be permitted unless it is found to be equal or better and approved by the Architect or Engineer and at no additional cost to the Owner. The Bidder shall

determine and certify that any substitute will fit in the space provided so that it will be accessible for maintenance and that it shall produce the capacity specified.

3.15.1 Burden of Proof. The burden of proof as to the comparative quality and suitability of alternative equipment, articles or materials shall be upon the bidder who shall furnish at his or her own expense such information relating thereto as may be required by the Architect or Engineer. The Architect or Engineer shall be the sole judge as to comparative quality and suitability of alternative equipment, articles or materials and whose decisions shall be final.

Any other brand, make of material, device or equipment which, in the opinion of the Architect or Engineer is recognized the equal of that specified, considering quality, workmanship and economy of operation and maintenance, and is suitable for the purpose intended, may be accepted.

3.15.2 Substitution. Substitution of equipment, articles or materials for specified items or approved alternates after bid opening may not be made without the prior written approval of the Architect or Engineer.

3.16 Contractor's Insurance

3.16.1 Builder's Risk Insurance. Contractor's or Builder's Risk Insurance in the all-risk form shall be provided by the Contractor to the extent of 100 percent of the bid on which the Contract is awarded to the Contractor covering damage to or loss of work performed under the Contract caused by fire, explosion, wind, lightning, vandalism, malicious mischief and any similar other casualty, risk or peril. The insurance shall be payable to the Owner and Contractor as their respective interests may appear. THIS PARAGRAPH NOT APPLICABLE TO SEWER, STREETS AND UNDERGROUND UTILITIES PROJECTS.

3.16.2 Blasting Insurance. Should any blasting become necessary to perform the Contract, liability insurance shall be provided by the Contractor in the amount of at least \$1,000,000 per occurrence, directly or indirectly arising from or during the time blasting is done. Such insurance may be provided either under a separate blasting insurance contract, by endorsement of the Commercial General Liability Insurance contract, or by any other insurance contract. Such insurance shall cover the General Contractor and shall extend to provide coverage of any Subcontractor doing blasting. No blasting shall be done until the insurance covering blasting is provided as required by this subsection or in greater amounts if so required by the Owner, provided, however, that in the event the blasting is solely and exclusively to be carried out by and under the supervision and direction of a Subcontractor's policy. The furnishing of insurance by the Subcontractor shall not create any contractual relationship between the Owner and Subcontractor. If the Owner requires greater amounts of insurance, notice of such requirements shall be given to all bidders not less than fifteen (15) days prior to the bid receipt date.

3.16.3 Insurance Required of Subcontractors. The Contractor shall not allow any Subcontractor to commence work on his subcontract until insurance as specified herein has been obtained covering the operations of said Subcontractor.

3.16.4 Non-Release of Obligations. The carrying by the Contractor or Subcontractor of the insurance required shall in no way be interpreted as relieving the Contractor or Subcontractor of any obligations it may have under this Contract.

3.17 Bid Security

Except in an emergency, all bids for construction Contracts in excess of \$100,000 shall be accompanied by a bid guarantee of not less than five percent (5%) of the bid amount set forth in item 14 of the Bid Form. Such security may be a certified check or a cashier's check or a Bid Bond made payable to the Owner. The Owner may require bid security for lesser bid amounts, however, this will be so stated in the Invitation for Bid.

Such Bid Bond or check shall be submitted with the understanding it shall guarantee that the bidder will not withdraw its bid during the acceptance period indicated in the Invitation for Bids except as defined in paragraphs 2.42 and 3.1 of the Contract Documents; that if the bid is accepted, the bidder will enter into a formal Contract with the Owner in accordance with the Contract Documents; and that Performance and Payment Bond, and Certificate of Insurance will be given; and that in the event of the failure to enter into said Contract and give said Bonds and Certificate of Insurance within fifteen(15) days after it has received notice of acceptance of its bid, the bidder shall be liable to the Owner for the full amount of the bid guarantee or the difference between the bid for which the bond was written and the next low bid as representing the damage to the Owner. Forfeiture under a Bid Bond shall not exceed the lesser thereof. The Bid Bonds and checks shall be returned to all except the three lowest bidders after the formal opening of bids. The remaining bid bonds and checks will be returned to the three lowest bidders after the accepted bidder has executed the Contract, Performance and Payment Bonds and Certificate of Insurance and the Owner has approved them.

If the required contract has not been executed within sixty (60) days after the date of the opening of bids, or any extension agreed to in writing by both parties, then bond or check of any bidder will be returned upon request, provided it has not been notified of the acceptance of its bid prior to the date of such request. No plea of mistake in the bid shall be available to the bidder for the recovering of a bid security or as a defense to any action based upon the neglect or refusal to execute a Contract except as provided in paragraphs 2.27 and 3.5 of the Contract Documents.

A bid bond will be accepted if executed on the official form furnished by the Owner or other form as may be approved by the Owner. Bid bonds must be in an original form and contain original signatures. Any bid accompanied by a bond executed as a copy, duplicated or facsimile will be rejected.

3.18 Preparation and Submission of Bids

Bids shall be submitted on the forms furnished. All unit or lump prices shall be shown in numbers and written characters. Where discrepancies occur between the numbers and written, the numbers shall govern. Erasures or other changes in bid must be annotated and initialed by the individual signing the bid. Bids containing any conditions, omissions, unexplained erasures or alterations, or items not called for on the bid sheet, may be rejected by the Owner as being incomplete.

Bidders shall bid on all items as shown on the bid sheet, if required by the Owner. Bids submitted in lead pencil may be cause for rejection. Should any additions or deductions, or changes in price or specifications be written or otherwise set forth on the outside of any sealed envelope purporting to contain a bid, such envelope shall be returned unopened to the bidder.

Each bid must give the full business address of the bidder and be signed in ink with his or her usual signature where signature by the bidder is indicated.

Bids by partnerships must furnish the full name of all partners and must be signed in the partnership name by one of the members of the partnership. Bids by corporations must be signed with the legal name of the corporation followed by the name of the state in which they are incorporated and by

the signature and designation of the president, secretary, or other person authorized to bind it in the matter. The name of each person signing shall be typed or printed below the signature. A bid by a person who affixes to his or her signature the word "President", "Secretary", "Agent", or other designation, without disclosing his or her principal, may be held to be the bid of the individual signing. Satisfactory evidence of the authority of the officer signing on behalf of the corporation shall be furnished if signed by other than the president.

Bids along with the bid guarantee shall be enclosed in a sealed envelope that shall be marked and addressed as indicated by the Invitation for Bid. Bidders are required under Title 54.1 of the Code of Virginia to show evidence of licensing as a Class "A" Contractor before bid may be received and considered (1) on a general or subcontract of \$70,000 or more, or (2) Class "B" Contractor for projects of \$7500 to \$70,000, and (3) repair or improvements undertaken by such person within any twelve-month period is Five Hundred Thousand dollars (\$500,000) or more. When a license is required for either of the foregoing reasons, or whether or not so required, if the bidder is the holder of a license, the bidder shall place on the outside of the envelope containing its bid and in its bid over the bidder's signature the following notation: "A licensed Virginia Contractor No. _____." When a license is not so required and a person who is not the holder of a license enters a bid, such person shall place on the outside the envelope containing his or her bid and shall place in his or her bid over his or her signature the following notation: "Licensing not required under Title 54.1, Code of Virginia."

If forwarded by mail the sealed envelope containing the bid shall be enclosed in another envelope addressed to the Contract Specialist, 900 E. Broad Street, 11th Floor, Richmond, Virginia 23219. If forwarded otherwise than by mail, it shall be delivered to the above address prior to the time set for receiving or opening bids.

3.19 Receipt and Opening of Bids

Bids will be opened publicly at the time and place stated in the Invitation for Bid. The officer whose duty it is to open them will decide when the specified time has arrived. No responsibility will be attached to any officer for the premature opening of a bid not properly addressed and identified. It is the responsibility of the bidder to assure that its bid is delivered to the designated place of receipt prior to the time set for the receipt of bids. Any bid received after the time designated for receipt of bids will not be opened or considered and will be returned to the bidder.

3.20 Minor Irregularities

The Owner reserves the right to waive minor informalities and irregularities. A minor informality or irregularity is one that is merely a matter of form and not of substance or some immaterial defect in a bid or variation of a bid form that can be corrected or waived without being prejudicial to other bidders. The defect or variation is immaterial when the effect on price, quantity, quality or delivery is negligible. Any clerical mistake, apparent on its face in the bid, may be corrected by the Procurement Officer upon verification of the bid intended.

3.21 Rejection of Bids

The Owner reserves the right to reject any or all bids. Any bid that fails to conform to the essential requirements of the solicitation or the specification or is unreasonable as to price may be rejected. In cases of unit priced bids, any bid may be rejected if the prices for any line items or sub line items are materially unbalanced.

3.22 Royalties and Patents

Contract prices must include all royalties and costs arising from patents, trademarks, and copyrights in any way involved in the Work. Whenever the Contractor is required or desires to use any design,

device, material or process covered by letters, patent or copyright, the Contractor shall indemnify and save harmless the Owner, its officers, agents and employees from any and all claims for infringement by reason of the use of any such patented design, device, tool, material, equipment or process to be performed under the Contract, and shall indemnify the said Owner, its officers, agents, and employees for any costs, expenses and damages which it may be obliged to pay, by reason of any such infringement, at any time during the prosecution of, or after completion of the project.

4.0 Award and Execution of Contract

4.1 Award of Contract

The contract will be awarded to the lowest responsive, responsible bidder who shall be determined by the Director of Procurement Services in accordance with the provisions of the City Code and the laws of the Commonwealth of Virginia. To be responsive, a bid must comply in all material respects with the Invitation for Bids. Bids must be filled out, executed and submitted in accordance with the Instructions to Bidders. Award shall be made to responsible contractors only. To be determined responsible, a prospective contractor must meet the following conditions:

- a) Have adequate financial resources to perform the contract, or the ability to obtain them.
- b) Be able to comply with the proposed performance or delivery schedule considering all other business commitments.
- c) Have a satisfactory performance record in the City or other governmental localities. However, a prospective contractor shall not be non-responsible solely on the basis of a lack of relevant performance history.
- d) Possess the necessary construction and technical equipment and facilities to perform the Work.
- e) Comply with the City's Human Rights conditions.

4.2 Executing the Contract

Upon notice of award of the Contract, the bidder shall sign the contract on receipt and furnish the Performance and Payment Bonds as prescribed in paragraph 4.5 and the Certificate of Insurance as prescribed in paragraph 3.16, which are required to be procured by the contractor within fifteen (15) calendar days after the date of the notice of award or within such further time as the Owner may allow.

4.3 Contract Obligation

No Contract shall result from the submission of any bid and no liability shall accrue with respect thereto until a written Contract and accompanying documents have been fully and completely executed on the part of the successful bidder and the Owner. However, failure by the successful bidder to enter into a written Contract shall cause the successful bidder to forfeit the full amount of the bid guarantee to the Owner subject to the terms and conditions of the Contract Documents.

4.4 Execution of Documents

All documents that the bidder is required to execute under these General Conditions shall carry the signature of the president of the corporation, the corporate seal and shall be attested by the secretary of the corporation provided. If the board of directors of a corporation authorizes another officer to act for the corporation, then a sealed and attested copy of such authorization shall accompany the signature of such other officer. In the case of an individual or partnership, the individual to be

bound shall sign, and each partner to be bound shall sign the document or documents, which signature shall be duly witnessed.

4.5 Contract Security

4.5.1 For contracts with a value exceeding one hundred thousand dollars (\$100,000), the Contractor shall deliver to the Owner or its designated representative a Performance Bond and a Labor and Material Payment Bond, each fully executed by the Contractor and one or more surety companies legally licensed to do business in Virginia and each in an amount equal to the sum of the contract amount. If more than one Surety executes a bond, each shall be jointly and severally liable to the Owner for the entire amount of the bond. Sureties shall be selected by the Contractor, subject to approval by the Owner. No payment on the Contract shall be due and payable to the Contractor until the bonds have been approved by the Owner and the Office of the City Attorney

4.5.2 The contractor may submit alternative forms of security in lieu of the bonds described in subsection 4.5.1 above in accordance with City Code § 21-51.

4.5.3 For contracts with a value of less than one hundred thousand dollars (\$100,000), the Contractor will not be required to provide a Performance Bond or a Labor and Material Payment Bond as described above unless the Invitation for Bids states that such bonds will be required. If the Invitation for Bids specifies that the Contractor is required to provide a Performance Bond or a Labor and Material Payment Bond, or both, the Contractor shall pay the cost thereof. If the Invitation for Bids does not specify that the Contractor is required to provide a Performance Bond or a Labor and Material Payment Bond, or both, but the City nevertheless requests that the Contractor do so, the Contractor shall provide the requested bonds in accordance with this section 4.5, and the Owner shall pay the cost thereof, which shall be added to the contract amount by change order.

4.6 Subcontracts

Within 15 days after notification of contract execution and before making any subcontract or issuing any purchase order, the contractor must submit the all subcontracts to the Owner for approval. The Owner will notify the contractor in writing the names of all approved Subcontractors, but such approval shall not entitle Subcontractors recognition for any direct contractual relationship with the Owner, nor shall it constitute approval of the use of materials other than those specified. The Contractor shall be responsible for all acts of Subcontractors and for all contract work regardless of any subcontract. The Owner and the Architect or Engineer may request approval of any Subcontractor be revoked for good cause. Notice of such revocation of approval will be in writing to the Architect or Engineer by the Owner for transmittal to the Contractor.

4.6.1 Additional Requirements. Nothing in this section shall preclude such Contractor from requiring each Subcontractor to furnish a Performance Bond and a Payment Bond with surety thereon in the sum of the full amount of the contract with such Subcontractor conditioned upon the faithful performance of the contract and the payment to all persons who have fulfilled contracts which are directly with the Subcontractor for performing labor and furnishing materials in the prosecution of the work provided for in the subcontract.

4.6.2 Subcontractor Obligations. Nothing in the Contract Documents shall create any obligation on the part of the Owner to pay or see to the payment of any sums directly to any subcontractor.

4.7 Separate Contracts

The Owner reserves the right to let other contracts in connection with the project, the work under which will proceed simultaneously with the execution of this Contract. The Contractor shall afford other separate Contractors reasonable opportunity for the introduction and storage of their materials and the execution of their work. The Contractor shall take all reasonable action to coordinate its work with their work.

If the work performed by the separate Contractor is defective or so performed as to prevent the Contractor's own progress, the Contractor shall immediately notify the Architect or Engineer upon discovering such conditions. Upon receiving notification, the Architect or Engineer shall take such appropriate steps as are necessary to allow the Contractor to carry out its work under this Contract, and appropriate extensions of time and change orders shall be given to the Contractor pursuant to the terms of the Contract Documents for any delays and extra costs caused by the separate Contractor's failure to properly perform.

4.8 Taxes

The contractor shall pay all taxes by law resulting from the work or traceable thereto except taxes and assessments on real property comprising the site of the project. The City shall not be liable for the payment of any taxes levied by any local, state, or federal governmental entity against the Contractor, and the Contractor shall pay all such taxes; however, should the City nevertheless pay any such taxes, the Contractor shall reimburse the City therefore.

4.9 Compliance with Laws

The Contractor shall be fully responsible for knowledge of and shall abide by each and every law, rule or regulation of the City of Richmond, the Commonwealth of Virginia, and the United States government covering such project and in force at the time of the Contract execution. It shall not be entitled to claim any damages for delay occasioned by compliance with such laws. Where such laws are changed during the course of the Contract and impact the performance of the Work, such changes shall be made effective through Change Order prepared in accordance with the terms of the Contract Documents.

4.10 Indemnity

The Contractor shall defend, indemnify, reimburse and keep and hold the Owner and its employees free and harmless from liability on account of injury or damage to persons, including the Contractor's employees and employees of each subcontractor and property, growing out of or directly or indirectly resulting from the performance of the contract or any subcontract and the failure, refusal or neglect to comply with the provisions of the Contract.

In the event that any suit or proceeding is brought against the Owner, at law or in equity, either independently or jointly with the Contractor or a Subcontractor on account thereof, the Contractor shall defend the Owner in any such suit or proceeding at the cost of the Contractor. In the event of a final judgment or decree being obtained against the Owner, either independently or jointly with the Contractor or Subcontractor, then the Contractor shall pay such judgment or comply with such decree with all costs and expense of whatever nature and hold the Owner harmless there from. The Contractor shall insure the liability assumed by him under this Contract and have evidence of such insurance certified to the Owner on forms provided by the Owner. Nothing in the section shall be deemed to be in conflict with the Code of Virginia, as amended.

4.11 Notice

4.11.1 Any written notice by either party to the Contract shall be sufficiently given by any one or combination of the following, whichever shall first occur: (1) delivered by hand to the last

known business address of the person to whom the notice is due; (2) delivered by hand to the person's authorized agent, representative or officer wherever they may be found; or (3) enclosed in a postage prepaid envelope addressed to such last known business address and delivered to a United States Postal Service official or mailbox. Notice is effective upon such delivery. All notices to the Owner should be directed to the Project Manager.

- 4.11.2** If the Owner and the Contractor agree in writing that Notices transmitted by facsimile transmission ("Fax") are acceptable for the Project, such Notices shall be transmitted to the Fax number listed in that agreement and shall have a designated space for the Faxed Notice recipient to acknowledge his receipt by authorized signature and date. The Faxed Notice with authorized signature acknowledging receipt shall be transmitted back to the sender. The Faxed Notice shall be effective on the date it is acknowledged by authorized signature. All Faxed Notices shall also be sent by hard copy, which shall be effective upon delivery, as provided herein. Notice shall be effective upon the date of acknowledgment of the Faxed Notice or the date of delivery, whichever occurs first.

4.12 Contract Amount

4.12.1 Generally. The term "contract amount," as used in these General Conditions of the Contract, means the Maximum Authorized Contract Amount for this Contract as stated on the contract page signed by the authorized representatives of the Owner and the Contractor. The Maximum Authorized Contract Amount may be increased or decreased as authorized by these General Conditions of the Contract. The total aggregate or cumulative liability of the Owner in connection with this Contract or with any work thereunder shall not under any circumstances exceed the Maximum Authorized Contract Amount. Each payment made to the Contractor pursuant to this Contract reduces the portion of the Maximum Authorized Contract Amount available for payment to the Contractor. The Maximum Authorized Contract Amount is not a guarantee of payments that the Contractor will receive under this Contract.

4.12.2 Lump Sum Contracts. If this Contract is awarded on a lump sum basis, as evidenced by the Bid Form, the Maximum Authorized Contract Amount is the amount of the lump sum base bid plus the amounts of any additive bid items chosen by the Owner, unless an adjusted bid price is negotiated pursuant to section 21-55(b) of the Richmond City Code.

4.12.3 Unit Price Contracts. If this Contract is awarded on a unit price basis, as evidenced by the Bid Form, the Maximum Authorized Contract Amount is an amount estimated by the Owner to be available for expenditure for this Contract through the June 30 immediately following the date of this Contract as shown on the contract page signed by the authorized representatives of the Owner and the Contractor. The Maximum Authorized Contract Amount may be more or less than the Total Computed Price on the Bid Form.

5.0 Performance of Contract

5.1 Order of Precedence

The Contract Documents shall be accorded the following order of precedence unless specifically changed elsewhere in these specifications:

- Change Orders
- The Contract
- Addenda
- Division 01010 General Conditions of the Contract
- Special Provisions of the Contract
- Technical Specifications
- Drawings
- Supplementary Drawings
- The Invitation for Bid
- The Request for Qualification

5.2 Commencement of Work

The Contractor shall mobilize forces and commence work within fifteen (15) days from Notice to Proceed or as may be mutually agreed to at the pre-construction meeting. The contractor shall prosecute the Work so as to prevent delay to other contractors or to the general completion of the project. Time being the essence of this Contract, the contractor shall prosecute the Work diligently, using such means and methods of construction as will secure its final completion in accordance with the requirements of the Contract Documents, not later than the date specified in Invitation for Bid or on the date to which the time for completion may be extended.

5.3 Critical Materials

Contractor understands that completion of the project at the earliest possible date is of extreme importance to Owner. Based on drawings as and when issued to it by Architect/Engineer, Contractor therefore undertakes and agrees to use its best efforts to arrange for the purchase of critical materials, directly or through subcontractors, far enough in advance of the time when they will be needed so that the orderly completion of the project at the earliest possible date will not be delayed. Contractor shall furnish Architect/Engineer and Owner with a report based on drawings issued to it by Architect/Engineer of critical materials required for the project in such detail as they may require.

5.4 Change Orders

Construction Change Orders are to be initiated when any material or substantive change within the original specifications or project scope is proposed or is deemed necessary by the City or the Contractor. The change must be of a nature that corrects errors in drawings; considers unforeseen site conditions; captures previously unknown conditions not recorded in official documentation registered with the appropriate public institutions; changes that capture obvious omissions necessary for the projects successful completion, or; changes in materials, approach, or other fundamental deviations from the original specifications or project scope. Change Orders that increase or expand the scope of the project in any way shall not proceed or initiate any work until the said change is approved in writing by the Director of the responsible department, the Director Procurement Services and, if applicable, the City Chief Administrative Officer.

Non Construction Change Orders are to be initiated for administrative changes; project time extensions; price and labor rates increases due to regulations or other external considerations;

changes in code, regulations, changes in policies and procedures; and other unforeseen or unanticipated administrative circumstances not considered at project initiation.

The City or the Contractor may initiate change orders. A request initiated by the City will contain a description of the intended change with supplementary revised drawings, project scope, specifications and a revised projected time for completion if necessary. An expansion of project scope, project design, or increases in quantities or reduction in time must be initiated with the submission of a project concept change memo to be approved by the responsible Department Director, the Director of Procurement Services, and the City CAO. The approved memo shall be attached to the subsequent proposed change order request.

The Contractor may only initiate a change order request within the established project scope and specification parameters. A request initiated by the Contractor will provide all supporting documentation which must include a written statement of the reason for the change, a statement addressing the reason the work was not included in the original bid and the effect the proposed change will have on the project timeline, price, and associated factors. The Contractor shall not proceed with any changes unless pre-approved by the appropriate City officials. The City will not be liable for the cost of changes orders not formally approved before the work begins.

Overhead and profit shall be limited to the amounts established in the contract. Overhead is defined as cost of administration, field office and home office costs, general and project superintendence above the level of general foreman, surveying, office engineering and estimating costs, other required insurance, materials used in temporary structures (not including for work), the use of small tools, scheduling costs, and all other costs incidental and non-direct to the performance of the change or the cost of doing business. Small tools are defined as any tool with a replacement value less than \$1,000 (one thousand dollars).

Regardless of the manner in which the adjustment to the contract for extra work is determined, such adjustments shall include all amounts, direct or indirect or consequential, resulting from the performance of the extra work, including but not limited to, overhead, profit, taxes, allowances made to any subcontractors, rent for tools and equipment (whether for use in performing the extra work or remaining idle during the performance of such extra the work), licenses, fees, or other charges related to the cost of doing business. The adjustment in the Contract Price, if any, shall constitute full and mutual accord and satisfaction for all costs related to the change.

5.4.1 Changes in the Work and Extras. At the request of the Architect or Engineer, the Contractor shall perform any related work not covered by plans and specifications or unit prices that may arise during construction. The Extra Work shall be on the basis of a lump sum negotiated between the Contractor and Architect or Engineer. Additional compensation shall be broken down into its component parts for actual labor, materials and equipment rental plus an agreed to overhead and profit percentage stipulated in the Bid; or in accordance with the contingent items schedule included in the Bid for Street, Sewer and Underground Utility Projects. The Owner must approve in writing any changes in the Work.

All changes in the work or extra work made pursuant to a written order shall be performed under the terms of the Contract Documents. The provisions of Claims for Consequential Damages shall not be applicable to Changes in the Work and Extras. The overhead and profit percentage shall not exceed the amount listed in the Invitation for Bid. **Should the percentage be divided between the Contractor and one or more subcontractors, the Contractor shall add its portion of the percentage to the actual cost of the work and not to the Subcontractor's total.**

Whenever the City initiates changes, alterations, additions, omissions or revisions for which the necessary drawings and details have been completed and submitted to the Contractor, the Contractor is to submit the proper cost and price documentation including an itemized statement of quantities and prices incidental to such revisions, changes, additions and omissions to facilitate the checking of the quantities involved in a manner as stated hereafter.

All changes and extra work shall be reduced to written form and approved by the City within the same billing period in which the Work was performed. Payment for changes and extra work may not be billed or paid until the change order has been approved by the City and the change or extra work has been completed.

5.4.2 Labor and Equipment Costs. The cost for labor and equipment for building and structures projects shall cover all actual costs including but not limited to all insurance costs, all taxes (including payroll taxes), Social Security, Worker's Compensation, Old Age Benefits, and Bonuses, FICA, and Fringe Benefits.

5.4.3 Change Order Form and Format. The Contractor shall use the City's Proposed Change Order Form (PCO Form) when submitting for change orders except when the contract is based upon a Unit Price Schedule such as those included in the Bid for Street, Sewer and Underground Utility Projects. The form shows a summary of 1st tier subcontractor's Labor, Material, Equipment, and Overhead & Profit, along with the Contractor's Overhead & Profit on the Subcontractor's Labor, Material, and Equipment along with the Contractor's Labor, Material, Equipment, Overhead & Profit, and additional Bond Premiums of the Performance Bond not to exceed 1%. The form shall be provided to the Contractor in an electronic format upon contract award.

5.4.3.a Back-Up Documentation. The Contractor shall provide additional written supporting documentation on company letterhead with an appropriate signature of an authorized representative for the contractor with all PCO forms prior to the approval of the change order. Back-up documentation to be provided must include the reasons for the change order, why the work was not included in the original bid, the effect of the changes on project delivery (expressed in calendar days), and 1st tier subcontractor's price breakdowns, in detail on company letterhead as aforementioned. The Contractor must also provide a detailed price breakdown for all Contractor performed work on company letterhead which shall include all labor (hours and rates), material (material counts, etc), equipment (quotes from rental companies, time duration of rental, etc.), and overhead & profit (percentages).

5.4.3.b Inaccurate Back-Up Documentation. Back-up documentation submitted containing mathematical errors or information that does not reflect the information demonstrated on the PCO Form shall be rejected and returned to the Contractor for revision. The City of Richmond will not be liable for delay of the project or financial hardships caused by inaccurate back-up documentation. Rounding of numbers is not allowed and will not be accepted. Dollar amounts shall be exact and accurate.

5.5 Unforeseen Site Conditions

The Contractor shall promptly, and before the conditions are disturbed, give a written notice to the Architect or Engineer of any subsurface or latent physical conditions at the site or in the existing structure which differ materially from those indicated in Contract Documents; or of any unknown physical conditions at the site, of an unusual nature, which differ materially from those ordinarily encountered and generally recognized as inhering in work of the character provided for in the Contract Documents.

The Architect or Engineer shall investigate the site conditions promptly after receiving the notice and must advise the City in writing if further investigation or tests are necessary. Should the results of such investigation indicate conditions differ materially from the Contract Documents, an equitable adjustment may be negotiated and the contract shall be modified to reflect any negotiated changes through the means of Construction Change Order.

5.6 Completion

The Owner, with concurrence by the Architect or Engineer, shall solely judge whether the work hereunder has been completed within the time stipulated.

5.6.1 Completion Date. Unless the date of completion is extended pursuant to the provisions herein, the Contractor must complete the work covered by this contract not later than the number of days specified in the Invitation for Bid.

5.6.2 Penalty of Non Completion. There will be on the part of the Owner substantial monetary damage in the event the Contractor shall fail to complete the work within the time fixed for completion in the Invitation for Bid, or within the time to which such completion may have been extended. The amount per day set forth in the Invitation for Bid is hereby agreed upon as the liquidated damages for each and every calendar day that the time consumed for substantial completion of the work exceeds the time allowed therefore. This amount of liquidated damages shall in no event be considered as a penalty or otherwise than as liquidated and adjusted damages to the Owner because of the said delay. The Contractor and its surety agree that the said sum per day for each such day shall be deducted and retained out of the monies which may become due hereunder, and, if not so deductible, the Contractor and its surety shall be liable therefore.

5.6.3 Final Completion. Date of final completion shall be the date as certified by the Owner when the performance of the Work is complete in accordance with the Contract Documents, such that no further work remains to be done at the site or otherwise. The certification of final completion shall serve as the date when the Contractor has fulfilled all requirements for final payment as described in elsewhere in the General Conditions of the Contract. Certification of final completion shall be achieved within the time fixed for completion in the Contract or within the time for completion as modified through a change order to the Contract.

5.7 Extension of Time

No extension beyond the date of completion fixed by the terms of the Contract shall be effective unless granted in writing by the Director of Procurement Services and concurred with by the representative of the Department. A request by the Contractor for extension of time must be in writing; must set forth in detail the reasons and causes of delay; shall identify the particular construction operation(s) affected; and must be submitted to the Owner within fifteen (15) days following the occurrence of each delay. The Owner shall acknowledge the Contractor's request and within fifteen (15) days the Owner shall reply and set forth in detail any findings or recommendations and the reasons therefor.

An application for extension of time will not be approved unless it can be demonstrated that the Contractor reasonably endeavored to carry out other phases of the work which were not affected by one or more of the conditions as set out herein.

5.7.1 Granting Extensions. If such a request is made, the Contractor shall be entitled to an extension of time for delay in completion of the Work should the Contractor be obstructed or delayed in the commencement, prosecution or completion of any part of said work by an act or

delay of the Owner, or by issuance of a permit, or by a riot, insurrection, war, pestilence, acts of public authorities, fire, lightning, hurricanes, earthquakes, tornadoes, floods, extremely abnormal and excessive inclement weather as indicated by weather records preceding the date of the Contract, or by strikes.

The Contractor may be granted an extension of time for other causes, which causes of delay, in the opinion of the Architect or Engineer and approved by the Owner, are entirely beyond the expectation and control of the Contractor, provided such delays are accurately documented in the Contractor's request for an extension of time.

5.7.2 Extension Guidelines. The Contractor shall be entitled to an extension of time for such causes as set out above only for the number of days of delay which are due solely to such causes, and then only upon the approval of the Owner following a determination by the Architect or Engineer that the delays took place due solely to one or more of such causes, and that the conditions cited actually delayed the completion of the project. It is hereby understood that the direction by the Architect or Engineer of the order and sequence of the work shall not in itself constitute a basis for extension of time.

5.7.3 Impact of Extension. The determination made by the Owner on a request for an extension of time shall be binding. In no event shall any delays or extensions of time be construed as cause of justification for extra compensation.

5.8 Claims for Consequential Damages

The Contractor agrees to make no claim for consequential damages for delay in the performance of this Contract occasioned by any act or omission to act of the Owner or any of its representatives, or because of any injunction which may be brought against the Owner or its representatives. The Owner agrees that the Contractor shall be fully compensated for job site overhead expenses, insurance and taxes related to expenses during the period of total shutdown that may be caused as set out 5.7.2 above, provided, the Contractor furnishes the Owner proof that such expenses did occur. This section shall not apply to changes in the Work as set forth in paragraph 5.4 of these General Conditions. The Contractor agrees to make no claim for damages, direct or consequential, for delay in the performance of this Contract occasioned by any reason whatsoever, and further agrees that any such claim shall be fully compensated for by an extension of time and waives every right to bring an action for any such latter damages.

5.9 Progress Schedule

To enable the Work to be laid out and prosecuted in an orderly and expeditious manner, the Contractor, within three (3) calendar days following the date set for the preconstruction meeting, shall submit to the Owner or Architect/Engineer a proposed progress schedule showing the anticipated time of commencement and completion of each of the various operations to be performed under this Contract, together with all necessary and appropriate information regarding sequence and correlation of work, and an estimated time required for delivery of all materials and equipment required for the project, including a schedule of submission shop drawings and samples. The proposed schedule shall be revised as directed by the Owner or Architect or Engineer until approved, and after such approval, shall be strictly adhered to by the Contractor, unless upon written permission of the Architect or Engineer, it is changed, provided such change is agreed to by the Owner.

5.9.1 Failure to Adhere To Schedule. If the Contractor shall fail to adhere to the approved progress schedule or to the schedule as revised, it must promptly adopt such other or additional

means and methods of construction as will make up for the time lost and will assure completion in accordance with such schedule.

5.9.2 Withholding Partial Payments. If the Contractor's progress is more than 10% behind his projected schedule, based on dollars actually earned versus estimated dollar earnings as shown on the accepted progress schedule, partial payments may be withheld until such time as the Work is at least within 90% of the projected schedule and is so maintained for thirty (30) days thereafter.

5.10 Architect/Engineer's or Owner's Representative's Status

All Work shall be done under the general observation of the Architect or Engineer. The Contractor shall carry out the Work in accordance with the Contract Documents. The construction means, methods, techniques, sequences or procedures, or safety precautions and programs in connection with the Work, shall be at the direction and the responsibility of the Contractor. If provided in writing by the Owner, the Architect or Engineer shall have authority to and shall reject any and all Work whenever it is necessary to do so in order to insure the proper execution of the Work in accordance with the Contract Documents. All orders from the Owner and all communications from the Contractor to the Owner shall be transmitted through the Architect or Engineer. Any oral order, direction, requirement or determination given the Contractor shall have no effect unless so confirmed by the Owner and Architect or Engineer shall in writing within fourteen (14) days.

5.10.1 Architect/Engineer Responsibility. It shall be the Architect's or Engineer's responsibility to verify that the Contractor's schedule is adhered to strictly. Should the Contractor's progress fall behind the schedule established by the Contractor and approved jointly by the Owner and the Architect or Engineer, the Architect or Engineer shall promptly notify the Contractor in writing that the work must get back on schedule and further advise the Owner of the steps which the Contractor has taken to put the project back on project back on schedule and enforce maintenance of the schedule.

5.10.2 Termination of Architect. In case of the termination of the employment of the Architect or Engineer, the Owner shall appoint a capable and reputable Architect or Engineer. The Status under the Contract of the Architect or Engineer so appointed shall be that of the former Architect or Engineer.

5.11 Materials, Services and Facilities

Unless otherwise noted, the Contractor shall provide and pay for all labor, materials, equipment, barricades, tools, construction equipment and machinery, water, heat, utilities, transportation, sanitary facilities and other services necessary for the proper completion of the Work.

5.12 Protection of Work

During performance and until final acceptance, the Contractor shall provide absolute protection of the finished and unfinished Work against any damage, loss, or injury. Such precaution shall not relieve the Contractor from any and all liability and responsibility for loss or damage to the Work occurring before certification of final completion. In the event of any such loss or damage, repair, replace and make good the work without extension of time therefore except as may be otherwise specified.

5.13 Drawings and Specifications

The general character and scope of the work is illustrated by the drawings and specifications. Omissions from the drawings and specifications shall not relieve the Contractor from the responsibility of furnishing, making or installing all items required by law or usually furnished, made or installed in a project of the scope and general character indicated by the drawings and

specifications. Reference to standard specifications of any professional society, institute, association or governmental authority, or similar body is a reference to the standard specifications of such organization in effect at the date of the bidding documents, unless otherwise specified.

5.13.1 Limitations of Drawings. The drawings show conditions as they are supposed or believed by the Owner to exist, but are not intended to be or inferred to be that the conditions as shown thereon constitute a representation or warranty expressed or implied by the Owner that such conditions actually exist. The Owner shall not be liable for any loss sustained by the Contractor as a result of any variance between the conditions as shown on the drawings and the actual conditions revealed during the progress of the work, except as indicated in paragraph 5.16. In case of difference between small- and large-scale drawings, the large-scale drawings shall govern. In cases of difference between drawings and specifications, the specifications shall govern.

Where on any of the drawings a portion of the work is drawn out and the remainder is indicated in outline, the parts drawn out shall apply also to all other like portions of the work.

5.13.2 Separation of Drawings. Drawings and specifications are separated into titled divisions and sections for convenience, and do not necessarily dictate or determine the craft or trade involved. Inasmuch as each Contractor has presented by the submission of its bid, that all parts of the bidding documents have been examined, he shall be responsible for performing all the work specifically required of him by any part of the bidding documents, including all drawings and specifications for the entire project even though such work may be included under various headings or in divisions or sections of the project documents.

5.13.3 Measurements. Measurements or dimensions shown on the drawings shall be verified at the site by the Contractor. Measurements or dimensions from the drawings shall **NOT** be obtained by scaling. Where discrepancies are discovered, the Owner shall be notified immediately for clarification.

5.13.4 Maintenance of Drawings By Contractor. The Contractor shall keep on site a record set of drawings and specifications on which all changes or as-built conditions shall be noted, including electrical mechanical, and shall at all times give the Owner, Architect or Engineer and their authorized representatives access thereto.

The Architect/Engineer or his duly authorized representative shall inspect the record set of drawings and specifications on a monthly basis prior to preparation of the monthly progress payment. In the event said drawings and specifications are not up-to-date, the monthly progress payment may be withheld until the record set of drawings and specifications are brought up-to-date.

5.13.5 Ownership of Drawings. All drawings, specifications and copies furnished the Contractor for this project are to be turned over to the Owner at completion of the work.

5.13.6 Copies Furnished The Contractor. After the contract has been executed the Contractor will be furnished eight (8) sets of the contract drawings and specifications. Additional copies of the drawings and specifications will be furnished the Contractor at the cost of reproduction. It shall be the Contractor's responsibility to furnish each of its Subcontractors, manufacturers, and material suppliers such copies of the Contract Documents as may be required for its portion of the work.

5.13.7 Detail Drawings and Instructions. The Contractor will be furnished additional instructions and detail drawings as may be necessary to carry out the work included in the Contract. The

additional drawings and instructions, thus supplied to the Contractor, shall be consistent with Contract Documents, true developments thereof and shall be so prepared that they can be reasonably interpreted as a part thereof. The Contractor shall carry out the Work accordance with the additional detail drawings and instruction.

5.13.8 Special Drawing Provisions. The Contractor and the Architect or Engineer shall prepare jointly:

- a) A schedule fixing the dates at which special detail drawings will be required; and
- b) A schedule fixing the respective dates for the submission of shop or setting drawings, the beginning of manufacture, testing and installation of materials, supplies and equipment, and the completion of the various parts of the work, each such schedule to be subject to change from time to time in accordance with the progress of the work.

5.14 Shop Drawings

Shop drawings are drawings, illustrations, schedules, performance charts, brochures and other data which are prepared by the Contractor or any Subcontractor, manufacturer, supplier or distributor, which illustrates some portion of the work to the Architect or Engineer for review for compliance with the Contract Documents.

The Contractor shall review and submit shop and setting drawings and schedules required by the specifications or that may be requested by the Architect or Engineer, and no work shall be fabricated by the Contractor, save at his own risk, until such review has been completed and the submittal approved. The Architect or Engineer shall not assume responsibility for correctness of dimensions or details.

Drawings and schedules shall be submitted in quadruplicate (unless otherwise specified) accompanied by letter of transmittal which shall give a list of the numbers and dates of the drawings submitted. Drawings shall be complete in every respect and bound in sets.

The Contractor shall submit all drawings and schedules sufficiently in advance of construction requirements to allow ample time for checking, correcting, re-submitting and checking. The Architect or Engineer shall, within fourteen (14) days after receipt, return such drawings and schedules to the Contractor indicating his approval or disapproval. On complex drawings and equipment, the Architect shall acknowledge receipt within fourteen (14) days and advise the Contractor when the submittal will be returned, approved or disapproved.

If a drawing as submitted indicates a departure from the contract requirements which the Architect or Engineer finds to be in the interest of the Owner and to be so minor as not to involve a change in the Contract price or time for performance, it may approve the drawing and confirm in writing the change or changes.

The approval of shop and setting drawings will be general, and except as otherwise provided shall not be construed:

- a) As permitting any departure from the contract requirements;
- b) As relieving the Contractor of the responsibility for any error in details, dimensions or otherwise that may exist; and

- c) As approving departures from additional details or instructions previously furnished by the Architect or Engineer.

5.15 Omissions, Errors, Discrepancies

Work reasonably anticipated and usually incidental to the project although not specifically referred to in the Contract Documents shall be furnished and performed by the Contractor. Labor, materials and equipment directly or indirectly necessary to complete the construction of the project, whether or not the same may have been expressly provided for in the Contract Documents, shall be furnished and performed by the Contractor at no additional cost to the Owner provided that such labor, materials and equipment are reasonably anticipated and usually incidental to the project.

The Contractor shall notify the Owner or Architect or Engineer immediately and confirm in writing the discovery of any error or omission in the reference point; data furnished by the Architect or Engineer in the layout; any discrepancy in the Contract Documents; or any part thereof; or between the drawings as furnished and the conditions on the site. After such discovery, the Contractor shall proceed with the performance of the Contract only after receiving written instructions from the Owner or Architect or Engineer.

5.16 Performance of Work by the Contractor

To assure adequate interest in and supervision of all work involved in projects exceeding \$1,000,000, the contractor shall be required to perform a portion of the Work with its own forces. The minimum amount of work the contractor must perform with its own forces is 15%.

6.0 Control of the Contract

6.1 Materials and Workmanship

The Contractor shall supervise all workmanship, including that of all Subcontractors, to insure that it is of the highest grade and according to best standard practice. Where necessary, skilled artisans shall perform all work.

For every trade and for every product the installation and application techniques shall be in strict accordance with the highest quality prescribed by the applicable trade standards and by such specific recommendations of the manufacturer.

6.2 Access to the Project

The Architect or Engineer and the Owner shall have access at all times to the work for inspection wherever it is in preparation or progress, and the Contractor shall provide proper facilities for such access and inspection. Other Contractors of the Owner shall be permitted access to the site of the project when it is required for performance of their respective contracts.

6.3 Inspection

All material and workmanship shall be subject to inspection, examination and test by the Owner or Architect or Engineer at any and all times during manufacture or construction. The Architect or Engineer shall have the authority to approve materials and workmanship which are determined not to be in strict accordance with the terms and conditions as set forth in the Contract Documents provided that the Architect or Engineer determines that such materials and workmanship are workable and will cause no significant harm either functionally, structurally or aesthetically to the project. The Owner shall be entitled to a credit based upon the Architect's or Engineer's determination as to the diminished value of the project. The Architect or Engineer shall immediately notify the Owner and the Contractor following his decision that a credit as to the diminished value is due.

The Contractor shall expose any work that has been covered or concealed which the Architect or Engineer has not specifically requested to observe prior to being covered or concealed, the Architect or Engineer may request to see such work. If such work is found to be in accordance with the Contract Documents, payment for the cost of opening or uncovering and replacement shall be handled in accordance with the provision as set forth in Changes in Work and Extras.

If such work is found to be not in accordance with the Contract Documents, the Contractor shall pay the cost of opening or uncovering and replacement and shall at no cost to the Owner make the necessary corrections to bring the Work into accord with the Contract Document. In the event the Contractor can demonstrate that someone other than the Contractor or Subcontractor or someone not acting through or at the direction of either, caused the work in question not to be in accordance with the Contract Documents, then the Contractor shall not be responsible for the aforesaid costs.

If any work has been covered or concealed which the Architect or Engineer had specifically requested to observe prior to its being covered or concealed, the Contractor shall expose same and, where required, replace it entirely at its own expense.

6.3.1 Defective Material. The Architect or Engineer shall have the right to reject defective material and workmanship that does not conform to the terms of the Contract Documents or require their correction. Rejected workmanship shall be satisfactorily corrected and rejected material shall be satisfactorily replaced with proper material without charge to the Owner. The Contractor shall promptly segregate and remove the rejected materials from the premises. If the Contractor fails to

proceed at once with replacement of rejected material or the correction of defective workmanship, the Owner may, by contract or otherwise, replace such material or correct such workmanship and charge the cost to the Contractor, or may terminate the right of the contractor to proceed as provided for in the Contract Documents. The Contractor and surety shall be liable for any damage to the same extent as provided for in termination.

6.4 Samples and Test Specimens

The Contractor shall promptly furnish sufficient labor and material necessary for the testing of samples taken by the Architect or Engineer at no cost to the Owner as may be designated in the Contract Documents. All work shall be performed using material represented by the approved samples.

6.5 Superintendence by the Contractor

The Contractor shall give his personal superintendence to the work, or have a competent superintendent satisfactory to the Owner, on the project at all times during progress of the Work until final acceptance, and who shall have authority to make decisions for him or her.

The Contractor shall, at all times, enforce strict discipline and order among the workers on the project and shall not employ any unfit person or anyone not skilled in the assigned work.

The Owner reserves the right to suspend the work until such time as a competent supervisor satisfactory to the Owner is assigned to the project. Contract time shall not be extended for such suspension nor shall the Contractor be entitled to any additional payment of any kind whatsoever as a result of such suspended work.

6.6 Surveys and Layouts

The Architect or Engineer shall furnish all necessary drawings showing property lines, and the location of the building structure, storm or sanitary sewer, inceptor sewer, water, gas or utility line. The Contractor shall provide necessary stakes and competent engineering service to execute the work in accordance with the Contract Documents and shall be responsible for the accuracy of its work.

6.6.1 Reference Points and Bench Marks. The Owner has established or will establish such general reference points and bench marks on the building site or base lines and bench marks for other work as will enable the Contractor to proceed with the project. The Contractor shall protect and preserve the established bench marks and monuments and shall make no changes in locations without the written approval of the Owner. If the Contractor finds that any previously established reference points have been destroyed, misplaced or damaged through his fault, he shall promptly notify the Owner, who will replace such general reference points and bench marks at the Contractor's expense.

6.7 Safety and Maintenance of Traffic

6.7.1 Traffic Control. All traffic control shall conform to the requirements of the "TRAFFIC CONTROL SPECIFICATIONS FOR STREET AND SIDEWALK CONSTRUCTION" City of Richmond, Bureau of Traffic Engineering. The Contractor shall employ such methods in the performance of the Contract and provide such barriers, guards, temporary bridges, detours, notices, lights, warning and other safeguards as may be necessary to prevent injury to persons and property.

The Contractor shall define the line of safe passage with suitable lights, wherever the public may have access to the site of the project, during the hours from one-half hour before sunset to one-half hour after sunrise.

6.7.2 Signs And Barricades. The Contractor shall maintain at each end of the project or on a building site an approved sign giving the name of his company and emergency telephone number, and the name and telephone number of a designated person who may be called when the Contractor cannot be reached. In addition the contractor shall erect such barricades and warning lights may be required by governmental regulation for the protection of employees and the public. The signs and barricades shall be properly lighted and maintained at all times at the Contractor's expense.

6.7.3 Accident Prevention. Precaution shall be exercised at all times for the protection of persons, including employees, and property. The safety provisions of applicable laws and building construction codes shall be observed, and all work done under this Contract shall be in accordance with the provisions of all Federal, State and local regulations.

6.8 Protection of Vegetation, Utilities and Existing Property.

The Contractor shall continuously maintain adequate protection of all his work from damage from any cause and shall protect the Owner's property from injury or loss arising in connection with the Contract. The Contractor shall protect from damage all existing improvements and utilities. It shall make good any such damage, injury or loss, except such as may be directly caused by agents or employees of the Owner. The Contractor shall notify the Owner promptly in writing when any damage, injury or loss is experienced on the project. THE CONTRACTOR SHALL ADEQUATELY PROTECT ADJACENT PROPERTY AS PROVIDED BY LAW AND THE CONTRACT DOCUMENTS.

The Contractor shall preserve and protect all structures, equipment, and vegetation (such as trees, shrubs, and grass) on or adjacent to the work site, which are not to be removed and which do not unreasonably interfere with the work required under this contract. The Contractor shall only remove trees when specifically authorized to do so, and shall avoid damaging vegetation that will remain in place. If any limbs or branches of trees are broken during contract performance, or by the careless operation of equipment, or by workmen, the Contractor shall trim those limbs or branches with a clean cut and paint the cut with a tree-pruning compound as directed by the Owner.

In an emergency affecting the safety of life or of the work of adjoining property the Contractor, without special instruction or authorization from the Architect, Engineer or Owner, is hereby permitted to act, at its discretion, to prevent such threatened loss or injury. Any compensation claimed by the Contractor on account of such emergency work shall be verified and approved by the Owner.

6.9 Use of Premises and Removal of Debris

The Contractor shall maintain the project in an orderly and clean condition, and shall at suitable intervals remove accumulations of rubbish or refuse materials, surplus concrete, mortar and excavated materials not required or suitable for backfill but not more than four (4) days after the day in which spoil excavation or debris occurs. Washings from concrete mixers or mixing boxes shall not be deposited directly or indirectly in the drainage of sewer system of the Owner or on paved streets. The Contractor shall keep the site, inclusive of vehicular and pedestrian traffic routes through the site, free of dirt and dust by periodic blading, power brooming, watering or other approved means.

The Contractor shall confine all operations (including storage of materials) to areas approved by the Owner.

The Contractor shall, use only established roadways, or use temporary roadways constructed by the Contractor when and as authorized by the Contract Documents. When materials are transported in prosecuting the work, vehicles shall not be loaded beyond the loading capacity recommended by the manufacturer of the vehicle or prescribed by any Federal, State, or local law or regulation. When it is necessary to cross curbs or sidewalks, the Contractor shall protect them from damage. The Contractor shall repair or pay for the repair of any damaged curbs, sidewalks, or roads.

Upon completion and before final acceptance of the work performed under the Contract, the Contractor shall remove all rubbish, surplus or discarded materials, falsework, forms, temporary structures, sanitary facilities, field office, project signs, signs not a part of the project, equipment and machinery, and shall leave the site and ground occupied by him in connection with the performance of the Contract in an orderly and clean condition satisfactory to the Owner. Buildings constructed, altered, or worked in by the Contractor in the performance of the Contract shall be left "broom clean", and stains and other blemishes resulting from his operations, such as drooped or splattered concrete or mortar and paint, shall be removed from floors, walls, ceilings, windows, pavements, walks and all other exposed surfaces.

6.10 Stored Material

When payment for stored materials is permitted, the Contractor shall submit a separate schedule for stored materials showing the line item, description, and value of the material. Paid invoices demonstrating proof of ownership, proof of insurance, and evidence of secured storage shall be provided in conjunction with any stored material for which the Contractor is requesting payment.

6.11 Final Inspection

When the Work in the opinion of the Contractor is substantially completed, the Contractor shall notify the Owner and the Architect or Engineer in writing at least ten (10) days in advance that the work will be ready for final inspection and test on a specified date, which date shall be stated in such notice.

If the work is completed in accordance with the requirements of the Contract Documents, the date of completion will be fixed as the date of final inspection rather than the date of receipt of the written request for the final inspection.

If such inspection reveals work not performed in accordance with the requirements of the Contract Documents, or uncompleted work, the Contractor shall be notified in writing and it shall promptly perform the work required. The Contractor shall then request a re-inspection, which will be made within ten (10) days after receipt of such request. When it has been determined by any re-inspection that the work is completed in accordance with the requirements of the Contract Documents, the date of completion will be fixed as the last day of such re-inspection.

After the project has been given final inspection and accepted by the Owner, the Architect or Engineer shall submit one set of reproducible "as built" drawings and specifications to the Owner together with operating manuals and instructions as required by specifications. THIS PARAGRAPH NOT APPLICABLE ON SEWER, STREET OR UNDERGROUND UTILITY PROJECTS UNLESS SPECIFICALLY STATED IN THE SPECIAL PROVISIONS.

6.12 Guarantee

The Contractor shall guarantee all workmanship, materials, equipment, and completed products for a minimum time period of one (1) year from the date of completion in addition to and not in limitation of any obligations or specific guarantee, warranties contained in the Contract Documents or in any applicable subcontract, or implied by operation of law.

The Contractor warrants to the Owner that all materials and equipment provided under this Contract will be new and unused unless otherwise specified, and that all work will be of good quality, free from faults and defects and in conformance with the Contract Documents. All work not conforming to these standards may be considered by the Owner as defective.

By executing the Contract, the Contractor agrees that it will upon receipt of written notice promptly visit the site in the company of the Owner's representative to determine the extent of all defects or non-conformities and with reasonable promptness correct them.

The correction of defects and non-conformities shall also extend to the correction or replacement of all adjacent materials, and workmanship not necessarily provided by the Contractor, but which may have been damaged as a result of such defect or non-conformity or as a result of remedying them. The guarantee period for each feature of the work will begin only after acceptance of the particular feature of the work by the Owner. The Contractor agrees that the Performance Bond shall fully cover all guarantees and warranties of the project.

Any payment provision of the Contract Documents, partial or entire use or occupancy by the Owner shall not constitute an acceptance of any work not in accordance with the Contract Documents. Nor shall it relieve the Contractor of liability in respect to any express guarantee, warranties or responsibility for faulty materials or defects in workmanship.

As a condition to the final payment, the Contractor shall execute, acknowledge and deliver to the Owner a written confirmation of the foregoing guarantee in a form satisfactory to the Owner and containing provisions not inconsistent with the terms of this Section.

If at any time during such guarantee period the Owner shall give notice to the Contractor that a breach of one or more of the obligations under this Section has occurred, the Contractor shall, at its own cost and expense, cure such breach including without limitation the repair or replacement of any portion of the work damaged or adversely affected by the curing of such breach.

6.13 Subcontractor's Guarantee

The Contractor shall require the Subcontractor under each subcontract to execute, acknowledge and deliver to the Contractor a written guarantee of the part of the Work covered by such subcontract including any machinery or equipment installed under the subcontract. Such guarantee shall run expressly to and for the benefit of the Owner individually and jointly with the Contractor, shall be in a form satisfactory to the Owner and shall be for a period of one year after such Subcontractor shall have completed its part of the work or such longer period as may be prescribed by the Contract Documents.

6.14 Guarantee By Others

If any materials, equipment or apparatus incorporated in the project by the Contractor or by any Subcontractor, is or are guaranteed by the suppliers or manufactures thereof, the Contractor shall obtain and deliver to the Owner a written confirmation of such guarantee running to and for the benefit of the Owner.

6.15 Survival of the Contractor's Guarantee

The Contractor's obligations under its guarantee shall not be diminished or released as a result of any guarantee by Subcontractors or others furnished to the Owner. Notwithstanding any guarantee furnished to the Owner by Subcontractors or others, the Owner may proceed against the Contractor under its guarantee without prejudice to its right to proceed singularly or simultaneously against any such Subcontractor or other party on any guaranty furnished by any of them.

Prior to the expiration date of the Contractor's one-year guarantee period but not before nine months of this period have elapsed, City representatives will make an inspection of the project to determine whether any defects in materials or workmanship have developed. The Owner, with copy to the Department of Procurement Services, will provide the Contractor with written notice of such defects and will notify the Architect or Engineer for advice in the correction of defects. These actions shall be coordinated with the Director of Procurement Services.

The obligations of the Contractor under this Section shall be in addition to and not in limitation of any obligations imposed by special guarantees required by the Contract Documents or otherwise prescribed by law or in equity.

7.0 Payments

7.1 Schedule of Values

The Contractor shall submit to the Architect or Engineer a Schedule of Values before the first Application for Payment. The Schedule may be modified, expanded or reproduced to include quantities or a more detailed itemization of the basic items listed as may be applicable for the particular project unless a unit price contract as set forth herein is involved. The Schedule of Values shall aggregate the total Contract sum; shall be supported by such data to substantiate its correctness as may be required; and shall include its proper shares of overhead and profit. Only this approved Schedule shall be used as a basis for Contractor's Application for Partial Payment.

7.2 Payments to Contractor

Unless otherwise provided in Contract Documents, the Owner will make monthly progress payments to the Contractor on the basis of percentage of completion of the work performed during the preceding calendar month. Such percentage shall be duly certified and approved by the Architect or Engineer and the Owner. The Owner will process this payment expeditiously.

All Applications for Partial Payment shall be on a form approved by the Owner. Such Applications must contain a cost breakout showing the amount of monies due to all Subcontractors and suppliers performing work during the preceding calendar month. The costs shall further describe whether the Subcontractor or supplier is a minority firm.

Monthly partial payments will not be made on any monthly estimate whenever it shows that the value of work completed during the previous month does not exceed one thousand dollars (\$1,000.00) or when the performance time shall not exceed 45 days, except for final payment.

After the time allowed for completion of the Contract is reached and unless an extension of time is allowed, the Owner may withhold partial payments until final payment is made. All amounts withheld may be included in the final payment.

7.2.1 Retainage. Under the provisions of § 2.2-4333, Code of Virginia, the contractor shall be paid at least ninety-five percent of the earned sum when payment is due, with no more than five percent being retained to ensure faithful performance of the contract. All amounts withheld may be included in the final payment. Any subcontract for a public project that provides for similar progress payments shall be subject to the provisions of this section. The Contractor may request release of retainage for any portion of the Work completed and accepted provided, however, that adequate progress is being made and the Owner approves such release. This provision shall not apply to contracts funded from the Highway Safety Improvement Program (HSIP) Fixing America's Surface Transportation (FAST).

7.2.2 Partial Payments. Partial payment will not be made for any materials or equipment before they are incorporated in the work in a permanent manner as required by the Contract Documents, excepting as specified below. The delivered cost of equipment and non-perishable materials delivered at the site of the Work, or in a certified bonded, adequately insured warehouse and approved by the Owner, and tested for adequacy, may be included in the contractor's Application for Partial Payment. The Contractor shall furnish written evidence satisfactory to the Owner that the Contractor is the unconditional owner of such material or equipment, and that such material and equipment will be utilized on the work covered by the Contract.

All material, equipment and work covered by partial payments made shall become the sole property of the Owner. This provision shall not be construed as relieving the Contractor from the sole responsibility for the safety and protection of all materials, equipment and work upon which payments have been made, or the restoration or replacement of any damaged or stolen work, equipment or property, or as a waiver of the right of the Owner to require the fulfillment of all the terms of the Contract Documents.

7.2.3 Final Payment. The final payment, which will include the retainage, less any amounts due to or claimed by the Owner, shall not become due until the Contractor shall deliver to the Owner through the Architect or Engineer a record set of as-built drawings and specifications and an Affidavit of Payment of Claims duly certified in the presence of a Notary Public. The final payment will not be made until such time as a properly executed Affidavit is received. Failure to submit the Affidavit will result in a delay in payment. Failure to properly pay subcontractors and suppliers will result in the Contractor being adjudged in Default of the Contract Documents.

Upon completion and acceptance of the work required by the Contract Documents and the filing of the required Affidavit, the Architect or Engineer shall file a written Certificate of Completion with the Owner and Contractor as to the entire amount of work performed and compensation earned by the Contractor including extra work and compensation.

Within thirty (30) days from the date of the Certificate of Completion, the Contractor shall deliver to the Architect or Engineer, a complete set of record drawings and specifications on which all changes or as-built conditions are noted. Final payment will not be processed until such time as record drawings and specifications satisfactory to the Architect or Engineer are provided. *THIS PARAGRAPH NOT APPLICABLE TO SEWER, STREETS AND UNDERGROUND UTILITY PROJECTS.*

Within thirty (30) days after delivery of satisfactory as-built drawings and specifications or acceptance by the Owner for sewer, streets and underground utility projects, the Owner shall pay to the Contractor the amount therein stated, less all prior payments and advances. All prior estimates and payments including those relating to extra work shall be subject to correction by this payment, which is throughout this Contract called Final Payment.

7.2.4 Payment by EDI. Prior to the City's execution of the Contract, the Contractor shall execute and furnish the City with an EDI Payment Agreement for Contractors in the form attached to this solicitation in order to facilitate the City's payment, at its option, of any or all amounts due under this Contract through electronic data interchange.

7.3 Release of Claims

The acceptance by the Contractor of the Final Payment shall be a Release of Claims to the Owner for all claims and liability to the Contractor for all performance done or furnished in connection with this project. This Release shall exclude the Contractor's right for claims for interest upon Final Payment if this payment is improperly delayed. No certificate for payment issued by the Architect or Engineer and no payment whatsoever, or partial or entire use or occupancy of the project by the Owner, shall be an acceptance of any equipment or materials not in accordance with the Contract Documents. It shall not relieve the Contractor of responsibility for faulty materials, equipment or workmanship, or operate to release the Contractor or its surety from any obligation under the Contract or the Performance and Payment Bonds.

7.4 Liens

Neither the final payment nor any part of the retained amount shall become due until the Contractor shall deliver to the Owner a notarized Lien Affidavit that, so far as he has knowledge or information, all the labor and materials for which a lien could be filed have been paid. If any Subcontractor or supplier refuses to furnish a release or receipt in full, the contractor may, subject to the approval of the Owner, furnish a bond satisfactory to the Architect or Engineer for delivery to the Owner, to indemnify the Owner against any lien.

7.5 Payments Withheld

The Owner may decline to approve or because of subsequent discovered evidence nullify in whole or part of any Certificate of Payment to such extent as may be necessary to protect the Owner from loss on account of:

- a) Failure to submit a project Schedule;
- b) Defective work not remedied;
- c) Claims filed or reasonable evidence indicating probable filing of claims against the Contractor;
- d) Failure of the Contractor to make payments properly to Subcontractors, or for materials, labor or equipment;
- e) A reasonable doubt that the Contract can be completed for the balance then unpaid;
- f) Damage to another contractor;
- g) Failure to provide the Architect or Engineer as-built drawings and specifications within thirty calendar (30) days from the date of the certificate of Completion;
- h) Unsatisfactory prosecution of the work by the Contractor;
- i) Reasonable indication that the work will not be completed within the Contract time; or
- j) Failure to maintain as-built drawings up to date on a monthly basis.

When the above conditions are corrected or removed to the satisfaction of the Owner payment shall be made for amounts withheld because of them.

7.6 Payments by Contractor

Except in cases of bona fide disputes, or where the Contractor has some other justifiable reason for delay, the Contractor shall pay:

- a) For all transportation and utility services not later than the end of the calendar month following that in which the services are rendered;
- b) For all materials, tool and other expendable equipment to the extent of 95% of the cost thereof no later than the end of the calendar month following that in which such materials, tools and equipment are delivered at the site of the project; and
- c) To each subcontractor, not later than the end of the calendar month in which payment is made to the Contractor, the representative amount allowed the Contractor on account of the work performed by its Subcontractors to the extent of each Subcontractor's interest therein. Full payment may be made for the completion of all work performed by each Subcontractor and accepted by the Owner.

8.0 Remedies

8.1 Owner's Right to Terminate Contract for Cause.

- 8.1.1 If the Contractor should be adjudged as bankrupt, or if it should make a general assignment for the benefit of its creditors, or if a receiver should be appointed on account of its insolvency, the Owner may terminate the Contract. If the Contractor should refuse or should repeatedly fail, except in cases for which extension of time is provided, to supply enough properly skilled workmen or proper materials and equipment, or if it should fail to make prompt payment to Subcontractors or Suppliers of material or labor, or if it should disregard laws, ordinances or the written instructions of the Architect or Engineer or the Owner, or otherwise be in substantial violation of any provision of the Contract, then the Owner may terminate the Contract.
- 8.1.2 Prior to termination of the Contract, the Owner shall give the Contractor and its surety ten (10) calendar days' written notice pursuant to Section 4.11 herein, during which the Contractor and its surety, either or both, may rectify the basis for the notice. If rectified to the satisfaction of the Owner within said ten (10) days, the Owner may rescind its notice of termination. If not, the termination for cause shall become effective at the end of the ten (10) day notice period. In the alternative, the Owner may, in writing, postpone the effective date of the termination for cause, at its sole discretion, if it should receive reassurances from the Contractor and its surety, either or both, that the basis for the termination will be remedied in a time and manner which the Owner finds acceptable. If at any time after such postponement, the Owner determines that Contractor and its surety, either or both, has not rectified or is not likely to rectify the causes of termination in an acceptable manner or within the time allowed, then the Owner may immediately terminate the Contract for cause, without the necessity of further ten (10) days' notice, by notifying the Contractor and his surety in writing of the termination. In no event shall termination for cause terminate the obligations of the Contractor's surety on its payment and performance bonds.
- 8.1.3 Upon termination of the Contract, the Owner shall take possession of the site of the Work and of all plant, materials, tools, equipment and other property thereon. The Owner may take any such action necessary to ensure the cleanup of the site, protection of serviceable materials, removal of hazards, and other action necessary to leave a safe and healthful site. If no security has been provided pursuant to Section 4.5 herein, the Owner shall finish the Work by whatever method he may deem expedient. In such case the Contractor shall not

be entitled to receive any further payment. If the expense of finishing the Work, including compensation for additional managerial, administrative, Architect's and Engineer's services, shall exceed the unpaid balance of the contract amount, the Contractor shall pay the difference to the Owner, together with any other expenses of terminating the Contract and having it completed by others. The Architect or Engineer shall certify the cost incurred by the Owner. If security has been provided pursuant to Section 4.5 herein, the Owner shall provide Notice to the Surety as set forth in Subsection 8.1.2 herein and proceed as set forth in the Performance Bond and the Terms and Conditions therein.

8.1.4 In the event of a breach by the Contractor leading to termination of the Contract by the Owner under this Section and subsequent litigation, the Contractor and its surety shall be liable for all legal fees in connection with such termination and subsequent litigation. Such liability for legal fees shall be in addition to any and all damages for the breach that may be allowed. If it should be judicially determined that the Owner improperly terminated this Contract for cause, then the termination shall be deemed to be a termination for the convenience of the Owner under Section 8.2 herein.

8.1.5 Termination of the Contract under this Section is without prejudice to any other right or remedy of the Owner.

8.2 Termination by Owner for Convenience.

8.2.1 Owner may terminate this Contract, in whole or in part, at any time without cause upon giving the Contractor written notice of such termination pursuant to Section 4.11 herein. Upon such termination, the Contractor shall immediately cease Work and remove from the site all of its labor forces and such of its materials as Owner elects not to purchase or to assume in the manner hereinafter provided. Upon such termination, the Contractor shall take such steps as Owner may require to assign to the Owner the Contractor's interest in all Subcontracts and purchase orders designated by Owner. After all such steps have been taken to Owner's satisfaction, the Contractor shall receive as full compensation for termination and assignment the following:

8.2.1.1 All amounts then otherwise due under the terms of this Contract,

8.2.1.2 Amounts due for Work performed in accordance with the Contract subsequent to the latest approved Schedule of Values and Certificate for Payment through the date of termination, and

8.2.1.3 Reasonable compensation for the actual cost of demobilization incurred by the Contractor as a direct result of such termination. The Contractor shall not be entitled to any compensation or damages for lost profits or for any other type of contractual compensation or damages other than those provided by the preceding sentence. Upon payment of the foregoing, Owner shall have no further obligations to Contractor of any nature.

8.2.2 In no event shall termination for the convenience of the Owner terminate the obligations of the Contractor's surety on its payment and performance bonds.

8.3 Delivery of Materials

Any contract cancellation notice shall not relieve the Contractor of the obligation to delivery to the City all products of the services for which the Contractor has been or will be compensated. Unless

otherwise agreed to in writing, the Contractor shall deliver the materials to the City within 30 days of the Notice of Termination.

8.4 Compensation Due the Contractor

Upon termination, the Contractor shall be entitled to the compensation accrued to the date of termination unless otherwise provided for in the Contract Documents. Payment of the balance of the accrued compensation shall be dependent on the Contractor providing the required materials to the City. Said fees which have been earned shall be billed to the City in accordance with normal billing processes, but in no case later than 60 days after the last work is performed.

8.5 Liquidated Damages.

Liquidated damages in the amount as set herein and under the provisions contained in these General Conditions shall be withheld by the Owner, and any payment to the contractor shall be reduced by the full amount of such liquidated damages.

9.0 Unit Price Contracts

9.1 Bid Form

Where a Unit Priced Bid is specified, each bid shall be submitted upon the prescribed form(s). All blank spaces for bid prices must be filled in with numbers, using ink, with the unit or total sum or both for which the Bid is made.

Unit prices will be carefully examined and compared with current values before recommending the award of the Contract. If in the opinion of the Director of either the department for which work is to be performed or Department of Procurement Services, the unit prices submitted are substantially over or under accepted current values, it will be deemed sufficient reason to recommend rejection of the Bid and further to recommend the award of the Contract to another responsible bidder.

Quantities and measurements supplied or placed in the Work and verified by the Owner and recorded in his daily report shall determine the payment. If actual Work requires more or fewer quantities than indicated in the bid, the additional quantities will be provided at the bid price.

9.2 Quantities Estimated Only

The bidder is advised that the quantities of work to be done and materials to be furnished under the specifications, as shown on the drawings or accompanying unit price bid sheet(s), are approximate and are given only as a basis of calculation for comparing bids and awarding the Contract. The Owner does not assume any responsibility that the quantities given will be obtained in the construction.

9.3 Comparison of Bids

Bids will be compared on the basis of a total computed price arrived at by taking the sum of the estimated quantities of each item, multiplied by the corresponding unit prices and including any lump sum bids on individual items in accordance with the estimate of quantities set forth in the Bid sheet(s). Except as noted in this section, all other requirements of these General Conditions shall prevail, where applicable.

9.4 Term of Unit Price Contracts

9.4.1 Initial Term. The contract page signed by the authorized representatives of the Owner and the Contractor should specify an initial term for each unit price contract. If the contract page signed

by the authorized representatives of the Owner and the Contractor does not specify an initial term, the initial term is for 365 calendar days commencing on the date written first on the contract page signed by the authorized representatives of the Owner and the Contractor.

9.4.2 Renewal Terms. The contract page signed by the authorized representatives of the Owner and the Contractor should specify the number and duration of optional renewal terms for each unit price contract. If the contract page signed by the authorized representatives of the Owner and the Contractor does not specify the number and duration of such renewal terms, then there are four optional renewal terms, each for 365 calendar days commencing the day immediately following the day on which the preceding term expires.

9.4.3 Exercise of Renewal Option. The Owner may, but is under no obligation to, exercise any one or all of these optional renewal terms, with the Contractor's agreement for each renewal term. No renewal term will be effective until the Owner and the Contractor have signed a document, in a form prescribed by the Owner, setting forth the dates of the renewal term and the contract amount for that renewal term and until the Contractor has provided a Labor and Material Payment Bond and a Performance Bond in accordance with section 4.5 in an amount equal to the contract amount for the renewal term.

9.4.4 Contract Amount for Renewal Terms. Each renewal term has its own contract amount for purposes of these General Conditions of the Contract. The contract amount for the initial term and for each renewal term commences at the beginning of the first day of such term and expires at the end of the last day of such term. The contract amount for each renewal term will be set by the Owner at the time the option to renew the Contract is exercised and will be documented as set forth in subsection 9.4.3.

10.0 Dispute Resolution

10.1 Rights of Subcontractors and Material Suppliers

Notwithstanding any other provision of these General Conditions, no right of any kind whatsoever shall exist to Subcontractors or material suppliers against the Owner in the event the Owner fails to pay the Contractor for any reason, or the Contractor fails to pay the Subcontractor or material supplier for an reason.

10.2 Disputed Work

If the Contractor is of the opinion that any work required, necessitated or ordered violates the terms and provisions of this Contract, he shall promptly notify the Architect or Engineer, in writing, of his contentions with respect thereto and request a final determination. If the Architect or Engineer determines that the work in question is Contract Work and not a change in work or that the order is proper, the Contractor shall promptly comply and proceed as directed. The Contractor shall within 15 working days after receiving notice of the Architect or Engineer's determination and direction, notify the Owner in writing that the work is being performed or that the direction is being complied with under protest. Failure of the Contractor to so notify shall be deemed as a waiver of claim for extra compensation or damages therefor.

Before final acceptance by the Owner, all matters of dispute must be adjusted to the mutual satisfaction of the parties thereto.

10.3 Governing Law

All issues and questions concerning the construction, enforcement, interpretation and validity of this Contract, or the rights and obligations of the Owner and the Contractor in connection with this Contract, shall be governed by, and construed and interpreted in accordance with, the laws of the Commonwealth of Virginia, without giving effect to any choice of law or conflict of laws rules or provisions, whether of the Commonwealth of Virginia or any other jurisdiction, that would cause the application of the laws of any jurisdiction other than those of the Commonwealth of Virginia.

10.4 Construction and Interpretation

Each of the parties has had the opportunity to have its legal counsel review this Contract on its behalf. If an ambiguity or question of intent arises with respect to any provision of this Contract, this Contract will be construed as if drafted jointly by the parties. Neither the form of this Contract, nor any language herein, shall be construed or interpreted in favor of or against any party hereto as the sole drafter thereof.

10.5 Contractual Claims

10.5.1 Notice and Submission. The Contractor shall give written notice of its intention to file a contractual claim at the time of the occurrence or the beginning of the work upon which the claim is based. In addition to such notice of its intention to file a claim, the Contractor shall submit all contractual claims, whether for money or other relief, in writing to the City's Director of Procurement Services no later than 60 calendar days after final payment. (*See City Code § 21-167(a); see also Va. Code § 2.2-4363(A).*)

10.5.2 Required Contents of Claim Submission. The Contractor's claim submission shall (i) set forth the primary, secondary and indirect claim issues in a clear, concise manner, (ii) identify the specific contract provisions, schedule impact and cost consequences related to each claim issue, and (iii) include all factual data supporting the claim as well as all supporting cost and delay data. The City's Director of Procurement Services, in the Director's sole discretion, may

return claim submissions lacking any of the elements enumerated in the preceding sentence for resubmission or review the claim as though the missing elements are not factually present to support the claim. Such return of a claim submission shall not toll the 60-day period within which the Contractor must submit a claim.

10.5.3 Procedures and Time Limit. The procedures set forth in this section 10.5 (“Contractual Claims”) and in City Code § 21-167 shall govern the consideration of contractual claims. The City’s Director of Procurement Services shall issue a written decision on a claim no later than 90 calendar days after receipt of such claim in writing from the Contractor. (See City Code § 21-167(b); *see also* Va. Code § 2.2-4363(B).)

10.5.4 No Action before Decision. The Contractor may not invoke administrative procedures as provided in City Code § 21-168 or institute legal action as provided in City Code § 21-169 prior to receipt of the decision on the claim, unless the City’s Director of Procurement Services fails to render such decision within the 90-day time limit. A failure of the City’s Director of Procurement Services to render a final decision within the 90-day time limit shall be deemed a final decision by the Owner denying the claim. (See City Code § 21-167(c); *see also* Va. Code § 2.2-4363(D).)

10.5.5 Finality of Decision. The decision of the City’s Director of Procurement Services shall be final and conclusive unless the Contractor appeals within 30 calendar days of the date of the final decision on the claim by the Director either as provided in City Code § 21-168 for administrative appeals or, in the alternative, by instituting legal action as provided in City Code § 21-169. (See City Code § 21-167(d); *see also* Va. Code § 2.2-4363(E).)

10.5.6 No Cessation of Performance. Nothing in this section 10.5 (“Contractual Claims”) shall be construed to authorize or permit the Contractor, while pursuing, by any available procedure, an appeal of a contractual claim or dispute, to cease performance of the Contract while such claim or dispute is pending. (See City Code § 21-167(e).)

10.6 Alternative Dispute Resolution

The City’s Director of Procurement Services, with the concurrence of the City Attorney, may agree in writing on behalf of the Owner to submit particular disputes arising from this Contract to arbitration and to utilize mediation and other alternative dispute resolution procedures; however, any such procedures entered into by the Owner shall be nonbinding. (See City Code § 21-170; *see also* Va. Code § 2.2-4366.)

10.7 Forum and Venue Choice

Any and all disputes, claims and causes of action arising out of or in connection with this Contract, or any performances made hereunder, shall be brought, and any judicial proceeding shall take place, only in a federal or state court located in the city of Richmond, Virginia. The Contractor accepts the personal jurisdiction of any court in which an action is brought pursuant to this article for purposes of that action and waives all jurisdiction- and venue-related defenses to the maintenance of such action.

10.8 No Third-Party Beneficiaries

Notwithstanding any other provision of this Contract, the Owner and the Contractor hereby agree that: (i) no individual or entity shall be considered, deemed or otherwise recognized to be a third-party beneficiary of this Contract; (ii) the provisions of this Contract are not intended to be for the benefit of any individual or entity other than the Owner or the Contractor; (iii) no individual or entity shall obtain any right to make any claim against the Owner or the Contractor under the

provisions of this Contract; and (iv) no provision of this Contract shall be construed or interpreted to confer third-party beneficiary status on any individual or entity. For purposes of this section, the phrase "individual or entity" means any individual or entity, including, but not limited to, individuals, contractors, subcontractors, vendors, sub-vendors, assignees, licensors and sub-licensors, regardless of whether such individual or entity is named in this Contract.

PART 3 – SPECIAL CONDITIONS OF THE CONTRACT

1.0 Bidder Not Debarred

By signing its bid in response to this Invitation for Bids, the bidder warrants and represents that neither its organization nor any of its officers, directors, partners or owners is currently barred from bidding on contracts by agency of the federal government, any agency of the Commonwealth of Virginia, any agency of any other state, or any other public body or agency thereof.

2.0 Minority Business Participation

The City of Richmond has a commitment to the development of its minority and emerging small business communities. We therefore encourage the use of minority and emerging small businesses on all City contracts to the fullest extent reasonably possible. On this particular contract, it has been determined that minority and emerging small business participation of 0% is reasonably possible given the availability of minority and emerging small businesses for the scope of work covered by this contract. The City's Office of Minority Business Development is available at 646-3985 as a resource in identifying local MBEs and ESBs. Your assistance in helping the City achieve its priorities is greatly appreciated.

3.0 Standards

All work shall be performed utilizing City of Richmond and Virginia Department of Transportation, Standards and Specifications, most recent edition.

4.0 Construction Schedule

Contractor must provide to the City a construction schedule created in (Microsoft Project or Primavera software), within 7 calendar days following the date set for the pre-construction meeting.

5.0 Work Hours

- A. Work is permitted on this project from 7 AM to 6 PM Monday through Friday. No work shall be performed on Saturday, Sunday or the following holidays or special events without written consent of the owner: New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, and Christmas Day. There shall be NO lane closures or reductions to the number of existing thru lanes from 7 AM to 9 AM and 4 PM to 6 PM any day of the week.
- B. Residents and emergency access shall be maintained at all times during construction regardless of whether a street closure is or is not in effect. Access to all businesses sites shall be maintained at all time during working hours.

100% PROJECT PLANS - BID TABULATION SHEET
MARY MUNFORD ELEMENTARY SCHOOL PEDESTRIAN SAFETY IMPROVEMENTS (UPC 110843)
CITY OF RICHMOND, VIRGINIA
1/31/2022

VDOT ITEM CODE	DESCRIPTION	UNIT	QUANTITY	UNIT PRICE (\$)	EXTENDED PRICE (\$)
00100	MOBILIZATION	LS	1		
24265	MAINTENANCE OF TRAFFIC	LS	1		
00101	CONSTRUCTION SURVEYING	LS	1		
00112	SINGLE TREE REMOVAL (6" DIAMETER)	EA	1		
10128	AGG. BASE MATL. TY. 1 NO. 21B	TON	11.5		
12035	CITY OF RICHMOND 6" CURB	LF	51		
13108	CG-12 DETECTABLE WARNING SURFACE	SY	9		
13220	HYDRAULIC CEMENT CONC. SIDEWALK 4"	SY	49		
14100	REMOVE SIDEWALK AND ENTRANCE	SY	20		
24502	NS REMOVE EXISTING FLASHING BEACON ASSEMBLY	EA	4		
50108	SIGN PANEL	SF	132		
50300	REMOVE EXISTING 1 POST SIGN STRUCTURE	EA	9		
50320	REMOVE EXISTING 1 POST SIGN PANEL	EA	1		
50340	RELOCATE EXISTING 1 POST GROUND MOUNTED SIGN PANEL	EA	12		
50434	SIGN POST STP-1, 2 1/2", 12 GAUGE	LF	216		
50485	CONCRETE SIGN FOUNDATION STP-1 TYPE D	EA	5		
51162	FLASHING BEACON FB-2	EA	4		
51212	PEDESTAL POLE PF-2, 12'	EA	1		
51240	CONCRETE FOUNDATION PF-2	EA	1		
51540	WOOD POLE CL. 4 30'	EA	1		
51597	8/2 CONDUCTOR CABLE	LF	500		
51960	NS INSTALL WEATHERHEAD	EA	1		
54100	NS PAVEMENT MARKING - RAISED PAVEMENT MARKING (9' WIDE)	LF	35		
54042	TYPE B CLASS I PVMT LINE MRKG 24"	LF	661		
54105	ERADICATE EXIST. LINEAR PAVEMENT MARKING	LF	730		
54395	PVMT MESSAGE MRKG SCHOOL ZONE TYPE B CLASS I	EA	4		
55586	JUNCTION BOX JB-S1	EA	3		
56050	BORED CONDUIT (1) 2"	LF	290		
56053	2" PVC CONDUIT	LF	30		
57190	CELLULAR / PCS WIRELESS MODEM (W/ 10 YEAR PLAN)	EA	4		
59000	LIGHTING LED LUMINAIRE, POLE MOUNTED	EA	6		
SUBTOTAL BID ITEMS (SUM OF ITEMS 1 THRU 31):					\$

230000423 Mary Munford Project UPC (110843)

Date: 9-15-2022

TABULATION OF BIDS									
1	Jeffrey Stack Inc. DBA JSI Paving and Construction							5	
2	Simons Contraction Co. Inc.							6	
3								7	
4								8	
	Item	No. 1	No. 2	No. 3	No. 4	No. 5	No. 6	No. 7	No. 8
	Total Lump Sum Bid	\$ 363,435.50	\$ 365,914.50						
		9/14/2022 10:23	9/14/2022 10:26	Contract Specialist: 			Date: 9/15/22		

NOTE: These results are preliminary only. Award will be made to the firm complying with the terms and conditions of the solicitation only after careful review and analysis.

BID FORM

SEALED BIDS WILL BE RECEIVED at the Department of Procurement Services, City Hall, 900 E. Broad Street, Rm. 1104, Richmond, Virginia 23219, UNTIL BUT NOT LATER THAN 11:00 a. m. ON Wednesday September 14th, 2022 AND WILL BE OPENED 11:00 a. m ON Thursday September 15, 2022.

To Procurement Services, Room 1104; 900 East Broad Street, Richmond, Virginia:

For the construction of the **Mary Munford ES Pedestrian Improvements Project (UPC 110843)**

Made by: Jeffrey S. Stack, President
(Name and Title of Individual Executing the Bid)

Name of Bidder: Jeffrey Stack, Inc
(Company Name)

Full Address: PO Box 280

City and State: Jersey, VA 22481

Phone Number: (503) 906-4070 Fax Number: N/A

Email Address: jstack@jstack.com

Virginia Contractor's Registration Number: 2701 034027 A

Federal Tax Identification Number: [REDACTED]

By submission of this bid and authorized signature therein, the above-named Bidder certifies and affirms compliance with all terms and conditions herein and declares that:

- 1) the Bidder is of lawful age and that no other person, firm, corporation or joint venture has any interest in this Bid or in the Contract proposed to be entered into.
- 2) the Bid is made without any understanding, agreement, or connection with any other person, firm, corporation, or joint venture making a Bid for the same purposes, and is in all respects fair and without collusion or fraud.
- 3) the Bidder is not in arrears to the City of Richmond, upon debt or contract; is not a defaulter, as surety or otherwise, upon any obligation to the City of Richmond; and has not been delinquent or unfaithful in any former contract with the City of Richmond.
- 4) no officer or employee or person whose salary is payable in whole or in part by the OWNER is, shall be, or become interested, directly or indirectly, as a contracting party, partner, stockholder, surety or otherwise, in this bid, or in the performance of the Contract, or in the supplies, materials, or equipment and work or labor to which it relates, or in any portion of the profits thereof.
- 5) in compliance with Sec. 3.3 of the General Conditions of the Contract, the Bidder has carefully examined the site of the work and that, from his own investigations, is satisfied as to the nature and

location of the work, the character, quality, and quantity of materials and the kind and extent of equipment and other facilities needed for the performance of the work, the general and local conditions and all difficulties to be encountered, and all other items which may, in any way, affect the work or its performance.

- 6) That the Bidder has thoroughly examined and is familiar with copies of the Contract Documents and the following addenda receipt of which is hereby acknowledged.

Addendum No.	<u>1</u>	Dated	<u>8/11/2022</u>
Addendum No.	<u>2</u>	Dated	<u>8/17/2022</u>
Addendum No.	<u>3</u>	Dated	<u>8/18/2022</u>
Addendum No.		Dated	

If none, write "none"

- 7) The Owner will award the Contract to the responsive and responsible Bidder whose Bid contains the lowest Total Unit Price Base Bid unless otherwise provided by law. Subject to the availability of funds, the Owner will decide in its sole discretion whether to award each additive Bid Item to that Bidder.
- 8) The undersigned furthermore agrees to perform at the request of the Owner, any related extra (or less) work than required by the Contract Documents which may arise during construction on the basis of a lump sum, unless noted otherwise, negotiated between the Contractor and the Owner for said extra (or less) work or for a compensation of actual cost of labor, material and equipment rental involved in said extra (or less) work plus a percentage computed as listed below for overhead and profit as described in the Conditions of the Contract:
- Where the work is performed by the Contractor's own forces, the percentage shall be _____ percent (____%) of the cost of the work for overhead and or profit, not to exceed 15%. Where work is performed by a subcontractor, the percentage due to the subcontractor plus the General contractor's mark-up shall be _____ percent (____%) of the cost of the work for overhead and profit, not to exceed 25%.
- 9) If accepted by the Owner, the Bidder shall execute the contract and furnish, satisfactory to the Owner, a Performance Bond and Payment Bond for labor and materials in accordance with the General Conditions of the Contract unless so stated elsewhere in the bid documents.
- 10) Bidder agrees that no contract shall result from the submission of his bid and no liability shall accrue with respect thereto until a written contract and accompanying documents have been fully and completely executed on the part of the successful bidder and the Owner.
- 11) The undersigned further agrees to complete the work as bid within **180** consecutive calendar days after Notice to Proceed. As the time allotted for the completion of the Work is of the essence, if the work is not completed within specified time for the completion of the Work, there shall be deducted from the contract price, not as a penalty but as liquidated damages, **\$350** for each and every calendar day of delay in the completion of the work beyond the time specified, subject to all the terms of the General Conditions.
- 12) Accompanying this Bid is a certified or cashier's check in accordance with the General Conditions made payable to the City of Richmond in the sum of _____ Dollars (\$ _____) which check is to be forfeited as liquidated damages if, in case this Invitation

for Bid is accepted, the undersigned shall fail to execute the attached contract in accordance with the General Conditions; **OR** a Bid Bond for not less than five percent (5%) of the bid amount set forth in item 14 of this Bid Form. Should the bidder so elect, said check will be returned to the undersigned upon delivery of a satisfactory bond.

13) Bidder certifies that he is properly registered as a licensed contractor or will be registered as a licensed contractor at the time of award of contract under Title 54.1 of the Code of Virginia (1950), as amended. The number and expiration date is affixed below.

14) For the consideration set forth, and identified by this signature, *(EACH BID SHEET CONTAINING A PRICE REPRESENTATION MUST HAVE THE SAME SIGNATURE AS ABOVE IN THE SPACE PROVIDED)*, the Bidder proposes to furnish all materials, tools, labor and equipment of every description, except such materials specified to be furnished by the Owner, necessary to accomplish all work required by and in accordance with the Request for Qualification (if applicable), drawings, specifications, General Conditions, special provisions, bid forms, contract, bond, and any addenda associated with this project, all of which are hereby made a part of this Invitation for Bid.

Total Lump Sum Base Bid - The base bid includes all supervision, labor, material, equipment and other work necessary and required in accordance with the drawings and specifications for the **COMPUTED PRICE SHOWN ON THE BELOW PRICE SCHEDULE** of

Three Hundred Sixty three thousand Four Hundred thirty five dollars
(Price in Words)

\$ 363,435.⁵⁰
(Price in Figures)

& fifty cents

In submitting this bid, it is understood that the City of Richmond, Virginia, reserves the right to reject any and all bids or to award in whole or in part as determined to be in the best interest of the City. It is agreed that this Bid may not be withdrawn for a period of 60 days from the opening thereof.

Respectfully Submitted,

Jeffrey Stock, Inc

(Name of Individual, Firm, or Corporation making bid)

By

[Signature]
(Signature)

2701 834027 A

Virginia Contractor's Registration Number

[Redacted]
Federal Tax ID Number

100% PROJECT PLANS - BID TABULATION SHEET
MARY MUNFORD ELEMENTARY SCHOOL PEDESTRIAN SAFETY IMPROVEMENTS
CITY OF RICHMOND, VIRGINIA
9/14/2022

BID ITEM #	VDOT ITEM CODE	DESCRIPTION	UNIT	QUANTITY	UNIT PRICE (\$)	EXTENDED PRICE (\$)
1	00100	MOBILIZATION	LS	1	\$ 44,365.00	\$ 44,365.00
2	24265	MAINTENANCE OF TRAFFIC	LS	1	\$ 58,495.00	\$ 58,495.00
3	00101	CONSTRUCTION SURVEYING	LS	1	\$ 18,760.00	\$ 18,760.00
4	00112	SINGLE TREE REMOVAL (6" DIAMETER)	EA	1	\$ 1,564.00	\$ 1,564.00
5	10128	AGG. BASE MATL. TY. I NO. 21B	TON	11.5	\$ 78.00	\$ 897.00
6	12035	CITY OF RICHMOND 6" CURB	LF	51	\$ 58.00	\$ 2,958.00
7	13108	CG-12 DETECTABLE WARNING SURFACE	SY	9	\$ 436.00	\$ 3,924.00
8	13220	HYDRAULIC CEMENT CONC. SIDEWALK 4"	SY	49	\$ 98.00	\$ 4,802.00
9	14100	REMOVE SIDEWALK AND ENTRANCE	SY	20	\$ 44.00	\$ 880.00
10	24502	NS REMOVE EXISTING FLASHING BEACON ASSEMBLY	EA	4	\$ 1,565.00	\$ 6,260.00
11	50108	SIGN PANEL	SF	132	\$ 49.00	\$ 6,468.00
12	50300	REMOVE EXISTING 1 POST SIGN STRUCTURE	EA	9	\$ 545.00	\$ 4,905.00
13	50320	REMOVE EXISTING 1 POST SIGN PANEL	EA	1	\$ 450.00	\$ 450.00
14	50340	RELOCATE EXISTING 1 POST GROUND MOUNTED SIGN PANEL	EA	12	\$ 1,240.00	\$ 14,880.00
15	50434	SIGN POST STP-1, 2 1/2", 12 GAUGE	LF	216	\$ 59.00	\$ 12,744.00
16	50485	CONCRETE SIGN FOUNDATION STP-1 TYPE D	EA	5	\$ 1,255.00	\$ 6,275.00
17	51162	FLASHING BEACON FB-2	EA	4	\$ 13,450.00	\$ 53,800.00
18	51212	PEDESTAL POLE PF-2, 12'	EA	1	\$ 2,655.00	\$ 2,655.00
19	51240	CONCRETE FOUNDATION PF-2	EA	1	\$ 2,900.00	\$ 2,900.00
20	51540	WOOD POLE CL. 4 30'	EA	1	\$ 4,100.00	\$ 4,100.00
21	51597	8/2 CONDUCTOR CABLE	LF	500	\$ 14.00	\$ 7,000.00
22	51960	NS INSTALL WEATHERHEAD	EA	1	\$ 3,788.00	\$ 3,788.00
23	54100	NS PAVEMENT MARKING - RAISED PAVEMENT MARKING (9' WIDE)	LF	35	\$ 426.00	\$ 14,910.00
24	54042	TYPE B CLASS I PVMT LINE MRKG 24"	LF	661	\$ 18.00	\$ 11,898.00
25	54105	ERADICATE EXIST. LINEAR PAVEMENT MARKING	LF	730	\$ 6.25	\$ 4,562.50
26	54395	PVMT MESSAGE MRKG SCHOOL ZONE TYPE B CLASS I	EA	4	\$ 925.00	\$ 3,700.00
27	55586	JUNCTION BOX JB-S1	EA	3	\$ 1,995.00	\$ 5,985.00
28	56050	BORED CONDUIT (1) 2"	LF	290	\$ 85.00	\$ 24,650.00
29	56053	2" PVC CONDUIT	LF	30	\$ 31.00	\$ 930.00
30	57190	CELLULAR / PCS WIRELESS MODEM (W/ 10 YEAR PLAN)	EA	4	\$ 4,800.00	\$ 19,200.00
31	59000	LIGHTING LED LUMINAIRE, POLE MOUNTED	EA	6	\$ 2,455.00	\$ 14,730.00
SUBTOTAL BID ITEMS (SUM OF ITEMS 1 THRU 31):						\$ 363,435.50



ADDENDUM NO. 3

DATE: August 18, 2022

Invitation for Bids (IFB) No. 230000423 Mary Munford ES Pedestrian Improvements

DUE DATE: September 14, 2022 11:00AM

SUBJECT: Changes and Additions to IFB

Ladies/Gentlemen:

Please take note of the following:

Additional Drawings have been added to the solicitation
The (20) documents can be found attached to the IFB solicitation.

This addendum must be acknowledged and included with the bid submission as indicated in the IFB or your response may not be considered. Please include all pages of addenda submitted.

Sincerely,

Jerry A Tuttle MBA, VCO
Senior Procurement Analyst
(804) 646-1820
jerry.tuttle@RVA.GOV

Jeffrey Stack, Inc.
Company
BY: Jeff Stack
President 8/18/2022
Title Date



ADDENDUM NO. 2

DATE: August 17, 2022

Invitation for Bids (IFB) No. 230000423 Mary Munford ES Pedestrian Improvements

DUE DATE: September 14, 2022 11:00AM

SUBJECT: Changes and Additions to IFB

Ladies/Gentlemen:

Please take note of the following:

An additional form has been added to the requirements to be submitted with bids. Form SP0F0-00130-01: Required Contract Provisions, Federal-Aid Construction Contracts.

The document can be found attached to the IFB solicitation.

This addendum must be acknowledged and included with the bid submission as indicated in the IFB or your response may not be considered. Please include all pages of addenda submitted.

Sincerely,

Jerry A Tuttle MBA, VCO
Senior Procurement Analyst
(804) 646-1820
jerry.tuttle@RVA.GOV

Company Jeffrey Stack, Inc
BY: [Signature] Jeff Stack
Title President Date 8/17/2022



ADDENDUM NO. 1

DATE: August 11, 2022

Invitation for Bids (IFB) No. 230000423 Mary Munford ES Pedestrian Improvements

DUE DATE: September 14, 2022 11:00AM

SUBJECT: Changes and Additions to IFB

Ladies/Gentlemen:

Please take note of the following:

Correction of Access Code for Teams Pre-Bid Meeting

The Pre-Bid Meeting will be held Wednesday August 24, 2022 @ 11:00 A.M.

The call in number is **804-316-9457** The Code is **874 962 213#**

This addendum must be acknowledged and included with the bid submission as indicated in the IFB or your response may not be considered. Please include all pages of addenda submitted.

Sincerely,

Jerry A Tuttle MBA, VCO
Senior Procurement Analyst
(804) 646-1820
jerry.tuttle@RVA.GOV

Jeffrey Stack, Inc.
Company
BY: Jeff Stack
Pres. 8/11/2022
Title Date

CITY OF RICHMOND BID BOND

Jeffrey Stack, Inc. dba
JSI Paving & Construction

KNOW ALL MEN BY THESE PRESENTS: That _____, the Contractor ("Principal"), whose principal place of business is located at 15247 Welcome Road-Barn, King George VA 22485 and Old Republic Surety Company ("Surety"), whose address for delivery of „Notices“ is located at P O Box 1635, Milwaukee WI 53201, are held and firmly bound unto the City of Richmond, Virginia, the Owner ("Obligee") in the amount of five percent of the Total Amount Bid by the Principal, for the payment of which sum the Principal and the Surety bind themselves and their heirs, executors, administrators, successors and assigns, jointly and severally, firmly by these presents.

WHEREAS, the Principal has submitted a bid in response to Invitation for Bids No. 230000423 for Mary Munford ES Pedestrian Improvements Project (UPC 110843) _____;

NOW, THEREFORE, THE CONDITIONS OF THIS OBLIGATION are as follows:

1. This Bid Bond shall guarantee that:
 - a. The Principal will not withdraw its bid during the period of 60 days following the opening of bids.
 - b. If the Obligee accepts the Principal's bid, the Principal will enter into a formal contract with the Obligee in the form of the Construction Contract included as part of the Invitation for Bids.
 - c. The Principal will submit the required Certificate of Insurance, any other required insurance documents and, if required by the Invitation for Bids, a properly executed Performance Bond and Labor and Material Payment Bond on the forms for such bonds included as part of the Invitation for Bids or such alternative forms of security as may be permitted under the Contract Documents.
 - d. In the event the Principal either (i) withdraws its bid during the period specified in subsection (a) above or (ii) fails, refuses or neglects to enter into the contract specified in subsection (b) above and give the insurance documents and bonds specified in subsection (c) above within 15 days after the Principal has received notice of the Obligee's acceptance of its bid, the Principal and the Surety shall be jointly and severally liable to the Obligee for the difference between the amount specified in the Principal's bid and such larger amount for which the Obligee may contract with another party to perform the work covered by said bid, up to the amount of the bid guarantee.
2. The Obligee, the Principal and the Surety agree that the amount for which the Principal and the Surety shall be jointly and severally liable to the Obligee pursuant to section 1(d) above represents the damage to the Obligee on account of the default of the Principal in any particular of section 1 above.
3. The Surety represents to the Obligee and the Principal that it is legally authorized to transact surety business in the Commonwealth of Virginia.

SIGNATURES AND SEALS ON FOLLOWING PAGE

Signed and sealed this 14th day of September, 2022.

Jeffrey Stack, Inc. dba JSI Paving & Construction

Contractor / Principal

(SEAL)

Terry Abel
 Witness

By: [Signature]Title: President

Old Republic Surety Company

Surety

(SEAL)

By: [Signature]

Attorney-in-Fact

Typed Name: Benjamin L. Mathews

AFFIDAVIT AND ACKNOWLEDGEMENT OF ATTORNEY-IN-FACT

~~COMMONWEALTH OF~~ State of Maryland
 CITY of County of Howard

I, the undersigned notary public, do certify that Benjamin L. Mathews, whose name is signed to the foregoing bid bond in the amount of five percent of the Total Amount Bid and which names the City of Richmond, Virginia, as Oblige, personally appeared before me today in the above jurisdiction and made oath that such individual (i) is the attorney-in-fact of Old Republic Surety Company WI WI corporation which is the Surety in the foregoing bond, (ii) is duly authorized to execute on the above Surety's behalf the foregoing bond pursuant to the Power of Attorney noted above, and (iii) acknowledged, on behalf of the above Surety, the foregoing bond before me as the above Surety's act and deed. Such individual has further certified that such individual's Power of Attorney has not been revoked.

Given under my hand this 14th day of September, 2022.

[Signature]
 Notary Public

(SEAL)

My name (printed) is: Catherine M. MathewsMy Notary Registration No. is: 135655My commission expires: November 21, 2023

BIDDER MUST SIGN EACH ADDITIONAL SHEET TO CERTIFY ITS CONTENT AND COMPLETION OF FORM.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
DBE GOOD FAITH EFFORTS DOCUMENTATION

--DO NOT DETACH--

**THIS INFORMATION MUST BE SUBMITTED
WITHIN 2 DAYS AFTER BID OPENING IF YOUR
BID DOES NOT MEET THE PROJECT DBE
REQUIREMENTS, OR
WHEN REQUESTED BY VDOT**

CONTRACT I.D. NUMBER _____

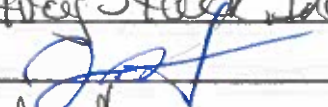
PROJECT NUMBER U000-127-S11, UPC 110843

FHWA NUMBER HSIP-5A27(670)

DISTRICT _____

DATE BID SUBMITTED September 14, 2022

BIDDER'S NAME Jeffrey Stoeck Inc

SIGNATURE 

TITLE President

VENDOR NUMBER 5848

DBE GOAL FROM BID PROPOSAL 0%

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
DBE GOOD FAITH EFFORTS DOCUMENTATION

CONTRACT I.D. NO. _____ DATE SUBMITTED 9/14/2022

IF THE DBE GOAL ESTABLISHED FOR THIS CONTRACT HAS NOT BEEN MET OR VDOT REQUESTS THE SUBMITTAL THEREOF, THE BIDDER IS REQUIRED TO SUBMIT GOOD FAITH EFFORTS AS OUTLINED IN THIS DOCUMENT.

THE BIDDER ACKNOWLEDGES AND CERTIFIES THAT THIS FORM ACCURATELY REPRESENTS THE INFORMATION CONTAINED HEREIN.

BIDDER Jeffrey Steel, Inc. SIGNATURE [Signature]
TITLE President

NAMES OF CERTIFIED DBEs AND THE DATES ON WHICH THEY WERE SOLICITED TO BID ON THIS PROJECT

INCLUDE THE ITEMS OF WORK OFFERED AND THE DATES AND METHODS USED FOR FOLLOWING UP INITIAL SOLICITATIONS TO DETERMINE WHETHER OR NOT DBEs WERE INTERESTED.

NAMES AND VENDOR NUMBERS OF DBEs SOLICITED	DATE OF INITIAL SOLICITATION	ITEM(S) OF WORK	FOLLOW-UP METHODS AND DATES
Capital Survey	8/31/22	survey	9/10/2022 email
Deacon Construction	8/22/22	hauling	8/23/2022 email
Jaxson Port	8/31/22	electric	8/31/2022 email
Spanish Quality Concrete	8/22/22	concrete	8/23/22 email

NOTE: ATTACH ADDITIONAL PAGES IF NECESSARY

ATTACH COPIES OF SOLICITATIONS, TELEPHONE RECORDS, FAX CONFIRMATIONS, ELECTRONIC INFORMATION, ETC.

NOTE: ATTACH ADDITIONAL PAGES IF NECESSARY

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
DBE GOOD FAITH EFFORTS DOCUMENTATION

CONTRACT I.D. NO. _____ DATE SUBMITTED 9/14/2022

IF THE DBE GOAL ESTABLISHED FOR THIS CONTRACT HAS NOT BEEN MET OR VDOT REQUESTS THE SUBMITTAL THEREOF, THE BIDDER IS REQUIRED TO SUBMIT GOOD FAITH EFFORTS AS OUTLINED IN THIS DOCUMENT.

THE BIDDER ACKNOWLEDGES AND CERTIFIES THAT THIS FORM ACCURATELY REPRESENTS THE INFORMATION CONTAINED HEREIN.

BIDDER Jeffrey Stack Jr. SIGNATURE _____

TITLE President

ITEM(S) OF WORK THAT THE BIDDER MADE AVAILABLE TO DBE FIRMS

IDENTIFY THOSE ITEM(S) OF WORK THAT THE BIDDER MADE AVAILABLE TO DBE FIRMS OR THOSE ITEM(S) THE BIDDER IDENTIFIED AND DETERMINED TO SUBDIVIDE INTO ECONOMICALLY FEASIBLE UNITS TO FACILITATE DBE PARTICIPATION. FOR EACH ITEM LISTED, SHOW THE DOLLAR VALUE AND PERCENTAGE OF THE TOTAL CONTRACT AMOUNT. IT IS THE BIDDER'S RESPONSIBILITY TO DEMONSTRATE THAT SUFFICIENT WORK TO MEET THE GOAL WAS MADE AVAILABLE TO DBE FIRMS.

ITEM(S) OF WORK MADE AVAILABLE	BIDDER NORMALLY PERFORMS ITEM(S) (Y/N)	ITEM(S) BROKEN DOWN TO FACILITATE PARTICIPATION (Y/N)	AMOUNT IN DOLLARS	PERCENTAGE OF CONTRACT
concrete	Y	Y		
survey	N			
electric	N			

NOTE: INFORMATION REQUIRED FOR THIS SECTION CONTINUED ON SHEET 5
ATTACH ADDITIONAL PAGES IF NECESSARY

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
DBE GOOD FAITH EFFORTS DOCUMENTATION

CONTRACT I.D. NO. _____ DATE SUBMITTED 9/19/2022

IF THE DBE GOAL ESTABLISHED FOR THIS CONTRACT HAS NOT BEEN MET OR VDOT REQUESTS THE SUBMITTAL THEREOF, THE BIDDER IS REQUIRED TO SUBMIT GOOD FAITH EFFORTS AS OUTLINED IN THIS DOCUMENT.

THE BIDDER ACKNOWLEDGES AND CERTIFIES THAT THIS FORM ACCURATELY REPRESENTS THE INFORMATION CONTAINED HEREIN.

BIDDER Jeffrey Stock SIGNATURE [Signature]
TITLE President

ADDITIONAL INFORMATION REGARDING ITEM(S) OF WORK THAT THE
BIDDER MADE AVAILABLE TO DBE FIRMS (Continued From Sheet 4)

ITEM(S) OF WORK MADE AVAILABLE, NAMES OF SELECTED FIRMS AND DBE STATUS, DBEs THAT PROVIDED QUOTES, PRICE QUOTE FOR EACH FIRM, AND THE PRICE DIFFERENCE FOR EACH DBE IF THE SELECTED FIRM IS NOT A DBE.

ITEM(S) OF WORK MADE AVAILABLE(CONT.)	NAME OF SELECTED FIRM AND VENDOR NUMBER	DBE OR NON-DBE	NAME OF REJECTED FIRM(S)	QUOTE IN DOLLARS	PRICE DIFFERENCE IN DOLLARS

NOTE: ATTACH ADDITIONAL PAGES IF NECESSARY.

IF THE FIRM SELECTED FOR THE ITEM IS NOT A DBE, PROVIDE THE REASON(S) FOR THE SELECTION ON A SEPARATE PAGE AND ATTACH.

PROVIDE NAMES, ADDRESSES, AND TELEPHONE NUMBERS FOR THE FIRMS LISTED ABOVE.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
DBE GOOD FAITH EFFORTS DOCUMENTATION

CONTRACT I.D. NO. _____ DATE SUBMITTED 9/14/2022

IF THE DBE GOAL ESTABLISHED FOR THIS CONTRACT HAS NOT BEEN MET OR VDOT REQUESTS THE SUBMITTAL THEREOF, THE BIDDER IS REQUIRED TO SUBMIT GOOD FAITH EFFORTS AS OUTLINED IN THIS DOCUMENT.

THE BIDDER ACKNOWLEDGES AND CERTIFIES THAT THIS FORM ACCURATELY REPRESENTS THE INFORMATION CONTAINED HEREIN.

BIDDER Jeffrey Stock Jr. SIGNATURE [Signature]
TITLE President

ADVERTISEMENTS OR PROOFS OF PUBLICATION.

NAMES AND DATES OF EACH PUBLICATION IN WHICH A REQUEST FOR DBE PARTICIPATION FOR THE PROJECT WAS PLACED BY THE BIDDER. ATTACH COPIES OF PUBLISHED ADVERTISEMENTS OR PROOFS OF PUBLICATION.

PUBLICATIONS	DATES OF ADVERTISEMENT

NOTE: ATTACH ADDITIONAL PAGES IF NECESSARY

TITLE

NOTE: ATTACH ADDITIONAL PAGES IF NECESSARY.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
DBE GOOD FAITH EFFORTS DOCUMENTATION

CONTRACT I.D. NO. _____ DATE SUBMITTED 7/14/2022

IF THE DBE GOAL ESTABLISHED FOR THIS CONTRACT HAS NOT BEEN MET OR VDOT REQUESTS THE SUBMITTAL THEREOF, THE BIDDER IS REQUIRED TO SUBMIT GOOD FAITH EFFORTS AS OUTLINED IN THIS DOCUMENT.

THE BIDDER ACKNOWLEDGES AND CERTIFIES THAT THIS FORM ACCURATELY REPRESENTS THE INFORMATION CONTAINED HEREIN.

BIDDER Jeffrey Stead Jr SIGNATURE _____
TITLE President

TECHNICAL ASSISTANCE AND INFORMATION PROVIDED TO DBEs

EFFORTS MADE TO PROVIDE INTERESTED DBEs WITH ADEQUATE INFORMATION ABOUT THE PLANS, SPECIFICATIONS, AND REQUIREMENTS OF THE BID DOCUMENTS TO ASSIST THE DBEs IN RESPONDING TO A SOLICITATION.

IDENTIFY THE DBEs ASSISTED, THE INFORMATION PROVIDED, AND THE DATE OF CONTACT. ATTACH COPIES OF SUPPORTING DOCUMENTS.

DBEs ASSISTED	INFORMATION PROVIDED	DATE OF CONTACT
Commercial Survey Decon Contract Jackson Park Spanish Oaks Contract	provided all plans and specifications to all DBE companies	8/31 8/22 8/31 8/22

NOTE: ATTACH ADDITIONAL PAGES IF NECESSARY.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
DBE GOOD FAITH EFFORTS DOCUMENTATION

CONTRACT I.D. NO. _____ DATE SUBMITTED 9/14/2022

IF THE DBE GOAL ESTABLISHED FOR THIS CONTRACT HAS NOT BEEN MET OR VDOT REQUESTS THE SUBMITTAL THEREOF, THE BIDDER IS REQUIRED TO SUBMIT GOOD FAITH EFFORTS AS OUTLINED IN THIS DOCUMENT.

THE BIDDER ACKNOWLEDGES AND CERTIFIES THAT THIS FORM ACCURATELY REPRESENTS THE INFORMATION CONTAINED HEREIN.

BIDDER Jeffrey Stach, Inc. SIGNATURE [Signature]
TITLE President

EFFORTS MADE TO ASSIST DBEs OBTAIN BONDING, LINES OF CREDIT, INSURANCE, ETC.

EFFORTS MADE TO PROVIDE INTERESTED DBEs IN OBTAINING BONDING, LINES OF CREDIT, INSURANCE, NECESSARY EQUIPMENT, SUPPLIES, MATERIALS, OR RELATED ASSISTANCE OR SERVICES, EXCLUDING SUPPLIES AND EQUIPMENT THE SUBCONTRACTOR PURCHASES OR LEASES FROM THE PRIME CONTRACTOR OR ITS AFFILIATES.

IDENTIFY THE DBEs ASSISTED, THE ASSISTANCE OFFERED, AND THE DATES OF SERVICES OFFERED AND PROVIDED. ATTACH COPIES OF SUPPORTING DOCUMENTS.

DBEs ASSISTED	ASSISTANCE OFFERED	DATES SERVICES OFFERED AND/OR PROVIDED

NOTE: ATTACH ADDITIONAL PAGES IF NECESSARY.

NOTE: ATTACH ADDITIONAL PAGES, IF NECESSARY

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION

PROJECT: U000-127-S11, UPC 110843

FHWA: HSIP-5A27(670)

This form must be completed, signed and returned with bid; and failure to do so may result in the rejection of your bid. **THE CONTRACTOR SHALL AFFIRM THE FOLLOWING STATEMENT EITHER BY SIGNING THE AFFIDAVIT AND HAVE IT NOTARIZED OR BY SIGNING THE UNSWORN DECLARATION UNDER PENALTY OF PERJURY UNDER THE LAWS OF THE UNITED STATES. A SEPARATE FORM MUST BE SUBMITTED BY EACH PRINCIPAL OF A JOINT VENTURE BID.**

STATEMENT. In preparation and submission of this bid, I, the firm, corporation or officers, agents or employees thereof did not, either directly or indirectly, enter into any combination or arrangement with any persons, firm or corporation or enter into any agreement, participate in any collusion, or otherwise take any action in the restraint of free, competitive bidding in violation of the Sherman Act (15 U.S.C. Section 1) or Article 1.1 or Chapter 12 of Title 18.2 (Virginia Governmental Frauds Act), Sections 59.1-9.1 through 59.1-9.17 or Sections 59.1-68.6 through 59.1-68.8 of the Code of Virginia.

AFFIDAVIT

The undersigned is duly authorized by the bidder to make the foregoing statement to be filed with bids submitted on behalf of the bidder for contracts to be let by the Commonwealth Transportation Board.

Signed at King George, Virginia, this 14th day of September, 20 22
County (City), STATE

Jeffrey Stack, Inc.
(Name of Firm)

By: [Signature] President
(Signature) Title (print)

STATE of Virginia

COUNTY (CITY) of King George

To-wit:

I Taylor Shelby Stack, a Notary Public in and for the State and County(City) aforesaid, hereby certify that this day Jeffrey Stack

personally appeared before me and made oath that he is duly authorized to make the above statements and that such statements are true and correct.

Subscribed and sworn to before me this 14th day of September, 20 22
Taylor Stack My Commission expires September 30, 2024
Notary Public

OR
UNSWORN DECLARATION

The undersigned is duly authorized by the bidder to make the foregoing statement to be filed submitted on behalf of the bidder for contracts to be let by the Commonwealth Transportation Board.

Signed at King George VA, this 14 day of Sept 2022
County (City), STATE

(Name of Firm)

By: [Signature]
(Signature)

Title



ORDER NO.:
CONTRACT ID. NO.:

Form C-105
Rev. 7-13-05

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
AFFIDAVIT

PROJECT: U000-127-S11, UPC 110843

FHWA: HSIP-5A27(670)

This form must be completed, signed, notarized and returned with bid; and failure to do so, may result in the rejection of your bid. A separate form must be submitted by each principal of a joint venture bid.

1. I, the firm, corporation or officers, agents or employees thereof have neither directly nor indirectly entered into any combination or arrangement with any person, firm or corporation or entered into any agreement, participated in any collusion, or otherwise taken any action in restraint of free competitive bidding in connection with such contract, the effect of which is to prevent competition or increase the cost of construction or maintenance of roads or bridges.

During the preceding twelve months, I (we) have been a member of the following Highway Contractor's Associations, as defined in Section 33.2-1106 of the Code of Virginia. (If none, so state).

NAME

Location of Principal Office

NONE

2. I (we) have ☒ have not ☐ participated in a previous contract or subcontract subject to the equal opportunity clause, as required by Executive Orders 10925, 11114, or 11246, and that I/We have ☒ have not ☐ filed with the joint Reporting Committee, the Director of the Office of Federal Contract Compliance, a Federal Government contracting or administering agency, or the former President's Committee on Equal Employment Opportunity, all reports due under the applicable filing requirements.

Note: The above certification is required by the Equal Employment Opportunity Regulations of the Secretary of Labor [41 CFR 60-1.7(b)(1)], and must be submitted by bidders and proposed subcontractors only in connection with contracts and subcontracts which are subject to the equal opportunity clause. Contracts and subcontracts which are exempt from the equal opportunity clause are set forth in 41 CFR 60-1.5. (Generally only contract or subcontracts of \$10,000 or under are exempt.)

Currently, Standard Form 100 (EEO-1) is the only report required by the Executive Orders or their implementing regulations.

Proposed prime contractors and subcontractors who have participated in a previous contract or subcontract subject to the Executive Orders and have not filed the required reports should note that 41 CFR 60-1.7(b) (1) prevents the award of contract and subcontract unless such contractor submits a report covering the delinquent period or such other period specified by the Federal Highway Administration or by the Director, Office of Federal Contract Compliance, U.S. Department of Labor.

(Continued)

ORDER NO.:
CONTRACT ID. NO.:

Form C-105
page 2

3. The bidder certifies to the best of its knowledge and belief, that it and its principals:
- (a) Are not presently debarred, suspended, proposed for debarment, declared ineligible or voluntarily excluded from covered transactions by any Federal department or agency;
 - (b) Have not within a three year period preceding this proposal been convicted of or had a civil judgement rendered against them for commission of fraud or a criminal offence in connection with obtaining, attempting to obtain, or performing a public (Federal, State or local) transaction or contract under a public transaction; violation of Federal or State antitrust statutes or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, or receiving stolen property;
 - (c) Are not presently indicted for or otherwise criminally or civilly charged by a governmental entity (Federal, State or local) with commission of any of the offenses enumerated above; and
 - (d) Where the bidders is unable to certify to any of the statements in this certification, the bidder shall show an explanation below.

Explanations will not necessarily result in denial of award, but will be considered in determining bidder responsibility. For any explanation noted, indicate below to whom it applies, initiating agency, and dates of action. Providing false information may result in federal criminal prosecution or administration sanctions. The bidder shall provide immediate written notice to the Department if at any time the bidder learns that its certification was erroneous when submitted or has become erroneous by reason of change circumstances.

The undersigned is duly authorized by the bidder to make the foregoing statements to be filed with bids submitted on behalf of the bidder for contracts to be let by the Commonwealth Transportation Board.

Signed at King George Virginia, this 14th day of September, 20 22
Jeffrey Stack, Inc By: [Signature] President
(Name of Firm) (Signature) Title (print)

STATE of Virginia COUNTY (CITY) of King George
To-wit: Taylor Shelby Stack, a Notary Public in and for the State and
County(City) aforesaid, hereby certify that this day Jeffrey S. Stack

personally appeared before me and made oath that he is duly authorized to make the above statements and that such statements are true and correct.

Subscribed and sworn to before me this 14th day of September, 20 22
Taylor Stack My Commission expires September 30, 2024
Notary Public



DATE _____

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
CERTIFICATION OF BINDING AGREEMENT
WITH
DISADVANTAGED BUSINESS ENTERPRISE FIRMS

Project No.: U000-127-S11, UPC 110843

Federal Project No.: HSIP-5A27(670)

This form is to be submitted in accordance with the Department's Special Provision for Section 107.15.

It is hereby certified by the below signed Contractors that there exists a written quote, acceptable to the parties involved preliminary to a binding subcontract agreement stating the details concerning the work to be performed and the price which will be paid for the aforementioned work. This document is not intended to, nor should it be construed to, contain the entire text of the agreement between the contracting parties. This document does not take the place of, nor may it be substituted for, an official subcontracting agreement in those situations that may require such an agreement. A copy of the fully executed *subcontract agreement* shall be submitted to the Engineer within fourteen (14) business days after contract execution.

It is further certified that the aforementioned mutually acceptable quote and fully executed subcontract agreement represent the entire agreement between the parties involved and that no conversations, verbal agreements, or other forms of non-written representations shall serve to add to, delete, or modify the terms as stated.

The prime Contractor further represents that the aforementioned mutually acceptable quote and fully executed subcontract agreement shall remain on file for a period of not less than one year following completion of the prime's contract with the Department or for such longer period as provisions of governing Federal or State law or regulations may require. For purposes of this form, the term Prime Contractor shall refer to any Contractor utilizing a DBE subcontractor, regardless of tier, in which they are claiming DBE credit toward the contract goal.

Contractors further jointly and severally represent that said binding agreement is for the performance of a "commercially useful function" as that term is employed in 49 C.F.R. Part 26.55 (c), (d).

**TO BE SIGNED BY THE SUBCONTRACTOR TO THE PRIME CONTRACTOR, AND ANY LOWER TIER
SUBCONTRACTORS HAVING A CONTRACT WITH THE BELOW NAMED DBE FIRM**

Prime Contractor Jeffrey Stack, Inc

By: [Signature]
Signature

President
Title

Date: September 14, 2022

First Tier
Subcontractor if
Applicable

By: _____
Signature

Title

Date: _____

Second Tier
Subcontractor if
Applicable

By: _____
Signature Title
Date: _____

Third Tier
Subcontractor if
Applicable

By: _____
Signature Title
Date: _____

DBE Contractor

By: _____
Signature Title
Date: _____

Jeffrey Stack, Inc.

Completed Contracts

Job/Location	Value	Yr. Comp.	Owner/ Engineer	Phone #	Contact	Description of Work
Pump House Park Trail	\$186,380.00	2021	City of Richmond	804-201-5914	Michael Burton	Construction of 500 FT asphalt trail with ADA compliance, SWM, rain garden, landscaping, site furnishings.
Sedgewick Crossing Road	\$143,350.00	2021	King George	540-775-8568	Lavita Cobb	Improve existing roads in subdivision to meet VDOT standards. Remove/replace asphalt, widen road, SWM.
Short Pump Park - Multi Use Trail	\$240,414.00	2020	Henrico County Northern Virginia Community College	804-652-3193	Taylor Armstrong arm059@henrico.us	Construction of paved trail system: clearing, grading, drainage improvements, signage, pavement marking, E/S control, asphalt paving, C/G. tree removal and protection.
Dawes Ave Parking Lot Runoff Remediation	\$272,484.00	2019		703-425-5414	Michael Graham mtgraham@nvcc.edu	Site and earthwork, installation of storm sewer and bioretention basin to improve drainage. Curb and gutter, landscaping and erosion control.
Bull Run Regional Park ADA Parking and Routes Installation	\$67,000.00	2018	Northern Virginia Regional Park Authority	703-359-4618	Tim Geisler tgeisler@nvrpa.org	The project includes the installation of concrete and asphalt accessible parking spaces and routes throughout Bull Run Regional Park and miscellaneous associated work as detailed on the plans.
Occoquan Regional Park Multipurpose Trail	\$504,863.34	2018	Northern Virginia Regional Park Authority	703-359-4618	Tim Geisler tgeisler@nvrpa.org	Construction, renovation and installation of asphalt paved surface trail, excavation, grading, tree removal, drainage culverts, road signs, marking, E/S control, tree protection.
Rural Rustic Roads	\$5,002,467.15	2017	VDOT	703-259-0243	Michael Gleasman Michael.Gleasman@vdot.virginia.gov	Road improvement to include excavation, grading, asphalt paving, SWM, marking and signage. Erosion control and maintenance of traffic.
W&OD Railroad Regional Park Sterling Blvd Interseccion Improvements	\$277,645.00	2016	Northern Virginia Regional Park Authority	703-359-4618	Tim Geisler tgeisler@nvrpa.org	Safety improvements to the W&OD Trail crossing to include removal and replacement of asphalt and concrete crosswalk; installation of signs and pedestrian signal. Erosion control and maintenance of traffic.
Sterling Area Sidewalk Improvements	\$158,000.00	2016	Loudoun County	703-777-0403	Robert Edwards Robert.Edwards@loudoun.gov	Construction of sidewalks, ramps, crosswalks and associated improvements at two locations. Erosion control and maintenance of traffic.
Follin Lane SE Reconstruction	\$2,474,568.41	2016	Town Of Vienna	703-255-5723	Luis Blandon lblandon@viennava.gov	Re-build Follin Lane SE to include erosion control, inlet protection, traffic control, removal of existing pavement, new asphalt concrete placement, pavement markings, installation of curb and gutter, sidewalks, detectable warning surfaces, water & sewer, fire hydrants, and landscaping.

Jeffrey S. Stack
P.O. Box 280
Jersey, VA 22481
540.775.8301

GENERAL CONTRACTING

EXPERIENCE: Over 39 years of experience in construction industry focused heavily on site-work and utilities. Over 30 years owner/operator of Jeffrey Stack, Inc., management of daily operations of general contracting firm performing work of major customers including state, local and federal governments.

EMPLOYMENT:

Owner/Operator Jeffrey Stack, Inc. 1985 to Present
Responsible for small business entity, all facets of business including marketing, field operations, scheduling and communications with customers, vendors, subcontractors, estimating and project management, and general contracting services for federal, state and local government entities located in the Washington DC metropolitan area. General contractor for 31 years, an annual sales between 4 and 8 million dollars.

Superintendent Wills Development 1981 to 1985

Responsible for supervision of field operations for a land development company in the Northern VA area.

Laborer/Truck Driver C.W. Stack and Associates, Inc. 1976 to 1981

Responsible for implementation of site-work and utility installation for small to medium sized site-work/utility company located in the Washington DC metropolitan area.

COURSES & CERTIFICATIONS:

Virginia Erosion and Sediment Control Responsible Land Disturber
OSHA 30
US Corp of Engineers – Construction Quality Management For Contractors
VDOT Flagging Certification
Scaffold Safety

FEDERAL PROJECT NUMBER: HSIP-5A27(670)

NO ADDITIONAL RIGHT OF WAY REQUIRED FOR THIS PROJECT.



VICINITY MAP

**DENOTES
PROJECT AREA**

[illegible]

**MARY MUNFORD ELEMENTARY
SCHOOL PEDESTRIAN SAFETY
IMPROVEMENTS**

COVER SHEET

[illegible]

SCALE: 1" = 1000'

TRANSPORTATION MANAGEMENT PLAN

GENERAL NOTES

1. THIS PROJECT IS CLASSIFIED AS TYPE A UNDER THE VDOT CLASSIFICATION SYSTEM.
2. THE PURPOSE OF THIS PROJECT IS TO PROVIDE VDOT WITH A SAFETY IMPROVEMENT IN THE MARY MUNFORD ELEMENTARY SCHOOL VICTORY WALK. THIS PROJECT WILL TAKE PLACE ALONG THE VICTORY WALK FROM THE INTERSECTION OF VICTORY WALK AND WOODBURN AVENUE TO THE INTERSECTION OF VICTORY WALK AND WOODBURN AVENUE. THE PROJECT WILL BE CONDUCTED DURING THE SUMMER MONTHS OF 2018.
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TEMPORARY TRAFFIC CONTROL MAINTENANCE OF TRAFFIC

1. THE WORK ZONE SHALL BE MAINTAINED ACCORDING TO THE CITY DEPARTMENT OF PUBLIC WORKS TRAFFIC CONTROL MANUAL, SECTION 2.1.1. THE WORK ZONE SHALL BE MAINTAINED ACCORDING TO THE CITY DEPARTMENT OF PUBLIC WORKS TRAFFIC CONTROL MANUAL, SECTION 2.1.1.
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PUBLIC COMMUNICATIONS PLAN

1. A PUBLIC COMMUNICATIONS PLAN IS NOT APPLICABLE TO THIS PROJECT. A PUBLIC COMMUNICATIONS PLAN IS NOT APPLICABLE TO THIS PROJECT.

TRANSPORTATION OPERATION PLAN

1. THE CONTRACTOR MUST ADVISE EMERGENCY COMMUNICATIONS OF THE CITY AT 911 IN CASE OF AN EMERGENCY CALL 911.
2. IN CASE OF AN EMERGENCY CALL 911.
3. THE FOLLOWING IS A LIST OF LOCAL NON-EMERGENCY NUMBERS: CITY OF FREDERICK 444-4444, CITY OF FREDERICK 444-4444, CITY OF FREDERICK 444-4444, CITY OF FREDERICK 444-4444, CITY OF FREDERICK 444-4444, CITY OF FREDERICK 444-4444, CITY OF FREDERICK 444-4444, CITY OF FREDERICK 444-4444, CITY OF FREDERICK 444-4444, CITY OF FREDERICK 444-4444.
4. THE CONTRACTOR MUST ADVISE EMERGENCY COMMUNICATIONS OF THE CITY AT 911 IN CASE OF AN EMERGENCY CALL 911.
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10. THE CONTRACTOR MUST ADVISE EMERGENCY COMMUNICATIONS OF THE CITY AT 911 IN CASE OF AN EMERGENCY CALL 911.

TRANSPORTATION MANAGEMENT PLAN (TMP) GENERAL NOTES

1. THE CONTRACTOR WILL MAINTAIN ARRANGEMENTS TO STORE EQUIPMENT AND MATERIALS IN THE WORK ZONE.
2. THE CONTRACTOR SHALL USE THE TMP AS A STARTING POINT FOR APPROPRIATE WORK ZONE TRAFFIC CONTROL. THIS PLAN IS NOT INTENDED TO BE THE FINAL TMP. THE CONTRACTOR SHALL BE RESPONSIBLE FOR THE FINAL TMP. THE CONTRACTOR SHALL BE RESPONSIBLE FOR THE FINAL TMP.
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10. THE CONTRACTOR SHALL BE RESPONSIBLE FOR THE FINAL TMP. THE CONTRACTOR SHALL BE RESPONSIBLE FOR THE FINAL TMP.

REVISIONS BY: 1.00
 DATE: 10/06/2018
 PROJECT NO: 100-223
 SHEET NO: 2A



DESIGN: D. J. JORDAN CHECKED: J. J. JORDAN APPROVED:		MARY MUNFORD ELEMENTARY SCHOOL PEDESTRIAN SAFETY IMPROVEMENTS TRANSPORTATION MANAGEMENT PLAN	
DATE: 10/06/2018 PROJECT NO: 100-223	SCALE: NOT TO SCALE FILE NO:	SHEET NO: 2A	TOTAL SHEETS: 2

11/10/2017 BY SARA

The diagram illustrates a school zone sign assembly with the following components and dimensions:

- Top Sign:** A rectangular sign with a black border, containing the text "SCHOOL SPEED LIMIT" in white on a black background, followed by the number "25" in large white digits on a black background. The sign is 24" wide and 72" high.
- Flashing Sign:** A rectangular sign with a black border, containing the text "WHEN FLASHING" in white on a black background. It is 24" wide and 12" high.
- Speed Limit Sign:** A circular sign with a black border and a white background, containing the number "25" in black. It is 24" in diameter.
- Flashing Sign:** A rectangular sign with a black border and a white background, containing the text "WHEN FLASHING" in black. It is 24" wide and 12" high.
- Signing Legend:** A legend showing the dimensions for the signs:
 - 24" x 72" (SCHOOL SPEED LIMIT)
 - 24" x 12" (WHEN FLASHING)
 - 24" x 24" (SPEED LIMIT)
 - 24" x 12" (WHEN FLASHING)

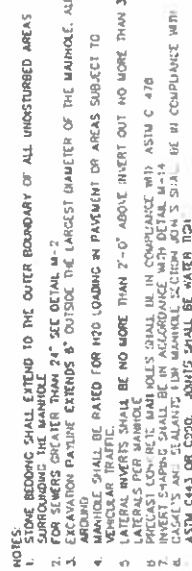
Figure 7C-1. Two-Lane Pavement Marking of "SCHOOL"

[illegible]

1001 JOURNAL OF DOCUMENTATION



43 44 45 46 47 48 49 50 51 52 53 54 55 56 57 58 59 60 61 62 63 64 65 66 67 68 69 70 71 72 73 74 75 76 77 78 79 80 81 82 83 84 85 86 87 88 89 90 91 92 93 94 95 96 97 98 99 00 01 02 03 04 05 06 07 08 09 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 25 26 27 28 29 30 31 32 33 34 35 36 37 38 39 40 41 42 43 44 45 46 47 48 49 50 51 52 53 54 55 56 57 58 59 60 61 62 63 64 65 66 67 68 69 70 71 72 73 74 75 76 77 78 79 80 81 82 83 84 85 86 87 88 89 90 91 92 93 94 95 96 97 98 99 00 01 02 03 04 05 06 07 08 09 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 25 26 27 28 29 30 31 32 33 34 35 36 37 38 39 40 41 42 43 44 45 46 47 48 49 50 51 52 53 54 55 56 57 58 59 60 61 62 63 64 65 66 67 68 69 70 71 72 73 74 75 76 77 78 79 80 81 82 83 84 85 86 87 88 89 90 91 92 93 94 95 96 97 98 99 00 01 02 03 04 05 06 07 08 09 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 25 26 27 28 29 30 31 32 33 34 35 36 37 38 39 40 41 42 43 44 45 46 47 48 49 50 51 52 53 54 55 56 57 58 59 60 61 62 63 64 65 66 67 68 69 70 71 72 73 74 75 76 77 78 79 80 81 82 83 84 85 86 87 88 89 90 91 92 93 94 95 96 97 98 99 00 01 02 03 04 05 06 07 08 09 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 25 26 27 28 29 30 31 32 33 34 35 36 37 38 39 40 41 42 43 44 45 46 47 48 49 50 51 52 53 54 55 56 57 58 59 60 61 62 63 64 65 66 67 68 69 70 71 72 73 74 75 76 77 78 79 80 81 82 83 84 85 86 87 88 89 90 91 92 93 94 95 96 97 98 99 00 01 02 03 04 05 06 07 08 09 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 25 26 27 28 29 30 31 32 33 34 35 36 37 38 39 40 41 42 43 44 45 46 47 48 49 50 51 52 53 54 55 56 57 58 59 60 61 62 63 64 65 66 67 68 69 70 71 72 73 74 75 76 77 78 79 80 81 82 83 84 85 86 87 88 89 90 91 92 93 94 95 96 97 98 99 00 01 02 03 04 05 06 07 08 09 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 25 	
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[illegible]

1. STONE BEDDING SHALL EXTEND TO THE OUTER BOUNDARY OF ALL UNDISTURBED AREAS SURROUNDING THE MANHOLE.
2. FOR SLEWERS GREATER THAN 24" SEE DETAIL M-2
3. EXCAVATION PATTERNE EXTENDS 8" OUTSIDE THE LARGEST DIAMETER OF THE MANHOLE. ALL MATERIAL SHALL BE RATED FOR 120 LBS/LOADING IN PAYMENT ON AREAS SUBJECT TO MANHOLE TRAFFIC.
4. LATERAL INVERTS SHALL BE NO MORE THAN 2'-0" ABOVE INVERT OUT NO MORE THAN 3' LATERALS PER MANHOLE.
5. PRECAST CONCRETE MANHOLE SHALL BE IN COMPLIANCE WITH ASTM C 478
6. INVERT CHAPING SHALL BE IN ACCORDANCE WITH DETAIL M-14
7. ALL EXCAVATION SHALL BE IN COMPLIANCE WITH DETAIL M-15
8. ALL EXCAVATION SHALL BE WATER TIGHT
9. ALL EXCAVATION SHALL BE WATER TIGHT



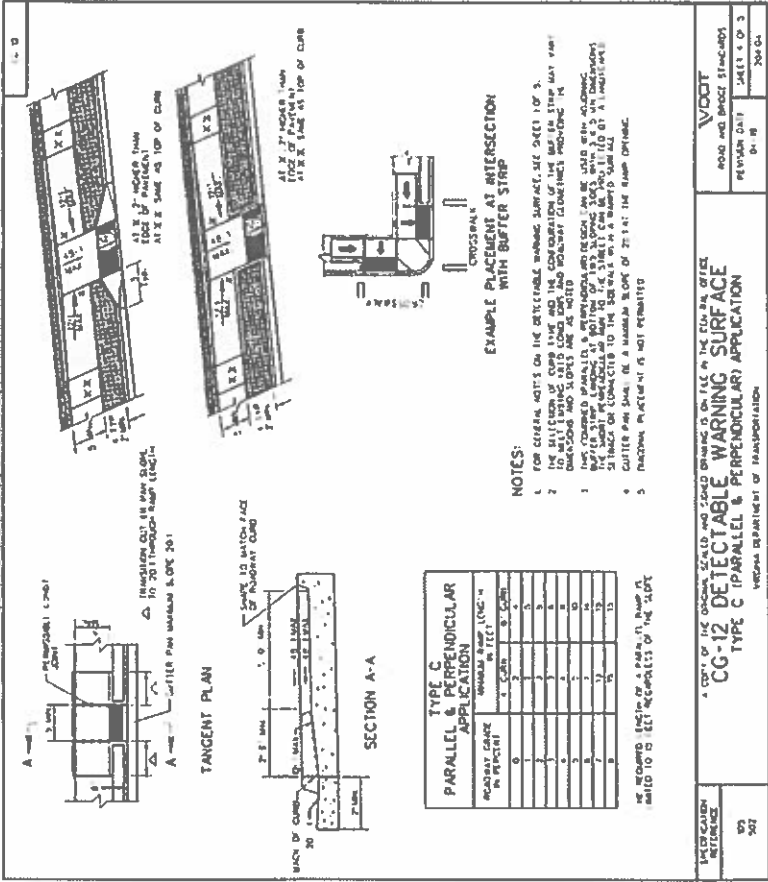
- NOTES:
1) MANHOLE FRAME AND COVER SHALL COME FURNISHED WITH ANCHOR BOLT LOCATIONS.
2) STAINLESS STEEL BOLTS, NUTS, AND WASHERS SHALL BE USED TO LEVEL MANHOLE FRAME AND COVER.

DEPARTMENT OF PUBLIC UTILITIES	CITY OF BIRMINGHAM, ALABAMA	REV 04/17
ANGLED MANHOLE FRAME AND COVER INSTALLATION		M-16
NOT TO SCALE		

[illegible]

DESIGN: ☐ CORNARO				MARY MUNFORD ELEMENTARY SCHOOL PEDESTRIAN SAFETY IMPROVEMENTS				UTILITY ADJUSTMENT TO GRADE DETAILS			
CHECKED BY: ☐ RUFF				DATE 10/04/2018	SCALE NOT TO SCALE	DRAWING NO. FILE NO.	SHEET NO. 20				
APPROVED: _____											
SOCIAL NO.	UNFILED NO.	PLAN NO.	NO.	PROJECT NO.		NO.					

2018 ROAD & BRIDGE STANDARDS

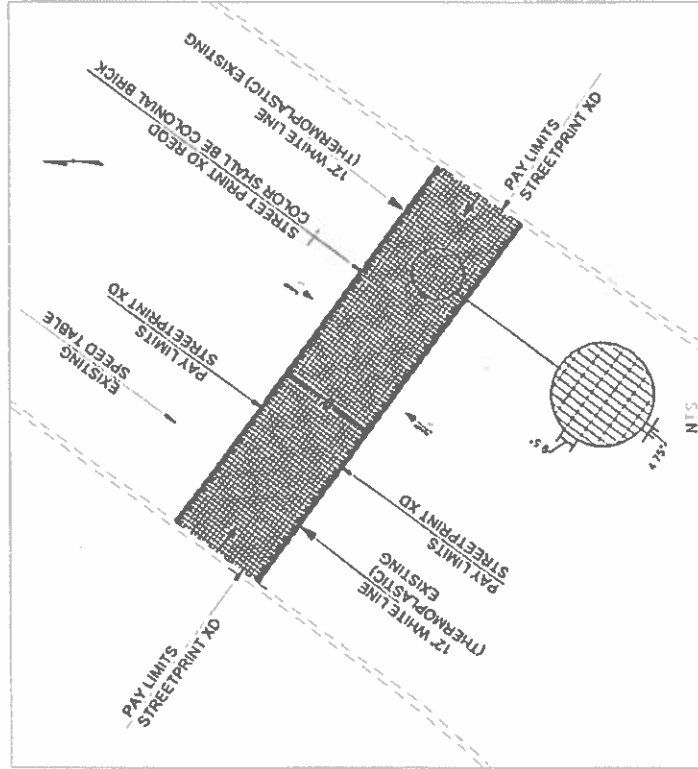


DESIGN	BY	Schwab		DATE	10/06/2000	SCALE	NOT TO SCALE	DESIGNED NO.	00000000
DATE	08/24/00	BY		WJF	PROJECT NO.		TITLE NO.		SCALE NO.
APPROVED 				CURB RAMP DETAILS					

Downloaded from <http://ajph.org/> on November 10, 2014

RAISED CROSSWALK DETAILS

"STREETPRINT XD" DETAIL



PROPOSED PRINT PATTERN
(RUNNING BOND)



NOTES

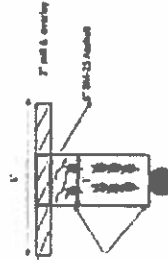
- 1 STREETPRINT XD SHALL BE INSTALLED ACCORDING TO THE MANUFACTURER'S RECOMMENDATIONS AND SPECIFICATIONS
- 2 PRECISE LOCATION OF RAISED CROSSWALK TO BE VERIFIED IN FIELD BY PROJECT ENGINEER AND BY A REPRESENTATIVE OF THE CITY OF RICHMOND TRANSPORTATION DEPARTMENT. THE CONTRACTOR SHALL USE THE DIMENSIONS PROVIDED BY THE ENGINEER
- 3 THE STREETPRINT XD SHALL BE LAID IN A 4'7 1/2" X 9'5" BRICK PATTERN.
- 4 STREETPRINT XD "COLONIAL BRICK" COLOR SHALL BE USED
- 5 PAY LIMITS INCLUDE THE FULL LENGTH AND WIDTH OF THE CROSSWALKS. BUT NOT TO INCLUDE THE "RAMP UP" AREAS
- 6 STREETPRINT XD SHALL NOT EXTEND INTO GUTTER.
- 7 ALL DIMENSIONS ARE TO FACE OF CURB UNLESS OTHERWISE NOTED



DESIGN: D. JOHNSON CREDITED: 1. 1941 APPROVED:		MARY MUNFORD ELEMENTARY SCHOOL PEDESTRIAN SAFETY IMPROVEMENTS RAISED CROSSWALK DETAILS	
DATE: 10/08/2020	SCALE: NOT TO SCALE	DRAWING NO: 24891	SHEET NO: 2C
PROJECT NO: 100412	PLAN NO:		

DESIGNED BY: J. JOHNSON
 CHECKED BY: J. JOHNSON
 REVISION BY: J. JOHNSON
 L&S GROUP, LLC

PER CITY OF RICHMOND STANDARD OPERATING
PROCEDURE FOR REPAVING UTILITY REPAIRS

[illegible]

Answer:
b. Compensation shall be in
accordance with current VDOT
pay schedule and classifications.

2. Once a student has been assigned the patch, the patch should be checked with a 1" square (see the figure on the right). If the patch does not have a smooth border, the patch should be removed and replaced.

Typical Summer Open Call To seek Registration Details
for All Paved Roads

CONTRACTOR'S NAME: LARRY RICHARDS

COUNTY: D 5294900 DISTRICT: T 1001 APPROVED: _____ 		MARY MUMFORD ELEMENTARY SCHOOL PEDESTRIAN SAFETY IMPROVEMENTS PAVEMENT RESTORATION	
DATE: 10/18/2000 TIME: 10:00 AM PROJECT NO.: 1999123		DETAILS DRAWING NO.: 1999123-01 NOT TO SCALE DATE: 10/18/2000	

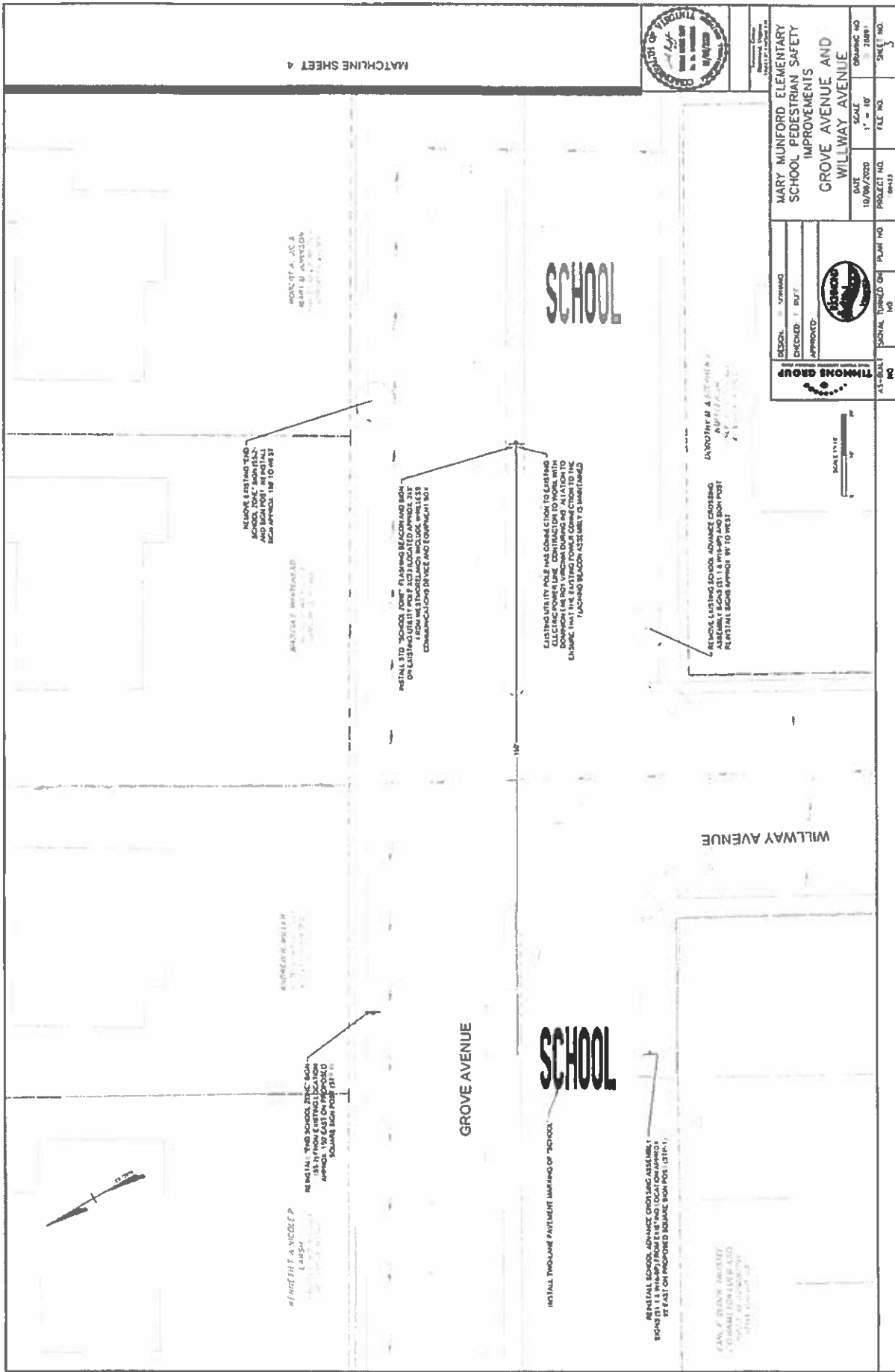
RECEIVED BY	DATE	TIME	INITIALS
CLARK, J. L.	10/10/68	10:00	CLK
RECEIVED BY	DATE	TIME	INITIALS
CLARK, J. L.	10/10/68	10:00	CLK
RECEIVED BY	DATE	TIME	INITIALS
CLARK, J. L.	10/10/68	10:00	CLK

DESIGNED BY J.L.P.
 CHECKED BY A.B.B.
 CAD OPERATOR L.B.B.
 REVISION 01

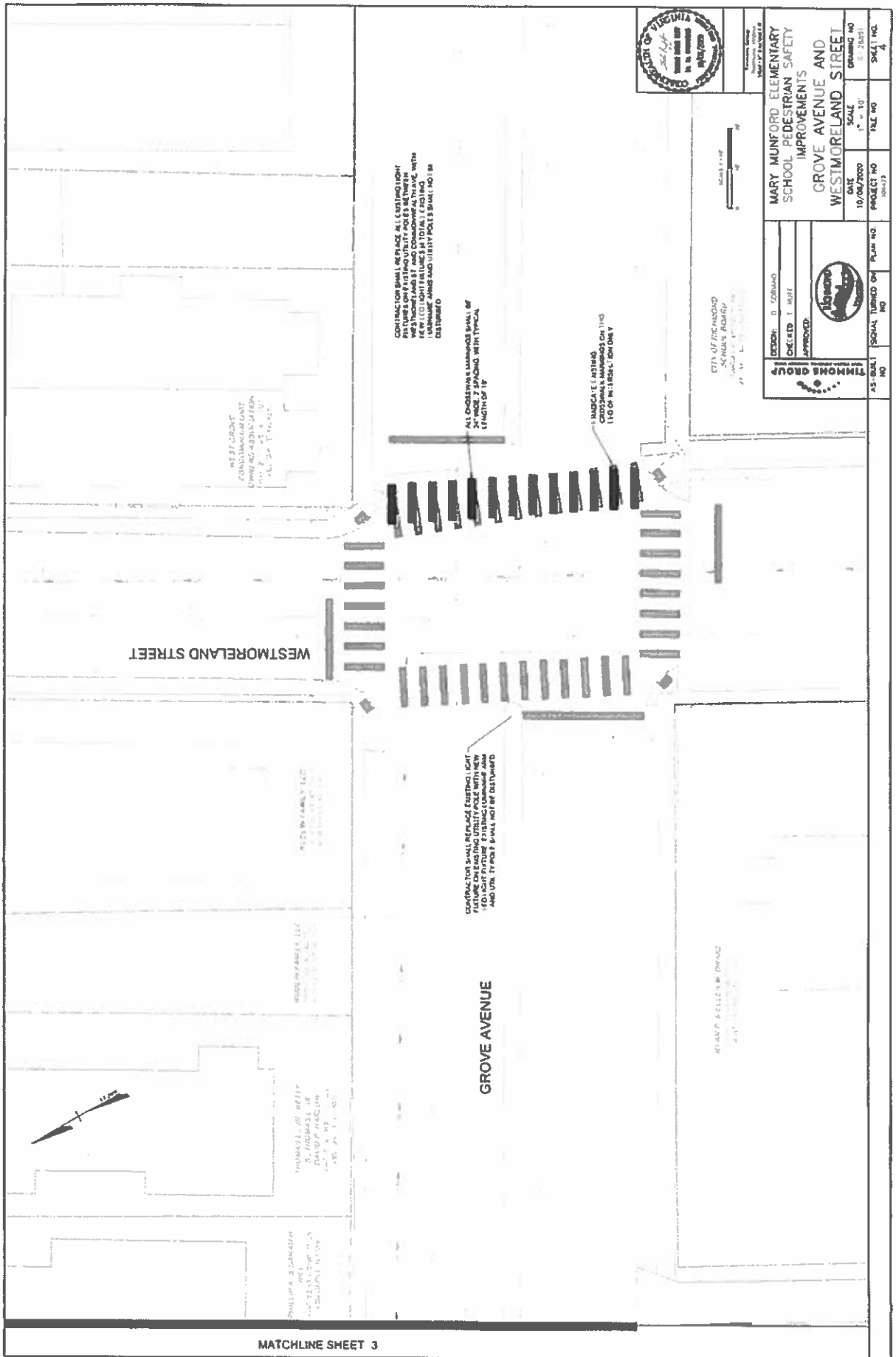
DATE	10/09/2020
SCALE	1" = 40'
PROJECT NO.	20013
SHEET NO.	3



MARY MUNFORD ELEMENTARY SCHOOL PEDESTRIAN SAFETY IMPROVEMENTS GROVE AVENUE AND WILLWAY AVENUE	
DATE	10/09/2020
SCALE	1" = 40'
PROJECT NO.	20013
SHEET NO.	3



MATCHLINE SHEET 4



MATCHLINE SHEET 3

REVISIONS BY: _____
 CADD PREPARED BY: _____
 DESIGNED BY: _____

DATE	10/04/2020
PROJECT NO.	1004273
PLAN NO.	1
SHEET NO.	4



CITY OF RICHMOND
 PUBLIC WORKS DEPARTMENT

TIMMONS GROUP
 ENGINEERS, ARCHITECTS, PLANNERS
 10000 WOODBRIDGE AVENUE, SUITE 100
 FARMERSBURGH, VA 22434
 (703) 426-1000

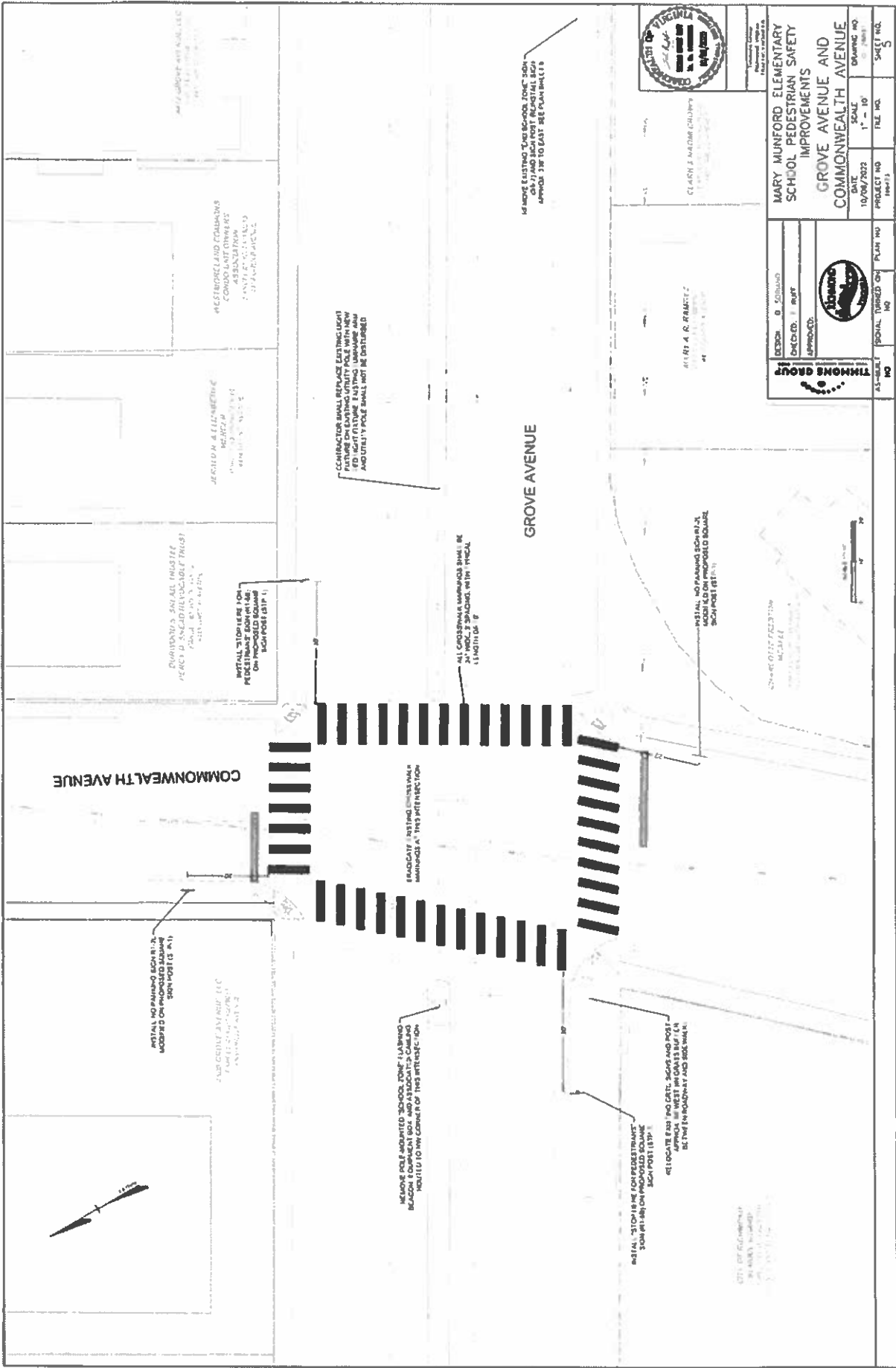
DESIGNED BY: D. COBBING
 CHECKED BY: T. BURT
 APPROVED: _____

**MARY MUNFORD ELEMENTARY
 SCHOOL PEDESTRIAN SAFETY
 IMPROVEMENTS**

**GROVE AVENUE AND
 WESTMORELAND STREET**

DATE: 10/04/2020
 SCALE: 1" = 10'
 PROJECT NO.: 1004273
 SHEET NO.: 4





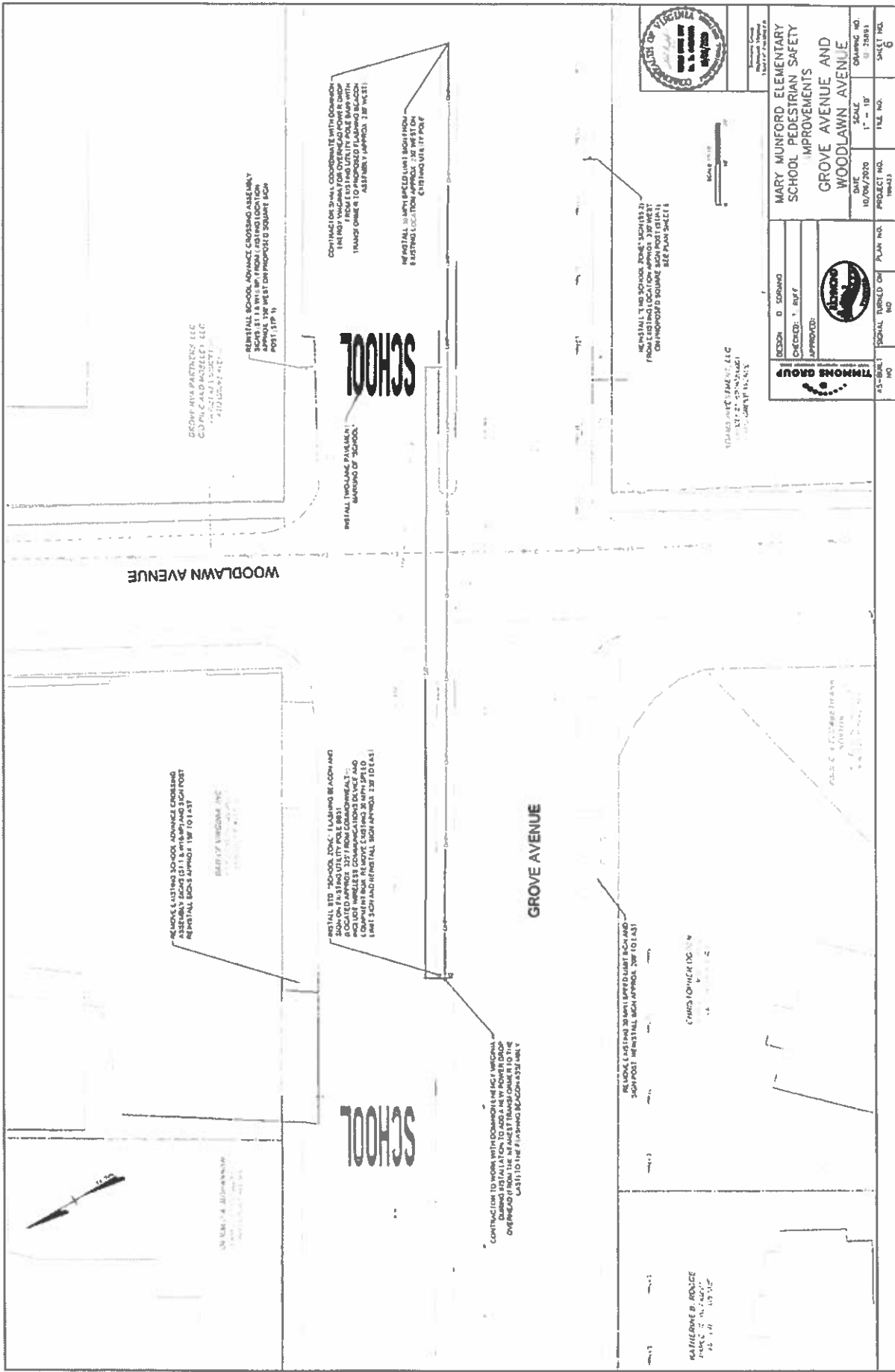
REVISIONS	DATE	BY	DESCRIPTION
1	10/27/2023	AS	ISSUED FOR PERMIT
2	10/27/2023	AS	ISSUED FOR PERMIT
3	10/27/2023	AS	ISSUED FOR PERMIT
4	10/27/2023	AS	ISSUED FOR PERMIT
5	10/27/2023	AS	ISSUED FOR PERMIT
6	10/27/2023	AS	ISSUED FOR PERMIT
7	10/27/2023	AS	ISSUED FOR PERMIT
8	10/27/2023	AS	ISSUED FOR PERMIT
9	10/27/2023	AS	ISSUED FOR PERMIT
10	10/27/2023	AS	ISSUED FOR PERMIT

TIMMONS GROUP
 10000 W. 10TH AVE. SUITE 100
 DENVER, CO 80202
 (303) 751-1000
 www.timmonsgrp.com

DESIGN: D. SCHUBERT
 CHECKED: J. HART
 APPROVED: [Signature]

**MARY MUNFORD ELEMENTARY
 SCHOOL PEDESTRIAN SAFETY
 IMPROVEMENTS**
**GROVE AVENUE AND
 COMMONWEALTH AVENUE**

DATE: 10/27/2023
 SCALE: 1" = 10'
 PROJECT NO: 2023-001
 SHEET NO: 5



DESIGN: D. SORIANO			45-001 SOCIAL, BUILDING, CIVIL, MECHANICAL, ELECTRICAL, PLUMBING, AND MECHANICAL	PLAN NO. NO.	PROJECT NO. 10000	SCALE 1" = 10'	SHEET NO. 6
CHECKED: J. RIFE APPROVED:							
MARY MUNFORD ELEMENTARY SCHOOL PEDESTRIAN SAFETY IMPROVEMENTS GROVE AVENUE AND WOODLAWN AVENUE							

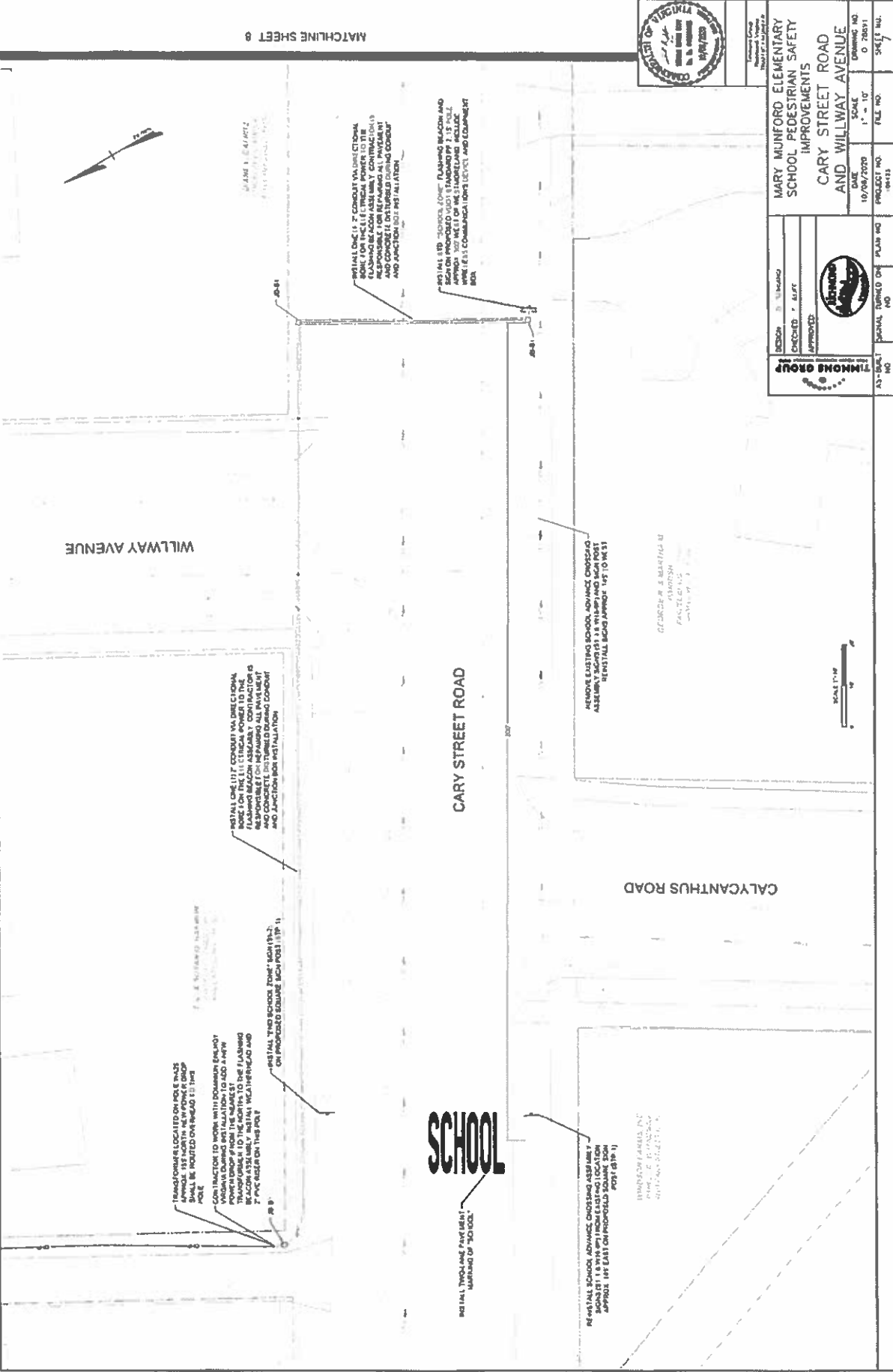
APPROVED BY: J. RIFE
 CAD OPERATOR: J. RIFE
 REVISION: 01

DATE	10/26/2020
PROJECT NO.	19-113
FILE NO.	19-113
SHEET NO.	1

DESIGN	10/26/2020
CHECKED	10/26/2020
APPROVED	10/26/2020



**MARY MUNFORD ELEMENTARY
SCHOOL PEDESTRIAN SAFETY
IMPROVEMENTS**
**CARY STREET ROAD
AND WILLWAY AVENUE**



MATCHLINE SHEET 8

SCHOOL

WILLWAY AVENUE

CARY STREET ROAD

CALYCANTHUS ROAD

TRANSFORMER LOCATED ON POLE IN THE
EAST SIDE OF WILLWAY AVENUE
SHALL BE ROUTED OVERHEAD TO THE
POLE

CONTRACTOR TO WORK WITH DOMINION ENERGY
VIRGINIA DURING INSTALLATION TO ADD A NEW
TRAP/BACK TO THE NORTH TO THE FLASHING
BEACON ASSEMBLY INSTALL WEAIRHEAD AND
2" PVC RIGID ON THIS POLE

INSTALL THIS BEACON FROM SIGN (R-2)
ON PROPOSED SQUARE SIGNPOST (R-2)

INSTALL ONE (1) 7" CONDUIT VIA DIRECTIONAL
BORING FOR THE 11" CIRCULAR POWER TO THE
FLASHING BEACON ASSEMBLY CONTRACTOR IS
RESPONSIBLE FOR REPAIRING ALL DAMAGE TO
EXISTING UTILITY LINES AND ALL NECESSARY
AND CONCRETE ON TYPICAL INSTALLATION

INSTALL ONE (1) 7" CONDUIT VIA DIRECTIONAL
BORING FOR THE 11" CIRCULAR POWER TO THE
FLASHING BEACON ASSEMBLY CONTRACTOR IS
RESPONSIBLE FOR REPAIRING ALL DAMAGE TO
EXISTING UTILITY LINES AND ALL NECESSARY
AND CONCRETE ON TYPICAL INSTALLATION

INSTALL TWO (2) SCHOOL ZONE FLASHING BEACON AND
ADVANCE CROSSING SIGN (R-2) ON THE EAST SIDE OF
CARY STREET ROAD APPROX 100' WEST OF THE SHORELAND SCHOOL
SCHOOL ZONE FLASHING BEACON AND EQUIPMENT
BOX

REMOVE EXISTING SCHOOL ADVANCE CROSSING
ASSEMBLY SIGN (R-2) IS TRIP AND SIGN POST
INSTALL SIGN APPROX 145' TO W-11

GEORGE W. & MARTHA M.
FARMERS
CARY STREET ROAD
CARY, NC 27513

REINSTALL SCHOOL ADVANCE CROSSING ASSEMBLY
SIGN (R-2) 110' WEST OF THE SHORELAND SCHOOL
SCHOOL ZONE FLASHING BEACON AND EQUIPMENT
BOX APPROX 145' EAST ON PROPOSED SIGNPOST (R-2)

WILLWAY AVENUE, INC.
CARY, NC 27513

SCALE 1" = 10'

WESTMORELAND STREET

CARY STREET ROAD

SCHOOL

MATCHLINE SHEET 7



EXISTING SIDEWALK
RECEIVING A WALKWAY
TO THE STREET

INSTALL STOP HERE FOR
PEDESTRIANS AND BICYCLES
ON PROPOSED SQUARE
SIGN POST (SIP-1)

INSTALL STOP HERE FOR
PEDESTRIANS AND BICYCLES
ON PROPOSED SQUARE
SIGN POST (SIP-1)

INSTALL STOP HERE FOR
PEDESTRIANS AND BICYCLES
ON PROPOSED SQUARE
SIGN POST (SIP-1)

EXISTING SIDEWALK
RECEIVING A WALKWAY
TO THE STREET

SCALE 1" = 10'



MARY MUNFORD ELEMENTARY
SCHOOL PEDESTRIAN SAFETY
IMPROVEMENTS

CARY STREET ROAD AND
WESTMORELAND STREET

SCALE
1" = 10'

PROJECT NO.
10000

SHEET NO.
B

DESIGN
CHECKED
APPROVED

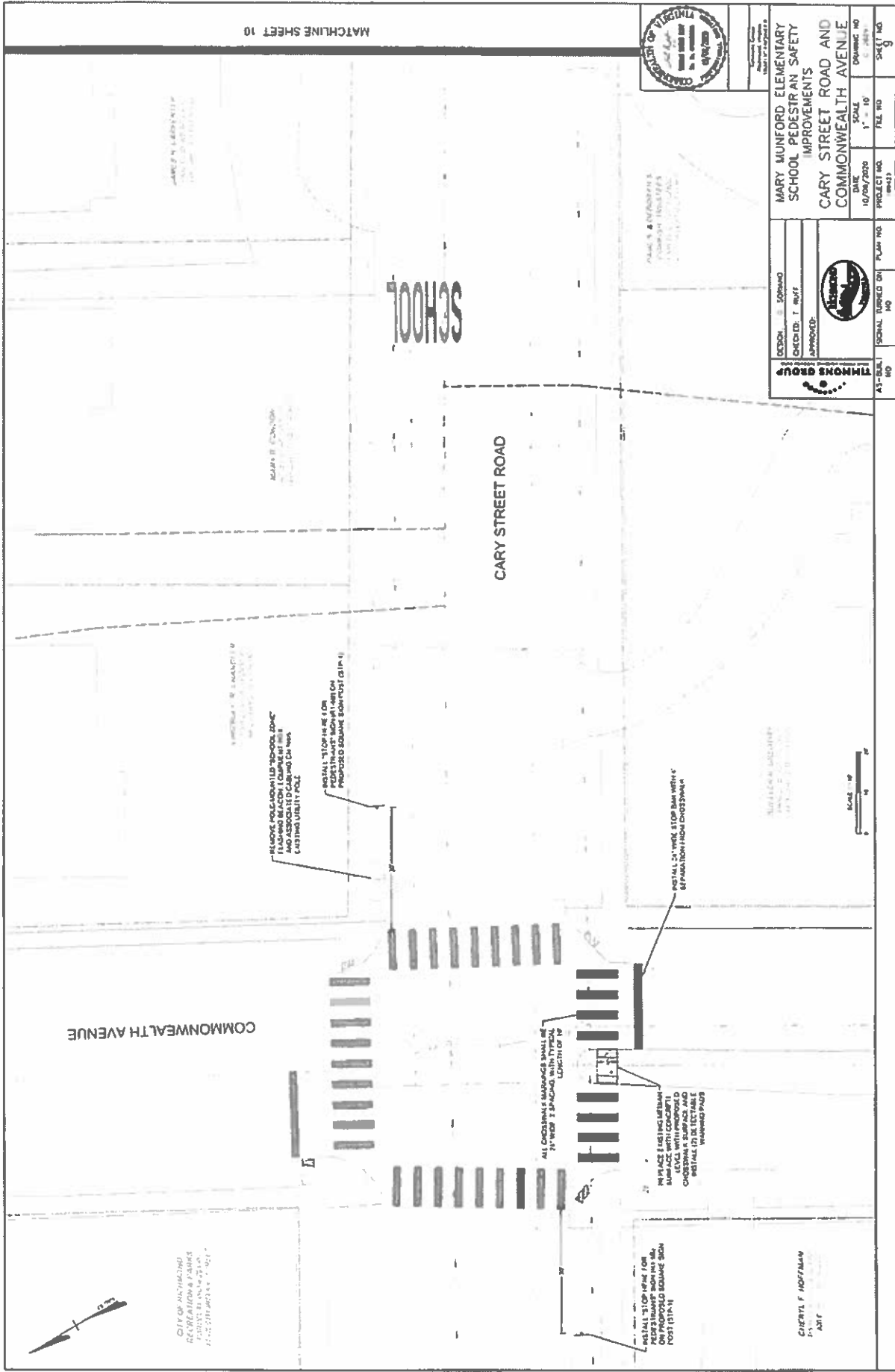


PROJECT NO.
10000

SHEET NO.
B

DESIGNED BY J. ST.
CHECKED BY J. ST.
REVIEWED BY J. ST.

DATE	10/04/2020
BY	J. ST.
CHECKED BY	J. ST.
REVIEWED BY	J. ST.



CITY OF VIRGINIA
 DEPARTMENT OF TRANSPORTATION
 11-2015 (REV. 04-14)

MATCHLINE SHEET 10

SCHOOL

CARY STREET ROAD

COMMONWEALTH AVENUE



THOMAS GROUP DESIGN: [] SUPPLEMENT CHECKED: T. MUFF APPROVED: []		MARY MUNFORD ELEMENTARY SCHOOL PEDESTRIAN SAFETY IMPROVEMENTS CARY STREET ROAD AND COMMONWEALTH AVENUE	
DATE: 10/09/2020	SCALE: 1" = 10'	PROJECT NO: 19-0433	SHEET NO: 9
AS-BUILT NO:	SIGNAL TUNING NO:	PLAN NO:	



SCALE: 1" = 10'

NO.	REVISION	DATE
1	ISSUED FOR BIDDING	10/09/2020
2	AS-BUILT	

DESIGNED BY: L.B.F.
 CHECKED BY: L.B.F.
 REVIEWED BY: L.B.F.

2020 PICK LIST – LOCALLY ADMINISTERED PROJECTS

Name	Title	Usage Guidelines
<u>cn100-000051-03.docx</u>	VDOT SUPPLEMENTAL SPECS (SSs), SPECIAL PROV. (SPs) AND SPECIAL PROV. COPIED NOTES (SPCNs) (Local Assistance)	Applies only to those projects developed through the "Local Assistance Division" for county or city administration and use 2016 VDOT Specifications and 2016 VDOT Standards.
<u>SP0F0-000100-00.docx</u>	PREDETERMINED MINIMUM WAGE RATES (Wage Rates)	All fed-aid projects. The 1st sheet is blank in to accommodate adding latest wage rates that apply to this contract. Contact Construction Division for the latest wage rates.
<u>SP0F0-000130-00.docx</u>	FHWA 1273-REQUIRED CONTRACT PROVISIONS, FEDERAL-AID CONSTRUCTION CONTRACTS	FHWA-1273. For use on all projects with Federal funds.
<u>SP0F0-000140-00.docx</u>	ATTACHMENT A - EMPLOYMENT AND MATERIALS PREFERENCE FOR APPALACHIAN DEVELOPMENT HIGHWAY SYSTEM OR APPALACHIAN LOCAL ACCESS ROAD CONTRACTS	For use with Appalachian Regional Commission funds. Do not use with Appalachian Development (APD) funds. Use with SP0F0-000130-00.{2007-SF0208F}
<u>SP0F0-000150-01.docx</u>	NOTICE OF REQUIREMENT FOR AFFIRMATIVE ACTION TO ENSURE EQUAL EMPLOYMENT OPPORTUNITY (Federal Executive Orders 11246 & 13672)	For use on projects greater than \$10,000 that have Federal funds.
<u>SP100-000051-00.docx</u>	CHANGED CONDITIONS FOR LOCAL ASSISTANCE PROJECTS	Applies only to those projects developed through the "Local Assistance Division" for county or city administration and use 2016 VDOT Specifications and 2016 VDOT Standards.
<u>cn102-000510-00.docx</u>	SECTION 102.05 - PREPARATION OF BID (Compliance with the Cargo Preference Act)	For use on all projects with federal funds.
<u>SP102-000510-02.docx</u>	USE OF DOMESTIC MATERIAL (Buy America)	Federal-aid projects containing any iron or steel products.
<u>SQ105-000611-01.docx</u>	SECTION 105.06—SUBCONTRACTING (FEDERAL FUNDED PROJECTS)	For all projects with Federal funds.
<u>cq107-000130-00.docx</u>	DRUG-FREE WORKPLACE	For use on all projects.
<u>cq107-000140-00.docx</u>	Contractor Sexual Harassment Policy	For use with all projects. Do not use with SS107-0002020-01.
<u>SP107-000120-00.docx</u>	Electronic Submission of Payrolls and DBE Payments	For use on all Federally-Funded projects.
<u>SP107-000150-02.docx</u>	SECTION 107.15 (DBEs)	For use with all projects with Federal funds.

VDOT SUPPLEMENTAL SPECIFICATIONS (SSs), SPECIAL PROVISIONS (SPs) AND SPECIAL PROVISION COPIED NOTES (SPCNs)

Where Virginia Department of Transportation (VDOT) Supplemental Specifications, Special Provisions and Special Provision Copied Notes are used in this contract, the references therein to "the Specifications" shall refer to the *Virginia Department of Transportation Road and Bridge Specifications*, dated 2020. References to the "Road and Bridge Standards" shall refer to the *Virginia Department of Transportation Road and Bridge Standards*, dated 2016 with revisions issued online as of the advertisement date for this project incorporated. References to the "Virginia Work Area Protection Manual" shall refer to the 2011 edition of the *Virginia Work Area Protection Manual with Revision Number 2* incorporated, dated September 1, 2019. References to the "MUTCD" shall refer to the 2009 edition of the *MUTCD with Revision Numbers 1 and 2* incorporated, dated May 2012; and the 2011 edition of the *Virginia Supplement to the MUTCD with Revision Number 1* dated September 30, 2013.

Where the terms "Department", "Engineer", "Contract Engineer", "Construction Engineer", Materials "Engineer", and "Operations Engineer" appear in VDOT Supplemental Specifications, Special Provisions and Special Provision Copied Notes used in this contract and the VDOT publications that each references, the authority identified shall be according to the definitions in Section 101.02 of the *Virginia Department of Transportation Road and Bridge Specifications*, dated 2020. Authority identified otherwise for this particular project will be stated elsewhere in this contract.

VDOT Supplemental Specifications, Special Provisions and Special Provision Copied Notes used in this contract and the VDOT publications that each reference are intended to be complementary to the each other. In case of a discrepancy, the order of priority stated in Section 105.12 of the *Virginia Department of Transportation Road and Bridge Specifications*, dated 2020 shall apply.

VDOT Special Provision Copied Notes in this contract are designated with "(SPCN)" after the date of each document. VDOT Supplemental Specifications and Special Provision Copied Notes in this contract are designated as such above the title of each document.

The information at the top and left of each VDOT Special Provision Copied Note in this contract is file reference information for VDOT use only. The information in the upper left corner above the title of each VDOT Supplemental Specification and VDOT Special Provision in this contract is file reference information for VDOT use only.

4-21-20 (SPCN)

SP0F0-000100-00

Reissued July 12, 2016

PREDETERMINED MINIMUM WAGE RATES

U.S. DEPARTMENT OF LABOR
OFFICE OF THE SECRETARY
WASHINGTON
DECISION OF THE SECRETARY

This case is before the Department of Labor pursuant to a request for a wage predetermination as required by law applicable to the work described.

A study has been made of wage conditions in the locality and based on information available to the Department of Labor the wage rates and fringe payments listed are hereby determined by the Secretary of Labor as prevailing for the described classes for labor in accordance with applicable law.

This wage determination decision and any modifications thereof during the period prior to the stated expiration date shall be made a part of every contract for performance of the described work as provided by applicable law and regulations of the Secretary of Labor, and the wage rates and fringe payments contained in this decision, including modifications, shall be the minimums to be paid under any such contract and subcontractors on the work.

The Contracting Officer shall require that any class of laborers and mechanics which is not listed in the wage determination and which is to be employed under the Contract, shall be classified or reclassified conformably to the wage determination, and a report of the action taken shall be sent by the Federal agency to the Secretary of Labor. In the event the interested parties cannot agree on the proper classification or reclassification of a particular class of laborers and mechanics to be used, the question accompanied by the recommendation of the Contracting Officer shall be referred to the Secretary for determination.

Before using apprentices on the job the contractor shall present to the Contracting Officer written evidence of registration of such employees in a program of a State apprenticeship and training agency approved and recognized by the U.S. Bureau of Apprenticeship and Training. In the absence of such a State agency, the Contractor shall submit evidence of approval and registration by the U.S. Bureau of Apprenticeship and Training.

The Contractor shall submit to the Contracting Officer written evidence of the established apprentice-journeyman ratios and wage in the project area, which will be the basis for establishing such ratios and rates for the project under the applicable contract provisions.

Fringe payments include medical and hospital care, compensation for injuries or illness resulting from occupational activity, unemployment benefits, life insurance, disability and sickness insurance, accident insurance (all designated as health and welfare), pensions, vacation and holiday pay, apprenticeship or other similar programs and other bona fide fringe benefits.

By direction of the Secretary of Labor

A handwritten signature in black ink, appearing to read "E. Irving Manger", is written over a faint circular stamp.

E. Irving Manger, Associate Administrator
Division of Wage Determinations
Wage and Labor Standards Administration

The following Form **FHWA-1273** titled **REQUIRED CONTRACT PROVISIONS, FEDERAL-AID CONSTRUCTION CONTRACTS** shall apply to this contract:

FHWA-1273 – Revised May 1, 2012

**REQUIRED CONTRACT PROVISIONS
FEDERAL-AID CONSTRUCTION CONTRACTS**

- I. General
- II. Nondiscrimination
- III. Nonsegregated Facilities
- IV. Davis-Bacon and Related Act Provisions
- V. Contract Work Hours and Safety Standards Act Provisions
- VI. Subletting or Assigning the Contract
- VII. Safety: Accident Prevention
- VIII. False Statements Concerning Highway Projects
- IX. Implementation of Clean Air Act and Federal Water Pollution Control Act
- X. Compliance with Governmentwide Suspension and Debarment Requirements
- XI. Certification Regarding Use of Contract Funds for Lobbying

ATTACHMENTS

- A. Employment and Materials Preference for Appalachian Development Highway System or Appalachian Local Access Road Contracts (included in Appalachian contracts only)

I. GENERAL

- 1. Form FHWA-1273 must be physically incorporated in each construction contract funded under Title 23 (excluding emergency contracts solely intended for debris removal). The Contractor (or Subcontractor) must insert this form in each subcontract and further require its inclusion in all lower tier subcontracts (excluding purchase orders, rental agreements and other agreements for supplies or services).

The applicable requirements of Form FHWA-1273 are incorporated by reference for work done under any purchase order, rental agreement or agreement for other services. The prime contractor shall be responsible for compliance by any subcontractor, lower-tier subcontractor or service provider.

Form FHWA-1273 must be included in all Federal-aid design-build contracts, in all subcontracts and in lower tier subcontracts (excluding subcontracts for design services, purchase orders, rental agreements and other agreements for supplies or services). The

design-builder shall be responsible for compliance by any subcontractor, lower-tier subcontractor or service provider.

Contracting agencies may reference Form FHWA-1273 in bid proposal or request for proposal documents, however, the Form FHWA-1273 must be physically incorporated (not referenced) in all contracts, subcontracts and lower-tier subcontracts (excluding purchase orders, rental agreements and other agreements for supplies or services related to a construction contract).

2. Subject to the applicability criteria noted in the following sections, these contract provisions shall apply to all work performed on the Contract by the Contractor's own organization and with the assistance of workers under the Contractor's immediate superintendence and to all work performed on the Contract by piecework, station work, or by subcontract.
3. A breach of any of the stipulations contained in these Required Contract Provisions may be sufficient grounds for withholding of progress payments, withholding of final payment, termination of the Contract, suspension / debarment or any other action determined to be appropriate by the contracting agency and FHWA.
4. Selection of Labor: During the performance of this contract, the Contractor shall not use convict labor for any purpose within the limits of a construction project on a Federal-aid highway unless it is labor performed by convicts who are on parole, supervised release, or probation. The term Federal-aid highway does not include roadways functionally classified as local roads or rural minor collectors.

II. NONDISCRIMINATION

The provisions of this section related to 23 CFR Part 230 are applicable to all Federal-aid construction contracts and to all related construction subcontracts of \$10,000 or more. The provisions of 23 CFR Part 230 are not applicable to material supply, engineering, or architectural service contracts.

In addition, the Contractor and all subcontractors must comply with the following policies: Executive Order 11246, 41 CFR 60, 29 CFR 1625-1627, Title 23 USC Section 140, the Rehabilitation Act of 1973, as amended (29 USC 794), Title VI of the Civil Rights Act of 1964, as amended, and related regulations including 49 CFR Parts 21, 26 and 27; and 23 CFR Parts 200, 230, and 633.

The contractor and all subcontractors must comply with: the requirements of the Equal Opportunity Clause in 41 CFR 60-1.4(b) and, for all construction contracts exceeding \$10,000, the Standard Federal Equal Employment Opportunity Construction Contract Specifications in 41 CFR 60-4.3.

Note: The U.S. Department of Labor has exclusive authority to determine compliance with Executive Order 11246 and the policies of the Secretary of Labor including 41 CFR 60, and 29 CFR 1625-1627. The contracting agency and the FHWA have the authority and the responsibility to ensure compliance with Title 23 USC Section 140, the Rehabilitation Act of 1973, as amended (29 USC 794), and Title VI of the Civil Rights Act of 1964, as amended, and related regulations including 49 CFR Parts 21, 26 and 27; and 23 CFR Parts 200, 230, and 633.

The following provision is adopted from 23 CFR 230, Appendix A, with appropriate revisions to conform to the U.S. Department of Labor (US DOL) and FHWA requirements.

1. **Equal Employment Opportunity:** Equal employment opportunity (EEO) requirements not to discriminate and to take affirmative action to assure equal opportunity as set forth

under laws, executive orders, rules, regulations (28 CFR 35, 29 CFR 1630, 29 CFR 1625-1627, 41 CFR 60 and 49 CFR 27) and orders of the Secretary of Labor as modified by the provisions prescribed herein, and imposed pursuant to 23 U.S.C. 140 shall constitute the EEO and specific affirmative action standards for the Contractor's project activities under this contract. The provisions of the Americans with Disabilities Act of 1990 (42 U.S.C. 12101 et seq.) set forth under 28 CFR 35 and 29 CFR 1630 are incorporated by reference in this contract. In the execution of this contract, the Contractor agrees to comply with the following minimum specific requirement activities of EEO:

a. The contractor will work with the contracting agency and the Federal Government to ensure that it has made every good faith effort to provide equal opportunity with respect to all of its terms and conditions of employment and in their review of activities under the Contract.

b. The contractor will accept as its operating policy the following statement:

"It is the policy of this Company to assure that applicants are employed, and that employees are treated during employment, without regard to their race, religion, sex, color, national origin, age or disability. Such action shall include: employment, upgrading, demotion, or transfer; recruitment or recruitment advertising; layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship, pre-apprenticeship, and/or on-the-job training."

2. **EEO Officer:** The contractor will designate and make known to the Contracting Officers an EEO Officer who will have the responsibility for and must be capable of effectively administering and promoting an active EEO program and who must be assigned adequate authority and responsibility to do so.

3. **Dissemination of Policy:** All members of the Contractor's staff who are authorized to hire, supervise, promote, and discharge employees, or who recommend such action, or who are substantially involved in such action, will be made fully cognizant of, and will implement, the Contractor's EEO policy and contractual responsibilities to provide EEO in each grade and classification of employment. To ensure that the above agreement will be met, the following actions will be taken as a minimum:

a. Periodic meetings of supervisory and personnel office employees will be conducted before the start of work and then not less often than once every six months, at which time the Contractor's EEO policy and its implementation will be reviewed and explained. The meetings will be conducted by the EEO Officer.

b. All new supervisory or personnel office employees will be given a thorough indoctrination by the EEO Officer, covering all major aspects of the Contractor's EEO obligations within thirty days following their reporting for duty with the Contractor.

c. All personnel who are engaged in direct recruitment for the project will be instructed by the EEO Officer in the Contractor's procedures for locating and hiring minorities and women.

d. Notices and posters setting forth the Contractor's EEO policy will be placed in areas readily accessible to employees, applicants for employment and potential employees.

- e. The contractor's EEO policy and the procedures to implement such policy will be brought to the attention of employees by means of meetings, employee handbooks, or other appropriate means.

4. Recruitment: When advertising for employees, the Contractor will include in all advertisements for employees the notation: "An Equal Opportunity Employer." All such advertisements will be placed in publications having a large circulation among minorities and women in the area from which the project work force would normally be derived.

The contractor will, unless precluded by a valid bargaining agreement, conduct systematic and direct recruitment through public and private employee referral sources likely to yield qualified minorities and women. To meet this requirement, the Contractor will identify sources of potential minority group employees, and establish with such identified sources procedures whereby minority and women applicants may be referred to the Contractor for employment consideration.

In the event the Contractor has a valid bargaining agreement providing for exclusive hiring hall referrals, the Contractor is expected to observe the provisions of that agreement to the extent that the system meets the Contractor's compliance with EEO contract provisions. Where implementation of such an agreement has the effect of discriminating against minorities or women, or obligates the Contractor to do the same, such implementation violates Federal nondiscrimination provisions.

The contractor will encourage its present employees to refer minorities and women as applicants for employment. Information and procedures with regard to referring such applicants will be discussed with employees.

5. Personnel Actions: Wages, working conditions, and employee benefits shall be established and administered, and personnel actions of every type, including hiring, upgrading, promotion, transfer, demotion, layoff, and termination, shall be taken without regard to race, color, religion, sex, national origin, age or disability. The following procedures shall be followed:

- a. The contractor will conduct periodic inspections of project sites to insure that working conditions and employee facilities do not indicate discriminatory treatment of project site personnel.
- b. The contractor will periodically evaluate the spread of wages paid within each classification to determine any evidence of discriminatory wage practices.
- c. The contractor will periodically review selected personnel actions in depth to determine whether there is evidence of discrimination. Where evidence is found, the Contractor will promptly take corrective action. If the review indicates that the discrimination may extend beyond the actions reviewed, such corrective action shall include all affected persons.
- d. The contractor will promptly investigate all complaints of alleged discrimination made to the Contractor in connection with its obligations under this contract, will attempt to resolve such complaints, and will take appropriate corrective action within a reasonable time. If the investigation indicates that the discrimination may affect persons other than the complainant, such corrective action shall include such other persons. Upon completion of each investigation, the Contractor will inform every complainant of all of their avenues of appeal.

6. Training and Promotion:

- a. The contractor will assist in locating, qualifying, and increasing the skills of minorities and women who are applicants for employment or current employees. Such efforts should be aimed at developing full journey level status employees in the type of trade or job classification involved.
- b. Consistent with the Contractor's work force requirements and as permissible under Federal and State regulations, the Contractor shall make full use of training programs, i.e., apprenticeship, and on-the-job training programs for the geographical area of contract performance. In the event a special provision for training is provided under this contract, this subparagraph will be superseded as indicated in the special provision. The contracting agency may reserve training positions for persons who receive welfare assistance in accordance with 23 U.S.C. 140(a).
- c. The contractor will advise employees and applicants for employment of available training programs and entrance requirements for each.
- d. The contractor will periodically review the training and promotion potential of employees who are minorities and women and will encourage eligible employees to apply for such training and promotion.

7. Unions: If the Contractor relies in whole or in part upon unions as a source of employees, the Contractor will use good faith efforts to obtain the cooperation of such unions to increase opportunities for minorities and women. Actions by the Contractor, either directly or through a contractor's association acting as agent, will include the procedures set forth below:

- a. The contractor will use good faith efforts to develop, in cooperation with the unions, joint training programs aimed toward qualifying more minorities and women for membership in the unions and increasing the skills of minorities and women so that they may qualify for higher paying employment.
- b. The contractor will use good faith efforts to incorporate an EEO clause into each union agreement to the end that such union will be contractually bound to refer applicants without regard to their race, color, religion, sex, national origin, age or disability.
- c. The contractor is to obtain information as to the referral practices and policies of the labor union except that to the extent such information is within the exclusive possession of the labor union and such labor union refuses to furnish such information to the Contractor, the Contractor shall so certify to the contracting agency and shall set forth what efforts have been made to obtain such information.
- d. In the event the union is unable to provide the Contractor with a reasonable flow of referrals within the time limit set forth in the collective bargaining agreement, the Contractor will, through independent recruitment efforts, fill the employment vacancies without regard to race, color, religion, sex, national origin, age or disability; making full efforts to obtain qualified and/or qualifiable minorities and women. The failure of a union to provide sufficient referrals (even though it is obligated to provide exclusive referrals under the terms of a collective bargaining agreement) does not relieve the Contractor from the requirements of this paragraph. In the event the union referral practice prevents the Contractor from meeting the obligations pursuant to Executive Order 11246, as amended, and these special provisions, such contractor shall immediately notify the contracting agency.

8. **Reasonable Accommodation for Applicants / Employees with Disabilities:** The contractor must be familiar with the requirements for and comply with the Americans with Disabilities Act and all rules and regulations established there under. Employers must provide reasonable accommodation in all employment activities unless to do so would cause an undue hardship.
9. **Selection of Subcontractors, Procurement of Materials and Leasing of Equipment:** The contractor shall not discriminate on the grounds of race, color, religion, sex, national origin, age or disability in the selection and retention of subcontractors, including procurement of materials and leases of equipment. The contractor shall take all necessary and reasonable steps to ensure nondiscrimination in the administration of this contract.
- a. The contractor shall notify all potential subcontractors and suppliers and lessors of their EEO obligations under this contract.
 - b. The contractor will use good faith efforts to ensure subcontractor compliance with their EEO obligations.
10. **Assurance Required by 49 CFR 26.13(b):**
- a. The requirements of 49 CFR Part 26 and the State DOT's U.S. DOT-approved DBE program are incorporated by reference.
 - b. The contractor or subcontractor shall not discriminate on the basis of race, color, national origin, or sex in the performance of this contract. The contractor shall carry out applicable requirements of 49 CFR Part 26 in the award and administration of DOT-assisted contracts. Failure by the Contractor to carry out these requirements is a material breach of this contract, which may result in the termination of this contract or such other remedy as the contracting agency deems appropriate.
11. **Records and Reports:** The contractor shall keep such records as necessary to document compliance with the EEO requirements. Such records shall be retained for a period of three years following the date of the final payment to the Contractor for all contract work and shall be available at reasonable times and places for inspection by authorized representatives of the contracting agency and the FHWA.
- a. The records kept by the Contractor shall document the following:
 - (1) The number and work hours of minority and non-minority group members and women employed in each work classification on the project;
 - (2) The progress and efforts being made in cooperation with unions, when applicable, to increase employment opportunities for minorities and women; and
 - (3) The progress and efforts being made in locating, hiring, training, qualifying, and upgrading minorities and women;
 - b. The contractors and subcontractors will submit an annual report to the contracting agency each July for the duration of the project, indicating the number of minority, women, and non-minority group employees currently engaged in each work classification required by the contract work. This

information is to be reported on Form FHWA-1391. The staffing data should represent the project work force on board in all or any part of the last payroll period preceding the end of July. If on-the-job training is being required by special provision, the Contractor will be required to collect and report training data. The employment data should reflect the work force on board during all or any part of the last payroll period preceding the end of July.

III. NONSEGREGATED FACILITIES

This provision is applicable to all Federal-aid construction contracts and to all related construction subcontracts of \$10,000 or more.

The contractor must ensure that facilities provided for employees are provided in such a manner that segregation on the basis of race, color, religion, sex, or national origin cannot result. The contractor may neither require such segregated use by written or oral policies nor tolerate such use by employee custom. The contractor's obligation extends further to ensure that its employees are not assigned to perform their services at any location, under the Contractor's control, where the facilities are segregated. The term "facilities" includes waiting rooms, work areas, restaurants and other eating areas, time clocks, restrooms, washrooms, locker rooms, and other storage or dressing areas, parking lots, drinking fountains, recreation or entertainment areas, transportation, and housing provided for employees. The contractor shall provide separate or single-user restrooms and necessary dressing or sleeping areas to assure privacy between sexes.

IV. Davis-Bacon and Related Act Provisions

This section is applicable to all Federal-aid construction projects exceeding \$2,000 and to all related subcontracts and lower-tier subcontracts (regardless of subcontract size). The requirements apply to all projects located within the right-of-way of a roadway that is functionally classified as Federal-aid highway. This excludes roadways functionally classified as local roads or rural minor collectors, which are exempt. Contracting agencies may elect to apply these requirements to other projects.

The following provisions are from the U.S. Department of Labor regulations in 29 CFR 5.5 "Contract provisions and related matters" with minor revisions to conform to the FHWA-1273 format and FHWA program requirements.

1. Minimum wages

- a. All laborers and mechanics employed or working upon the site of the work, will be paid unconditionally and not less often than once a week, and without subsequent deduction or rebate on any account (except such payroll deductions as are permitted by regulations issued by the Secretary of Labor under the Copeland Act (29 CFR part 3)), the full amount of wages and bona fide fringe benefits (or cash equivalents thereof) due at time of payment computed at rates not less than those contained in the wage determination of the Secretary of Labor which is attached hereto and made a part hereof, regardless of any contractual relationship which may be alleged to exist between the Contractor and such laborers and mechanics.

Contributions made or costs reasonably anticipated for bona fide fringe benefits under section 1(b)(2) of the Davis-Bacon Act on behalf of laborers or mechanics are considered wages paid to such laborers or mechanics, subject to the provisions of paragraph 1.d. of this section; also, regular contributions made or costs incurred for more than a weekly period (but not less often than quarterly) under plans, funds, or programs which cover the particular weekly period, are

deemed to be constructively made or incurred during such weekly period. Such laborers and mechanics shall be paid the appropriate wage rate and fringe benefits on the wage determination for the classification of work actually performed, without regard to skill, except as provided in 29 CFR 5.5(a)(4). Laborers or mechanics performing work in more than one classification may be compensated at the rate specified for each classification for the time actually worked therein: Provided, That the employer's payroll records accurately set forth the time spent in each classification in which work is performed. The wage determination (including any additional classification and wage rates conformed under paragraph 1.b. of this section) and the Davis-Bacon poster (WH-1321) shall be posted at all times by the Contractor and its subcontractors at the site of the work in a prominent and accessible place where it can be easily seen by the workers.

- b. (1) The contracting officer shall require that any class of laborers or mechanics, including helpers, which is not listed in the wage determination and which is to be employed under the Contract shall be classified in conformance with the wage determination. The contracting officer shall approve an additional classification and wage rate and fringe benefits therefore only when the following criteria have been met:
 - (I) The work to be performed by the classification requested is not performed by a classification in the wage determination; and
 - (II) The classification is utilized in the area by the construction industry; and
 - (III) The proposed wage rate, including any bona fide fringe benefits, bears a reasonable relationship to the wage rates contained in the wage determination.
- (2) If the Contractor and the laborers and mechanics to be employed in the classification (if known), or their representatives, and the Contracting Officer agree on the classification and wage rate (including the amount designated for fringe benefits where appropriate), a report of the action taken shall be sent by the Contracting Officer to the Administrator of the Wage and Hour Division, Employment Standards Administration, U.S. Department of Labor, Washington, DC 20210. The Administrator, or an authorized representative, will approve, modify, or disapprove every additional classification action within 30 days of receipt and so advise the Contracting Officer or will notify the Contracting Officer within the 30-day period that additional time is necessary.
- (3) In the event the Contractor, the laborers or mechanics to be employed in the classification or their representatives, and the Contracting Officer do not agree on the proposed classification and wage rate (including the amount designated for fringe benefits, where appropriate), the Contracting Officer shall refer the questions, including the views of all interested parties and the recommendation of the Contracting Officer, to the Wage and Hour Administrator for determination. The Wage and Hour Administrator, or an authorized representative, will issue a determination within 30 days of receipt and so advise the Contracting Officer or will notify the Contracting Officer within the 30-day period that additional time is necessary.

- (4) The wage rate (including fringe benefits where appropriate) determined pursuant to paragraphs 1.b.(2) or 1.b.(3) of this section, shall be paid to all workers performing work in the classification under this contract from the first day on which work is performed in the classification.
- c. Whenever the minimum wage rate prescribed in the Contract for a class of laborers or mechanics includes a fringe benefit which is not expressed as an hourly rate, the Contractor shall either pay the benefit as stated in the wage determination or shall pay another bona fide fringe benefit or an hourly cash equivalent thereof.
- d. If the Contractor does not make payments to a trustee or other third person, the Contractor may consider as part of the wages of any laborer or mechanic the amount of any costs reasonably anticipated in providing bona fide fringe benefits under a plan or program, Provided, That the Secretary of Labor has found, upon the written request of the Contractor, that the applicable standards of the Davis-Bacon Act have been met. The Secretary of Labor may require the Contractor to set aside in a separate account assets for the meeting of obligations under the plan or program.

2. Withholding

The contracting agency shall upon its own action or upon written request of an authorized representative of the Department of Labor, withhold or cause to be withheld from the Contractor under this contract, or any other Federal contract with the same prime contractor, or any other federally-assisted contract subject to Davis-Bacon prevailing wage requirements, which is held by the same prime contractor, so much of the accrued payments or advances as may be considered necessary to pay laborers and mechanics, including apprentices, trainees, and helpers, employed by the Contractor or any subcontractor the full amount of wages required by the Contract. In the event of failure to pay any laborer or mechanic, including any apprentice, trainee, or helper, employed or working on the site of the work, all or part of the wages required by the Contract, the contracting agency may, after written notice to the Contractor, take such action as may be necessary to cause the suspension of any further payment, advance, or guarantee of funds until such violations have ceased.

3. Payrolls and basic records

- a. Payrolls and basic records relating thereto shall be maintained by the Contractor during the course of the work and preserved for a period of three years thereafter for all laborers and mechanics working at the site of the work. Such records shall contain the name, address, and social security number of each such worker, his or her correct classification, hourly rates of wages paid (including rates of contributions or costs anticipated for bona fide fringe benefits or cash equivalents thereof of the types described in section 1(b)(2)(B) of the Davis-Bacon Act), daily and weekly number of hours worked, deductions made and actual wages paid. Whenever the Secretary of Labor has found under 29 CFR 5.5(a)(1)(iv) that the wages of any laborer or mechanic include the amount of any costs reasonably anticipated in providing benefits under a plan or program described in section 1(b)(2)(B) of the Davis-Bacon Act, the Contractor shall maintain records which show that the commitment to provide such benefits is enforceable, that the plan or program is financially responsible, and that the plan or program has been communicated in writing to the laborers or mechanics affected, and records which show the costs anticipated or the actual cost incurred in providing such benefits. Contractors employing apprentices or trainees under approved programs shall maintain written evidence of the registration of apprenticeship

programs and certification of trainee programs, the registration of the apprentices and trainees, and the ratios and wage rates prescribed in the applicable programs.

- b. (1) The contractor shall submit weekly for each week in which any contract work is performed a copy of all payrolls to the contracting agency. The payrolls submitted shall set out accurately and completely all of the information required to be maintained under 29 CFR 5.5(a)(3)(i), except that full social security numbers and home addresses shall not be included on weekly transmittals. Instead the payrolls shall only need to include an individually identifying number for each employee (e.g. , the last four digits of the employee's social security number). The required weekly payroll information may be submitted in any form desired. Optional Form WH-347 is available for this purpose from the Wage and Hour Division Web site at <http://www.dol.gov/esa/whd/forms/wh347instr.htm> or its successor site. The prime contractor is responsible for the submission of copies of payrolls by all subcontractors. Contractors and subcontractors shall maintain the full social security number and current address of each covered worker, and shall provide them upon request to the contracting agency for transmission to the State DOT, the FHWA or the Wage and Hour Division of the Department of Labor for purposes of an investigation or audit of compliance with prevailing wage requirements. It is not a violation of this section for a prime contractor to require a subcontractor to provide addresses and social security numbers to the prime contractor for its own records, without weekly submission to the contracting agency.
- (2) Each payroll submitted shall be accompanied by a "Statement of Compliance," signed by the Contractor or subcontractor or his or her agent who pays or supervises the payment of the persons employed under the Contract and shall certify the following:
- (I) That the payroll for the payroll period contains the information required to be provided under §5.5 (a)(3)(ii) of Regulations, 29 CFR part 5, the appropriate information is being maintained under §5.5 (a)(3)(i) of Regulations, 29 CFR part 5, and that such information is correct and complete;
 - (II) That each laborer or mechanic (including each helper, apprentice, and trainee) employed on the Contract during the payroll period has been paid the full weekly wages earned, without rebate, either directly or indirectly, and that no deductions have been made either directly or indirectly from the full wages earned, other than permissible deductions as set forth in Regulations, 29 CFR part 3;
 - (III) That each laborer or mechanic has been paid not less than the applicable wage rates and fringe benefits or cash equivalents for the classification of work performed, as specified in the applicable wage determination incorporated into the Contract.
- (3) The weekly submission of a properly executed certification set forth on the reverse side of Optional Form WH-347 shall satisfy the requirement for submission of the "Statement of Compliance" required by paragraph 3.b.(2) of this section.

- (4) The falsification of any of the above certifications may subject the Contractor or subcontractor to civil or criminal prosecution under section 1001 of title 18 and section 231 of title 31 of the United States Code.
- c. The contractor or subcontractor shall make the records required under paragraph 3.a. of this section available for inspection, copying, or transcription by authorized representatives of the contracting agency, the State DOT, the FHWA, or the Department of Labor, and shall permit such representatives to interview employees during working hours on the job. If the Contractor or subcontractor fails to submit the required records or to make them available, the FHWA may, after written notice to the Contractor, the contracting agency or the State DOT, take such action as may be necessary to cause the suspension of any further payment, advance, or guarantee of funds. Furthermore, failure to submit the required records upon request or to make such records available may be grounds for debarment action pursuant to 29 CFR 5.12.

4. Apprentices and trainees

- a. Apprentices (programs of the USDOL).

Apprentices will be permitted to work at less than the predetermined rate for the work they performed when they are employed pursuant to and individually registered in a bona fide apprenticeship program registered with the U.S. Department of Labor, Employment and Training Administration, Office of Apprenticeship Training, Employer and Labor Services, or with a State Apprenticeship Agency recognized by the Office, or if a person is employed in his or her first 90 days of probationary employment as an apprentice in such an apprenticeship program, who is not individually registered in the program, but who has been certified by the Office of Apprenticeship Training, Employer and Labor Services or a State Apprenticeship Agency (where appropriate) to be eligible for probationary employment as an apprentice.

The allowable ratio of apprentices to journeymen on the job site in any craft classification shall not be greater than the ratio permitted to the Contractor as to the entire work force under the registered program. Any worker listed on a payroll at an apprentice wage rate, who is not registered or otherwise employed as stated above, shall be paid not less than the applicable wage rate on the wage determination for the classification of work actually performed. In addition, any apprentice performing work on the job site in excess of the ratio permitted under the registered program shall be paid not less than the applicable wage rate on the wage determination for the work actually performed. Where a contractor is performing construction on a project in a locality other than that in which its program is registered, the ratios and wage rates (expressed in percentages of the journeyman's hourly rate) specified in the Contractor's or subcontractor's registered program shall be observed.

Every apprentice must be paid at not less than the rate specified in the registered program for the apprentice's level of progress, expressed as a percentage of the journeymen hourly rate specified in the applicable wage determination. Apprentices shall be paid fringe benefits in accordance with the provisions of the apprenticeship program. If the apprenticeship program does not specify fringe benefits, apprentices must be paid the full amount of fringe benefits listed on the wage determination for the applicable classification. If the Administrator determines that a different practice prevails for the applicable apprentice classification, fringes shall be paid in accordance with that determination.

In the event the Office of Apprenticeship Training, Employer and Labor Services, or a State Apprenticeship Agency recognized by the Office, withdraws approval of an apprenticeship program, the Contractor will no longer be permitted to utilize apprentices at less than the applicable predetermined rate for the work performed until an acceptable program is approved.

b. Trainees (programs of the USDOL).

Except as provided in 29 CFR 5.16, trainees will not be permitted to work at less than the predetermined rate for the work performed unless they are employed pursuant to and individually registered in a program which has received prior approval, evidenced by formal certification by the U.S. Department of Labor, Employment and Training Administration.

The ratio of trainees to journeymen on the job site shall not be greater than permitted under the plan approved by the Employment and Training Administration.

Every trainee must be paid at not less than the rate specified in the approved program for the trainee's level of progress, expressed as a percentage of the journeyman hourly rate specified in the applicable wage determination. Trainees shall be paid fringe benefits in accordance with the provisions of the trainee program. If the trainee program does not mention fringe benefits, trainees shall be paid the full amount of fringe benefits listed on the wage determination unless the Administrator of the Wage and Hour Division determines that there is an apprenticeship program associated with the corresponding journeyman wage rate on the wage determination which provides for less than full fringe benefits for apprentices. Any employee listed on the payroll at a trainee rate who is not registered and participating in a training plan approved by the Employment and Training Administration shall be paid not less than the applicable wage rate on the wage determination for the classification of work actually performed. In addition, any trainee performing work on the job site in excess of the ratio permitted under the registered program shall be paid not less than the applicable wage rate on the wage determination for the work actually performed.

In the event the Employment and Training Administration withdraws approval of a training program, the Contractor will no longer be permitted to utilize trainees at less than the applicable predetermined rate for the work performed until an acceptable program is approved.

c. Equal employment opportunity. The utilization of apprentices, trainees and journeymen under this part shall be in conformity with the equal employment opportunity requirements of Executive Order 11246, as amended, and 29 CFR part 30.

d. Apprentices and Trainees (programs of the U.S. DOT).

Apprentices and trainees working under apprenticeship and skill training programs which have been certified by the Secretary of Transportation as promoting EEO in connection with Federal-aid highway construction programs are not subject to the requirements of paragraph 4 of this Section IV. The straight time hourly wage rates for apprentices and trainees under such programs will be established by the particular programs. The ratio of apprentices and trainees to journeymen shall not be greater than permitted by the terms of the particular program.

5. **Compliance with Copeland Act requirements.** The contractor shall comply with the requirements of 29 CFR part 3, which are incorporated by reference in this contract.
6. **Subcontracts.** The contractor or subcontractor shall insert Form FHWA-1273 in any subcontracts and also require the subcontractors to include Form FHWA-1273 in any lower tier subcontracts. The prime contractor shall be responsible for the compliance by any subcontractor or lower tier subcontractor with all the contract clauses in 29 CFR 5.5.
7. **Contract termination: debarment.** A breach of the contract clauses in 29 CFR 5.5 may be grounds for termination of the Contract, and for debarment as a contractor and a subcontractor as provided in 29 CFR 5.12.
8. **Compliance with Davis-Bacon and Related Act requirements.** All rulings and interpretations of the Davis-Bacon and Related Acts contained in 29 CFR parts 1, 3, and 5 are herein incorporated by reference in this contract.
9. **Disputes concerning labor standards.** Disputes arising out of the labor standards provisions of this contract shall not be subject to the general disputes clause of this contract. Such disputes shall be resolved in accordance with the procedures of the Department of Labor set forth in 29 CFR parts 5, 6, and 7. Disputes within the meaning of this clause include disputes between the Contractor (or any of its subcontractors) and the contracting agency, the U.S. Department of Labor, or the employees or their representatives.
10. **Certification of eligibility.**
 - a. By entering into this contract, the Contractor certifies that neither it (nor he or she) nor any person or firm who has an interest in the Contractor's firm is a person or firm ineligible to be awarded Government contracts by virtue of section 3(a) of the Davis-Bacon Act or 29 CFR 5.12(a)(1).
 - b. No part of this contract shall be subcontracted to any person or firm ineligible for award of a Government contract by virtue of section 3(a) of the Davis-Bacon Act or 29 CFR 5.12(a)(1).
 - c. The penalty for making false statements is prescribed in the U.S. Criminal Code, 18 U.S.C. 1001.

V. CONTRACT WORK HOURS AND SAFETY STANDARDS ACT

The following clauses apply to any Federal-aid construction contract in an amount in excess of \$100,000 and subject to the overtime provisions of the Contract Work Hours and Safety Standards Act. These clauses shall be inserted in addition to the clauses required by 29 CFR 5.5(a) or 29 CFR 4.6. As used in this paragraph, the terms laborers and mechanics include watchmen and guards.

1. **Overtime requirements.** No contractor or subcontractor contracting for any part of the contract work which may require or involve the employment of laborers or mechanics shall require or permit any such laborer or mechanic in any workweek in which he or she is employed on such work to work in excess of forty hours in such workweek unless such laborer or mechanic receives compensation at a rate not less than one and one-half times the basic rate of pay for all hours worked in excess of forty hours in such workweek.

2. **Violation; liability for unpaid wages; liquidated damages.** In the event of any violation of the clause set forth in paragraph (1.) of this section, the Contractor and any subcontractor responsible therefor shall be liable for the unpaid wages. In addition, such contractor and subcontractor shall be liable to the United States (in the case of work done under contract for the District of Columbia or a territory, to such District or to such territory), for liquidated damages. Such liquidated damages shall be computed with respect to each individual laborer or mechanic, including watchmen and guards, employed in violation of the clause set forth in paragraph (1.) of this section, in the sum of \$10 for each calendar day on which such individual was required or permitted to work in excess of the standard workweek of forty hours without payment of the overtime wages required by the clause set forth in paragraph (1.) of this section.
3. **Withholding for unpaid wages and liquidated damages.** The FHWA or the contacting agency shall upon its own action or upon written request of an authorized representative of the Department of Labor withhold or cause to be withheld, from any moneys payable on account of work performed by the Contractor or subcontractor under any such contract or any other Federal contract with the same prime contractor, or any other federally-assisted contract subject to the Contract Work Hours and Safety Standards Act, which is held by the same prime contractor, such sums as may be determined to be necessary to satisfy any liabilities of such contractor or subcontractor for unpaid wages and liquidated damages as provided in the clause set forth in paragraph (2.) of this section.
4. **Subcontracts.** The contractor or subcontractor shall insert in any subcontracts the clauses set forth in paragraph (1.) through (4.) of this section and also a clause requiring the subcontractors to include these clauses in any lower tier subcontracts. The prime contractor shall be responsible for compliance by any subcontractor or lower tier subcontractor with the clauses set forth in paragraphs (1.) through (4.) of this section.

VI. SUBLETTING OR ASSIGNING THE CONTRACT

This provision is applicable to all Federal-aid construction contracts on the National Highway System.

1. The contractor shall perform with its own organization contract work amounting to not less than 30 percent (or a greater percentage if specified elsewhere in the Contract) of the total original contract price, excluding any specialty items designated by the contracting agency. Specialty items may be performed by subcontract and the amount of any such specialty items performed may be deducted from the total original contract price before computing the amount of work required to be performed by the Contractor's own organization (23 CFR 635.116).
 - a. The term "perform work with its own organization" refers to workers employed or leased by the prime contractor, and equipment owned or rented by the prime contractor, with or without operators. Such term does not include employees or equipment of a subcontractor or lower tier subcontractor, agents of the prime contractor, or any other assignees. The term may include payments for the costs of hiring leased employees from an employee leasing firm meeting all relevant Federal and State regulatory requirements. Leased employees may only be included in this term if the prime contractor meets all of the following conditions:
 - (1) the prime contractor maintains control over the supervision of the day-to-day activities of the leased employees;

- (2) the prime contractor remains responsible for the quality of the work of the leased employees;
 - (3) the prime contractor retains all power to accept or exclude individual employees from work on the project; and
 - (4) the prime contractor remains ultimately responsible for the payment of predetermined minimum wages, the submission of payrolls, statements of compliance and all other Federal regulatory requirements.
 - b. "Specialty Items" shall be construed to be limited to work that requires highly specialized knowledge, abilities, or equipment not ordinarily available in the type of contracting organizations qualified and expected to bid or propose on the Contract as a whole and in general are to be limited to minor components of the overall contract.
2. The contract amount upon which the requirements set forth in paragraph (1) of Section VI is computed includes the cost of material and manufactured products which are to be purchased or produced by the Contractor under the contract provisions.
 3. The contractor shall furnish (a) a competent superintendent or supervisor who is employed by the firm, has full authority to direct performance of the work in accordance with the contract requirements, and is in charge of all construction operations (regardless of who performs the work) and (b) such other of its own organizational resources (supervision, management, and engineering services) as the Contracting Officer determines is necessary to assure the performance of the Contract.
 4. No portion of the Contract shall be sublet, assigned or otherwise disposed of except with the written consent of the Contracting Officer, or authorized representative, and such consent when given shall not be construed to relieve the Contractor of any responsibility for the fulfillment of the Contract. Written consent will be given only after the contracting agency has assured that each subcontract is evidenced in writing and that it contains all pertinent provisions and requirements of the prime contract.
 5. The 30% self-performance requirement of paragraph (1) is not applicable to design-build contracts; however, contracting agencies may establish their own self-performance requirements.

VII. SAFETY: ACCIDENT PREVENTION

This provision is applicable to all Federal-aid construction contracts and to all related subcontracts.

1. In the performance of this contract the Contractor shall comply with all applicable Federal, State, and local laws governing safety, health, and sanitation (23 CFR 635). The contractor shall provide all safeguards, safety devices and protective equipment and take any other needed actions as it determines, or as the Contracting Officer may determine, to be reasonably necessary to protect the life and health of employees on the job and the safety of the public and to protect property in connection with the performance of the work covered by the Contract.
2. It is a condition of this contract, and shall be made a condition of each subcontract, which the Contractor enters into pursuant to this contract, that the Contractor and any subcontractor shall not permit any employee, in performance of the Contract, to work in surroundings or under conditions which are unsanitary, hazardous or dangerous to

his/her health or safety, as determined under construction safety and health standards (29 CFR 1926) promulgated by the Secretary of Labor, in accordance with Section 107 of the Contract Work Hours and Safety Standards Act (40 U.S.C. 3704).

3. Pursuant to 29 CFR 1926.3, it is a condition of this contract that the Secretary of Labor or authorized representative thereof, shall have right of entry to any site of contract performance to inspect or investigate the matter of compliance with the construction safety and health standards and to carry out the duties of the Secretary under Section 107 of the Contract Work Hours and Safety Standards Act (40 U.S.C.3704).

VIII. FALSE STATEMENTS CONCERNING HIGHWAY PROJECTS

This provision is applicable to all Federal-aid construction contracts and to all related subcontracts.

In order to assure high quality and durable construction in conformity with approved plans and specifications and a high degree of reliability on statements and representations made by engineers, contractors, suppliers, and workers on Federal-aid highway projects, it is essential that all persons concerned with the project perform their functions as carefully, thoroughly, and honestly as possible. Willful falsification, distortion, or misrepresentation with respect to any facts related to the project is a violation of Federal law. To prevent any misunderstanding regarding the seriousness of these and similar acts, Form FHWA-1022 shall be posted on each Federal-aid highway project (23 CFR 635) in one or more places where it is readily available to all persons concerned with the project:

18 U.S.C. 1020 reads as follows:

"Whoever, being an officer, agent, or employee of the United States, or of any State or Territory, or whoever, whether a person, association, firm, or corporation, knowingly makes any false statement, false representation, or false report as to the character, quality, quantity, or cost of the material used or to be used, or the quantity or quality of the work performed or to be performed, or the cost thereof in connection with the submission of plans, maps, specifications, contracts, or costs of construction on any highway or related project submitted for approval to the Secretary of Transportation; or

Whoever knowingly makes any false statement, false representation, false report or false claim with respect to the character, quality, quantity, or cost of any work performed or to be performed, or materials furnished or to be furnished, in connection with the construction of any highway or related project approved by the Secretary of Transportation; or

Whoever knowingly makes any false statement or false representation as to material fact in any statement, certificate, or report submitted pursuant to provisions of the Federal-aid Roads Act approved July 1, 1916, (39 Stat. 355), as amended and supplemented;

Shall be fined under this title or imprisoned not more than 5 years or both."

IX. IMPLEMENTATION OF CLEAN AIR ACT AND FEDERAL WATER POLLUTION CONTROL ACT

This provision is applicable to all Federal-aid construction contracts and to all related subcontracts.

By submission of this bid/proposal or the execution of this contract, or subcontract, as appropriate, the bidder, proposer, Federal-aid construction contractor, or subcontractor, as appropriate, will be deemed to have stipulated as follows:

1. That any person who is or will be utilized in the performance of this contract is not prohibited from receiving an award due to a violation of Section 508 of the Clean Water Act or Section 306 of the Clean Air Act.
2. That the Contractor agrees to include or cause to be included the requirements of paragraph (1) of this Section X in every subcontract, and further agrees to take such action as the contracting agency may direct as a means of enforcing such requirements.

X. CERTIFICATION REGARDING DEBARMENT, SUSPENSION, INELIGIBILITY AND VOLUNTARY EXCLUSION

This provision is applicable to all Federal-aid construction contracts, design-build contracts, subcontracts, lower-tier subcontracts, purchase orders, lease agreements, consultant contracts or any other covered transaction requiring FHWA approval or that is estimated to cost \$25,000 or more – as defined in 2 CFR Parts 180 and 1200.

1. Instructions for Certification – First Tier Participants:

- a. By signing and submitting this proposal, the prospective first tier participant is providing the certification set out below.
- b. The inability of a person to provide the certification set out below will not necessarily result in denial of participation in this covered transaction. The prospective first tier participant shall submit an explanation of why it cannot provide the certification set out below. The certification or explanation will be considered in connection with the department or agency's determination whether to enter into this transaction. However, failure of the prospective first tier participant to furnish a certification or an explanation shall disqualify such a person from participation in this transaction.
- c. The certification in this clause is a material representation of fact upon which reliance was placed when the contracting agency determined to enter into this transaction. If it is later determined that the prospective participant knowingly rendered an erroneous certification, in addition to other remedies available to the Federal Government, the contracting agency may terminate this transaction for cause of default.
- d. The prospective first tier participant shall provide immediate written notice to the contracting agency to whom this proposal is submitted if any time the prospective first tier participant learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.
- e. The terms "covered transaction," "debarred," "suspended," "ineligible," "participant," "person," "principal," and "voluntarily excluded," as used in this clause, are defined in 2 CFR Parts 180 and 1200. "First Tier Covered Transactions" refers to any covered transaction between a grantee or subgrantee of Federal funds and a participant (such as the prime or general contract). "Lower Tier Covered Transactions" refers to any covered transaction under a First Tier Covered Transaction (such as subcontracts). "First Tier Participant" refers to the participant who has entered into a covered transaction with a grantee or subgrantee of Federal funds (such as the prime or general contractor).

"Lower Tier Participant" refers any participant who has entered into a covered transaction with a First Tier Participant or other Lower Tier Participants (such as subcontractors and suppliers).

- f. The prospective first tier participant agrees by submitting this proposal that, should the proposed covered transaction be entered into, it shall not knowingly enter into any lower tier covered transaction with a person who is debarred, suspended, declared ineligible, or voluntarily excluded from participation in this covered transaction, unless authorized by the department or agency entering into this transaction.
- g. The prospective first tier participant further agrees by submitting this proposal that it will include the clause titled "Certification Regarding Debarment, Suspension, Ineligibility and Voluntary Exclusion-Lower Tier Covered Transactions," provided by the department or contracting agency, entering into this covered transaction, without modification, in all lower tier covered transactions and in all solicitations for lower tier covered transactions exceeding the \$25,000 threshold.
- h. A participant in a covered transaction may rely upon a certification of a prospective participant in a lower tier covered transaction that is not debarred, suspended, ineligible, or voluntarily excluded from the covered transaction, unless it knows that the certification is erroneous. A participant is responsible for ensuring that its principals are not suspended, debarred, or otherwise ineligible to participate in covered transactions. To verify the eligibility of its principals, as well as the eligibility of any lower tier prospective participants, each participant may, but is not required to, check the Excluded Parties List System website (<https://www.epls.gov/>), which is compiled by the General Services Administration.
- i. Nothing contained in the foregoing shall be construed to require the establishment of a system of records in order to render in good faith the certification required by this clause. The knowledge and information of the prospective participant is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.
- j. Except for transactions authorized under paragraph (f) of these instructions, if a participant in a covered transaction knowingly enters into a lower tier covered transaction with a person who is suspended, debarred, ineligible, or voluntarily excluded from participation in this transaction, in addition to other remedies available to the Federal Government, the department or agency may terminate this transaction for cause or default.

* * * * *

2. Certification Regarding Debarment, Suspension, Ineligibility and Voluntary Exclusion – First Tier Participants:

- a. The prospective first tier participant certifies to the best of its knowledge and belief, that it and its principals:
 - (1) Are not presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participating in covered transactions by any Federal department or agency;

- (2) Have not within a three-year period preceding this proposal been convicted of or had a civil judgment rendered against them for commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State or local) transaction or contract under a public transaction; violation of Federal or State antitrust statutes or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, or receiving stolen property;
 - (3) Are not presently indicted for or otherwise criminally or civilly charged by a governmental entity (Federal, State or local) with commission of any of the offenses enumerated in paragraph (a)(2) of this certification; and
 - (4) Have not within a three-year period preceding this application/proposal had one or more public transactions (Federal, State or local) terminated for cause or default.
- b. Where the prospective participant is unable to certify to any of the statements in this certification, such prospective participant shall attach an explanation to this proposal.

3. Instructions for Certification - Lower Tier Participants:

(Applicable to all subcontracts, purchase orders and other lower tier transactions requiring prior FHWA approval or estimated to cost \$25,000 or more - 2 CFR Parts 180 and 1200)

- a. By signing and submitting this proposal, the prospective lower tier is providing the certification set out below.
- b. The certification in this clause is a material representation of fact upon which reliance was placed when this transaction was entered into. If it is later determined that the prospective lower tier participant knowingly rendered an erroneous certification, in addition to other remedies available to the Federal Government, the department, or agency with which this transaction originated may pursue available remedies, including suspension and/or debarment.
- c. The prospective lower tier participant shall provide immediate written notice to the person to which this proposal is submitted if at any time the prospective lower tier participant learns that its certification was erroneous by reason of changed circumstances.
- d. The terms "covered transaction," "debarred," "suspended," "ineligible," "participant," "person," "principal," and "voluntarily excluded," as used in this clause, are defined in 2 CFR Parts 180 and 1200. You may contact the person to which this proposal is submitted for assistance in obtaining a copy of those regulations. "First Tier Covered Transactions" refers to any covered transaction between a grantee or subgrantee of Federal funds and a participant (such as the prime or general contract). "Lower Tier Covered Transactions" refers to any covered transaction under a First Tier Covered Transaction (such as subcontracts). "First Tier Participant" refers to the participant who has entered into a covered transaction with a grantee or subgrantee of Federal funds (such as the prime or general contractor). "Lower Tier Participant" refers any participant who has entered into a covered transaction with a First Tier Participant or other Lower Tier Participants (such as subcontractors and suppliers).

- e. The prospective lower tier participant agrees by submitting this proposal that, should the proposed covered transaction be entered into, it shall not knowingly enter into any lower tier covered transaction with a person who is debarred, suspended, declared ineligible, or voluntarily excluded from participation in this covered transaction, unless authorized by the department or agency with which this transaction originated.
- f. The prospective lower tier participant further agrees by submitting this proposal that it will include this clause titled "Certification Regarding Debarment, Suspension, Ineligibility and Voluntary Exclusion-Lower Tier Covered Transaction," without modification, in all lower tier covered transactions and in all solicitations for lower tier covered transactions exceeding the \$25,000 threshold.
- g. A participant in a covered transaction may rely upon a certification of a prospective participant in a lower tier covered transaction that is not debarred, suspended, ineligible, or voluntarily excluded from the covered transaction, unless it knows that the certification is erroneous. A participant is responsible for ensuring that its principals are not suspended, debarred, or otherwise ineligible to participate in covered transactions. To verify the eligibility of its principals, as well as the eligibility of any lower tier prospective participants, each participant may, but is not required to, check the Excluded Parties List System website (<https://www.epls.gov/>), which is compiled by the General Services Administration.
- h. Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render in good faith the certification required by this clause. The knowledge and information of participant is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.
- i. Except for transactions authorized under paragraph e of these instructions, if a participant in a covered transaction knowingly enters into a lower tier covered transaction with a person who is suspended, debarred, ineligible, or voluntarily excluded from participation in this transaction, in addition to other remedies available to the Federal Government, the department or agency with which this transaction originated may pursue available remedies, including suspension and/or debarment.

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**Certification Regarding Debarment, Suspension, Ineligibility and Voluntary Exclusion--
Lower Tier Participants:**

- 1. The prospective lower tier participant certifies, by submission of this proposal, that neither it nor its principals is presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participating in covered transactions by any Federal department or agency.
- 2. Where the prospective lower tier participant is unable to certify to any of the statements in this certification, such prospective participant shall attach an explanation to this proposal.

* * * * *

XI. CERTIFICATION REGARDING USE OF CONTRACT FUNDS FOR LOBBYING

This provision is applicable to all Federal-aid construction contracts and to all related subcontracts which exceed \$100,000 (49 CFR 20).

1. The prospective participant certifies, by signing and submitting this bid or proposal, to the best of his or her knowledge and belief, that:
 - a. No Federal appropriated funds have been paid or will be paid, by or on behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of any Federal agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal contract, grant, loan, or cooperative agreement.
 - b. If any funds other than Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any Federal agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this Federal contract, grant, loan, or cooperative agreement, the undersigned shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying," in accordance with its instructions.
2. This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into this transaction imposed by 31 U.S.C. 1352. Any person who fails to file the required certification shall be subject to a civil penalty of not less than \$10,000 and not more than \$100,000 for each such failure.
3. The prospective participant also agrees by submitting its bid or proposal that the participant shall require that the language of this certification be included in all lower tier subcontracts, which exceed \$100,000 and that all such recipients shall certify and disclose accordingly.

The following attachment to Form FHWA-1273 titled **ATTACHMENT A - EMPLOYMENT AND MATERIALS PREFERENCE FOR APPALACHIAN DEVELOPMENT HIGHWAY SYSTEM OR APPALACHIAN LOCAL ACCESS ROAD CONTRACTS** shall apply to this contract:

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FHWA-1273 Attachment A – Revised May 1, 2012

**ATTACHMENT A - EMPLOYMENT AND MATERIALS PREFERENCE FOR APPALACHIAN
DEVELOPMENT HIGHWAY SYSTEM OR APPALACHIAN LOCAL ACCESS ROAD CONTRACTS**

This provision is applicable to all Federal-aid projects funded under the Appalachian Regional Development Act of 1965.

1. During the performance of this contract, the Contractor undertaking to do work which is, or reasonably may be, done as on-site work, shall give preference to qualified persons who regularly reside in the labor area as designated by the DOL wherein the contract work is situated, or the subregion, or the Appalachian counties of the State wherein the contract work is situated, except:
 - a. To the extent that qualified persons regularly residing in the area are not available.
 - b. For the reasonable needs of the contractor to employ supervisory or specially experienced personnel necessary to assure an efficient execution of the contract work.
 - c. For the obligation of the Contractor to offer employment to present or former employees as the result of a lawful collective bargaining contract, provided that the number of nonresident persons employed under this subparagraph (1c) shall not exceed 20 percent of the total number of employees employed by the Contractor on the contract work, except as provided in subparagraph (4) below.
2. The Contractor shall place a job order with the State Employment Service indicating (a) the classifications of the laborers, mechanics and other employees required to perform the contract work, (b) the number of employees required in each classification, (c) the date on which the participant estimates such employees will be required, and (d) any other pertinent information required by the State Employment Service to complete the job order form. The job order may be placed with the State Employment Service in writing or by telephone. If during the course of the contract work, the information submitted by the Contractor in the original job order is substantially modified, the participant shall promptly notify the State Employment Service.
3. The Contractor shall give full consideration to all qualified job applicants referred to him by the State Employment Service. The Contractor is not required to grant employment to any job applicants who, in his opinion, are not qualified to perform the classification of work required.
4. If, within one week following the placing of a job order by the Contractor with the State Employment Service, the State Employment Service is unable to refer any qualified job applicants to the Contractor, or less than the number requested, the State Employment Service will forward a certificate to the Contractor indicating the unavailability of applicants. Such certificate shall be made a part of the Contractor's permanent project records. Upon receipt of this certificate, the

Contractor may employ persons who do not normally reside in the labor area to fill positions covered by the certificate, notwithstanding the provisions of subparagraph (1c) above.

5. The provisions of 23 CFR 633.207(e) allow the contracting agency to provide a contractual preference for the use of mineral resource materials native to the Appalachian region.
6. The Contractor shall include the provisions of Sections 1 through 4 of this Attachment A in every subcontract for work which is, or reasonably may be, done as on-site work.

VIRGINIA DEPARTMENT OF TRANSPORTATION
SPECIAL PROVISION FOR
**NOTICE OF REQUIREMENT FOR AFFIRMATIVE ACTION TO ENSURE
EQUAL EMPLOYMENT OPPORTUNITY (EXECUTIVE ORDER 11246)**

1. The Offeror's or Bidder's attention is called to the "Equal Opportunity Clause" and the "Standard Federal Equal Employment Opportunity Construction Contract Specifications" set forth herein.
2. The goals for female and minority participation, expressed in percentage terms of the Contractor's aggregate work force in each trade on all construction works in the covered area, are as follows:

Females- 6.9%

Minorities - See Attachment "A"

The goals are applicable to all the Contractor's construction work performed in the covered area, whether or not it is Federal or federally assisted. If the Contractor performs construction work in a geographical area located outside of the covered area, it shall apply the goals established for such geographical area where the work is actually performed. With regard to this second area, the Contractor also is subject to the goals for both its federally involved and non-federally involved construction.

The Contractor's compliance with the Executive Order and the regulations in 41 CFR Part 60-4 shall be based on its implementation of the Equal Opportunity Clause, specific affirmative action obligations required by the specifications, set forth in 41 CFR 60-4.3(a), and its efforts to meet the goals established herein. The hours of minority and female employment and training must be substantially uniform throughout the length of the Contract, and in each trade, and the Contractor shall make a good faith effort to employ minorities and women evenly on each of its projects. The transfer of minority or female employees or trainees from Contractor to Contractor or from project to project for the sole purpose of meeting the Contractor's goals shall be a violation of the Contract, the Executives Order and the regulations in 41 CFR Part 60-4. Compliance with the goals will be measured against the total work hours performed.

3. The Contractor shall provide written notification to the Director of the Office of Federal Contract Compliance Programs within 10 working days the award of any construction subcontract in excess of \$10,000 at any tier for construction works under this contract. The notification shall list the name, address and telephone number of the subcontractor, employer identification number, estimated dollar amount of the subcontract, estimated starting and completion dates of the subcontract and the geographical area in which the Contract is to be performed.

**STANDARD FEDERAL EQUAL EMPLOYMENT OPPORTUNITY
CONSTRUCTION CONTRACT SPECIFICATIONS (EXECUTIVE ORDER 11246)**

1. As, used in this provision:
 - a. "Covered area" means the geographical area described in the solicitation from which this contract resulted;
 - b. "Director" means Director, Office of Federal Contract Compliance Programs, United States Department of Labor, or any person to whom the Director delegates authority;
 - c. "Employer identification number" means the Federal Social Security number used on the Employer's Quarterly Federal Tax Return, U. S. Treasury Department Form 941;

d. "Minority" includes:

- (i) Black (all persons having origins in any of the Black African racial groups not of Hispanic origin);
- (ii) Hispanic (all persons of Mexican, Puerto Rican, Cuban, Central or South American or other Spanish Culture or origin, regardless of race);
- (iii) Asian and Pacific Islander (all persons having origins in any of the original peoples of the Far East, Southeast Asia, the Indian Subcontinent, or the Pacific Islands); and
- (iv) American Indian or Alaskan Native (all persons having origins in any of the original peoples of North America and maintaining identifiable tribal affiliations through membership and participation or community identification).

2. Whenever the Contractor, or any Subcontractor at any tier, subcontracts a portion of the work involving any construction trade, it shall physically include in each subcontract in excess of \$10,000 the provisions of these specifications and the Notice which contains the applicable goals for minority and female participation.
3. If the Contractor is participating (pursuant to 41 CFR 60-4.5) in a Hometown Plan approved by the U. S. Department of Labor in the covered area either individually or through an association, its affirmative action obligations on all work in the Plan area (including goals and timetables) shall be in accordance with that Plan for those trades which have unions participating in the Plan. Contractors must be able to demonstrate their participation in and compliance with the provisions of any such Hometown Plan. Each Contractor or Subcontractor participating in an approved Plan is individually required to comply with its obligations under the EEO clause, and to make a good faith effort to achieve each goal under the Plan in each trade in which it has employees. The overall good faith performance by other Contractors and Subcontractors toward a goal in an approved Plan does not excuse any covered Contractor's or Subcontractor's failure to take good faith efforts to achieve the Plan goals and timetables.
4. The Contractor shall implement the specific affirmative action standards provided in paragraphs 7 a through p of these specifications. The goals set forth in the solicitation from which this contract resulted are expressed as percentages of the total hours of employment and training of minority and female utilization the Contractor should reasonably be able to achieve in each construction trade in which it has employees in the covered area. Covered construction Contractors performing construction work in geographical areas where they do not have a Federal or federally assisted construction contract shall apply the minority and female goals established for the geographical area where the work is being performed. Goals are published periodically in the Federal Register in notice form, and such notices may be obtained from any Office of Federal Contract Compliance Programs office or from Federal procurement contracting officers. The Contractor is expected to make substantially uniform progress in meeting its goals in each craft during the period specified.
5. Neither the provisions of any collective bargaining agreement, nor the failure by a union with whom the Contractor has a collective bargaining agreement, to refer either minorities or women shall excuse the Contractor's obligations under these specifications, Executive Order 11246, or the regulations promulgated pursuant thereto.
6. In order for the nonworking training hours of apprentices and trainees to be counted in meeting the goals, such apprentices and trainees must be employed by the Contractor during the training period, and the Contractor must have made a commitment to employ the apprentices and trainees at the completion of their training, subject to the availability of employment opportunities. Trainees must be trained pursuant to training programs approved by the U. S. Department of Labor.
7. The Contractor shall take specific affirmative actions to ensure equal employment opportunity. The evaluation of the Contractor's compliance with these specifications shall be based upon its effort to

achieve maximum results from its actions. The Contractor shall document these efforts fully, and shall implement affirmative action steps at least as extensive as the following:

- a. Ensure and maintain a working environment free of harassment, intimidation, and coercion at all sites, and in all facilities at which the Contractor's employees are assigned to work. The Contractor, where possible, shall assign two or more women to each construction project. The Contractor shall specifically ensure that all foreman, superintendents and other on-site supervisory personnel are aware of and carry out the Contractor's obligation to maintain such a working environment, with specific attention to minority or female individuals working at such sites in such facilities.
- b. Establish and maintain a current list of minority and female recruitment sources, provide written notification to minority and female recruitment sources and to community organizations when the Contractor or its unions have employment opportunities available, and maintain a record of the organizations' responses.
- c. Maintain a current file of the names, addresses and telephone numbers of each minority and female off the street applicant and minority or female referral from a union, a recruitment source or community organization and of what action was taken with respect to each such individual. If such individual was sent to the union hiring hall for referral and was not referred back to the Contractor by the union, or if referred, not employed by the Contractor, this shall be documented in the file with the reason therefore, along with whatever additional actions the Contractor may have taken.
- d. Provide immediate written notification to the Director when the union or unions which the Contractor has a collective bargaining agreement has not referred to the Contractor a minority person or women sent by the Contractor, or when the Contractor has other information that the union referral process has impeded the Contractor's efforts to meet its obligations.
- e. Develop on-the-job training opportunities and/or participate in training programs for the area which expressly include minorities and women, including upgrading programs and apprenticeship and trainee programs relevant to the Contractor's employment needs, especially those programs funded or approved by the Department of Labor. The Contractor shall provide notice of these programs to the sources complied under 7b above.
- f. Disseminate the Contractor's EEO policy by providing notice of the policy to unions and training programs and requesting their cooperation in assisting the Contractor in meeting its EEO obligations; by including it in any policy manual and collective bargaining agreement; by publicizing it in the company newspaper or annual report; by specific review of the policy with all management personnel and with all minority and female employees at least once a year; and by posting the company EEO policy on bulletin boards accessible to all employees at each location where construction work is performed.
- g. Review, at least annually, the company's EEO policy and affirmative action obligations under these specifications with all employees having any responsibility for hiring, assignment, layoff, termination, or other employment decisions including specific review of these items with onsite supervisory personnel such as Superintendents and General Foremen prior to the initiation of construction work at any job site. A written record shall be made and maintained identifying the time and place of these meetings, persons attending, subject matter discussed and disposition of the subject matter.
- h. Disseminate the Contractor's EEO policy externally by including in any news media advertisement that the Contractor is "An Equal Opportunity Employer" for minority and female, and providing written notification to and discussing the Contractor's EEO policy with other Contractors and Subcontractors with whom the Contractor does or anticipates doing business.
- i. Directs its recruitment efforts, both oral and written, to minority, female and community organizations, to schools with minority and female students and to minority and recruitment and training organizations serving the Contractor's recruitment area and employment needs. Not later than one

month prior to the date for the acceptance of applications for apprenticeship or other training by recruitment source, the Contractor shall send written notification to organizations such as the above, describing the openings, screening procedures and tests to be used in the selection process.

- j. Encourage present minority and female employees to recruit other minority persons and women and, where reasonable, provide after school, summer and vacation employment to minority and female youth both on the site and in other areas of Contractor's workforce.
 - k. Validate all tests and other selection requirements where there is an obligation to do so under 41 CFR Part 60-3.
 - l. Conduct, at least annually, an inventory and evaluation of all minority and female personnel for promotional opportunities and encourage these employees to seek or to prepare for such opportunities through appropriate training or other means.
 - m. Ensure that seniority practices, job classifications, work assignments and other personnel practices, do not have a discriminatory effect by continually monitoring all personnel and employment related activities to ensure that the EEO policy and the Contractor's obligations under these specifications are being carried out.
 - n. Ensure that all facilities and company activities are nonsegregated, except that separate or single-user toilet and necessary changing facilities shall be provided to assure privacy between the sexes.
 - o. Document and maintain a record of all solicitations of offers for subcontracts from minority and female construction contractors and suppliers, including circulation of solicitations to minority and female contractor associations and other business associations.
 - p. Conduct a review, at least annually, of all supervisors' adherence to and performance under the Contractor's EEO policies and affirmative action obligations.
8. Contractors are encouraged to participate in voluntary associations which assist in fulfilling one or more of their affirmative action obligations (7a through p). The efforts of a contractor association, joint contractor-union, contractor-community, or other similar group of which the Contractor is a member and participant, may be asserted as fulfilling any one or more of its obligations under 7a through p of these Specifications provided that the Contractor actively participates in the group, makes every effort to assure that the group has a positive impact on the employment of minorities and women in the industry, ensures that the concrete benefits of the program are reflected in the Contractor's minority and female workforce participation, makes a good faith effort to meet its individual goals and timetables and can provide access to documentation which demonstrates the effectiveness of actions taken on behalf of the Contractor. The obligation to comply, however, is the Contractor's and failure of such a group to fulfill an obligation shall not be a defense for the Contractor's noncompliance.
9. Goals for women have been established. However, the Contractor is required to provide equal employment opportunity and to take affirmative action for all minority groups, both male and female and all women, both minority and non-minority. Consequently, the Contractor may be in violation of the Executive Order if a particular group is employed in a substantially disparate manner, that is even though the Contractor has achieved its goals for women, the Contractor may be in violation of the Executive Order if a specific minority group of women is underutilized.
10. The Contractor shall not use the goals and timetables or affirmative action standards to discriminate against any person because of race, color, religion, sex, sexual orientation, gender identity, or national origin.
11. The Contractor shall not enter into any Subcontract with any person or firm debarred from Government contracts pursuant to Executive Order 11246.

12. The Contractor shall carry out such sanctions and penalties for violation of these specifications and the Equal Opportunity Clause, including suspension, termination and cancellation of existing subcontracts as may be imposed or ordered pursuant to Executive Order 11246, as amended, and its implementing regulations by the Office of Federal Contract Compliance Programs. Any Contractor who fails to carry out such sanctions and penalties shall be in violation of these specifications and Executive Order 11246, as amended.
13. The Contractor, in fulfilling its obligations under these specifications shall implement specific affirmative action steps, at least as extensive as those standards prescribed in paragraph 7 of these specifications, so as to achieve maximum results from its efforts to ensure equal employment opportunity. If the Contractor fails to comply with the requirements of the Executive Order, the implementing regulations, or these specifications, the Director will proceed in accordance with 41 CFR 60-4.8.
14. The Contractor shall designate and make known to the Department a responsible official as the EEO Officer to monitor all employment related activity, to ensure that the company EEO policy is being carried out, to submit reports relating to the provisions hereof as may be required by the Government and to keep records. Records shall at least include for each employee the name, address, telephone numbers, construction trade, union affiliation if any, employee identification number when assigned, social security number, race, sex, status (e.g., mechanic, apprentice, trainee, helper, or laborer), dates of changes in status, hours worked per week in the indicated trade, rate of pay, and locations at which the work was performed. Records shall be maintained in an easily understandable and retrievable form; however, to the degree that existing records satisfy this requirement, Contractors will not be required to maintain separate records.
15. Nothing herein provided shall be construed as a limitation upon the application of other laws which establish different standards of compliance or upon the application of requirements for the hiring of local or other area residents (e.g., those under the Public Works Employment Act of 1977 and the Community Development Block Grant Program).

ATTACHMENT A

<u>Economic Area</u>	<u>Goal (Percent)</u>
Virginia:	
021 Roanoke-Lynchburg, VA	
SMSA Counties:	
4640 Lynchburg, VA	19.3
VA Amherst; VA Appomattox; VA Campbell; VA Lynchburg	
6800 Roanoke, VA	10.2
VA Botetourt; VA Craig; VA Roanoke; VA Roanoke City; VA Salem	
Non-SMSA Counties	12.0
VA Alleghany; VA Augusta; VA Bath; VA Bedford; VA Bland; VA Carroll;	
VA Floyd; VA Franklin; VA Giles; VA Grayson; VA Henry; VA Highland;	
VA Montgomery; VA Nelson; VA Patrick; VA Pittsylvania; VA Pulaski;	
VA Rockbridge; VA Rockingham; VA Wythe; VA Bedford City; VA Buena	
Vista:	
VA Clifton Forge; VA Covington; VA Danville; VA Galax; VA Harrisonburg;	
VA Lexington; VA Martinsville; VA Radford; VA Staunton; VA Waynesboro;	
WV Pendleton.	
022 Richmond, VA	
SMSA Counties:	
6140 Petersburg - Colonial Heights - Hopewell, VA	30.6
VA Dinwiddie; VA Prince George; VA Colonial Heights; VA Hopewell;	
VA Petersburg.	

6760 Richmond, VA	24.9
VA Charles City; VA Chesterfield; VA Goochland, VA Hanover; VA Henrico; VA New Kent; VA Powhatan; VA Richmond.	
Non-SMSA Counties	27.9
VA Albemarle; VA Amelia; VA Brunswick; VA Buckingham, VA Caroline; VA Charlotte; VA Cumberland; VA Essex; VA Fluvanna; VA Greene; VA Greensville; VA Halifax; VA King and Queen; VA King William; VA Lancaster; VA Louisa; VA Lunenburg; VA Madison; VA Mecklenburg; VA Northumberland; VA Nottoway; VA Orange; VA Prince Edward; VA Richmond VA Sussex; VA Charlottesville; VA Emporia; VA South Boston	
023 Norfolk - Virginia Beach - Newport News VA:	
SMSA Counties:	
5680 Newport News- Hampton, VA	27.1
VA Gloucester; VA James City; VA York; VA Hampton; VA Newport News; VA Williamsburg.	
5720 Norfolk - Virginia Beach - Portsmouth, VA - NC	26.6
NC Currituck; VA Chesapeake; VA Norfolk; VA Portsmouth; VA Suffolk; VA Virginia Beach.	
Non-SMSA Counties	29.7
NC Bertie; NC Camden; NC Chowan; NC Gates; NC Hertford; NC Pasquotank; NC Perquimans; VA Isle of Wight; VA Matthews; VA Middlesex; VA Southampton; VA Surry; VA Franklin.	
Washington, DC:	
020 Washington, DC.	
SMSA Counties:	
8840 Washington, DC - MD - VA	28.0
DC District of Columbia; MD Charles; MD Montgomery MD Prince Georges; VA Arlington; VA Fairfax; VA Loudoun; VA Prince William VA Alexandria; VA Fairfax City; VA Falls Church.	
Non- SMSA Counties	25.2
MD Calvert; MD Frederick; MD St. Marys; MD Washington; VA Clarke; VA Culpeper; VA Fauquier; VA Frederick; VA King George; VA Page; VA Rappahannock; VA Shenandoah; VA Spotsylvania; VA Stafford; VA Warren; VA Westmoreland; VA Fredericksburg; VA Winchester WV Berkeley; WV Grant; WV Hampshire; WV Hardy; WV Jefferson; WV Morgan.	
Tennessee:	
052 Johnson City - Kingsport - Bristol, TN - VA	
SMSA Counties:	
3630 Johnson City - Kingsport -Bristol, TN-VA	2.6
TN Carter; TN Hawkins; TN Sullivan; TN Washington; VA Scott: VA Washington; VA Bristol.	
Non-SMSA Counties	3.2
TN Greene; TN Johnson; VA Buchanan; VA Dickenson; VA Lee; VA Russell; VA Smyth; VA Tazewell; VA Wise; VA Norton; WV McDowell; WV Mercer.	
Maryland:	
019 Baltimore MD	
Non-SMSA Counties	23.6
MD Caroline; MD Dorchester; MD Kent; MD Queen Annes; MD Somerset; MD Talbot; MD Wicomico; MD Worchester; VA Accomack; VA Northampton.	

**VIRGINIA DEPARTMENT OF TRANSPORTATION
SPECIAL PROVISION FOR
CHANGED CONDITIONS FOR LOCAL ASSISTANCE PROJECTS**

April 29, 2019

I. GENERAL

This special provision specifies the process to be followed when conditions specified in the Contract differ from what is encountered during the prosecution of work except as provided elsewhere in the Contract.

II. DIFFERING SITE CONDITIONS

1. During the progress of the work, if subsurface or latent physical conditions are encountered at the site differing materially from those indicated in the Contract or if unknown physical conditions of an unusual nature, differing materially from those ordinarily encountered and generally recognized as inherent in the work provided for in the Contract, are encountered at the site, the party discovering such conditions shall promptly notify the other party in writing of the specific differing conditions before the site is disturbed and before the affected work is performed.
2. Upon written notification, the Engineer will investigate the conditions, and if it is determined that the conditions materially differ and cause an increase or decrease in the cost or time required for the performance of any work under the Contract, an adjustment, excluding anticipated profits, will be made and the Contract modified in writing accordingly. The Engineer will notify the Contractor of the determination whether or not an adjustment of the Contract is warranted.
3. No contract adjustment which results in a benefit to the Contractor will be allowed unless the Contractor has provided the required written notice.
4. No contract adjustment will be allowed under this clause for any effects caused on unchanged work. (This provision may be omitted by the Department at its option.)

III. SUSPENSION OF WORK ORDERED BY THE ENGINEER

1. If the performance of all or any portion of the work is suspended or delayed by the Engineer in writing for an unreasonable period of time (not originally anticipated, customary, or inherent to the construction industry) and the Contractor believes that additional compensation and/or contract time is due as a result of such suspension or delay, the Contractor shall submit to the Engineer in writing a request for adjustment within 7 calendar days of receipt of the notice to resume work. The request shall set forth the reasons and support for such adjustment.
2. Upon receipt, the Engineer will evaluate the Contractor's request. If the Engineer agrees that the cost and/or time required for the performance of the Contract has increased as a result of such suspension and the suspension was caused by conditions beyond the control of and not the fault of the Contractor, its suppliers, or subcontractors at any approved tier, and not caused by weather, the Engineer will make an adjustment (excluding profit) and modify the Contract in writing accordingly. The Contractor will be notified of the Engineer's determination whether or not an adjustment of the Contract is warranted.
3. No contract adjustment will be allowed unless the Contractor has submitted the request for adjustment within the time prescribed.

4. No contract adjustment will be allowed under this clause to the extent that performance would have been suspended or delayed by any other cause, or for which an adjustment is provided or excluded under any other term or condition of this contract.

IV. SIGNIFICANT CHANGES IN THE CHARACTER OF WORK

1. The Engineer reserves the right to make, in writing, at any time during the work, such changes in quantities and such alterations in the work as are necessary to satisfactorily complete the project. Such changes in quantities and alterations shall not invalidate the Contract nor release the surety, and the Contractor agrees to perform the work as altered.
2. If the alterations or changes in quantities significantly change the character of the work under the Contract, whether such alterations or changes are in themselves significant changes to the character of the work or by affecting other work cause such other work to become significantly different in character, an adjustment, excluding anticipated profit, will be made to the Contract. The basis for the adjustment shall be agreed upon prior to the performance of the work. If a basis cannot be agreed upon, then an adjustment will be made either for or against the Contractor in such amount as the Engineer may determine to be fair and equitable.
3. If the alterations or changes in quantities do not significantly change the character of the work to be performed under the Contract, the altered work will be paid for as provided elsewhere in the Contract.
4. The term "significant change" shall be construed to apply only to the following circumstances:
 - A. When the character of the work as altered differs materially in kind or nature from that involved or included in the original proposed construction; or
 - B. When a major item of work, as defined elsewhere in the Contract, is increased in excess of 125 percent or decreased below 75 percent of the original contract quantity. Any allowance for an increase in quantity shall apply only to that portion in excess of 125 percent of original contract item quantity, or in case of a decrease below 75 percent, to the actual amount of work performed.

cn102-000510-00

SECTION 102.05—PREPARATION OF BID of the Specifications is amended to include the following:

(g) Compliance with the Cargo Preference Act

As required by 46 CFR 381.7 (a)-(b) "Use of United States-flag vessels, when materials or equipment are acquired for a specific highway project, the Contractor agrees:

1. To utilize privately owned United States-flag commercial vessels to ship at least 50 percent of the gross tonnage (computed separately for dry bulk carriers, dry cargo liners, and tankers) involved, whenever shipping any equipment, material, or commodities pursuant to this contract, to the extent such vessels are available at fair and reasonable rates for United States-flag commercial vessels.
2. To furnish within 20 days following the date of loading for shipments originating within the United States or within 30 working days following the date of loading for shipments originating outside the United States, a legible copy of a rated, 'on-board' commercial ocean bill-of-lading in English for each shipment of cargo described in paragraph (1) of this section to both the Contracting Officer (through the prime contractor in the case of subcontractor bills-of-lading) and to the Division of National Cargo, Office of Market Development, Maritime Administration, Washington, DC 20590.
3. To insert the substance of the provisions of this clause in all subcontracts issued pursuant to this contract.

This requirement will not be applicable when materials or equipment used on the Project are obtained from the existing inventories of suppliers and contractors; they are only applicable when the materials or equipment are acquired for the specific project, and have been transported by ocean vessel.

12-14-15; Reissued 7-12-16 (SPCN) [formerly cn102-050100-00]

**VIRGINIA DEPARTMENT OF TRANSPORTATION
SPECIAL PROVISION FOR
USE OF DOMESTIC MATERIAL**

December 19, 2018

SECTION 102.05 PREPARATION OF BID of the Specifications is amended to include the following:

In accordance with the provisions of Section 635.410(b) of Title 23 CFR, hereinafter referred to as "Buy America", except as otherwise specified, all iron and steel (including miscellaneous items such as fasteners, nuts, bolts and washers) to be permanently incorporated for use on federal aid projects shall be produced in the United States of America. This applies to any iron or steel item brought onto the project, regardless of the percentage of iron or steel that exists in the pay item or in the final form they take; however, electrical components (i.e., combination products such as signal controllers and similar products which are only sold as a unit) are not subject to Buy America provisions if the product as purchased by the Contractor is less than 50% steel and iron. "Produced in the United States of America" means all manufacturing processes occur in one of the 50 United States, the District of Columbia, Puerto Rico or in the territories and possessions of the United States. "Manufacturing processes" are defined as any process which alters or modifies the chemical content, physical size or shape, or final finish of iron or steel material (such as rolling, extruding, bending, machining, fabrication, grinding, drilling, finishing, or coating). For the purposes of satisfying this requirement "coating" is defined as the application of epoxy, galvanizing, painting or any other such process that protects or enhances the value of the material to which the coating is applied. Non-iron and non-steel materials used in the coating process do not need to be produced in the United States as long as the application of the coating occurred in the United States. The manufacturing process is considered complete when the resultant product is ready for use as an item in the project (e.g. fencing, posts, girders, pipe, manhole covers, etc.) or is incorporated as a component of a more complex product by means of further manufacturing. Final assembly of a product may occur outside of the United States of America provided no further manufacturing processes take place.

For the purposes of this provision, all steel or iron material meeting the criteria as produced in the United States of America will be considered as "Domestic Material." All iron and steel items not meeting the criteria as produced in the United States of America will be considered "Non-Domestic Material."

A minimal amount of "Non-Domestic" steel or iron material may be incorporated in the permanent work on a federal-aid contract provided that the cost of such materials or products does not exceed one-tenth of one percent of the Contract amount or \$2500, whichever is greater. The cost of the "Non-Domestic Material" is defined as its monetary value delivered to the job site and supported by invoices or bill of sale to the Contractor. This delivered-to-site cost must include transportation, assembly, installation and testing.

Buy America provisions do not apply to iron or steel products used temporarily in the construction of a project such as temporary sheet piling, temporary bridges, steel scaffolding, falsework or such temporary material or product or material that remains in place for the Contractor's convenience.

Raw materials such as iron ore, pig iron, processed, pelletized and reduced iron ore, waste products (including scrap, that is, steel or iron no longer useful in its present form from old automobiles, machinery, pipe, railroad rail, or the like and steel trimmings from mills or product manufacturing) and other raw materials used in the production of steel and/or iron products may, however, be imported. Extracting, handling, or crushing the raw materials which are inherent to the transporting the materials for later use in the manufacturing process are exempt from Buy America.

Any items containing foreign source steel or iron billet shall be considered "Non-Domestic Materials." Additionally, iron or steel ingots or billets produced in the United States, but shipped outside the United

States of America for any manufacturing process and returned for permanent use in a project shall be considered "Non-Domestic Materials."

Waivers:

The process for receiving a waiver for Buy America provisions is identified in 23 CFR 635.410(c). The Contractor shall not anticipate that any Buy America provisions will be waived.

Certification of Compliance:

The Contractor is required to submit a Certificate of Compliance prior to incorporating any items containing iron or steel items into the project. This shall be accomplished by the Contractor submitting the Form C-76 Certificate of Compliance to the Department when the items are delivered to the project site. The Certification of Compliance will certify whether the items are considered "Domestic Material" or "Non-Domestic Material" as referenced in this Special Provision. The certificate must be signed and dated by the Prime Contractor's Superintendent and include a Buy America Submittal Number. The Buy America Submittal Number is simply the Contractor's project specific sequential numbering system that will allow the Contractor and Department to track the total number of certificates provided and the individual items containing iron or steel associated with each certificate.

Supporting Documentation:

Supporting documentation to demonstrate compliance with Buy America provisions (such as mill test reports manufacturer/supplier certifications, etc.) shall be organized by Buy America Submittal Number and maintained by the Contractor from the date of delivery until three years after project acceptance. The Contractor may maintain this documentation electronically or in paper format.

The Department or FHWA may review the Contractor's supporting documentation to verify compliance with the Buy America provisions at any time. Supporting documentation shall be provided within five business days of the request. The burden of proof to meet the Buy America provisions rests with the Contractor. If the supporting documentation does not undeniably demonstrate to FHWA or the Department that the "Domestic Materials" identified in the Certificates of Compliance were produced in the United States of America, then the Department may deduct payment from moneys due the Contractor for the value of the iron and steel that did not meet the Buy America provisions.

VIRGINIA DEPARTMENT OF TRANSPORTATION
SPECIAL PROVISION FOR
SECTION 105.06—SUBCONTRACTING
(FEDERAL FUNDED PROJECTS)

February 9, 2017

SECTION 105.06—Subcontracting of the Specifications is amended to include the following:

- (d) According to Commonwealth of Virginia Executive Order 20, the Contractor is encouraged to seek out and consider Small, Women-owned, and Minority-owned (SWaM) businesses certified by the Department of Small Business and Supplier Diversity (DSBSD) as potential subcontractors and vendors. Further, the Contractor shall furnish and require each subcontractor (first-tier) to furnish information relative to subcontractor and vendor involvement on the project.

For purposes of this provision, the term "vendor" is defined as any consultant, manufacturer, supplier or hauler performing work or furnishing material, supplies or services for the contract. The Contractor and, or subcontractor (first-tier) must insert this provision in each subcontract and further require its inclusion in all lower tier subcontracts (excluding purchase orders, rental agreements and other agreements for supplies or services). The applicable requirements of this provision are incorporated by reference for work done by vendors under any purchase order, rental agreement or agreement for other services for the contract. The Contractor shall be responsible for compliance by any subcontractor, lower-tier subcontractor or vendor.

The submission of a bid will be considered conclusive evidence that the Contractor agrees to assume these contractual obligations and to bind subcontractors contractually to the same at the Contractor's expense.

When an approved Form C-31 "Subletting Request" is required according to IIM-CD-2013-06.01, the Contractor shall indicate on the Subletting Request if a subcontractor is a certified DBE or SWaM business.

The Contractor shall report all DBE, SWaM, and Non SWaM vendor payments quarterly to the District Civil Rights Office. The Contractor shall provide the information in a format consistent with Form C-63, Vendor Payment Compliance Report, subject to the approval of the Engineer.

DBE Participation and reporting shall be in accordance with the Special Provision for Section 107.15 (Use of Disadvantaged Business Enterprises).

If the Contractor fails to provide the required information, the Department may delay final payment according to Specification Section 109.10 of the Specifications.

DRUG-FREE WORKPLACE– The Contractor shall:

- Provide a Drug-Free Workplace for the Contractor's employees.
- Post in conspicuous places, available to employees and applicants for employment, a statement notifying employees that the unlawful manufacture, sale, distribution, dispensation, possession, or use of a controlled substance or marijuana is prohibited in the Contractor's workplace and specifying the actions that will be taken against employees for violations of such prohibition.
- State in all solicitations or advertisements for employees placed by or on behalf of the Contractor that the Contractor maintains a Drug-Free Workplace.
- Include the provisions of the foregoing clauses in every Subcontract or purchase order of over \$10,000, so that the provisions will be binding upon each Subcontractor or vendor.

For the purposes of this provision, "Drug-Free Workplace" means a site for the performance of work done in connection with the Contract. The Contractor's employees, and those of his Subcontractors, shall be prohibited from engaging in the unlawful manufacture, sale, distribution, dispensation, possession, or use of any controlled substance or marijuana during the performance of the Work.

7-3-19 (SPCN)

CONTRACTOR SEXUAL HARASSMENT POLICY – If the contractor employs more than five employees, the contractor shall (i) provide annual training on the contractor's sexual harassment policy to all supervisors and employees providing services in the Commonwealth, except such supervisors or employees that are required to complete sexual harassment training provided by the Department of Human Resource Management, and (ii) post the contractor's sexual harassment policy in (a) a conspicuous public place in each building located in the Commonwealth that the contractor owns or leases for business purposes and (b) the contractor's employee handbook.

The contractor shall include the above paragraph in every subcontract or purchase order over \$10,000, so that this requirement shall be binding upon each subcontractor or vendor.

6-5-20 (SPCN)

VIRGINIA DEPARTMENT OF TRANSPORTATION
SPECIAL PROVISION FOR
**ELECTRONIC SUBMISSION OF PAYROLLS AND
DBE SUBCONTRACTOR PAYMENT FOR FEDERALLY FUNDED PROJECTS**

January 21, 2020

I. GENERAL REQUIREMENTS

The Contractor and all Subcontractors shall submit all certified payrolls and subcontractor payments, including those made to Disadvantaged Business Enterprises (DBEs), using the AASHTOWare Project Civil Rights and Labor (CRL) system in accordance with this specification. The term "subcontractor" shall include all vendors subject to FHWA-1273.

The electronic payroll submission and subcontractor payments through the CRL system replaces the paper submission of the C-57 and C-63 forms otherwise required by Sections 107.14(m) and 107.15 of the Specifications.

II. SYSTEM REQUIREMENTS

The CRL system is web based. The Contractor shall ensure compatibility with the CRL system as necessary to successfully execute the Work. The CRL system works with Internet Explorer 11 or Google Chrome and requires the ability to read, create, and edit spreadsheets in the .xlsx file format.

The Contractor and Subcontractors will be granted access after submitting forms ITD-35 and ITD-36 for each individual user who requires an account. Only those firms with a required contract in the system should submit the Request Access form. The software is configured so that each firm will only be able see their specific contract information. There will only be one single sign-on process for multiple application access within the Department.

VDOT will provide access and link and a log-in identification (ID) for the CRL system to designated employees of the Contractor and approved subcontractors entered into the system for the contract. The log-in ID and password are unique to the designated employee and must not be shared with other employees. There are no fees associated with accessing the system or to receive a login ID.

The low bidders on Contract awards will be contacted by the State Civil Rights Manager after letting to begin the process for accessing the CRL system for them and their subcontractors. The State Civil Rights Manager will provide all training for entry of certified payrolls and DBE subcontractor payments in CRL.

The CRL website is located at:

https://www.virginiadot.org/business/aashtoware_project_civil_rights_and_labor%E2%84%A2_crl_management_system.asp.

III. PROCEDURES

1. CERTIFIED PAYROLL & SUBCONTRACTOR DATA SUBMISSION FOR FEDERALLY FUNDED PROJECTS

The Contractor and all subcontractors shall use the CRL system to provide VDOT electronic certified payrolls. The Contractor shall ensure that all subcontractors submit their certified payrolls into the system electronically.

Electronic submittal of certified payrolls can be submitted using the following methods:

- Manually add, copy, or modify data into CRL;
- Import payroll data with the CRL payroll spreadsheet XML converter tool available at <https://xml.cloverleaf.net/spreadsheet/>
- Convert payroll system program data to Payroll XML and import it into the CRL system. Information on how to convert to payroll program data to an XML file can be located at <https://xml.cloverleaf.net/resourcekit/>;
- The Contractor may send, on behalf of a subcontractor, payroll payment information based on a signed, certified paper payroll through the Electronica Proxy Payroll Process. Import payroll data with the CRL payroll spreadsheet XML converter tool available at <https://xml.cloverleaf.net/spreadsheet/>.

The District Civil Rights Manager or Engineer may require at any time, in writing, certified paper copies of the payrolls conforming to FHWA 1273 from any or all contractors working on the project.

2. DBE PAYMENT SUBMISSION REQUIREMENTS FOR FEDERALLY FUNDED PROJECTS

The Contractor shall post payment to DBE firms listed on their C-111 towards meeting their contract DBE goal per Federal DBE regulations. The Contractor shall submit, and shall require each Subcontractor to provide, payment amounts relative to all DBE involvement on the project during the life of the Contract in which participation occurs, and verification is available. The Contractor shall post payments to DBEs in CRL within 7 days after receipt of payment from the Department. Subcontractors shall post payments to DBEs in CRL within 7 days after receipt of payment from the Contractor.

The District Civil Rights Manager may require at any time, in writing, proof of payments from any or all subcontractors working on the project related to contractor DBE payments. The Contractor shall enter all payments made to all subcontractors into the Payment area of CRL for each estimate.

DBE Payments shall be entered only for those business entities that are being utilized in conjunction with performing a Commercial Useful Function (CUF).

More information about the CRL system can be located at <https://www.aashtowareproject.org/index.php>.

**VIRGINIA DEPARTMENT OF TRANSPORTATION
SPECIAL PROVISION FOR
DBE REQUIREMENTS**

August 18, 2017

SECTION 107 – LEGAL RESPONSIBILITIES of the Specifications is revised as follows:

Section 107.15 – Use of Small, Women-Owned, and Minority-Owned Business is renamed **Use of Disadvantaged Business Enterprises (DBEs)** and replaced with the following:

(a) Disadvantaged Business Enterprise (DBE) Program Requirements

Any Contractor, subcontractor, supplier, DBE firm, and contract surety involved in the performance of work on a federal-aid contract shall comply with the terms and conditions of the United States Department of Transportation (USDOT) DBE Program as the terms appear in Part 26 of the Code of Federal Regulations (49 CFR as amended), the USDOT DBE Program regulations; and the Virginia Department of Transportation's (VDOT or the Department) Road and Bridge Specifications and DBE Program rules and regulations.

For the purposes of this provision, Contractor is defined as the Prime Contractor of the Contract; and sub-contractor is defined as any DBE supplier, manufacturer, or subcontractor performing work or furnishing material, supplies or services to the Contract. The Contractor shall physically include this same contract provision in every supply or work/service subcontract that it makes or executes with a subcontractor having work for which it intends to claim credit.

In accordance with 49 CFR Part 26 and VDOT's DBE Program requirements, the Contractor, for itself and for its subcontractors and suppliers, whether certified DBE firms or not, shall commit to complying fully with the auditing, record keeping, confidentiality, cooperation, and anti-intimidation or retaliation provisions contained in those federal and state DBE Program regulations. By bidding on this contract, and by accepting and executing this contract, the Contractor agrees to assume these contractual obligations and to bind the Contractor's subcontractors contractually to the same at the Contractor's expense.

The Contractor or subcontractor shall not discriminate on the basis of race, color, sex, sexual orientation, gender identity, or national origin in the performance of this contract. The Contractor shall carry out applicable requirements of 49 CFR Part 26 in the award, administration, and performance of this contract. Failure by the Contractor to carry out these requirements is a material breach of this contract, which will result in the termination of this contract or other such remedy, as VDOT deems appropriate.

All administrative remedies noted in this provision are automatic unless the Contractor exercises the right of appeal within the required timeframe(s) specified herein. Appeal requirements, processes, and procedures shall be in accordance with guidelines stated herein and current at the time of the proceedings. Where applicable, the Department will notify the Contractor of any changes to the appeal requirements, processes, and procedures after receiving notification of the Contractor's desire to appeal.

All time frames referenced in this provision are expressed in business days unless otherwise indicated. Should the expiration of any deadline fall on a weekend or holiday, such deadline will automatically be extended to the next normal business day.

(b) DBE Certification

The only DBE firms eligible to perform work on a federal-aid contract for DBE contract goal credit are firms certified as Disadvantaged Business Enterprises by the Virginia Department of Small Business and Supplier Diversity (DSBSD) or the Metropolitan Washington Airports Authority (MWAA) in accordance with federal and VDOT guidelines. DBE firms must be certified in the specific work listed for DBE contract goal credit. A directory listing of certified DBE firms can be obtained from the Virginia Department of Small Business and Supplier Diversity website: www.sbsd.virginia.gov.

(c) Bank Services

The Contractor and each subcontractor are encouraged to use the services of banks owned and controlled by socially and economically disadvantaged individuals. Such banking services and the fees charged for services typically will not be eligible for DBE Program contract goal credit. Such information is available from the VDOT's Internet Civil Rights Division website: http://www.virginiadot.org/business/resources/Civil_Rights/VDOT_DB_E_Program_Plan.pdf

(d) DBE Program-Related Certifications Made by Bidders\Contractors

By submitting a bid and by entering into any contract on the basis of that bid, the bidder/Contractor certifies to each of the following DBE Program-related conditions and assurances:

1. That the management and bidding officers of its firm agree to comply with the bidding and project construction and administration obligations of the USDOT DBE Program requirements and regulations of 49 CFR Part 26 as amended, and VDOT's Road and Bridge Specifications and DBE Program requirements and regulations.
2. Under penalty of perjury and other applicable penal law that it has complied with the DBE Program requirements in submitting the bid, and shall comply fully with these requirements in the bidding, award, and execution of the Contract.
3. To ensure that DBE firms have been given full and fair opportunity to participate in the performance of the Contract. The bidder certifies that all reasonable steps were, and will be, taken to ensure that DBE firms had, and will have, an opportunity to compete for and perform work on the Contract. The bidder further certifies that the bidder shall not discriminate on the basis of race, color, age, sex, sexual orientation, gender identity, or national origin in the performance of the Contract or in the award of any subcontract. Any agreement between a bidder and a DBE whereby the DBE promises not to provide quotations for performance of work to other bidders is prohibited.
4. As a bidder, good faith efforts were made to obtain DBE participation in the proposed contract at or above the goal for DBE participation established by VDOT. It has submitted as a part of its bid true, accurate, complete, and detailed documentation of the good faith efforts it performed to meet the Contract goal for DBE participation. The bidder, by signing and submitting its bid, certifies the DBE participation information submitted within the stated time thereafter is true, correct, and complete, and that the information provided includes the names of all DBE firms that will participate in the Contract, the specific line item(s) that each listed DBE firm will perform, and the creditable dollar amounts of the participation of each listed DBE. The specific line item must reference the VDOT line number and item number contained in the proposal.
5. The bidder further certifies, by signing its bid, it has committed to use each DBE firm listed for the specific work item shown to meet the Contract goal for DBE participation. Award of the Contract will be conditioned upon meeting these and other listed requirements of 49 CFR Part 26.53 and the contract documents. By signing the bid, the bidder certifies on work that it proposes to sublet; it has made good faith efforts to seek out and consider DBEs as potential

subcontractors. The bidder shall contact DBEs to solicit their interest, capability, and prices in sufficient time to allow them to respond effectively, and shall retain on file proper documentation to substantiate its good faith efforts. Award of the Contract will be conditioned upon meeting these and other listed requirements of 49 CFR Part 26.53 and the contract documents.

6. Once awarded the Contract, the Contractor shall make good faith efforts to utilize DBE firms to perform work designated to be performed by DBEs at or above the amount or percentage of the dollar value specified in the bidding documents. Further, the Contractor understands it shall not unilaterally terminate, substitute for, or replace any DBE firm that was designated in the executed contract in whole or in part with another DBE, any non-DBE firm, or with the Contractor's own forces or those of an affiliate of the Contractor without the prior written consent of VDOT as set out within the requirements of this provision.
7. Once awarded the contract, the Contractor shall designate and make known to the Department a liaison officer who is assigned the responsibility of administering and promoting an active and inclusive DBE program as required by 49 CFR Part 26 for DBEs. The designation and identity of this officer need be submitted only once by the Contractor during any twelve (12) month period at the preconstruction conference for the first contract the Contractor has been awarded during that reporting period. The Department will post such information for informational and administrative purposes at VDOT's Internet Civil Rights Division website.
8. Once awarded the Contract, the Contractor shall comply fully with all regulatory and contractual requirements of the USDOT DBE Program, and that each DBE firm participating in the Contract shall fully perform the designated work items with the DBE's own forces and equipment under the DBE's direct supervision, control, and management. Where a contract exists and where the Contractor, DBE firm, or any other firm retained by the Contractor has failed to comply with federal or VDOT DBE Program regulations and/or their requirements on that contract, VDOT has the authority and discretion to determine the extent to which the DBE contract regulations and/or requirements have not been met, and will assess against the Contractor any remedies available at law or provided in the Contract in the event of such a contract breach.
9. In the event a bond surety assumes the completion of work, if for any reason VDOT has terminated the prime Contractor, the surety shall be obligated to meet the same DBE contract terms and requirements as were required of the original prime Contractor in accordance with the requirements of this specification.

(e) Disqualification of Bidder

Bidders may be disqualified from bidding for failure to comply with the requirements of this Special Provision, the Contract specifications, and VDOT Road and Bridge Specifications.

(f) **Bidding Procedures**

The following bidding procedures shall apply to the Contract for DBE Program compliance purposes:

1. **Contract Goal, Good Faith Efforts Specified:** All bidders evidencing the attainment of DBE goal commitment equal to or greater than the required DBE goal established for the project must submit completed Form C-111, Minimum DBE Requirements, and Form C-48, Subcontractor/Supplier Solicitation and Utilization, as a part of the bid documents.

Form C-111 may be submitted electronically or may be faxed to the Department, but in no case shall the bidder's Form C-111 be received later than 10:00 a.m. the next business day after the time stated in the bid proposal for the receipt of bids. Form C-48 must be received within ten (10) business days after the bid opening.

If, at the time of submitting its bid, the bidder knowingly cannot meet or exceed the required DBE contract goal, it shall submit Form C-111 exhibiting the DBE participation it commits to attain as a part of its bid documents. The bidder shall then submit Form C-49, DBE Good Faith Efforts Documentation, within two (2) business days after the bid opening.

The lowest responsive and responsible bidder must submit its properly executed Form C-112, Certification of Binding Agreement, within three (3) business days after the bids are received. DBEs bidding as prime contractors are not required to submit Form C-112 unless they are utilizing other DBEs as subcontractors.

If, after review of the apparent lowest bid, VDOT determines the DBE requirements have not been met, the apparent lowest successful bidder must submit Form C-49, DBE Good Faith Efforts Documentation, which must be received by the Contract Engineer within two (2) business days after official notification of such failure to meet the aforementioned DBE requirements.

Forms C-48, C-49, C-111, and C-112 can be obtained from the VDOT website at:
<http://vdotforms.vdot.virginia.gov/>

Instructions for submitting Form C-111 can be obtained from the VDOT website at:
http://www.virginiadot.org/business/resources/const/Exp_DBE_Commitments.pdf

2. **Bid Rejection:** The failure of a bidder to submit the required documentation within the timeframes specified in the **Contract Goal, Good Faith Efforts Specified** section of this Special Provision may be cause for rejection of that bidder's bid.

If the lowest bidder is rejected for failure to submit the required documentation in the specified time frames, the Department may award the work to the next lowest bidder, or re-advertise the proposed work at a later date or proceed otherwise as determined by the Commonwealth.

3. **Good Faith Efforts Described:** In order to award a contract to a bidder that has failed to meet DBE contract goal requirements, VDOT will determine if the bidder's efforts were adequate good faith efforts, and if given all relevant circumstances, those efforts were made actively and aggressively to meet the DBE requirements. Efforts to obtain DBE participation are not good faith efforts if they could not reasonably be expected to produce a level of DBE participation sufficient to meet the DBE Program and contract goal requirements.

Good faith efforts may be determined through use of the following list of the types of actions the bidder may make to obtain DBE participation. This is not intended to be a mandatory

checklist, nor is it intended to be exclusive or exhaustive. Other factors or types of efforts of similar intent may be relevant in appropriate cases:

- a. Soliciting through reasonable and available means, such as but not limited to, attendance at pre-bid meetings, advertising, and written notices to DBEs who have the capability to perform the work of the Contract. Examples include: advertising in at least one daily/weekly/monthly newspaper of general circulation, as applicable; phone contact with a completely documented telephone log, including the date and time called, contact person, or voice mail status; and internet contacts with supporting documentation, including dates advertised. The bidder shall solicit this interest no less than five (5) business days before the bids are due so that the solicited DBEs have enough time to reasonably respond to the solicitation. The bidder shall determine with certainty if the DBEs are interested by taking reasonable steps to follow up initial solicitations as evidenced by documenting such efforts as requested on Form C-49, DBE Good Faith Efforts Documentation.
- b. Selecting portions of the work to be performed by DBEs in order to increase the likelihood that the DBE goals will be achieved. This includes, where appropriate, breaking out contract work items into economically feasible units to facilitate DBE participation, even when the Contractor might otherwise prefer to completely perform all portions of this work in its entirety or use its own forces;
- c. Providing interested DBEs with adequate information about the plans, specifications, and requirements of the Contract in a timely manner, which will assist the DBEs in responding to a solicitation;
- d. Negotiating for participation in good faith with interested DBEs;
 - (1) Evidence of such negotiation shall include the names, addresses, and telephone numbers of DBEs that were considered; dates DBEs were contacted; a description of the information provided regarding the plans, specifications, and requirements of the Contract for the work selected for subcontracting; and, if insufficient DBE participation seems likely, evidence as to why additional agreements could not be reached for DBEs to perform the work;
 - (2) A bidder using good business judgment should consider a number of factors in negotiating with subcontractors, including DBE subcontractors, and should take a firm's price, qualifications, and capabilities, as well as contract goals, into consideration. However, the fact that there may be some additional costs involved in finding and using DBEs is not sufficient reason for a bidder's failure to meet the Contract goal for DBE participation, as long as such costs are reasonable and comparable to costs customarily appropriate to the type of work under consideration. Also, the ability or desire of a bidder to perform the work of a contract with its own organization does not relieve the bidder of the responsibility to make diligent good faith efforts. Bidders are not, however, required to accept higher quotes from DBEs if the price difference can be shown by the bidder to be excessive, unreasonable, or greater than would normally be expected by industry standards;
- e. A bidder cannot reject a DBE as being unqualified without sound reasons based on a thorough investigation of the DBE's capabilities. The DBE's standing within its industry, membership in specific groups, organizations, associations, and political or social affiliations, and union vs. non-union employee status are not legitimate causes for the rejection or non-solicitation of bids in the bidder's efforts to meet the project goal for DBE participation;

- f. Making efforts to assist interested DBEs in obtaining bonding, lines of credit, or insurance as required by VDOT or by the bidder/Contractor;
- g. Making efforts to assist interested DBEs in obtaining necessary equipment, supplies, materials, or related assistance or services subject to the restrictions contained in these provisions;
- h. Effectively using the services of appropriate personnel from VDOT and from DMBE; available minority/women community or minority organizations; contractors' groups; local, state, and Federal minority/ women business assistance offices; and other organizations as allowed on a case-by-case basis to provide assistance in the recruitment and utilization of qualified DBEs.

(g) Documentation and Administrative Reconsideration of Good Faith Efforts

During Bidding: As described in the **Contract Goal, Good Faith Efforts Specified** section of this Special Provision, the bidder must provide Form C-49, DBE Good Faith Efforts Documentation, of its efforts made to meet the DBE contract goal as proposed by VDOT within the time frame specified in this provision. The means of transmittal and the risk for timely receipt of this information shall be the responsibility of the bidder. The bidder shall attach additional pages to the certification, if necessary, in order to fully detail specific good faith efforts made to obtain the DBE firms participation in the proposed contract work.

However, regardless of the DBE contract goal participation level proposed by the bidder or the extent of good faith efforts shown, all bidders shall timely and separately file their completed and executed forms C-111, C-112, C-48, and C-49, as aforementioned, or face potential bid rejection.

If a bidder does not submit its completed and executed forms C-111, or C-112, when required by this Special Provision, the bidder's bid will be considered non-responsive and may be rejected.

Where the Department upon initial review of the bid results determines the apparent low bidder has failed or appears to have failed to meet the requirements of the **Contract Goal, Good Faith Efforts Specified** section of this Special Provision and has failed to adequately document that it made a good faith effort to achieve sufficient DBE participation as specified in the bid proposal, that firm upon notification of the Department's initial determination will be offered the opportunity for administrative reconsideration before VDOT rejects that bid as non-responsive. The bidder shall address such request for reconsideration in writing to the Contract Engineer within five (5) business days of receipt of notification by the Department and shall be given the opportunity to discuss the issue and present its evidence in person to the Administrative Reconsideration Panel. The Administrative Reconsideration Panel will be made up of VDOT Division Administrators or their designees, none of who took part in the initial determination that the bidder failed to make the goal or make adequate good faith efforts to do so. After reconsideration, VDOT shall notify the bidder in writing of its decision and explain the basis for finding that the bidder did or did not meet the goal or make adequate good faith efforts to do so.

If, after reconsideration, the Department determines the bidder has failed to meet the requirements of the Contract goal and has failed to make adequate good faith efforts to achieve the level of DBE participation as specified in the bid proposal, the bidder's bid will be rejected.

If sufficient documented evidence is presented to demonstrate that the apparent low bidder made reasonable good faith efforts, the Department will award the Contract and reduce the DBE requirement to the actual commitment identified by the lowest successful bidder at the time of its bid. The Contractor is still encouraged to seek additional DBE participation during the life of the Contract.

However, such action will not relieve the Contractor of its responsibility for complying with the reduced DBE requirement during the life of the Contract or any administrative sanctions as may be appropriate.

During the Contract: If a DBE, through no fault of the Contractor, is unable or unwilling to fulfill his agreement with the Contractor, the Contractor shall immediately notify the Department and provide all relevant facts. If a Contractor relieves a DBE subcontractor of the responsibility to perform work under their subcontract, the Contractor is encouraged to take the appropriate steps to obtain a DBE to perform an equal dollar value of the remaining subcontracted work. In such instances, the Contractor is expected to seek DBE participation towards meeting the goal during the performance of the Contract.

If the Contractor fails to conform to the schedule of DBE participation as shown on the progress schedule, or at any point at which it is clearly evident that the remaining dollar value of allowable credit for performing work is insufficient to obtain the scheduled participation, and the Contractor has not taken the preceding actions, the Contractor and any aforementioned affiliates may be subject to disallowance of DBE credit until such time as conformance with the schedule of DBE participation is achieved.

Project Completion: If the Contractor fails upon completion of the project to meet the required participation, the Contractor and any prime contractual affiliates, as in the case of a joint venture, may be enjoined from bidding as a prime Contractor, or participating as a subcontractor on VDOT projects for a period of 90 days.

Prior to enjoinder from bidding or denial to participate as a subcontractor for failure to comply with participation requirements, as provided hereinbefore, the Contractor may submit documentation to the State Construction Engineer to substantiate that failure was due solely to quantitative underrun(s), elimination of items subcontracted to DBEs, or to circumstances beyond their control, and that all feasible means have been used to obtain the required participation. The State Construction Engineer upon verification of such documentation shall make a determination whether or not the Contractor has met the requirements of the Contract.

If it is determined that the aforementioned documentation is insufficient or the failure to meet required participation is due to other reasons, the Contractor may request an appearance before the Administrative Reconsideration Panel to establish that all feasible means were used to meet such participation requirements. The decision of the Administrative Reconsideration Panel shall be administratively final. If the decision is made to enjoin the Contractor from bidding on other VDOT work as described herein, the enjoinder period will begin upon the Contractor's failure to request a hearing within the designated time frame or upon the Administrative Reconsideration Panel's decision to enjoin, as applicable.

(h) DBE Participation for Contract Goal Credit

1. Cost-plus subcontracts will not be considered to be in accordance with normal industry practice and will not normally be allowed for credit.
2. The applicable percentage of the total dollar value of the Contract or Subcontract awarded to the DBE will be counted toward meeting the Contract goal for DBE participation in accordance with the **DBE Program-Related Certifications Made by Bidders/Contractors** section of this Special Provision for the value of the work, goods, or services that are actually performed or provided by the DBE firm itself or subcontracted by the DBE to other DBE firms.
3. When a DBE performs work as a participant in a joint venture with a non-DBE firm, the Contractor may count toward the DBE goal only that portion of the total dollar value of the Contract equal to the distinctly defined portion of the Contract work that the DBE has performed with the DBE's own forces or in accordance with the provisions of this Section.

The Department shall be contacted in advance regarding any joint venture involving both a DBE firm and a non-DBE firm to coordinate Department review and approval of the joint venture's organizational structure and proposed operation where the Contractor seeks to claim the DBE's credit toward the DBE contract goal.

4. When a DBE subcontracts part of the work of the Contract to another firm, the value of that subcontracted work may be counted toward the DBE contract goal only if the DBE's subcontractor at a lower tier is a certified DBE. Work that a DBE subcontracts to either a non-DBE firm or to a non-certified DBE firm will not count toward the DBE contract goal. The cost of supplies and equipment a DBE subcontractor purchases or leases from the prime Contractor or the prime's affiliated firms will not count toward the Contract goal for DBE participation.
5. The Contractor may count expenditures to a DBE subcontractor toward the DBE contract goal only if the DBE performs a Commercially Useful Function (CUF) on that contract.
6. A Contractor may not count the participation of a DBE subcontractor toward the Contractor's final compliance with the DBE contract goal obligations until the amount being counted has actually been paid to the DBE. A Contractor may count sixty (60) percent of its expenditures actually paid for materials and supplies obtained from a DBE certified as a regular dealer, and one hundred (100) percent of such expenditures actually paid for materials and supplies obtained from a certified DBE manufacturer.
 - a. For the purposes of this Special Provision, a regular dealer is defined as a firm that owns, operates, or maintains a store, warehouse, or other establishment in which the materials, supplies, articles, or equipment required and used under the Contract are bought, kept in stock, and regularly sold or leased to the public in the usual course of business. To be a regular dealer, the DBE firm shall be an established business that regularly engages, as its principal business and under its own name, in the purchase and sale or lease of the products or equipment in question. Packagers, brokers, manufacturers' representatives, or other persons who arrange or expedite transactions will not be considered regular dealers.
 - b. A DBE firm may be a regular dealer in such bulk items as petroleum products, steel, cement, gravel, stone, or asphalt without owning, operating, or maintaining a place of business where it keeps such items in stock if the DBE both owns and operates distribution equipment for the products it sells and provides for the Contract work. Any supplementation of a regular dealer's own distribution equipment shall be by a long-term lease agreement and not on an *ad hoc* or contract-by-contract basis to be eligible for credit to meet the DBE contract goal.
 - c. If a DBE regular dealer is used for DBE contract goal credit, no additional credit will be given for hauling or delivery to the project site goods or materials sold by that DBE regular dealer. Those delivery costs shall be deemed included in the price charged for the goods or materials by the DBE regular dealer, who shall be responsible for their distribution.
 - d. For the purposes of this Special Provision, a manufacturer will be defined as a firm that operates or maintains a factory or establishment that produces on the premises the materials, supplies, articles, or equipment required under the Contract and of the general character described by the project specifications. A manufacturer shall include firms that produce finished goods or products from raw or unfinished material, or purchase and substantially alter goods and materials to make them suitable for construction use before reselling them.

- e. A Contractor may count toward the DBE contract goal the following expenditures to DBE firms that are not regular dealers or manufacturers for DBE program purposes:
- (1) The entire amount of fees or commissions charged by a DBE firm for providing a bona fide service, such as professional, technical, consultant or managerial services, or for providing bonds or insurance specifically required for the performance of the federal-aid contract, if the fee is reasonable and not excessive or greater than would normally be expected by industry standards for the same or similar services.
 - (2) The entire amount of that portion of the construction contract that is performed by the DBE's own forces and equipment under the DBE's supervision. This includes the cost of supplies and materials ordered and paid for by the DBE for contract work, including supplies purchased or equipment leased by the DBE, except supplies and equipment a DBE subcontractor purchases or leases from the prime Contractor or its affiliates.
- f. A Contractor may count toward the DBE contract goal one hundred (100) percent of the fees paid to a DBE trucker or hauler for the delivery of material and supplies required on the project job site, but not for the cost of those materials or supplies themselves, provided that the trucking or hauling fee is determined by VDOT to be reasonable, as compared with fees customarily charged by non-DBE firms for similar services. A Contractor shall not count costs for the removal or relocation of excess material from or on the job site when the DBE trucking company is not the manufacturer of or a regular dealer in those materials and supplies. The DBE trucking firm shall also perform a Commercially Useful Function (CUF) on the project and not operate merely as a pass through for the purposes of gaining credit toward the DBE contract goal. Prior to submitting a bid, the Contractor shall determine, or contact the VDOT Civil Rights Division or its district Offices for assistance in determining, whether a DBE trucking firm will meet the criteria for performing a CUF on the project. See section on **Miscellaneous DBE Program Requirements; Factors used to Determine if a DBE Trucking Firm is Performing a CUF**.
- g. The Contractor will receive DBE contract goal credit for the fees or commissions charged by and paid to a DBE broker who arranges or expedites sales, leases, or other project work or service arrangements provided that those fees are determined by VDOT to be reasonable and not excessive as compared with fees customarily charged by non-DBE firms for similar services. For the purposes of this Special Provision, a broker is defined as a person or firm that regularly engages in arranging for delivery of material, supplies, and equipment, or regularly arranges for the providing of project services as a course of routine business but does not own or operate the delivery equipment necessary to transport materials, supplies, or equipment to or from a job site.

(i) Performing a Commercially Useful Function (CUF)

No credit toward the DBE contract goal will be allowed for contract payments or expenditures to a DBE firm if that DBE firm does not perform a CUF on that contract. A DBE performs a CUF when the DBE is solely responsible for execution of a distinct element of the Contract work and the DBE actually performs, manages, and supervises the work involved with the firm's own forces or in accordance with the provisions of the **DBE Participation for Contract Goal Credit** section of this Special Provision. To perform a CUF the DBE alone shall be responsible and bear the risk for the material and supplies used on the Contract, selecting a supplier or dealer from those available, negotiating price, determining quality and quantity, ordering the material and supplies, installing those materials with the DBE's own forces and equipment, and paying for those materials and supplies. The amount the DBE firm is to be paid under the Contract shall be commensurate with the work the DBE actually performs and the DBE credit claimed for the DBE's performance.

Monitoring CUF Performance: It shall be the Contractor's responsibility to ensure that all DBE firms selected for subcontract work on the Contract, for which he seeks to claim credit toward the Contract goal, perform a CUF. Further, the Contractor is responsible for and shall ensure that each DBE firm fully performs the DBE's designated tasks with the DBE's own forces and equipment under the DBE's own direct supervision and management or in accordance with the provisions of the **DBE Participation for Contract Goal Credit** section of this Special Provision. For the purposes of this provision the DBE's equipment will mean either equipment directly owned by the DBE as evidenced by title, bill of sale or other such documentation, or leased by the DBE, and over which the DBE has control as evidenced by the leasing agreement from a firm not owned in whole or part by the prime Contractor or an affiliate of the Contractor under this contract.

VDOT will monitor the Contractor's DBE involvement during the performance of the Contract. However, VDOT is under no obligation to warn the Contractor that a DBE's participation will not count toward the goal.

DBEs Must Perform a Useful and Necessary Role in Contract Completion: A DBE does not perform a commercially useful function if the DBE's role is limited to that of an extra participant in a transaction, contract, or project through which funds are passed in order to obtain the appearance of DBE participation.

DBEs Must Perform The Contract Work With Their Own Workforces: If a DBE does not perform and exercise responsibility for at least thirty (30) percent of the total cost of the DBE's contract with the DBE's own work force, or the DBE subcontracts a greater portion of the work of a contract than would be expected on the basis of normal industry practice for the type of work involve, VDOT will presume that the DBE is not performing a CUF and such participation will not be counted toward the Contract goal.

VDOT Makes Final Determination On Whether a CUF Is Performed: VDOT has the final authority to determine whether a DBE firm has performed a CUF on a federal-aid contract. To determine whether a DBE is performing or has performed a CUF, VDOT will evaluate the amount of work subcontracted by that DBE firm or performed by other firms and the extent of the involvement of other firms' forces and equipment. Any DBE work performed by the Contractor or by employees or equipment of the Contractor shall be subject to disallowance under the DBE Program, unless the independent validity and need for such an arrangement and work is demonstrated.

(j) Verification of DBE Participation and Imposed Damages

Within fourteen days after contract execution, the Contractor shall submit to the Responsible Engineer, with a copy to the District Civil Rights Office (DCRO), a fully executed subcontract agreement for each DBE used to claim credit in accordance with the requirements stated on Form C-112. The subcontract agreement shall be executed by both parties stating the work to be performed, the details or specifics concerning such work, and the price which will be paid to the DBE subcontractor. Because of the commercial damage that the Contractor and its DBE subcontractor could suffer if their subcontract pricing, terms, and conditions were known to competitors, the Department staff will treat subcontract agreements as proprietary Contractor trade secrets with regard to Freedom of Information Act requests. In lieu of subcontract agreements, purchase orders may be submitted for haulers, suppliers, and manufacturers. These too, will be treated confidentially and protected. Such purchase orders must contain, as a minimum, the following information: authorized signatures of both parties; description of the scope of work to include contract item numbers, quantities, and prices; and required federal contract provisions.

The Contractor shall also furnish, and shall require each subcontractor to furnish, information relative to all DBE involvement on the project for each quarter during the life of the Contract in which participation occurs and verification is available. The information shall be indicated on Form C-63, DBE and SWAM Payment Compliance Report. The department reserves the right to request proof of payment via copies of cancelled checks with appropriate identifying notations. Failure to provide Form C-63 to the District Civil Rights Office (DCRO) within five (5) business days after the reporting period may result in delay of approval of the Contractor's monthly progress estimate for payment. The names and certification numbers of DBE firms provided by the Contractor on the various forms indicated in this Special Provision shall be exactly as shown on the DMBE's or MWAA's latest list of certified DBEs. Signatures on all forms indicated herein shall be those of authorized representatives of the Contractor as shown on the Prequalification Application, Form C-32 or the Prequalification/Certification Renewal Application, Form C-32A, or authorized by letter from the Contractor. If DBE firms are used which have not been previously documented with the Contractor's bid and for which the Contractor now desires to claim credit toward the project goal, the Contractor shall be responsible for submitting necessary documentation in accordance with the procedures stipulated in this Special Provision to cover such work prior to the DBE beginning work.

Form C-63 can be obtained from the VDOT website at: <http://vdotforms.vdot.virginia.gov/>

The Contractor shall submit to the Responsible Engineer its progress schedule with a copy to the DCRO, as required by Section 108.03 of the Specifications or other such specific contract scheduling specification that may include contractual milestones, i.e., monthly or VDOT requested updates. The Contractor shall include a narrative of applicable DBE activities relative to work activities of the Contractor's progress schedule, including the approximate start times and durations of all DBE participation to be claimed for credit that shall result in full achievement of the DBE goal required in the Contract.

On contracts awarded on the basis of good faith efforts, narratives or other agreeable format of schedule information requirements and subsequent progress determination shall be based on the commitment information shown on the latest Form C-111 as compared with the appropriate Form C-63.

Prior to beginning any major component or quarter of the work, as applicable, in which DBE work is to be performed, the Contractor shall furnish a revised Form C-111 showing the name(s) and certification number(s) of any current DBEs not previously submitted who will perform the work during that major component or quarter for which the Contractor seeks to claim credit toward the Contract DBE goal. The Contractor shall obtain the prior approval of the Department for any assistance it may provide to the DBE beyond its existing resources in executing its commitment to the work in accordance with the requirements listed in the **Good Faith Efforts Described** section of this Special Provision. If the Contractor is aware of any assistance beyond a DBE's existing resources that the Contractor, or another subcontractor, may be contemplating or may deem necessary and that have not been previously approved, the Contractor shall submit a new or revised narrative statement for VDOT's approval prior to assistance being rendered.

If the Contractor fails to comply with correctly completing and submitting any of the required documentation requested by this provision within the specified time frames, the Department will withhold payment of the monthly progress estimate until such time as the required submissions are received VDOT. Where such failures to provide required submittals or documentation are repeated the Department will move to enjoin the Contractor and any prime contractual affiliates, as in the case of a joint venture, from bidding as a prime Contractor, or participating as a subcontractor on VDOT projects until such submissions are received.

(k) Documentation Required for Semi-final Payment

On those projects nearing completion, the Contractor must submit Form C-63 marked "Semi-Final" within twenty (20) days after the submission of the last regular monthly progress estimate to the DCRO. The form must include each DBE used on the Contract work and the work performed by each DBE. The form shall include the actual dollar amount paid to each DBE for the accepted creditable work on the Contract. The form shall be certified under penalty of perjury, or other applicable law, to be accurate and complete. VDOT will use this certification and other information available to determine applicable DBE credit allowed to date by VDOT and the extent to which the DBEs were fully paid for that work. The Contractor shall acknowledge by the act of filing the form that the information is supplied to obtain payment regarding a federal participation contract. A letter of certification, signed by both the prime Contractor and appropriate DBEs, will accompany the form, indicating the amount, including any retainage, if present, that remains to be paid to the DBE(s).

(l) Documentation Required for Final Payment

On those projects that are complete, the Contractor shall submit a final Form C-63 marked "Final" to the DCRO, within thirty (30) days of the final estimate. The form must include each DBE used on the Contract and the work performed by each DBE. The form shall include the actual dollar amount paid to each DBE for the creditable work on the Contract. VDOT will use this form and other information available to determine if the Contractor and DBEs have satisfied the DBE contract goal percentage specified in the Contract and the extent to which credit was allowed. The Contractor shall acknowledge by the act of signing and filing the form that the information is supplied to obtain payment regarding a federal participation contract.

(m) Prompt Payment Requirements

The Contractor shall make prompt and full payment to the subcontractor(s) of any retainage held by the prime Contractor after the subcontractor's work is satisfactorily completed.

For purposes of this Special Provision, a subcontractor's work is satisfactorily completed when all the tasks called for in the subcontract have been accomplished, documented, and accepted as required by the contract documents by VDOT. When VDOT has made partial acceptance of a portion of the prime contract, the Department will consider the work of any subcontractor covered by that partial acceptance to be satisfactorily completed. Payment will be made in accordance with the requirements of Section 107.01, Section 109.08, and Section 109.09 of the Specifications.

Upon VDOT's payment of the subcontractor's portion of the work as shown on the monthly progress estimate and the receipt of payment by the Contractor for such work, the Contractor shall make compensation in full to the subcontractor for that portion of the work satisfactorily completed and accepted by the Department. For the purposes of this Special Provision, payment of the subcontractor's portion of the work shall mean the Contractor has issued payment in full, less agreed upon retainage, if any, to the subcontractor for that portion of the subcontractor's work that VDOT paid to the Contractor on the monthly progress estimate.

The Contractor shall make payment of the subcontractor's portion of the work within seven (7) days of the receipt of payment from VDOT in accordance with the requirements of Section 107.01, Section 109.08, and Section 109.09 of the Specifications.

If the Contractor fails to make payment for the subcontractor's portion of the work within the time frame specified herein, the subcontractor shall contact the Responsible Engineer and the Contractor's bonding company in writing. The bonding company and VDOT will investigate the cause for non-payment and, barring mitigating circumstances that would make the subcontractor ineligible for payment, ensure payment in accordance with the requirements of Section 107.01, Section 109.08, and Section 109.09 of the Specifications.

By bidding on this contract, and by accepting and executing this contract, the Contractor agrees to assume these contractual obligations, and to bind the Contractor's subcontractors contractually to those prompt payment requirements.

Nothing contained herein shall preclude the Contractor from withholding payment to the subcontractor in accordance with the terms of the subcontract in order to protect the Contractor from loss or cost of damage due to a breach of agreement by the subcontractor.

(n) Miscellaneous DBE Program Requirements

1. **Loss of DBE Eligibility:** When a DBE firm has been removed from eligibility as a certified DBE firm, the following actions will be taken:
 - a. When a Bidder/Contractor has made a commitment to use a DBE firm that is not currently certified, thereby making the Contractor ineligible to receive DBE participation credit for work performed, and a subcontract has not been executed, the ineligible DBE firm does not count toward either the Contract goal or overall goal. The Contractor shall meet the Contract goal with a DBE firm that is eligible to receive DBE credit for work performed, or must demonstrate to the Contract Engineer that it has made good faith efforts to do so.
 - b. When a Bidder/Contractor has executed a subcontract with a certified DBE firm prior to official notification of the DBE firm's loss of eligibility, the Contractor may continue to use the firm on the Contract and shall continue to receive DBE credit toward its DBE goal for the subcontractor's work.
 - c. When VDOT has executed a prime contract with a DBE firm that is certified at the time of contract execution but that is later ruled ineligible, the portion of the ineligible firm's performance on the Contract before VDOT has issued the notice of its ineligibility shall count toward the Contract goal.
2. **Termination of DBE:** If a certified DBE subcontractor is terminated, or fails, refuses, or is unable to complete the work on the Contract for any reason, the Contractor must promptly request approval to substitute or replace that firm in accordance with this section of this Special Provision.

The Contractor, as aforementioned in **DBE Program-Related Certifications Made by Bidders/Contractors**, shall notify VDOT in writing before terminating and/or replacing the DBE that was committed as a condition of contract award or that is otherwise being used or represented to fulfill DBE contract obligations during the Contract performance period. Written consent from the Department for terminating the performance of any DBE shall be granted only when the Contractor can demonstrate that the DBE is unable, unwilling, or ineligible to perform its obligations for which the Contractor sought credit toward the Contract DBE goal. Such written consent by the Department to terminate any DBE shall concurrently constitute written consent to substitute or replace the terminated DBE with another DBE. Consent to terminate a DBE shall not be based on the Contractor's ability to negotiate a more advantageous contract with another subcontractor whether that subcontractor is, or is not, a certified DBE.

- a. All Contractor requests to terminate, substitute, or replace a certified DBE shall be in writing, and shall include the following information:
 - (1) The date the Contractor determined the DBE to be unwilling, unable, or ineligible to perform.

- (2) The projected date that the Contractor shall require a substitution or replacement DBE to commence work if consent is granted to the request.
 - (3) A brief statement of facts describing and citing specific actions or inaction by the DBE giving rise to the Contractor's assertion that the DBE is unwilling, unable, or ineligible to perform;
 - (4) A brief statement of the affected DBE's capacity and ability to perform the work as determined by the Contractor;
 - (5) A brief statement of facts regarding actions taken by the Contractor which are believed to constitute good faith efforts toward enabling the DBE to perform;
 - (6) The current percentage of work completed on each bid item by the DBE;
 - (7) The total dollar amount currently paid per bid item for work performed by the DBE;
 - (8) The total dollar amount per bid item remaining to be paid to the DBE for work completed, but for which the DBE has not received payment, and with which the Contractor has no dispute;
 - (9) The total dollar amount per bid item remaining to be paid to the DBE for work completed, but for which the DBE has not received payment, and over which the Contractor and/or the DBE have a dispute.
- b. Contractor's Written Notice to DBE of Pending Request to Terminate and Substitute with another DBE.

The Contractor shall send a copy of the "request to terminate and substitute" letter to the affected committed DBE firm, in conjunction with submitting the request to the DCRO. The affected DBE firm may submit a response letter to the Department within two (2) business days of receiving the notice to terminate from the Contractor. The affected DBE firm shall explain its position concerning performance on the committed work. The Department will consider both the Contractor's request and the DBE's response and explanation before approving the Contractor's termination and substitution request, or determining if any action should be taken against the Contractor.

If, after making its best efforts to deliver a copy of the "request to terminate and substitute" letter, the Contractor is unsuccessful in notifying the affected DBE firm, the Department will verify that the affected, committed DBE firm is unable or unwilling to continue the Contract. The Department will immediately approve the Contractor's request for a substitution.

c. Proposed Substitution of Another Certified DBE

Upon termination of a DBE, the Contractor shall use reasonable good faith efforts to replace the terminated DBE. The termination of such DBE shall not relieve the Contractor of its obligations pursuant to this section, and the unpaid portion of the terminated DBE's contract will not be counted toward the Contract goal.

When a DBE substitution is necessary, the Contractor shall submit an amended Form C-111 with the name of another DBE firm, the proposed work to be performed by that firm, and the dollar amount of the work to replace the unfulfilled portion of the work of the originally committed DBE firm. The Contractor shall furnish all pertinent information including the Contract I.D. number, project number, bid item, item description, bid unit and bid quantity, unit price, and total price. In addition, the Contractor shall submit

documentation for the requested substitute DBE as described in this section of this Special Provision.

Should the Contractor be unable to commit the remaining required dollar value to the substitute DBE, the Contractor shall provide written evidence of good faith efforts made to obtain the substitute value requirement. The Department will review the quality, thoroughness, and intensity of those efforts. Efforts that are viewed by VDOT as merely superficial or pro-forma will not be considered good faith efforts to meet the Contract goal for DBE participation. The Contractor must document the steps taken that demonstrated its good faith efforts to obtain participation as set forth in the **Good Faith Efforts Described** section of this Special Provision.

3. Factors Used to determine if a DBE Trucking Firm is performing a CUF:

The following factors will be used to determine whether a DBE trucking company is performing a CUF:

- a. To perform a CUF the DBE trucking firm shall be completely responsible for the management and supervision of the entire trucking operation for which the DBE is responsible by subcontract on a particular contract. There shall not be a contrived arrangement, including, but not limited to, any arrangement that would not customarily and legally exist under regular construction project subcontracting practices for the purpose of meeting the DBE contract goal;
- b. The DBE must own and operate at least one fully licensed, insured, and operational truck used in the performance of the Contract work. This does not include a supervisor's pickup truck or a similar vehicle that is not suitable for and customarily used in hauling the necessary materials or supplies;
- c. The DBE receives full contract goal credit for the total reasonable amount the DBE is paid for the transportation services provided on the Contract using trucks the DBE owns, insures, and operates using drivers that the DBE employs and manages;
- d. The DBE may lease trucks from another certified DBE firm, including from an owner-operator who is certified as a DBE. The DBE firm that leases trucks from another DBE will receive credit for the total fair market value actually paid for transportation services the lessee DBE firm provides on the Contract;
- e. The DBE may also lease trucks from a non-DBE firm, including an owner-operator. The DBE who leases trucks from a non-DBE is entitled to credit for the total value of the transportation services provided by non-DBE lessees, *not to exceed the value of transportation services provided by DBE-owned trucks on the Contract*. For additional participation by non-DBE lessees, the DBE will only receive credit for the fee or commission it receives as a result of the lease arrangement.

EXAMPLE

DBE Firm X uses two (2) of its own trucks on a contract. The firm leases two (2) trucks from DBE Firm Y and six (6) trucks from non-DBE Firm Z.

		Value of Trans. Serv.
<u>Firm X</u>		(For Illustrative Purposes Only)
Truck 1	Owned by DBE	\$100 per day
Truck 2	Owned by DBE	\$100 per day

Firm Y

Truck 1	Leased from DBE	\$110 per day
Truck 2	Leased from DBE	\$110 per day

Firm Z

Truck 1	Leased from Non DBE	\$125 per day
Truck 2	Leased from Non DBE	\$125 per day
Truck 3	Leased from Non DBE	\$125 per day
Truck 4	Leased from Non DBE	\$125 per day
Truck 5	Leased from Non DBE*	\$125 per day
Truck 6	Leased from Non DBE*	\$125 per day

DBE credit would be awarded for the total transportation services provided by DBE Firm X and DBE Firm Y, and may also be awarded for the total value of transportation services by four (4) of the six (6) trucks provided by non-DBE Firm Z (not to exceed the value of transportation services provided by DBE-owned trucks).

Credit = 8 Trucks

Total Value of Transportation Services = \$820

In all, full DBE credit would be allowed for the participation of eight (8) trucks (twice the number of DBE trucks owned and leased) and the dollar value attributable to the Value of Transportation Services provided by the 8 trucks.

* With respect to the other two trucks provided by non-DBE Firm Z, DBE credit could be awarded only for the fees or commissions pertaining to those trucks that DBE Firm X receives as a result of the lease with non-DBE Firm Z.

- f. For purposes of this section, the lease must indicate that the DBE firm leasing the truck has exclusive use of and control over the truck. This will not preclude the leased truck from working for others during the term of the lease with the consent of the DBE, provided the lease gives the DBE absolute priority for and control over the use of the leased truck. Leased trucks must display the name and identification number of the DBE firm that has leased the truck at all times during the life of the lease.
4. **Data Collection:** In accordance with 49CFR Section 26.11, all firms bidding on prime contracts and bidding or quoting subcontracts on federal-aid projects shall provide the following information to the Contract Engineer annually.
 - Firm name
 - Firm address
 - Firm's status as a DBE or non-DBE

- The age of the firm and
- The annual gross receipts of the firm

The means of transmittal and the risk for timely receipt of this information shall be the responsibility of the bidder. However, the above information can be submitted by means of the Annual Gross Receipts Survey as required in the Prequalification/Certification application.

All bidders, including DBE prime Contractor bidders, shall complete and submit to the Contract Engineer the Subcontractor/Supplier Solicitation and Utilization Form C-48 for each bid submitted; to be received within ten (10) business days after the bid opening. Failure of bidders to submit this form in the time frame specified may be cause for disqualification of the bidder and rejection of their bid in accordance with the requirements of this Special Provision, the Contract specifications, and VDOT Road and Bridge specifications.

(o) Suspect Evidence of Criminal Behavior

Failure of a bidder, Contractor, or subcontractor to comply with the Virginia Department of Transportation Road and Bridge Specifications and these Special Provisions wherein there appears to be evidence of criminal conduct shall be referred to the Attorney General for the Commonwealth of Virginia and/or the FHWA Inspector General for criminal investigation and, if warranted, prosecution.

Suspected DBE Fraud

In appropriate cases, VDOT will bring to the attention of the U. S. Department of Transportation (USDOT) any appearance of false, fraudulent, or dishonest conduct in connection with the DBE program, so that USDOT can take the steps, e.g., referral to the Department of Justice for criminal prosecution, referral to the USDOT Inspector General, action under suspension and debarment or Program Fraud and Civil Penalties rules provided in 49CFR Part 31.

(p) Summary of Remedies for Non-Compliance with DBE Program Requirements

Failure of any bidder\Contractor to comply with the requirements of this Special Provision for Section 107.15 of the Virginia Road and Bridge Specifications, which is deemed to be a condition of bidding, or where a contract exists, is deemed to constitute a breach of contract shall be remedied in accordance with the following:

1. Disadvantaged Business Enterprise (DBE) Program Requirements

The Contractor shall carry out applicable requirements of 49 CFR Part 26 in the award, administration, and performance of this contract. Failure by the Contractor to carry out these requirements is a material breach of this contract, which will result in the termination of this contract or other such remedy, as VDOT deems appropriate.

All administrative remedies noted in this provision are automatic unless the Contractor exercises the right of appeal within the required timeframe(s) specified herein.

2. DBE Program-Related Certifications Made by Bidders\Contractors

Once awarded the contract, the Contractor shall comply fully with all regulatory and contractual requirements of the USDOT DBE Program, and that each certified DBE firm participating in the Contract shall fully perform the designated work items with the DBE's own forces and equipment under the DBE's direct supervision, control, and management. Where a contract exists and where the Contractor, DBE firm, or any other firm retained by the Contractor has failed to comply with federal or VDOT DBE Program regulations and/or their

requirements on that contract, VDOT has the authority and discretion to determine the extent to which the DBE contract requirements have not been met, and will assess against the Contractor any remedies available at law or provided in the Contract in the event of such a contract breach.

3. Disqualification of Bidder

Bidders may be disqualified from bidding for failure to comply with the requirements of this Special Provision, the Contract specifications, and VDOT Road and Bridge Specifications.

4. Bidding Procedures

The failure of a bidder to submit the required documentation within the timeframes specified in the **Contract Goal, Good Faith Efforts Specified** section of this Special Provision may be cause for rejection of that bidder's bid. If the lowest bidder is rejected for failure to submit required documentation in the specified time frames, the Department may either award the work to the next lowest bidder, or re-advertise and construct the work under contract or otherwise as determined by the Commonwealth.

In order to award a contract to a bidder that has failed to meet DBE contract goal requirements, VDOT will determine if the bidder's efforts were adequate good faith efforts, and if given all relevant circumstances, those efforts were to the extent a bidder actively and aggressively seeking to meet the requirements would make. Regardless of the DBE contract goal participation level proposed by the bidder or the extent of good faith efforts shown, all bidders shall timely and separately file their completed and executed Forms C-111, C-112, C-48, and Form C-49, as aforementioned, or face potential bid rejection. If a bidder does not submit its completed and executed C-111, or C-112, when required by this Special Provision, the bidder's bid will be considered non-responsive and may be rejected. If, after reconsideration, the Department determines the bidder has failed to meet the requirements of the Contract goal and has failed to make adequate good faith efforts to achieve the level of DBE participation as specified in the bid proposal, the bidder's bid will be rejected. If sufficient documented evidence is presented to demonstrate that the apparent low bidder made reasonable good faith efforts, the Department will award the Contract and reduce the DBE requirement to the actual commitment identified by the lowest successful bidder at the time of its bid. The Contractor is encouraged to seek additional participation during the life of the Contract.

If the Contractor fails to conform to the schedule of DBE participation as shown on the progress schedule, or at any point at which it is clearly evident that the remaining dollar value of allowable credit for performing work is insufficient to obtain the scheduled participation, the Contractor and any aforementioned affiliates may be enjoined from bidding for 60 days or until such time as conformance with the schedule of DBE participation is achieved. In such instances, the Contractor is expected to seek DBE participation towards meeting the goal during the prosecution of the Contract.

If the Contractor fails upon completion of the project to meet the required participation, the Contractor and any prime contractual affiliates, as in the case of a joint venture, may be enjoined from bidding as a prime Contractor, or participating as a subcontractor on VDOT projects for a period of 90 days.

Prior to injunction from bidding or denial to participate as a subcontractor for failure to comply with participation requirements, as provided hereinbefore, the Contractor may submit documentation to the State Construction Engineer to substantiate that failure was due solely to quantitative underrun(s) or elimination of items subcontracted to DBEs, and that all feasible means have been used to obtain the required participation. The State Construction Engineer

upon verification of such documentation shall make a determination whether or not the Contractor has met the requirements of the Contract.

If it is determined that the aforementioned documentation is insufficient or the failure to meet required participation is due to other reasons, the Contractor may request an appearance before the Administrative Reconsideration Panel to establish that all feasible means were used to meet such participation requirements. The decision of the Administrative Reconsideration Panel shall be administratively final. The injunction period will begin upon the Contractor's failure to request a hearing within the designated time frame or upon the Administrative Reconsideration Panel's decision to enjoin, as applicable.

5. Verification of DBE Participation and Imposed Damages

If the Contractor fails to comply with correctly completing and submitting any of the required documentation requested by this provision within the specified time frames, the Department will withhold payment of the monthly progress estimate until such time as the required submissions are received by VDOT. Where such failures to provide required submittals or documentation are repeated the Department will move to enjoin the Contractor and any prime contractual affiliates, as in the case of a joint venture, from bidding as a prime Contractor, or participating as a subcontractor on VDOT projects until such submissions are received.

(q) Suspect Evidence of Criminal Behavior

In addition to the remedies described heretofore in this provision VDOT also exercises its rights with respect to the following remedies:

- Failure of a bidder, Contractor, or subcontractor to comply with the Virginia Department of Transportation Road and Bridge Specifications and these Special Provisions wherein there appears to be evidence of criminal conduct shall be referred to the Attorney General for the Commonwealth of Virginia and/or the FHWA Inspector General for criminal investigation and, if warranted prosecution.
- In appropriate cases, VDOT will bring to the attention of the U. S. Department of Transportation (USDOT) any appearance of false, fraudulent, or dishonest conduct in connection with the DBE program, so that USDOT can take the steps, e.g., referral to the Department of Justice for criminal prosecution, referral to the USDOT Inspector General, action under suspension and debarment or Program Fraud and Civil Penalties rules provided in 49CFR Part 31.

Form C-31
Rev. 02-04-19
Page 1 of 2

Proposed Subcontractor: _____ Vendor No.: _____

*Total quantities and/or the unit price being sublet cannot exceed the contract quantity and/or the contract unit price. An explanation shall be provided if the quantity and/or unit price shown is less than the contract quantity and/or unit price.

Total on this Page:	\$	\$ 0.00
Total on Supplemental Pages:	\$	
Grand Total Requested:	\$	\$ 0.00

Contract ID No.: _____ Sublet No.: _____ Dept. Use Only _____

As an authorized representative of the below listed subcontractor, I certify that the actual subcontract agreement for which this sublet approval request is made contains the stipulations in the "Required Contract Provision Federal-Aid Construction Contracts." (If contained in the contract for the above listed project). I have reviewed, understand, and agree to comply with these stipulations.

Name of Subcontractor

Address

City, State, and Zip

Phone Number

Print Name

Signature (Officer of Subcontractor)

Title

Date

Please Check Appropriate Certification:

☐ DBE Certified

☐ SWAM Certified

☐ NON-DBE/NON-SWAM

DBE Certification # _____

SWAM Certification # _____

As an authorized representative of the prime contractor, I certify that this sublet meets and is in accordance with the requirements of the contract for the above project between the undersigned contractor and the Commonwealth of Virginia/ Virginia Department of Transportation. I certify that the actual subcontract agreement for which this sublet approval request is made contains the stipulations in the "Required Contract Provisions Federal-Aid Construction Contracts". (If contained in the contract for the above listed project).

Name of Prime Contractor

Address

City, State, and Zip

Phone Number

\$ _____

Actual Amount of Subcontract

Print Name

Signature (Officer of Prime Contractor)

Title

Date

VDOT Approval of Contractor's Subletting Request

RECOMMENDED FOR APPROVAL

APPROVED

Signature of District Engineer (or Designee) Date

Signature of District Engineer (or Designee) Date

Total amount of approved sublets to date including this sublet: \$ _____

Total percent of original contract value sublet including this sublet: _____ %

Original—District File

Copy—Civil Rights Division, Central Office

**COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
SUBCONTRACTOR/SUPPLIER SOLICITATION AND UTILIZATION FORM
(ALL BIDDERS)**

PROJECT NO. U000-127-S11, UPC 110843 CONTRACT I.D. NO. _____
FHWA NO. HSIP-5A27(670) DATE SUBMITTED _____

All bidders, including DBEs bidding as Prime Contractors, shall complete and submit the following information as requested in this form within ten (10) business days after the opening of bids.

The bidder certifies this form accurately represents its solicitation and utilization or non-utilization, as indicated, of the firms listed below for performance of work on this contract. The bidder also certifies he/she has had direct contact with the named firms regarding participation on this project.

BIDDER _____ SIGNATURE _____

TITLE _____

SUBCONTRACTOR/SUPPLIER SOLICITATION AND UTILIZATION (ALL)

VENDOR NUMBER	NAME OF SUBCONTRACTOR/SUPPLIER	TELEPHONE NUMBER	DBE OR NON-DBE	UTILIZED (Y/N)

NOTE: ATTACH ADDITIONAL PAGES, IF NECESSARY.

BIDDER MUST SIGN EACH ADDITIONAL SHEET TO CERTIFY ITS CONTENT AND COMPLETION OF FORM.

BIDDER MUST SIGN EACH ADDITIONAL SHEET TO CERTIFY ITS CONTENT AND COMPLETION OF FORM.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
DBE GOOD FAITH EFFORTS DOCUMENTATION

--DO NOT DETACH--

**THIS INFORMATION MUST BE SUBMITTED
WITHIN 2 DAYS AFTER BID OPENING IF YOUR
BID DOES NOT MEET THE PROJECT DBE
REQUIREMENTS, OR
WHEN REQUESTED BY VDOT**

CONTRACT I.D. NUMBER _____

PROJECT NUMBER U000-127-S11, UPC 110843

FHWA NUMBER HSIP-5A27(670)

DISTRICT _____

DATE BID SUBMITTED _____

BIDDER'S NAME _____

SIGNATURE _____

TITLE _____

VENDOR NUMBER _____

DBE GOAL FROM BID PROPOSAL _____

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
DBE GOOD FAITH EFFORTS DOCUMENTATION

CONTRACT I.D. NO. _____ DATE SUBMITTED _____

IF THE DBE GOAL ESTABLISHED FOR THIS CONTRACT HAS NOT BEEN MET OR VDOT REQUESTS THE SUBMITTAL THEREOF, THE BIDDER IS REQUIRED TO SUBMIT GOOD FAITH EFFORTS AS OUTLINED IN THIS DOCUMENT.

THE BIDDER ACKNOWLEDGES AND CERTIFIES THAT THIS FORM ACCURATELY REPRESENTS THE INFORMATION CONTAINED HEREIN.

BIDDER _____ SIGNATURE _____

TITLE _____

NAMES OF CERTIFIED DBEs AND THE DATES ON WHICH THEY WERE SOLICITED TO BID ON THIS PROJECT

INCLUDE THE ITEMS OF WORK OFFERED AND THE DATES AND METHODS USED FOR FOLLOWING UP INITIAL SOLICITATIONS TO DETERMINE WHETHER OR NOT DBEs WERE INTERESTED.

NAMES AND VENDOR NUMBERS OF DBEs SOLICITED	DATE OF INITIAL SOLICITATION	ITEM(S) OF WORK	FOLLOW-UP METHODS AND DATES

NOTE: ATTACH ADDITIONAL PAGES IF NECESSARY

ATTACH COPIES OF SOLICITATIONS, TELEPHONE RECORDS, FAX CONFIRMATIONS, ELECTRONIC INFORMATION, ETC.

CONTRACT I.D. NO. _____ DATE SUBMITTED _____

THE BIDDER ACKNOWLEDGES AND CERTIFIES THAT THIS FORM ACCURATELY REPRESENTS THE INFORMATION CONTAINED HEREIN.

BIDDER _____ **SIGNATURE** _____

[illegible]

TELEPHONE LOG

DBE(s) CALLED	TELEPHONE NUMBER	DATE CALLED	TIME CALLED	CONTACT PERSON OR VOICE MAIL STATUS

NOTE: ATTACH ADDITIONAL PAGES IF NECESSARY

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
DBE GOOD FAITH EFFORTS DOCUMENTATION

CONTRACT I.D. NO. _____ DATE SUBMITTED _____

IF THE DBE GOAL ESTABLISHED FOR THIS CONTRACT HAS NOT BEEN MET OR VDOT REQUESTS THE SUBMITTAL THEREOF, THE BIDDER IS REQUIRED TO SUBMIT GOOD FAITH EFFORTS AS OUTLINED IN THIS DOCUMENT.

THE BIDDER ACKNOWLEDGES AND CERTIFIES THAT THIS FORM ACCURATELY REPRESENTS THE INFORMATION CONTAINED HEREIN.

BIDDER _____ SIGNATURE _____

TITLE _____

ITEM(S) OF WORK THAT THE BIDDER MADE AVAILABLE TO DBE FIRMS

IDENTIFY THOSE ITEM(S) OF WORK THAT THE BIDDER MADE AVAILABLE TO DBE FIRMS OR THOSE ITEM(S) THE BIDDER IDENTIFIED AND DETERMINED TO SUBDIVIDE INTO ECONOMICALLY FEASIBLE UNITS TO FACILITATE DBE PARTICIPATION. FOR EACH ITEM LISTED, SHOW THE DOLLAR VALUE AND PERCENTAGE OF THE TOTAL CONTRACT AMOUNT. IT IS THE BIDDER'S RESPONSIBILITY TO DEMONSTRATE THAT SUFFICIENT WORK TO MEET THE GOAL WAS MADE AVAILABLE TO DBE FIRMS.

ITEM(S) OF WORK MADE AVAILABLE	BIDDER NORMALLY PERFORMS ITEM(S) (Y/N)	ITEM(S) BROKEN DOWN TO FACILITATE PARTICIPATION (Y/N)	AMOUNT IN DOLLARS	PERCENTAGE OF CONTRACT

NOTE: INFORMATION REQUIRED FOR THIS SECTION CONTINUED ON SHEET 5
ATTACH ADDITIONAL PAGES IF NECESSARY

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
DBE GOOD FAITH EFFORTS DOCUMENTATION

CONTRACT I.D. NO. _____ DATE SUBMITTED _____

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THE BIDDER ACKNOWLEDGES AND CERTIFIES THAT THIS FORM ACCURATELY REPRESENTS THE INFORMATION CONTAINED HEREIN.

BIDDER _____ SIGNATURE _____

TITLE _____

**ADDITIONAL INFORMATION REGARDING ITEM(S) OF WORK THAT THE
BIDDER MADE AVAILABLE TO DBE FIRMS** (Continued From Sheet 4)

ITEM(S) OF WORK MADE AVAILABLE, NAMES OF SELECTED FIRMS AND DBE STATUS, DBEs THAT PROVIDED QUOTES, PRICE QUOTE FOR EACH FIRM, AND THE PRICE DIFFERENCE FOR EACH DBE IF THE SELECTED FIRM IS NOT A DBE.

ITEM(S) OF WORK MADE AVAILABLE(CONT.)	NAME OF SELECTED FIRM AND VENDOR NUMBER	DBE OR NON-DBE	NAME OF REJECTED FIRM(S)	QUOTE IN DOLLARS	PRICE DIFFERENCE IN DOLLARS

NOTE: ATTACH ADDITIONAL PAGES IF NECESSARY.

IF THE FIRM SELECTED FOR THE ITEM IS NOT A DBE, PROVIDE THE REASON(S) FOR THE SELECTION ON A SEPARATE PAGE AND ATTACH.

PROVIDE NAMES, ADDRESSES, AND TELEPHONE NUMBERS FOR THE FIRMS LISTED ABOVE.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
DBE GOOD FAITH EFFORTS DOCUMENTATION

CONTRACT I.D. NO. _____ DATE SUBMITTED _____

IF THE DBE GOAL ESTABLISHED FOR THIS CONTRACT HAS NOT BEEN MET OR VDOT REQUESTS THE SUBMITTAL THEREOF, THE BIDDER IS REQUIRED TO SUBMIT GOOD FAITH EFFORTS AS OUTLINED IN THIS DOCUMENT.

THE BIDDER ACKNOWLEDGES AND CERTIFIES THAT THIS FORM ACCURATELY REPRESENTS THE INFORMATION CONTAINED HEREIN.

BIDDER _____ SIGNATURE _____

TITLE _____

ADVERTISEMENTS OR PROOFS OF PUBLICATION.

NAMES AND DATES OF EACH PUBLICATION IN WHICH A REQUEST FOR DBE PARTICIPATION FOR THE PROJECT WAS PLACED BY THE BIDDER. ATTACH COPIES OF PUBLISHED ADVERTISEMENTS OR PROOFS OF PUBLICATION.

PUBLICATIONS	DATES OF ADVERTISEMENT

NOTE: ATTACH ADDITIONAL PAGES IF NECESSARY

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
DBE GOOD FAITH EFFORTS DOCUMENTATION

CONTRACT I.D. NO. _____ DATE SUBMITTED _____

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THE BIDDER ACKNOWLEDGES AND CERTIFIES THAT THIS FORM ACCURATELY REPRESENTS THE INFORMATION CONTAINED HEREIN.

BIDDER _____ SIGNATURE _____

TITLE _____

NAMES OF AGENCIES CONTACTED TO PROVIDE ASSISTANCE

NAMES OF AGENCIES (SEE SPECIAL PROVISION FOR 107.15) AND THE DATES THESE AGENCIES WERE CONTACTED TO PROVIDE ASSISTANCE IN CONTACTING, RECRUITING, AND USING DBE FIRMS. IF THE AGENCIES WERE CONTACTED IN WRITING, ATTACH COPIES OF SUPPORTING DOCUMENTS.

NAME OF AGENCY	METHOD AND DATE OF CONTACT	RESULTS

NOTE: ATTACH ADDITIONAL PAGES IF NECESSARY.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
DBE GOOD FAITH EFFORTS DOCUMENTATION

CONTRACT I.D. NO. _____ DATE SUBMITTED _____

IF THE DBE GOAL ESTABLISHED FOR THIS CONTRACT HAS NOT BEEN MET OR VDOT REQUESTS THE SUBMITTAL THEREOF, THE BIDDER IS REQUIRED TO SUBMIT GOOD FAITH EFFORTS AS OUTLINED IN THIS DOCUMENT.

THE BIDDER ACKNOWLEDGES AND CERTIFIES THAT THIS FORM ACCURATELY REPRESENTS THE INFORMATION CONTAINED HEREIN.

BIDDER _____ SIGNATURE _____

TITLE _____

TECHNICAL ASSISTANCE AND INFORMATION PROVIDED TO DBEs

EFFORTS MADE TO PROVIDE INTERESTED DBEs WITH ADEQUATE INFORMATION ABOUT THE PLANS, SPECIFICATIONS, AND REQUIREMENTS OF THE BID DOCUMENTS TO ASSIST THE DBEs IN RESPONDING TO A SOLICITATION.

IDENTIFY THE DBEs ASSISTED, THE INFORMATION PROVIDED, AND THE DATE OF CONTACT. ATTACH COPIES OF SUPPORTING DOCUMENTS.

DBEs ASSISTED	INFORMATION PROVIDED	DATE OF CONTACT

NOTE: ATTACH ADDITIONAL PAGES IF NECESSARY.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
DBE GOOD FAITH EFFORTS DOCUMENTATION

CONTRACT I.D. NO. _____ DATE SUBMITTED _____

IF THE DBE GOAL ESTABLISHED FOR THIS CONTRACT HAS NOT BEEN MET OR VDOT REQUESTS THE SUBMITTAL THEREOF, THE BIDDER IS REQUIRED TO SUBMIT GOOD FAITH EFFORTS AS OUTLINED IN THIS DOCUMENT.

THE BIDDER ACKNOWLEDGES AND CERTIFIES THAT THIS FORM ACCURATELY REPRESENTS THE INFORMATION CONTAINED HEREIN.

BIDDER _____ SIGNATURE _____

TITLE _____

**EFFORTS MADE TO ASSIST DBEs OBTAIN BONDING, LINES OF CREDIT,
INSURANCE, ETC.**

EFFORTS MADE TO PROVIDE INTERESTED DBEs IN OBTAINING BONDING, LINES OF CREDIT, INSURANCE, NECESSARY EQUIPMENT, SUPPLIES, MATERIALS, OR RELATED ASSISTANCE OR SERVICES, EXCLUDING SUPPLIES AND EQUIPMENT THE SUBCONTRACTOR PURCHASES OR LEASES FROM THE PRIME CONTRACTOR OR ITS AFFILIATES.

IDENTIFY THE DBEs ASSISTED, THE ASSISTANCE OFFERED, AND THE DATES OF SERVICES OFFERED AND PROVIDED. ATTACH COPIES OF SUPPORTING DOCUMENTS.

DBEs ASSISTED	ASSISTANCE OFFERED	DATES SERVICES OFFERED AND/OR PROVIDED

NOTE: ATTACH ADDITIONAL PAGES IF NECESSARY.

CONTRACT I.D. NO. _____ DATE SUBMITTED _____

THE BIDDER ACKNOWLEDGES AND CERTIFIES THAT THIS FORM ACCURATELY REPRESENTS THE INFORMATION CONTAINED HEREIN.

BIDDER _____ **SIGNATURE** _____

TITLE	DATE	TIME	LOCATION	STATUS
1. [Illegible Title]	1964	10:00	Room 101	Completed
2. [Illegible Title]	1964	11:00	Room 101	Completed
3. [Illegible Title]	1964	12:00	Room 101	Completed
4. [Illegible Title]	1964	13:00	Room 101	Completed
5. [Illegible Title]	1964	14:00	Room 101	Completed
6. [Illegible Title]	1964	15:00	Room 101	Completed
7. [Illegible Title]	1964	16:00	Room 101	Completed
8. [Illegible Title]	1964	17:00	Room 101	Completed
9. [Illegible Title]	1964	18:00	Room 101	Completed
10. [Illegible Title]	1964	19:00	Room 101	Completed
11. [Illegible Title]	1964	20:00	Room 101	Completed
12. [Illegible Title]	1964	21:00	Room 101	Completed
13. [Illegible Title]	1964	22:00	Room 101	Completed
14. [Illegible Title]	1964	23:00	Room 101	Completed
15. [Illegible Title]	1964	24:00	Room 101	Completed

ADDITIONAL DATA TO SUPPORT DEMONSTRATION OF GOOD FAITH EFFORTS

ADDITIONAL DATA TO SUPPORT DEMONSTRATION OF GOOD FAITH EFFORTS

NOTE: ATTACH ADDITIONAL PAGES, IF NECESSARY

U.S. DEPARTMENT OF
LABOR
Wage and Hour and Public
Contracts Division

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
STATEMENT OF COMPLIANCE

Form Approved
Budget Bureau No. 44-R1093

Date 555555

I, _____ do hereby state:
(Name of signatory party) (Title)

(1) That I pay or supervise the payment of the persons employed by _____ on
(Contractor or subcontractor)
the _____; that during the payroll period commencing on the _____ day of _____
(Building or work)
20 _____ and ending the _____ day of _____, 20 _____, all persons employed on said project have been paid the full weekly
wages earned, that no rebates have been or will be made directly or indirectly to or on behalf of said _____
_____ from the full weekly wages earned by any person and that no deductions have been made
(Contractor or Subcontractor)

either directly or indirectly from the full wages earned by any person, other than permissible deductions as defined in Regulations, Part 3 (29 CFR Subtitle A), issued by the Secretary of Labor under the Copeland Act as amended (48 Stat. 948.63 Stat. 108, 72 Stat. 967, 76 Stat. 357; 40 USC. 276c), and described below:

(2) That any payrolls otherwise under this contract required to be submitted for the above period are correct and complete: that the wage rates for laborers or mechanics contained therein are not less than the applicable wage rates contained in any wage determination incorporated into the contract; that the classifications set forth therein for each laborer or mechanic conform with the work he performed.

(3) That any apprentices employed in the above period are duly registered in a bona fide apprenticeship program registered with a State apprenticeship agency recognized by the Bureau of Apprenticeship and Training, United States Department of Labor, or if no such recognized agency exists in a State, are registered with the Bureau of Apprenticeship and Training, United States Department of Labor.

(4) That:

(a) WHERE FRINGE BENEFITS ARE PAID TO APPROVED PLANS, FUNDS, OR PROGRAMS

In addition to the basic hourly wage rates paid to each laborer or mechanic listed in the above referenced payroll, payments of fringe benefits as listed in the contract have been or will be made to appropriate programs for the benefit of such employees, except as noted in Section 4(c) below.

or

(b) WHERE FRINGE BENEFITS ARE PAID IN CASH

Each Laborer or mechanic listed in the above referenced payroll has been paid as indicated on the payroll, an amount not less than the sum of the applicable basic hourly wage rate plus the amount of the required fringe benefits as listed in the contract, except as noted in section 4(c) below.

(c) EXCEPTIONS

EXCEPTION (CRAFT)	EXPLANATION
Remarks	

Name and Title	Signature
The willful falsification of any of the above statements may subject the contractor or subcontractor to civil or criminal prosecution. See Section 1001 of Title 18 and Section 231 of Title 31 of the United States code.	

INSTRUCTIONS FOR PREPARATION OF STATEMENT OF COMPLIANCE

This statement of compliance meets needs resulting from the amendment of the Davis-Bacon Act to include fringe benefits provisions. Under this amended law, the contractor is required to pay fringe benefits as predetermined by the Department of Labor, in addition to payment to the minimum rates. The contractor's obligation to pay fringe benefits may be met by payment of the fringes to the various plans, funds, or programs or by making these payments to the employees as cash in lieu of fringes.

The contractor should show on the face of his payroll all monies paid to the employees whether as basic rates or as cash in lieu of fringes. The contractor shall represent in the statement of compliance that he is paying to others fringes required by the contract and not paid as cash in lieu of fringes. Detailed instructions follow:

Contractors who pay all required fringe benefits:

A contractor who pays fringe benefits to approved plans, funds, or programs in amounts not less than were determined in the applicable wage decision of the Secretary of Labor shall continue to show on the face of his payroll the basic cash hourly rate and overtime rate paid to his employees, just as he has always done. Such a contractor shall check paragraph 4(a) of the statement to indicate that he is also paying to approved plans, funds, or programs not less than the amount pre-determined as fringe benefits for each craft. Any exception shall be noted in Section 4(c).

Contractors who pay no fringe benefits:

A contractor who pays no fringe benefits shall pay to the employee and insert in the straight time hourly rate column of his payroll an amount not less than the predetermined rate for each classification plus the amount of fringe benefits determined for each classification in the applicable wage decision. Inasmuch as it is not necessary to pay time and a half on cash paid in lieu of fringes, the overtime rate shall not be less than the sum of the basic predetermined rate, plus the half time premium on the basic or regular rate plus the required cash in lieu of fringes at the straighttime rate. To simplify computation of overtime, it is suggested that the straight time basic rate and cash in lieu of fringes be separately stated in the hourly rate column, thus \$3.25/.40. In addition, the contractor shall check paragraph 4(b) of the statement to indicated that he is paying fringe benefits in cash directly to his employees. Any exceptions shall be noted in Section 4(c).

Use of Section 4(c), Exceptions

Any contractor who is making payment to approved plans, funds, or programs in amounts less than the wage determination requires is obliged to pay the deficiency directly to the employees as cash in lieu of fringes. Any exceptions to Section 4(a) or 4(b), whichever the contractor may check, shall be entered in Section 4(c). Enter in the Exception column the craft, and enter in the Explanation column the hourly amount paid the employees as cash in lieu of fringes, and the hourly amount paid to plans, funds or programs as fringes.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
HIGHWAY CONSTRUCTION CONTRACTORS
MONTHLY EEO REPORT

REPORT for the MONTH & YEAR of

Project No. _____

Contract ID No. _____

MONTHLY EEO REPORT

1. MARK APPROPRIATE BLOCK ☐ Contractor ☐ Subcontractor	2. COMPANY NAME, CITY, STATE: _____	3. FED PROJECT No: _____	4. DOLLAR AMOUNT OF CONTRACT: _____	5. TYPE OF CONSTRUCTION _____
6. COUNTY AND STATE _____	7. PERCENT COMPLETE _____	8. BEGINNING CONSTRUCTION DATE _____	9. ESTIMATED PEAK EMPLOYMENT MONTH & YEAR (a) _____	NO OF EMPLOYEES (b) _____

10. EMPLOYMENT DATA

JOB CATEGORIES	TABLE A										TABLE B											
	TOTAL EMPLOYED		TOTAL RACIAL/ ETHNIC MINORITY		BLACK or AFRICAN		HISPANIC OR LATINO		AMERICAN INDIAN OR ALASKA		ASIAN		NATIVE HAWAIIAN OR OTHER		TWO OR MORE RACES		WHITE		APPRENTICES		ON THE JOB TRAINEES	
	M	F	M	F	M	F	M	F	M	F	M	F	M	F	M	F	M	F	M	F	M	F
OFFICIALS																						
SUPERVISORS																						
FOREMEN/WOMEN																						
CLERICAL																						
EQUIPMENT OPERATORS																						
MECHANICS																						
TRUCK DRIVERS																						
IRONWORKERS																						
CARPENTERS																						
CEMENT MASONS																						
ELECTRICIANS																						
PIPEFITTER/PLUMBERS																						
PAINTERS																						
LABORERS-SEMI SKILLED																						
LABORERS-UNSKILLED																						
TOTAL																						

APPRENTICES																						
OUT TRAINEES																						
8. PREPARED BY: (Signature and Title of Contractors Representative)		9. DATE																				

EMPLOYEE RIGHTS UNDER THE DAVIS-BACON ACT

FOR LABORERS AND MECHANICS EMPLOYED ON FEDERAL OR FEDERALLY ASSISTED CONSTRUCTION PROJECTS

THE UNITED STATES DEPARTMENT OF LABOR WAGE AND HOUR DIVISION

PREVAILING WAGES

You must be paid not less than the wage rate listed in the Davis-Bacon Wage Decision posted with this Notice for the work you perform.

OVERTIME

You must be paid not less than one and one-half times your basic rate of pay for all hours worked over 40 in a work week. There are few exceptions.

ENFORCEMENT

Contract payments can be withheld to ensure workers receive wages and overtime pay due, and liquidated damages may apply if overtime pay requirements are not met. Davis-Bacon contract clauses allow contract termination and debarment of contractors from future federal contracts for up to three years. A contractor who falsifies certified payroll records or induces wage kickbacks may be subject to civil or criminal prosecution, fines and/or imprisonment.

APPRENTICES

Apprentice rates apply only to apprentices properly registered under approved Federal or State apprenticeship programs.

PROPER PAY

If you do not receive proper pay, or require further information on the applicable wages, contact the Contracting Officer listed below:

or contact the U.S. Department of Labor's Wage and Hour Division.



For additional information:

1-866-4-USWAGE

(1-866-487-9243) TTY: 1-877-889-5627



WWW.WAGEHOUR.DOL.GOV



U.S. Department
of Transportation
**Federal Highway
Administration**

NOTICE

The highway construction underway at this location is a Federal or Federal-aid project and is subject to applicable State and Federal laws, including Title 18, United States Code, Section 1020, which reads as follows:

"Whoever, being an officer, agent, or employer of the United States, or of any State or territory, or whoever, whether a person, association, firm, or corporation, knowingly makes any false statement, false representation, or false report as to the character, quality, quantity, or cost of the material used or to be used, or the quantity or quality of the work performed or to be performed, or the costs thereof in connection with the submission of plans, maps, specifications, contracts, or costs of construction of any highway or related project submitted for approval to the Secretary of Transportation; or

Whoever knowingly makes any false statement, false representation, false report, or false claim with respect to the character, quality, quantity, or cost of any work performed or to be performed, or materials furnished or to be furnished, in connection with the construction of any highway or related project approved by the Secretary of Transportation; or

Whoever knowingly makes any false statement or false representation as to a material fact in any statement, certificate, or report submitted pursuant to the provisions of the Federal-Aid Road Act approved July 11, 1916 (39 Stat. 355), as amended and supplemented,

"Shall be fined under this title or imprisoned not more than five years, or both."

Any person having reason to believe this statute is being violated should report the same to the agency representative(s) named below.

(Federal-aid projects only)
State Highway Department

(Both Federal and Federal-aid projects)
**Federal Highway
Division Administrator**

(Both Federal and Federal-aid projects)
**Department of Transportation
Office of Inspector General
Toll free Hotline
1-800-424-9071**

EMPLOYEE RIGHTS

UNDER THE DAVIS-BACON ACT

FOR LABORERS AND MECHANICS EMPLOYED ON FEDERAL OR FEDERALLY ASSISTED CONSTRUCTION PROJECTS

PREVAILING WAGES

You must be paid not less than the wage rate listed in the Davis-Bacon Wage Decision posted with this Notice for the work you perform.

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Apprentice rates apply only to apprentices properly registered under approved Federal or State apprenticeship programs.

PROPER PAY

If you do not receive proper pay, or require further information on the applicable wages, contact the Contracting Officer listed below:

or contact the U.S. Department of Labor's Wage and Hour Division.



WAGE AND HOUR DIVISION
UNITED STATES DEPARTMENT OF LABOR

1-866-487-9243
TTY: 1-877-889-5627
www.dol.gov/whd



WN1321 REV 10/17

I/WE certify under penalty of law that the information provided herein is accurate, current, and complete to the best of my/our knowledge.

Signature and Title of Company Official _____ Date _____

Print Name and Phone Number of Individual _____

Completing Report

**VIRGINIA DEPARTMENT OF TRANSPORTATION
INSTRUCTIONS FOR
VENDOR PAYMENT COMPLIANCE REPORT C-63**

The Prime Contractor is required to submit a Vendor Payment Compliance Report and document all payments made to all vendors during the designated quarterly reporting period. All amounts paid to vendors are subject to monitoring and enforcement mechanisms. It is the responsibility of the prime contractor to provide evidence of vendor payments in response to monitoring and enforcement compliance reviews.

The instructions below correspond to each item on the report. Please follow the instructions.

- 1a. **Report No.**
Indicate the number of the report you are sending in sequence. For example: If this is the second report you are submitting for the contract, enter Report No. 2.
- 1b. **Report Period**
Indicate the reporting period based on the Reporting Schedule listed in these instructions.
- 2a. **Funding Source**
Indicate the primary funding source: Federally Funded, Federally Funded Local Government .
- 2b. **Contractor/Subcontractor**
Enter your company's name
- 2c. **Contract I.D. No.**
Enter the contract identification number assigned to your project.
- 2d. **Date of Execution**
Enter the date the contract was executed.
- 2e. **District**
Enter the VDOT District where the project under contract is located.
3. **Vendor Name**
Enter all subcontractors utilized.
4. **Tax I.D. No.**
Indicate the Federal Employer Identification No.
5. **Certification Type**
Specify the certification type of each Vendor:
DBE – Disadvantaged Business Enterprise
SWaM – Small, Woman, and Minority-Owned Business Enterprise
Non-DBE/SWaM – Subcontractor is not certified as a DBE or SWaM business in Virginia
6. **Payments to Vendors**
Dollar amount paid to Vendors during contract.
- 6a. **Payments to Vendors this Qtr.**
Dollar amount of payment made to Vendors in reporting quarter.

6b. **Payments to Vendors to Date**

Total dollar amount paid to Vendors since contract execution.

Effective (date), All Form C-63s for each reporting period shall be submitted in an electronic format to the District Civil Rights Office in each District by the following dates of each calendar year.

REPORTING SCHEDULE

Reporting Period	Date Due To Responsible VDOT Charge
July 1 – September 30	Five (5) business days after the reporting period
October 1 – December 31	Five (5) business days after the reporting period
January 1 – March 31	Five (5) business days after the reporting period
April 1 – June 30	Five (5) business days after the reporting period

If the submittal date falls on a weekend/holiday, the forms shall be submitted to the District Civil Rights Office on the following business day.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
CONTRACTOR/SUBCONTRACTOR
EQUAL EMPLOYMENT OPPORTUNITY
INFORMATION REQUEST

Form C-64
Rev. 1-1-2012

This report is developed to reflect the Total Employment of each Contracting firm performing Highway Construction Work in Virginia. It is to be used as a tool in evaluating the Contractor's posture to ensure equal employment opportunity. The requested information is to be submitted to the Civil Rights Office prior to releasing the project for construction and is required of each subcontractor as part of the subletting request.

NAME OF COMPANY _____ CONTRACTOR _____
ADDRESS _____ SUBCONTRACTOR _____
FIRMS EEO OFFICER _____ Official Title _____
TOTAL COMPANY EMPLOYMENT AS OF _____ MONTH _____ YEAR _____ (updated report required each 6 months)

EMPLOYMENT DATA

Report all permanent, temporary or part-time employees. Enter the appropriate figures on all lines and in all columns. Include apprentices and on-the-job trainees in appropriate job category totals.

JOB CATEGORIES	All Employees			Minority Group Employees											
	Total	Male	Female	Male						Female					
				Black American	American Indian/Alaskan Native	Asian	Native Hawaiian or Pacific Islander	Hispanic American	Two or More Races	Black American	American Indian/Alaskan Native	Asian	Native Hawaiian or Pacific Islander	Hispanic American	Two or More Races
Officials & Managers															
Professionals (Engr. Etc.)															
Supervisors															
Foremen															
Clerical															
Equipment Operators															
Mechanics															
Truck Drivers															
Ironworkers															
Carpenters															
Cement Masons															
Electricians															
Pipefitters, Plumbers															
Painters															
Laborers (Unskilled)															
Other															
Total															

(Include all company employees enrolled in formal on-the-job training programs)

ON THE JOB TRAINEES	Operators														
	Craftsmen														

I certify that the employment data shown above represents the ethnic composition of the firm's employment.

Prepared by _____ Signature _____ Title _____ Date _____

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
TRAINEE ENROLLMENT FORM
ON-THE-JOB TRAINING

Date _____ Route _____ Federal Project Number _____

Project No: _____

Contract Id. No. _____

Contractor: _____

Subcontractor: _____

Name of Trainee: _____ Trainee Program Selected

Social Security Number _____
(Last 4 numbers)

Apprenticeship-
DOL ☐

VTCA-VDOT ☐

Address _____

*Other _____

*Explain and attach training schedule

Identification: White _____ Black _____ American Indian or Alaskan Native _____

Asian & Pacific Islanders _____ Hispanic _____

Vietnam Era Veteran Yes _____ No _____ Age _____ Sex _____

Trainee Job Classification: _____ Length of Training _____ Hours

Date Training Started: _____

Trainee Minimum Wage Rates \$ _____ for _____ Hrs. Trainee is: New Hire _____

(Show actual wage rates to \$ _____ for _____ Hrs. Upgrade _____

be paid by Contractor) \$ _____ for _____ Hrs. Upgrade from: _____

Wage Rate \$ _____ after completion _____

Summary of previous Training: (Show approximate hours of previous training received in this or similar classification
as per interview with the Trainee) _____

Trainee Signature _____ Date _____ Contractor Representative Signature/Title _____ Date _____

Approved _____
District Civil Rights Manager Signature _____ Date _____

Copies: Contractor
Responsible Charge Engineer
Trainee

PAVEMENT MARKING CONTRACTOR'S DAILY LOG AND QUALITY CONTROL REPORT						
Contractor:			Date:	Start Time:		Finish Time:
Job/Project No:				Sheet	of	
Weather:						
Air Temp. (Start)		Air Temp. (Finish)		Surface Temp. (Start):		
* MATERIALS DOCUMENTATION:						
Type of Material	Quantity	Units	Certification Letter (Type/Date)	MS Number	Exp. Date	
WORK COMPLETED:						
Type of Marking	Contract Item No.	Quantity	Units	Location/Description	Width	Color
Quality Control Measurements:						
Material Type	Q.C. Measurement (Units)		Location	Time	Inspector (Initial)	

*** Material shipped under this certification has been tested and approved by VDOT as indicated by laboratory test numbers listed hereon.**

Contractor Q. C. Technician		Date	
VDOT Representative		Date	

Copy District Traffic Engineer
 District Materials Engineer

Pay Quantity to be based on actual field measurement verified by the Engineer.

PAVEMENT MARKING CONTRACTOR'S DAILY LOG AND QUALITY CONTROL REPORT						
Contractor:			Date:	Start Time:		Finish Time:
Job/Project No:				Sheet	of	
Weather:						
Air Temp. (Start)		Air Temp. (Finish)		Surface Temp. (Start):		
* MATERIALS DOCUMENTATION:						
Type of Material		Quantity	Units	Certification Letter (Type/Date)	MS Number	Exp. Date
WORK COMPLETED:						
Type of Marking	Contract Item No.	Quantity	Units	Location/Description	Width	Color
Quality Control Measurements:						
Material Type		Q.C. Measurement (Units)		Location	Time	Inspector (Initial)

*** Material shipped under this certification has been tested and approved by VDOT as indicated by laboratory test numbers listed hereon.**

Contractor Q. C. Technician			Date
VDOT Representative			Date

Copy District Traffic Engineer
 District Materials Engineer

Pay Quantity to be based on actual field measurement verified by the Engineer.

**COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION**

PROJECT: U000-127-S11, UPC 110843

FHWA: HSIP-5A27(670)

This form must be completed, signed and returned with bid; and failure to do so may result in the rejection of your bid. **THE CONTRACTOR SHALL AFFIRM THE FOLLOWING STATEMENT EITHER BY SIGNING THE AFFIDAVIT AND HAVING IT NOTARIZED OR BY SIGNING THE UNSWORN DECLARATION UNDER PENALTY OF PERJURY UNDER THE LAWS OF THE UNITED STATES. A SEPARATE FORM MUST BE SUBMITTED BY EACH PRINCIPAL OF A JOINT VENTURE BID.**

STATEMENT. In preparation and submission of this bid, I, the firm, corporation or officers, agents or employees thereof did not, either directly or indirectly, enter into any combination or arrangement with any persons, firm or corporation or enter into any agreement, participate in any collusion, or otherwise take any action in the restraint of free, competitive bidding in violation of the Sherman Act (15 U.S.C. Section 1) or Article 1.1 or Chapter 12 of Title 18.2 (Virginia Governmental Frauds Act), Sections 59.1-9.1 through 59.1-9.17 or Sections 59.1-68.6 through 59.1-68.8 of the Code of Virginia.

AFFIDAVIT

The undersigned is duly authorized by the bidder to make the foregoing statement to be filed with bids submitted on behalf of the bidder for contracts to be let by the Commonwealth Transportation Board.

Signed at _____, this _____ day of _____, 20 _____
County (City), STATE

By: _____
(Name of Firm) (Signature) Title (print)

STATE of _____ COUNTY (CITY) of _____

To-wit: _____, a Notary Public in and for the State and

County(City) aforesaid, hereby certify that this day _____

personally appeared before me and made oath that he is duly authorized to make the above statements and that such statements are true and correct.

Subscribed and sworn to before me this _____ day of _____, 20 _____

My Commission expires _____
Notary Public

**OR
UNSWORN DECLARATION**

The undersigned is duly authorized by the bidder to make the foregoing statement to be filed with bids submitted on behalf of the bidder for contracts to be let by the Commonwealth Transportation Board.

Signed at _____, this _____ day of _____, 20 _____
County (City), STATE

By: _____
(Name of Firm) (Signature) Title (print)

ORDER NO.:
CONTRACT ID. NO.:

Form C-105
Rev. 7-13-05

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
AFFIDAVIT

PROJECT: U000-127-S11, UPC 110843

FHWA: HSIP-5A27(670)

This form must be completed, signed, notarized and returned with bid; and failure to do so, may result in the rejection of your bid. A separate form must be submitted by each principal of a joint venture bid.

1. I, the firm, corporation or officers, agents or employees thereof have neither directly nor indirectly entered into any combination or arrangement with any person, firm or corporation or entered into any agreement, participated in any collusion, or otherwise taken any action in restraint of free competitive bidding in connection with such contract, the effect of which is to prevent competition or increase the cost of construction or maintenance of roads or bridges.

During the preceding twelve months, I (we) have been a member of the following Highway Contractor's Associations, as defined in Section 33.2-1106 of the Code of Virginia. (If none, so state).

NAME

Location of Principal Office

_____	_____
_____	_____
_____	_____

2. I (we) have _____, have not ☐, participated in a previous contract or subcontract subject to the equal opportunity clause, as required by Executive Orders 10925, 11114, or 11246, and that I/We have ☐, have not ☐, filed with the joint Reporting Committee, the Director of the Office of Federal Contract Compliance, a Federal Government contracting or administering agency, or the former President's Committee on Equal Employment Opportunity, all reports due under the applicable filing requirements.

Note: The above certification is required by the Equal Employment Opportunity Regulations of the Secretary of Labor [41 CFR 60-1.7(b)(1)], and must be submitted by bidders and proposed subcontractors only in connection with contracts and subcontracts which are subject to the equal opportunity clause. Contracts and subcontracts which are exempt from the equal opportunity clause are set forth in 41 CFR 60-1.5. (Generally only contract or subcontracts of \$10,000 or under are exempt.)

Currently, Standard Form 100 (EEO-1) is the only report required by the Executive Orders or their implementing regulations.

Proposed prime contractors and subcontractors who have participated in a previous contract or subcontract subject to the Executive Orders and have not filed the required reports should note that 41 CFR 60-1.7(b) (1) prevents the award of contract and subcontract unless such contractor submits a report covering the delinquent period or such other period specified by the Federal Highway Administration or by the Director, Office of Federal Contract Compliance, U.S. Department of Labor.

(Continued)

ORDER NO.:
CONTRACT ID. NO.:

Form C-105
page 2

3. The bidder certifies to the best of its knowledge and belief, that it and its principals:
- (a) Are not presently debarred, suspended, proposed for debarment, declared ineligible or voluntarily excluded from covered transactions by any Federal department or agency;
 - (b) Have not within a three year period preceding this proposal been convicted of or had a civil judgement rendered against them for commission of fraud or a criminal offence in connection with obtaining, attempting to obtain, or performing a public (Federal, State or local) transaction or contract under a public transaction; violation of Federal or State antitrust statutes or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, or receiving stolen property;
 - (c) Are not presently indicted for or otherwise criminally or civilly charged by a governmental entity (Federal, State or local) with commission of any of the offenses enumerated above; and
 - (d) Where the bidders is unable to certify to any of the statements in this certification, the bidder shall show an explanation below.

Explanations will not necessarily result in denial of award, but will be considered in determining bidder responsibility. For any explanation noted, indicate below to whom it applies, initiating agency, and dates of action. Providing false information may result in federal criminal prosecution or administration sanctions. The bidder shall provide immediate written notice to the Department if at any time the bidder learns that its certification was erroneous when submitted or has become erroneous by reason of change circumstances.

The undersigned is duly authorized by the bidder to make the foregoing statements to be filed with bids submitted on behalf of the bidder for contracts to be let by the Commonwealth Transportation Board.

Signed at _____, this _____ day of _____, 20____
County (City), STATE

By: _____
(Name of Firm) (Signature) Title (print)
STATE of _____ COUNTY (CITY) of _____

To-wit: _____
I _____, a Notary Public in and for the State and
County(City) aforesaid, hereby certify that this day _____

personally appeared before me and made oath that he is duly authorized to make the above statements and that such statements are true and correct.

Subscribed and sworn to before me this _____ day of _____, 20____
My Commission expires _____

Notary Public

**CONSTRUCTION RUNOFF CONTROL INSPECTION FORM (CRCIF)
C-107 CONTRACTOR INSPECTION SHEET**



Project Name/ID _____ UPC _____
Contractor _____
Inspection Date _____

Type of Inspection: (Check Appropriate Block)

- (1) Schedule 1: (5 Business Days and within 24 hours following a measurable storm event) ☐
After Measurable Storm Event ☐ Estimated Total Rainfall of Storm Event - _____ inches
(2) Schedule 2: (Monday and Thursday/ 4 Business Days) ☐
(3) Monthly Schedule ☐
(4) ☐ Other Describe: _____

Weather Conditions (At Time of Inspection) (Check All Appropriate)

Clear ☐ Sunny ☐ Partly Cloudy ☐ Cloudy ☐
Cold ☐ Cool ☐ Mild ☐ Hot ☐

Is there any discharge occurring from construction site at time of inspection?

Yes ☐ No ☐

If yes, is discharge compliant with the Erosion and Sediment Control Regulation and VPDES Construction Permit Requirements?

Yes ☐ No ☐

If no, describe conditions of discharge: _____

ITEM #	ESC INSPECTION QUESTIONS	N/A ¹	YES ²	NO ³
1	Have stabilization activities been initiated on all disturbed areas that have reached final grade or that will remain dormant for more than 14 days?	☐	☐	☐
2	Have stabilization activities been completed within 7 days of initiation?	☐	☐	☐
3	Have disposal/borrow and soil stockpiles areas been stabilized and/or protected with sediment trapping measures?	☐	☐	☐
4	Have perimeter controls been constructed as a first step prior to initiation of land disturbing activities (including clearing or grubbing)?	☐	☐	☐
5	Are perimeter and other erosion and sediment control structures and systems being maintained, inspected and repaired, as necessary, to ensure functionality?	☐	☐	☐
6	Have all land-disturbing activities occurred within the approved ESC plan area?	☐	☐	☐
7	Have earthen structures, such as dams, dikes, and diversions, been immediately stabilized upon installation?	☐	☐	☐
8	Have sediment basins and traps been constructed according to plans, specifications, and/or standards?	☐	☐	☐
9	Are all cut and fill slopes at final grade adequately stabilized?	☐	☐	☐
10	Is concentrated water flowing through adequate slope drains, flumes, or other non-erodible conveyances on cut or fill slopes?	☐	☐	☐
11	Is stormwater runoff containing sediment or turbidity being properly treated prior to discharge?	☐	☐	☐
12	Where water seeps from slope faces, has adequate drainage or erosion protection been provided?	☐	☐	☐
13	Do all operational storm sewer and culvert inlets have inlet protection in accordance with plans, specifications, and/or standards?	☐	☐	☐
14	Are constructed stormwater conveyance channels and ditches stabilized with appropriate channel lining and/or outlet protection?	☐	☐	☐
15	Is in-stream construction being conducted using measures to minimize channel impacts?	☐	☐	☐
16	Are temporary stream crossings of non-erodible material installed at locations where construction equipment must cross?	☐	☐	☐
17	Are all water quality permit requirements being adhered to?	☐	☐	☐
18	Is re-stabilization of in-stream construction areas complete before leaving the site?	☐	☐	☐
19	Are utility trenches stabilized properly according to the specifications?	☐	☐	☐
20	Is effluent from dewatering operations being filtered (including in-stream structure dewatering)?	☐	☐	☐
21	Are construction entrances installed at appropriate locations and being maintained properly?	☐	☐	☐

ITEM #	ESC INSPECTION QUESTIONS (CONTINUED)	N/A ¹	YES ²	NO ³
22	Is any sediment tracking on public roadways cleaned-up at the end of each work day?	☐	☐	☐
23	Have all temporary ESC measures that are no longer needed been removed and have all such areas been re-graded, as necessary, and stabilized?	☐	☐	☐
24	Are properties and waterways adjacent to the project site being adequately protected from accidental land disturbance, potential pollutant discharge, erosion, flooding, and sedimentation from the project site?	☐	☐	☐
25	Are all discharges from the construction site allowable under the VPDES construction permit?	☐	☐	☐
26	Are all ESC deficiencies from previous reports being addressed within allowable/established time frames?	☐	☐	☐
27	Is the location of the on-site rain gage identified on the record set of plans or in other appropriate SWPPP documents?	☐	☐	☐
28	Is the data from the daily observations of the rain gage being documented and included in the SWPPP in accordance with the Specifications and/or the SWPPP General Information Sheet?	☐	☐	☐
ITEM #	POLLUTION PREVENTION (P2) INSPECTION QUESTIONS	N/A ¹	YES ²	NO ³
29	Have all potential pollutant generating activities present on the site been identified in the SWPPP and addressed with an approved Pollution Prevention Plan?	☐	☐	☐
30	Is the person or contractor responsible for implementing and maintaining the pollution prevention practices for each potential pollutant generating support activity identified in the approved Pollution Prevention Plan?	☐	☐	☐
31	Has pollution prevention awareness been provided to appropriate personnel?	☐	☐	☐
32	Are chemicals being properly stored (e.g., under cover or within secondary containment) and handled?	☐	☐	☐
33	Are storage containers labeled to describe contents?	☐	☐	☐
34	Are construction products, materials, and wastes being properly stored, handled, and disposed of?	☐	☐	☐
35	Is the site absent of loose or uncontrolled trash and debris?	☐	☐	☐
36	Are construction waste containers being covered during precipitation events and at the end of the day?	☐	☐	☐
37	Is the site absent of spills, leaks, or stains (e.g., from hydraulic hoses, vehicle/equipment maintenance and fueling operations, etc.)?	☐	☐	☐
38	Are chemicals, soaps, solvents, and wash water from construction materials (e.g., from release oils and curing compounds from hand tools) prevented from leaving the site?	☐	☐	☐
39	Is vehicle wash water free of soaps/detergents and properly treated before leaving the site?	☐	☐	☐
40	Is concrete wash-out being directed into a properly installed leak-proof container or leak-proof settling basin?	☐	☐	☐
41	Are concrete wash-out areas being properly maintained and utilized?	☐	☐	☐
42	Are all other unauthorized non-stormwater discharges prevented from leaving the site (including untreated dust control water)?	☐	☐	☐
43	Are all P2 deficiencies from previous reports being addressed within allowable/established time frames?	☐	☐	☐
ITEM #	SWPPP UPDATE AND MODIFICATION QUESTIONS	N/A ¹	YES ²	NO ³
44	Is the SWPPP being modified, amended and updated in accordance with the specifications and/or the SWPPP General Information Sheet?	☐	☐	☐
45	Is a record set of plans being maintained and updated to document SWPPP changes?	☐	☐	☐
46	Are modifications, amendments or updates to the SWPPP being signed by the contractor and VDOT?	☐	☐	☐

1 – N/A: Not Applicable

2 – YES: All related contract items, requirements, plans, specifications, standards, and permits pertaining to this question are being satisfied

3 – NO: See Note 1 on Sheet 4

I certify under penalty of law that I have read and understand this document and that this document and all attachments were prepared in accordance with a system designed to assure that qualified personnel properly gathered and evaluated the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations

Certified CONTRACTOR: See Note 2 on Sheet 4				
	Name	Signature	ESCCC Certification Number	Date
Certified Inspector: See Note 3 on Sheet 4				
	Name	Signature	DEQ Certification Number	Date

Provide copies to 1.) the Contractor, 2.) the VDOT Project Records



Project Name/ID _____ UPC _____
 Contractor _____
 Inspection Date _____

[illegible]

CONSTRUCTION RUNOFF CONTROL INSPECTION FORM (CRCIF)
C-107 NOTES AND ACRONYMS SHEET



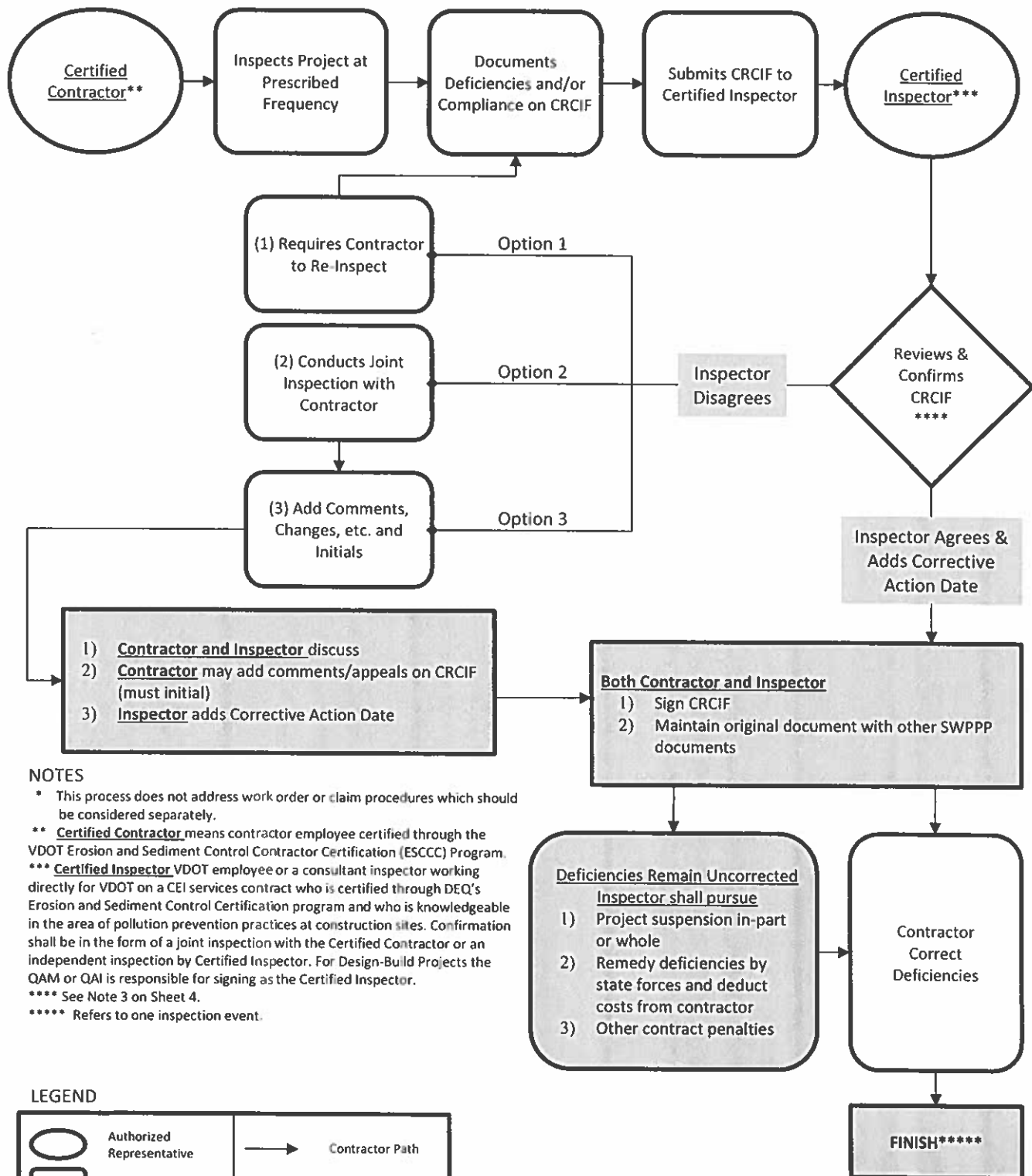
NOTES

1. If any "No" boxes are checked on the "Inspection Questions List" on Part I or if any other deficiencies of a contract specification plan item or SWPPP requirement is noted, the C-107 Deficiency Description Sheet is to be used to document the specifics of the deficiency. The description of the deficiency must contain (1) the permit condition deficiency, if applicable, (2) a description of the deficiency, (3) a corrective action deadline (should be as soon as practical and prior to the next anticipated measurable storm event but no later than seven days after the date of the site inspection that identified the deficiency) and (4) a recommended solution or approach. If this is a follow-up inspection, previous deficiencies that have been corrected must be documented as such. Date of when previous deficiencies have been corrected must be completed. If conformity to specifications and plans is being achieved but the site conditions indicate that plan or specification adjustments may be needed to address environmental concerns, such conditions should be immediately referred to the designated Responsible Land Disturber (RLD) for resolution. SWPPP shall be updated no later than seven days following any modifications to its implementation.
2. The Part I inspection and report is to be completed in accordance with the inspection schedule in the most recent Supplement to the VDOT R&B specifications. Inspection to be conducted and report signed and submitted by a Contractor employee (Certified Contractor) who is certified through the VDOT Erosion and Sediment Control Contractor Certification (ESCCC) Program
3. The Part I report is to be accepted, confirmed, certified and signed by a VDOT employee or a consultant inspector working directly for VDOT on a CEI services contract (Certified Inspector) who is certified through DEQ's Erosion and Sediment Control Certification program and who is knowledgeable in the area of pollution prevention practices at construction sites. Confirmation shall be in the form of a joint inspection with the Certified Contractor or an independent inspection by Certified Inspector. For Design-Build Projects the QAM or QAI is responsible for signing as the Certified Inspector.
4. All original completed C-107 Forms are to be maintained with the other SWPPP documents for the land disturbing activity. Copies of this report are to be provided to the Contractor and the VDOT Project Inspector to keep in the project records.
5. For Part I, non-compliant, non-compliance, or deficient is defined as documented evidence of (1) off-site damage in the form of sedimentation, unauthorized dewatering or pollutant discharge, erosion, flooding, encroachment outside of the project/permit limits, or a permit condition deficiency, (2) on-site damage in the form of significant erosion, flooding, sedimentation or uncontrolled pollution discharge, or (3) a previous deficiency that has not been corrected within the specified timeframe.
6. For the purposes of this document, a day is a calendar day unless otherwise stated.

ACRONYMS

ACE	Area Construction Engineer
CEI	Construction, Engineering and Inspection
CRCIF	Construction Runoff Control Inspection Form
DEQ	Virginia Department of Environmental Quality
ESC	Erosion and Sediment Control
ESCCC	Erosion and Sediment Control Contractor Certification
MS	Minimum Standard
P2	Pollution Prevention
R&B	Road & Bridge
RLD	Responsible Land Disturber
SWM	Stormwater Management
SWPPP	Stormwater Pollution Prevention Plan
VAC	Virginia Administrative Code
VDOT	Virginia Department of Transportation
VESCR	Virginia Erosion and Sediment Control Regulations
VPDES	Virginia Pollutant Discharge Elimination System
VSMP	Virginia Stormwater Management Program

CONSTRUCTION RUNOFF CONTROL INSPECTION FORM (CRCIF)
C-107 CHAIN OF DOCUMENTED COMMUNICATION*



CONSTRUCTION RUNOFF CONTROL INSPECTION FORM (CRCIF)
C-107 VDOT INSPECTION SHEET

Project Name/ID _____ UPC _____

Contractor _____

Inspection Date _____
(See Note 5 on Sheet 2)

ITEM #	INSPECTION QUESTIONS	N/A	YES	NO
1	Is a copy of the signed VPDES Construction Permit coverage letter in the SWPPP?*	☐	☐	☐
2	Is a copy of the VPDES General Permit For Discharges Of Stormwater from Construction Activities contained in the SWPPP?*	☐	☐	☐
3	Are copies of the LD-445 and LD-445E forms contained in the SWPPP?*	☐	☐	☐
4	Is a copy of the LD445A form completed and posted in accordance with the SWPPP General Information Sheet requirements?*	☐	☐	☐
5	Are all ESC and P2 inspections being performed, recorded and documented in accordance with the specifications?	☐	☐	☐
6	Are corrective actions being identified, performed and documented in accordance with the specifications?	☐	☐	☐
7	Have enforcement actions been taken?	☐	☐	☐
8	If answer yes to #7, has documentation of enforcement actions been included in the SWPPP?	☐	☐	☐

ITEM #	STATION	DESCRIPTION OF PROBLEM, LOCATION, AND RECOMMENDED CORRECTIVE ACTION (NOTE 4)	DATE TO BE CORRECTED BY	DATE CORRECTIVE ACTION COMPLETED

I certify under penalty of law that I have read and understand this document and that this document and all attachments were prepared in accordance with a system designed to assure that qualified personnel properly gathered and evaluated the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations

VDOT ACE: See Note 3 on Sheet 2				
	Name	Signature	DEQ Certification Number (s)	Date
Provide copies to 1.) the Contractor, 2.) the VDOT Project Records (See Note 2 on Sheet 2)				

**CONSTRUCTION RUNOFF CONTROL INSPECTION FORM (CRCIF)
C-107 NOTES AND ACRONYMS SHEET**



NOTES

- * Applies only to projects with coverage under the VPDES Construction General Permit.
- 1. All original completed C-107 Forms are to be maintained with the other SWPPP documents for the land disturbing activity.
- 2. Copies of this report are to be provided to the Contractor and the VDOT Project Inspector to keep in the project records.
- 3. The Part II inspection and report is to be completed and signed by the VDOT ACE. The ACE may delegate this responsibility to another VDOT employee or consultant inspector working directly for VDOT on a CEI services contract provided 1) the delegation is made in writing by the ACE, 2) the delegated person is not the same person that signs the C-107 Part I form, 3) the delegated person is responsible for the overall operation of the project, making assignments, supervising, and providing technical advice to project inspectors 4) the delegated person is certified through DEQ's Erosion and Sediment Control and Stormwater Management Certification programs and is knowledgeable in the area of pollution prevention practices at construction sites.
- 4. If any "No" boxes are checked on the "Inspection Questions List" on Part II or if any other deficiencies of a contract specification plan item or SWPPP requirement is noted, the Deficiency Description Table is to be completed to document the specifics of the deficiency. The description of the deficiency must contain (1) the permit condition deficiency, if applicable, (2) a description of the deficiency, (3) a corrective action deadline (should be as soon as practical and prior to the next anticipated measurable storm event but no later than seven days after the date of the site inspection that identified the deficiency) and (4) a recommended solution or approach. If this is a follow-up inspection, previously addressed deficiencies that have been corrected must be documented as such.
- 5. The C107 Part II shall be completed at the initiation of the land disturbing activity and every 60 days thereafter until termination of the VPDES Construction General Permit coverage.

ACRONYMS

ACE	Area Construction Engineer
CEI	Construction, Engineering and Inspection
CRCIF	Construction Runoff Control Inspection Form
ESC	Erosion and Sediment ControlP2 Pollution Prevention
R&B	Road & Bridge
SWM	Stormwater Management
SWPPP	Stormwater Pollution Prevention Plan
VDOT	Virginia Department of Transportation
VPDES	Virginia Pollutant Discharge Elimination System

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TRANSPORTATION
CERTIFICATION OF BINDING AGREEMENT
WITH

DISADVANTAGED BUSINESS ENTERPRISE FIRMS

Project No.: U000-127-S11, UPC 110843

Federal Project No.: HSIP-5A27(670)

This form is to be submitted in accordance with the Department's Special Provision for Section 107.15.

It is hereby certified by the below signed Contractors that there exists a written quote, acceptable to the parties involved preliminary to a binding subcontract agreement stating the details concerning the work to be performed and the price which will be paid for the aforementioned work. This document is not intended to, nor should it be construed to, contain the entire text of the agreement between the contracting parties. This document does not take the place of, nor may it be substituted for, an official subcontracting agreement in those situations that may require such an agreement. A copy of the fully executed *subcontract agreement* shall be submitted to the Engineer within fourteen (14) business days after contract execution.

It is further certified that the aforementioned mutually acceptable quote and fully executed subcontract agreement represent the entire agreement between the parties involved and that no conversations, verbal agreements, or other forms of non-written representations shall serve to add to, delete, or modify the terms as stated.

The prime Contractor further represents that the aforementioned mutually acceptable quote and fully executed subcontract agreement shall remain on file for a period of not less than one year following completion of the prime's contract with the Department or for such longer period as provisions of governing Federal or State law or regulations may require. For purposes of this form, the term Prime Contractor shall refer to any Contractor utilizing a DBE subcontractor, regardless of tier, in which they are claiming DBE credit toward the contract goal.

Contractors further jointly and severally represent that said binding agreement is for the performance of a "commercially useful function" as that term is employed in 49 C.F.R. Part 26.55 (c), (d).

**TO BE SIGNED BY THE SUBCONTRACTOR TO THE PRIME CONTRACTOR, AND ANY LOWER TIER
SUBCONTRACTORS HAVING A CONTRACT WITH THE BELOW NAMED DBE FIRM**

Prime Contractor _____

By: _____
Signature Title

Date: _____

First Tier
Subcontractor if
Applicable

By: _____
Signature Title

Date: _____

Second Tier
Subcontractor if
Applicable

By: _____
Signature Title
Date: _____

Third Tier
Subcontractor if
Applicable

By: _____
Signature Title
Date: _____

DBE Contractor

By: _____
Signature Title
Date: _____

"General Decision Number: VA20220126 01/07/2022

Superseded General Decision Number: VA20210126

State: Virginia

Construction Type: Highway

Counties: Henrico and Richmond* Counties in Virginia.

*including the independent city of Richmond

HIGHWAY CONSTRUCTION PROJECTS (excluding tunnels, building structures in rest area projects & railroad construction; bascule, suspension & spandrel arch bridges designed for commercial navigation, bridges involving marine construction; and other major bridges).

Note: Contracts subject to the Davis-Bacon Act are generally required to pay at least the applicable minimum wage rate required under Executive Order 14026 or Executive Order 13658. Please note that these Executive Orders apply to covered contracts entered into by the federal government that are subject to the Davis-Bacon Act itself, but do not apply to contracts subject only to the Davis-Bacon Related Acts, including those set forth at 29 CFR 5.1(a)(2)-(60).

If the contract is entered into on or after January 30, 2022, or the contract is renewed or extended (e.g., an option is exercised) on or after January 30, 2022, Executive Order 14026 generally applies to the contract. The contractor must pay all covered workers at least \$15.00 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on that contract in 2022.

If the contract was awarded on or between January 1, 2015 and January 29, 2022, and the contract is not renewed or extended on or after January 30, 2022, Executive Order 13658 generally applies to the contract. The contractor must pay all covered workers at least \$11.25 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on that contract in 2022.

The applicable Executive Order minimum wage rate will be adjusted annually. If this contract is covered by one of the Executive Orders and a classification considered necessary for performance of work on the contract does not appear on this wage determination, the contractor must still submit a conformance

request.

Additional information on contractor requirements and worker protections under the Executive Orders is available at www.dol.gov/whd/govcontracts.

Modification Number	Publication Date
0	01/07/2022

* ELEC0080-011 06/01/2019

	Rates	Fringes
ELECTRICIAN, Includes Traffic Signalization.....	\$ 28.35	15.95%+7.00

SUVA2016-062 07/02/2018

	Rates	Fringes
CARPENTER, Includes Form Work....	\$ 19.22	0.00
CEMENT MASON/CONCRETE FINISHER...	\$ 16.03	0.00
IRONWORKER, REINFORCING.....	\$ 20.80	0.00
IRONWORKER, STRUCTURAL.....	\$ 27.38	0.00
LABORER: Asphalt, Includes Raker, Shoveler, Spreader and Distributor.....	\$ 19.21	2.82
LABORER: Common or General.....	\$ 15.74	2.05
LABORER: Grade Checker.....	\$ 14.88	0.00
LABORER: Pipelayer.....	\$ 17.76	0.00
LABORER: Power Tool Operator....	\$ 15.69	0.00
OPERATOR: Backhoe/Excavator/Trackhoe.....	\$ 17.61	2.53
OPERATOR: Bobcat/Skid Steer/Skid Loader.....	\$ 19.16	4.45

OPERATOR: Broom/Sweeper.....	\$ 17.40	2.01
OPERATOR: Crane.....	\$ 24.42	4.69
OPERATOR: Drill.....	\$ 24.66	0.00
OPERATOR: Gradall.....	\$ 19.26	0.00
OPERATOR: Grader/Blade.....	\$ 23.21	0.00
OPERATOR: Hydroseeder.....	\$ 16.64	0.00
OPERATOR: Loader.....	\$ 17.17	0.00
OPERATOR: Mechanic.....	\$ 21.43	0.00
OPERATOR: Milling Machine.....	\$ 23.12	3.60
OPERATOR: Paver (Asphalt, Aggregate, and Concrete).....	\$ 20.44	3.83
OPERATOR: Piledriver.....	\$ 21.83	4.08
OPERATOR: Roller (Finishing)....	\$ 19.05	1.29
OPERATOR: Roller.....	\$ 21.69	0.00
OPERATOR: Screed.....	\$ 22.13	4.89
OPERATOR: Asphalt Spreader and Distributor.....	\$ 19.09	1.81
OPERATOR: Bulldozer, Including Utility.....	\$ 18.22	2.69
TRAFFIC CONTROL: Flagger.....	\$ 12.89	0.00
TRUCK DRIVER : HEAVY 7CY & UNDER.....	\$ 15.53	0.00
TRUCK DRIVER: 1/Single Axle Truck.....	\$ 16.48	3.64
TRUCK DRIVER: Fuel and Lubricant Service.....	\$ 18.25	0.00
TRUCK DRIVER: HEAVY OVER 7		

CY.....	\$ 16.98	0.00
TRUCK DRIVER: MULTI AXLE.....	\$ 17.94	0.00

WELDERS - Receive rate prescribed for craft performing operation to which welding is incidental.

=====

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors applies to all contracts subject to the Davis-Bacon Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Unlisted classifications needed for work not included within the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (ii)).

The body of each wage determination lists the classification and wage rates that have been found to be prevailing for the cited type(s) of construction in the area covered by the wage determination. The classifications are listed in alphabetical order of "identifiers" that indicate whether the particular rate is a union rate (current union negotiated rate for local), a survey rate (weighted average rate) or a union average rate (weighted union average rate).

Union Rate Identifiers

A four letter classification abbreviation identifier enclosed in dotted lines beginning with characters other than ""SU"" or ""UAVG"" denotes that the union classification and rate were prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2014. PLUM is an abbreviation identifier of the union, which prevailed in the survey for this classification, which in this example would be Plumbers 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. 07/01/2014 is the effective date of the most current negotiated rate, which in this example is July 1, 2014.

Union prevailing wage rates are updated to reflect all rate changes in the collective bargaining agreement (CBA) governing this classification and rate.

Survey Rate Identifiers

Classifications listed under the ""SU"" identifier indicate that no one rate prevailed for this classification in the survey and the published rate is derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As this weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SULA2012-007 5/13/2014. SU indicates the rates are survey rates based on a weighted average calculation of rates and are not majority rates. LA indicates the State of Louisiana. 2012 is the year of survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. 5/13/2014 indicates the survey completion date for the classifications and rates under that identifier.

Survey wage rates are not updated and remain in effect until a new survey is conducted.

Union Average Rate Identifiers

Classification(s) listed under the UAVG identifier indicate that no single majority rate prevailed for those classifications; however, 100% of the data reported for the classifications was union data. EXAMPLE: UAVG-OH-0010 08/29/2014. UAVG indicates that the rate is a weighted union average rate. OH indicates the state. The next number, 0010 in

the example, is an internal number used in producing the wage determination. 08/29/2014 indicates the survey completion date for the classifications and rates under that identifier.

A UAVG rate will be updated once a year, usually in January of each year, to reflect a weighted average of the current negotiated/CBA rate of the union locals from which the rate is based.